

**THE SUBJECT'S UNANSWERED PLEA: A RESTORATIVE AND  
COMPARATIVE HISTORY OF IMMUNITY**

Joseph D. Kirchner

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## TABLE OF CONTENTS

|                                                                                        |    |
|----------------------------------------------------------------------------------------|----|
| PREFACE.....                                                                           | 6  |
| INTRODUCTION.....                                                                      | 8  |
| METHOD.....                                                                            | 17 |
| <i>A. The Hierarchy of Interpretive Discipline.....</i>                                | 17 |
| <i>B. The Record Before the Report.....</i>                                            | 18 |
| <i>C. The Source-Text Audit, the Verb Test, and the Strategic Paraphrase.....</i>      | 20 |
| PART 1 — ENGLISH ORIGIN AND REPUDIATION, 1591–1769.....                                | 23 |
| 1.1 Anglesey before the Case, 1591–1600.....                                           | 24 |
| 1.2 The Cause of 1607: Floyd v. Barker Read from Its File.....                         | 29 |
| <i>A. The Order: A Bill Defaced Without Answer.....</i>                                | 29 |
| <i>B. The One Destruction in the Reports.....</i>                                      | 30 |
| <i>C. The Surviving File: Sixteen Articles Against the Accuser.....</i>                | 34 |
| <i>D. Two Ledgers: Presents to the Bench, Ten Shillings to the Complainant.....</i>    | 37 |
| <i>E. The Bill as the Ordinary Remedy.....</i>                                         | 40 |
| <i>F. The Sequel: The Judge Promoted, the Accuser Tried Again.....</i>                 | 41 |
| <i>G. The Name on the Doctrine.....</i>                                                | 42 |
| 1.3 The Report: The Three Locks, Their Author, and the Forum They Reserved.....        | 44 |
| <i>A. The Three Locks.....</i>                                                         | 44 |
| <i>B. The Root Sentence Inverted in Print, and the Rule's Two Limits.....</i>          | 45 |
| <i>C. The Reporter as Prosecutor, 1605–07.....</i>                                     | 48 |
| <i>D. The Reserved Forum Used Once: Coke Removed, 1616.....</i>                        | 51 |
| <i>E. The Forum Closed to the Subject: Judges Sentenced, Petitioners Punished.....</i> | 53 |
| <i>F. The Court's Own Registers Lost.....</i>                                          | 57 |
| 1.4 The Report's Sources, Read at the Page.....                                        | 59 |
| <i>A. The Leaf Cites No English Case.....</i>                                          | 59 |
| <i>B. The Three Sources, Each at Its Own Page.....</i>                                 | 65 |
| <i>C. Hobbes as the Hinge.....</i>                                                     | 78 |
| 1.5 Blackstone's Two Chapters, 1765–69: One Premise, Two Rules.....                    | 82 |
| 1.6 England Repudiates the Court and Its Premise, 1641–1701.....                       | 85 |
| PART 2 — AMERICAN RECEPTION AND GENEALOGY, 1761–2024.....                              | 89 |
| 2.1 The Revolution and the Founding, 1761–1791.....                                    | 90 |
| 2.2 What Crossed in 1791, and What Was Received in 1868.....                           | 94 |

|                                                                                   |     |
|-----------------------------------------------------------------------------------|-----|
| <i>A. What Crossed, and What Was Received</i> .....                               | 94  |
| <i>B. Whose Decisions Count</i> .....                                             | 99  |
| 2.3 The Spine: Immunity With No Constitutional Source.....                        | 107 |
| 2.4 Entry by Citation, Not Adjudication.....                                      | 122 |
| <i>A. The Entry by Citation: Randall, Bradley, Spalding, 1868–1896</i> .....      | 122 |
| <i>B. The Curated Pedigree: The Liability Cases Set Aside</i> .....               | 125 |
| <i>C. The Bar's Record, 1951–2000: How the Doctrine Was Argued</i> .....          | 129 |
| <i>D. The Source Put in Issue Twice: Stump and Pulliam</i> .....                  | 135 |
| 2.5 The Apex: Presidential Immunity, 1982–2024.....                               | 138 |
| <i>A. Two Decisions of One Day as Each Other's Authority</i> .....                | 138 |
| <i>B. The Source-Text Audit: Seven Inversions</i> .....                           | 141 |
| <i>C. The Fearlessness Keystone and Its Inversion</i> .....                       | 150 |
| <i>D. "Energy" Is Structural, Not Psychological</i> .....                         | 156 |
| <i>E. One Hypothetical, Credited for the Official Alone</i> .....                 | 157 |
| PART 3 — THE CONSTITUTIONAL CASE AGAINST THE DOCTRINE.....                        | 162 |
| 3.1 The Three Locks Rebuilt in Modern Doctrine.....                               | 162 |
| <i>A. Lock for Lock: The Modern Doctrine Reinstalls the Loop</i> .....            | 163 |
| <i>B. Lock One Up Close: The Authentication/Crediting Boundary</i> .....          | 164 |
| <i>C. Lock One's Procedural Form: The Seventh Amendment</i> .....                 | 167 |
| <i>D. The Output: Official Wrong Made Unreviewable</i> .....                      | 171 |
| 3.2 The Doctrine Fails on Its Own Terms.....                                      | 172 |
| <i>A. The Inverted Hierarchy, Realized</i> .....                                  | 172 |
| <i>B. The Ninth Amendment's Rule of Construction</i> .....                        | 174 |
| <i>C. An Unconsidered Question Is Undecided</i> .....                             | 176 |
| <i>D. The Doctrine Fails the Tradition It Claims</i> .....                        | 176 |
| <i>E. Granting the Doctrine: A Filter That Cannot Fail the Apex Officer</i> ..... | 180 |
| <i>F. The Doctrine That Compels Examination</i> .....                             | 181 |
| 3.3 The Founding Act, Measured by the Receiving Order's Law.....                  | 183 |
| <i>A. The Act That Made the Rule, Measured</i> .....                              | 183 |
| <i>B. The Receiving Order's Answer to Each Source the Report Named</i> .....      | 186 |
| 3.4 What a Court May Do Without Overruling Anything.....                          | 187 |
| <i>A. The Concessive Path: Overruling Nothing</i> .....                           | 188 |
| <i>B. Accountability Is the Founding's Answer</i> .....                           | 189 |
| <i>C. The Maxim as a Rule of Decision</i> .....                                   | 190 |

|                                                                                         |     |
|-----------------------------------------------------------------------------------------|-----|
| <i>D. Why the Apparatus Has Held — and What That Implies</i> .....                      | 191 |
| Conclusion to Parts 2 and 3.....                                                        | 192 |
| PART 4 — THE SAME QUESTION PUT TO OTHER SOVEREIGNS.....                                 | 195 |
| 4.1 Three Questions and Four Terms.....                                                 | 195 |
| 4.2 The English Rule as It Stands Today.....                                            | 197 |
| 4.3 The Eighteenth-Century Bargain: The Sovereign Shielded, the Servant Answerable..... | 200 |
| 4.4 The Kingdoms That Answer the Subject.....                                           | 203 |
| 4.5 The Codes That Answer the Sovereign Against the Judge.....                          | 207 |
| 4.6 America: The Text Channels, the Corpus Nullifies.....                               | 212 |
| 4.7 The Two Axes, and Where England Sits.....                                           | 217 |
| 4.8 What the Comparison Adds to the Transfer Thesis.....                                | 220 |
| PART 5 — THE OLDER RECORD: REMEDIES AGAINST THE JUDGE BEFORE 1607.....                  | 222 |
| 5.1 The Question Put to the Older Record.....                                           | 222 |
| 5.2 Babylon and Athens: Restitution, Expulsion, the Citizen's Charge.....               | 224 |
| 5.3 Rome: The Subject's Action and the Sovereign's Prosecution.....                     | 226 |
| 5.4 Byzantium: Both Remedies Kept, the Bench Salaried.....                              | 230 |
| 5.5 Francia: The Duty Stated, the Bribed Judge Killed.....                              | 234 |
| 5.6 England before the Rule.....                                                        | 236 |
| 5.7 What the Older Record Shows.....                                                    | 239 |
| PART 6 — STANDING: THE OTHER DOOR.....                                                  | 241 |
| 6.1 Introduction: The Two Doctrines Are One.....                                        | 241 |
| 6.2 The Entry Lock: Standing With No Constitutional Source.....                         | 246 |
| <i>A. The Spine</i> .....                                                               | 247 |
| <i>B. The Datable Invention</i> .....                                                   | 250 |
| <i>C. The Refuted Pedigree</i> .....                                                    | 251 |
| <i>D. The Before/After Photograph</i> .....                                             | 252 |
| <i>E. The Floor That Actually Existed</i> .....                                         | 254 |
| <i>F. The Rationale-Inversion</i> .....                                                 | 256 |
| 6.3 One Prerogative, Two Halves.....                                                    | 257 |
| <i>A. The Federalist's Repudiation of the Premise</i> .....                             | 258 |
| <i>B. The Inconsistency Proof</i> .....                                                 | 259 |
| <i>C. The Pair-Travel Finding</i> .....                                                 | 259 |
| <i>D. Take Care: One Clause, Both Locks</i> .....                                       | 260 |
| <i>E. The Shared Device: Particularization at Both Doors</i> .....                      | 262 |

|                                                                                    |     |
|------------------------------------------------------------------------------------|-----|
| <i>F. The Inter-Chain Silence.....</i>                                             | 265 |
| 6.4 The Doctrines Fail Together.....                                               | 266 |
| <i>A. The Inverted Hierarchy at Both Doors.....</i>                                | 266 |
| <i>B. The One-Sided Ledger.....</i>                                                | 267 |
| <i>C. The Retrodiction: An Objective Alternative the Results Already Obey.....</i> | 268 |
| <i>D. The Asymmetric Hypothetical at the Entrance.....</i>                         | 270 |
| <i>E. The Vise.....</i>                                                            | 271 |
| <i>F. The Examination the Court Already Requires.....</i>                          | 272 |
| 6.5 Conclusion to Part 6.....                                                      | 273 |
| CONCLUSION.....                                                                    | 274 |
| NOTES.....                                                                         | 279 |
| BIBLIOGRAPHY.....                                                                  | 303 |

## PREFACE

This book grew out of three articles written in the summer of 2026 on a single question: where the immunity of officials comes from, and whether the source bears the weight placed on it. The first read the founding case of the doctrine from its surviving file in The National Archives; the second traced the American doctrine built on that case from the bottom up, from what the opinions themselves cite; the third put the same question to the law of standing and found the other half of the same prerogative at the other door. The three arguments proved to be one, and this book is that argument, with the record restored and the comparison added.

Part of what launched me into the research was K. J. Kesselring's study of conspiracy in the Court of Star Chamber, published in 2025, which set *Floyd v. Barker* back among the court's own cases and named the archives in which the case survives: Coke's printed report, a second account in a Harvard manuscript, and the interrogatories and pleadings that remain in The National Archives. Reading those archives entire is what followed, and her work is cited wherever the book rests on it.

I do not read Latin, Greek or Hebrew. Where the book quotes those languages it quotes what is printed on the page, sets the translations of the period beside it, and states as undecided any reading that remains in doubt; those readings await professional review, and the book says so where it happens. Where no translation of the period exists and the note names no published translation, as for the Greek and Latin of Part 5 and the Latin and Hebrew of chapter 1.4, the English beside the original was prepared for this book from the edition the note cites and stands unverified against any published translation; those renderings await the same review. The transcription of the cause file was verified by Christopher Whittick, who is the author of the final texts the book quotes. The errors that remain are mine.

Joseph D. Kirchner

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## INTRODUCTION

In 1600 a man drowned in Anglesey, with his horse. Years later the death was recast as murder. Two men of one family were executed, one of them for that death, on the examinations of Welsh-speaking witnesses "written in English contrary to their sayings in welsh," and the judge who tried the cause would not let the jury hear the examinations of the men who had found the body. When a surviving kinsman carried a sworn complaint against that judge to the Star Chamber at Westminster, under a vow made to a dying man, the court did not answer it. In the Easter term of 1607, by the report's own dating, it ordered the bill "taken off the file and cancelled, and utterly defaced," fined the complainant, sent him to the pillory and to prison, and resolved that a judge "shall not be drawn in question before any other Judge, for any surmise of corruption, except before the King himself." The case is *Floyd v. Barker*, and it is named for the man it crushed: Floyd is the complainant, not the judge.

The thread this book follows is older than any clause of the American Constitution. In every legal order this book has read before 1607, from Babylon to the England of the dooms, the judge who wronged a subject answered for it: each order met the wrong with a remedy and stated the judge's duty, and none met it with a shield. Among the orders read, the rule of 1607 is the exception, and English and American jurisprudence, the two orders that carried it forward, stand apart from that record: their doctrine extinguishes the subject's remedy against the judge and, unlike even the codes that share that denial, the sovereign's remedy against him as well. The forum the rule reserved supplies the thread's second strand. A plea transferred to a King who never answered it was not adjudged, only refused, and a complaint rejected unheard is not, on any page of the record this book has read, justice done. The clauses and statutes of the American



chapters, the oath, the duty to take care, the law of records, are the instruments by which the receiving order is measured against its own text; they are not the thread.

Every American whom official immunity turns away from a federal courthouse is turned away by the decree of 1607. The doctrine entered United States law in 1868, when the Supreme Court in *Randall v. Brigham* received the rule of 1607 by citation, "as old as the law," from Coke's report and without the record. It was read into a statute whose text makes "every person" liable; it hardened into the rule that an official who violates the Constitution answers only if the right was "clearly established"; it reached the presidency in 1982; and in 2024 it reached the criminal law itself. Each decision in that chain is a node. Common law, in this book, is the body of judicial decisions that interpret de jure law, the text as written, according to the principle of stare decisis. A node is one such decision, whatever the court and whatever the law. The received usage keeps the name common law for the English inheritance and calls American decisions precedent, as if the two were different things. No such distinction exists; this book finds none. At no node of that chain did a court produce a constitutional provision, and at no node did a court read the case. What the receiving courts had was the report. What none of them had was the file, which the report's own decree had mutilated and which this book reads entire. Even the report went unread. Its root sentence, as printed from 1656 to this day, forbids proof against the presumption that a judge sworn to do justice "will do injustice", the reverse of the rule four centuries of courts have taken it to state; the sentence the right way round lay in Coke's notebook, unprinted until 2025, and no decision in the chain appears to have noticed that the page in front of it said the opposite. The Court that received the case dated it a year late and repeated the misdate a century on; a court that had read the report would have taken its term from the report.

Three bars faced the subject wronged by a sworn officer in 1607, and this book calls them the three locks. No proof could be admitted against the official's act, because records "import verity in themselves" and the law would admit nothing against the presumption of official rectitude: the first lock, verity by status. The grievance could be heard nowhere but "before the King himself," because to question the officer was to question the Crown: the second lock, the reserved forum. And the King "in his own person cannot adjudge any case," and "the party cannot have remedy against the King": the third lock, the remedy foreclosed. No proof, only the sovereign, and the sovereign cannot act and owes nothing. Chapter 1.3 § A sets the three out from the reports of 1607 in which Coke fixed them; chapter 2.1 shows the Founding cutting all three; chapter 3.1 shows the modern doctrine rebuilding them, lock for lock.

The rule was not English law at its own leaf. For every proposition about the record and about conspiracy the report cites English authority; for the rule it cites none. It rests the rule on the King's person, on a line of a Roman tragedian taken through Cicero, and on a gloss of what it is to answer to God, and the one English judge it names, Thorpe, was a Chief Justice condemned to death for the corruption the rule declares unquestionable, under the very oath the report invokes. The court's own practice in the decade before ran the other way: it recited Thorpe as living law, heard a subject's bill against a justice of the peace for a judicial act and decided it on the merits, and a contemporary hand that sat through the Easter term of 1607 recorded four sittings and no cause between Floyd and Barker. Chapter 1.4 reads the leaf and each source it names.

The book's case against the doctrine rests on two grounds, stated in chapters 2.2 and 3.3 and applied in the chapters around them. The first is the transfer thesis. The rule of 1607 did not extinguish the subject's plea against a judge; it transferred the plea to the King, the one person

who on the rule's own theory of delegation could hear it. The King never answered such a plea. Where a subject sought that forum the petition itself was prosecuted; the one hearing on record was a peer's; and a rule whose only operation was the King's answer had been refused by its own apex a generation before the court that made it was abolished in 1641.

American jurisprudence then received the rule with no King to receive the plea. Two arguments have been made against it since, and this book's case begins where they stop. The first is irony. In 1989 Donald and Joan Hunziker, hog farmers of Stephenson County, Illinois, whose livestock, grain and equipment a sheriff had seized at their farmstead on a writ issued without notice, asked the Seventh Circuit, without counsel, how the courts of a sovereign people can rest on a rule "derived from a system assuming the power to govern by divine right." The writ had been served on a bond that was not secured, though the statute required a secured bond before service. The court of appeals held the writ proper all the same, extended the judge's immunity to the sheriff who served it, and answered the argument from 1607 in a footnote of an order it left unpublished and, by the circuit's own rule, not to be cited as precedent. The order of 1607 took the bill off the file and defaced it; the order of 1990 kept its answer out of the record of the law. Thirty-five years later the dissent of 2024 found a "twisted irony" in the duty to take care read as a license. The second is a weighing, the official's fear of suit against the citizen's fear of a lawless official, from Justice Douglas in 1967 to that same dissent. But irony alone cannot move a court, and a fear set against a fear leaves the court free to credit whichever it prefers.

The restored record and the receiving order's judgment on the act of 1607 show repugnancy; they do not say where the constitutional incompatibility lies. This book says where. A plea that can be heard by none but the King presupposes a King able to answer it. In American jurisprudence the King is the Constitution. The Constitution cannot be sat before, take an account

of a judge or rehear what an Article III judge left unheard; it delegates the judicial power to courts, so that the answer is given in court. A rule whose whole operation is the sovereign's answer cannot operate as common law under a sovereign that cannot answer, and the founding generation adopted of the common law only what was "applicable to their situation." That is not an irony that lurks in the reader's eye. It is a logic that lurks in the record, and a question that has lurked there unconsidered is a question no court has decided.

The second ground is the founding act itself. The law that received the rule treats the destruction of a court-filed complaint as a felony that forfeits office, presumes destroyed proof adverse to its destroyer, names official concealment that extinguishes a claim a denial of due process and of access to the courts, and withdraws from every tribunal the power to deface a thing whose existence is the offence. Measured by the receiving order's own law (an order, as this book uses the word, is a sovereign's law taken whole, not a single decree), the act that made the rule is the wrong the rule exists to foreclose.

One rationale holds the chain together at every node, and the book follows it from its birth. The doctrine rests on a prediction, that the official exposed to suit will not act. The prediction entered the cause of 1607 as the accused sheriff's pleading, that the bill was contrived to "stryke a feare into the h[arts]" of the county's jurors, and left it as the report's rule; the report did not find the fear, it adopted it. The Founding met the same rationale in Parliament's own voice, in the Act of 1774 that removed the trials of officials lest they be "discouraged from the proper Discharge of their Duty", and enumerated the protecting of officials "by a mock Trial, from punishment" among the acts that define a tyrant. At every node since, the prediction has been credited for the official and never tested against the citizen, and the doctrine's critics have

answered it with predictions of their own. This book answers it with the record. A record is not weighed against a fear. It displaces the need for one.

Put to other sovereigns as their law stands today, the question the rule reserved, what a subject may do against a judge, returns a finding of the same shape as the older record's. Asked who pays for the wrong done to the subject, England's law as written gives the answer of the codes of Moscow, Beijing, Pyongyang and Riyadh, not the answer of the continental kingdoms, which moved that cost onto the State. Asked whether the judge is exposed for his decision, those codes keep him punishable and removable by a political or supervisory organ, so that the exposure of the judge which Part 1 records in Coke's England survives in them as an instrument of control, and England's judge is the most immune of any order read. The Anglo-American rule thus shares with the codes the denial of the subject's remedy and, alone among the orders read, denies the sovereign's as well; the kingdoms differ from both, for the State pays and the judge answers to no sovereign's displeasure. Chapter 4.1 states the degree to which each order is examined; the finding is a classification of texts, and the book claims nothing more for it.

The title names the plea and the book's two labours. The plea is Floyd's, defaced unheard, and the plea of every subject after him whom the rule sent to a King who did not answer. The history is restorative because it restores the record the report displaced: the cause file in The National Archives, transcribed entire and conformed to a commissioned professional transcription; the second contemporaneous account of the case in a Harvard manuscript; the letters and registers of the county where the cause arose; the reporter's own notebook, in print only since 2025; and the early printed Bibles, the Roman and canon texts and Hobbes, each read at the page for what the 1607 court made of it. It is comparative because it puts the question the rule reserved, what a subject may do against a judge, to other sovereigns and to the older record:

to England as it stands today and as it stood in 1701, to the kingdoms whose laws answer the subject and the codes that answer the sovereign against the judge, and to Babylon and Athens, Rome, Byzantium, Francia and the England before the rule. And it treats sovereign, absolute and qualified immunity as three names for one exemption, descended from one decree, because that is what the genealogy shows them to be. The decree itself had no name for what it conferred: the report's phrase is the account to God and the King, the century's theorist of sovereignty called the thing impunity and counted it a vice, and "immunity" as a right of the officer is the doctrine's own word, not its sources'. Standing enters a history of immunity because Part 6 finds standing and immunity to be the halves of one prerogative. The title says history because the case is made from the record it restores: Part 3 argues it, and Part 6 reads the second doctrine by the same method.

A word on what this book does not argue. It does not contend that the distinction between public and private wrongs is illegitimate, or that crimes may be privately prosecuted, or that the executive's enforcement discretion is void. It does not ask any court to overrule *Harlow v. Fitzgerald* or *Trump v. United States*. Its ambition is narrower and more unsettling: to show that a court faithful to those precedents can decline the apparatus on the doctrine's own terms, because the doctrine read as written reaches less than its defenders suppose, because the structural questions the lineage never confronted remain open under the settled principle that what an opinion never considered it never decided, and because several of the critiques hold even if the doctrine is assumed sound in every respect its defenders claim. The argument is available to a bound district court, not only to a Supreme Court inclined to reconsider, because the principle that keeps those questions open is the Supreme Court's own: questions "which merely lurk in the record, neither brought to the attention of the court nor ruled upon, are not to be

considered as having been so decided as to constitute precedents", the Court said in *Webster v. Fall* in 1925, and chapter 3.2 § C applies the principle to the lineage. The lock can be opened from the inside. The doctrine that guards the other door of the same courthouse, the law of standing, is the subject of Part 6, which asks no court to overrule *Lujan v. Defenders of Wildlife* either.

The book proceeds in six Parts, and the order needs a word. Part 1 (1591–1769) reads the English origin and repudiation: the country, the cause file, the report, the sources the report named, Blackstone's two chapters, and the dismantling of the court and its premise between 1641 and 1701. Part 2 (1761–2024) follows the reception in America from the Revolution to the apex: what stood at the water's edge in 1791 was not a rule awaiting adoption but a ruin awaiting inspection, and it crossed anyway, by citation. The two Parts overlap by eight years because the two histories do: the American quarrel with the prerogative began in 1761, before Blackstone had finished stating the English rule in 1769, and Blackstone's statement is the one the reception took. Part 3 makes the constitutional case: the three locks rebuilt, the doctrine failing its own textualist terms, the founding act measured by the receiving order's law, and what a court may do without overruling anything; a Conclusion to Parts 2 and 3 closes the American argument before the comparison begins. Part 4 puts the same question to other sovereigns, in a vocabulary of four terms that chapter 4.1 defines. Part 5 then reaches back before 1607 and reads the older record in the vocabulary Part 4 has fixed. The book runs forward from 1607 to 2024 and then back, because the older record is read for what each order did with the judge's answer, and that is the question Part 4 has taught the reader to ask. Part 6 opens the other door of the same courthouse. The law of standing, traced by the same method from *Tyler* in 1900 to *Texas* in 2023, descends from the other half of the prerogative Blackstone stated in companion chapters of one book, so

that the doctrine that turns the citizen away at the threshold and the doctrine that shields the official once he is inside are shown to be one, and the three locks of chapter 1.3 cannot be understood until both halves are held in one hand. A Conclusion closes the six Parts.



## **METHOD**

A doctrine that names no constitutional provision cannot be measured against one. It can be measured against itself, against the words it uses, the sources it cites and the canons its issuing court applies to everyone else; and its foundation can be measured against the record that foundation was made by destroying. This book's method has three parts, and the chapters cite them by letter. Section A states the hierarchy of interpretive discipline the doctrine inverts. Section B states the reading discipline: the record before the report, every source at its page, the genealogy built from the bottom up, and the vocabulary in which the book's comparative claims are made. Section C states the source-text audit, the verb test and the strategic paraphrase. Nothing in the method depends on a contested theory of interpretation. It depends on two propositions: that a court is bound by the linguistic rules it imposes on the litigants before it, and that a reader is bound to read what is on the page before crediting what is said of it.

*A. The Hierarchy of Interpretive Discipline*

Every interpretive method recognised in American law presupposes that words have determinate meaning recoverable by analysis. The presupposition is the condition of adjudication itself: a court's authority to say what a legal text means rests on the premise that the text means something independent of the court's preference, and a tribunal that announced that legal words need not bear their ordinary senses, or that an incoherent doctrine still binds, would in the same breath dissolve the ground of its own authority to declare anything. When a doctrine's defence depends on reading a word against its settled sense, treating a singular as a plural, a qualified term as an absolute, or a verb of acknowledgment as a verb of creation, the defence cannot be sustained from the bench without forfeiting the authority the statement claims to exercise. The linguistic objection is one a court cannot answer adversely while preserving its power to answer anything.

Legal texts are not equal in democratic provenance, and the strictness with which they are read should track that provenance. The Constitution issues from the people in their ratifying capacity; a statute from the elected legislature through presentment; a regulation from delegated authority under notice and comment; a common-law rule from centuries of decision under legislative tolerance; a modern judge-made doctrine from judicial preference alone. The ordering is one of legitimacy, and it yields a rule that should be uncontroversial: the more democratically grounded the text, the stronger its claim to be read exactly as written, and the weaker a text's democratic warrant, the less latitude its author may claim to have it read loosely. Federal courts honour the first half of that rule scrupulously, holding Congress to the indefinite article, the choice of preposition and the grammar of a clause. They do not honour the second half. Judge-made immunity is read with a generosity no statute receives, and the result is an inversion: the

statute that makes "every person" liable is construed narrowly, the court's own creation expansively. Strict construction is reserved for the enactments of the people's representatives; loose construction is lavished on the judiciary's own product. The same rule, applied evenhandedly, must run at least as strictly against the doctrine as against the statute, and run evenhandedly it is fatal to the doctrine, as chapter 3.2 shows.

### *B. The Record Before the Report*

The method is archival before it is doctrinal. The foundation of the doctrine is a case, and the case is read here from its own record against the report that transmitted it: the cause file in The National Archives, ten membranes in English secretary hand, comprising the examinations of the counsel who drew the destroyed bill and of the complainant who carried it, the court's single instrument of interrogatories in sixteen articles, and the sworn answer of the defendant sheriff. A partisan report read against its own cause file is not a symmetrical comparison, and the asymmetry is the finding: everything the report states as rule, the file shows first as one side's advocacy. The transcription is layered and the layers are disclosed rather than merged. The author transcribed the ten membranes entire from the Archives' record copy; a professional verification transcription was then commissioned, and every quotation from the file has been conformed to its final texts, proper names above all, with the readings the verification displaced recorded site by site rather than silently overwritten. Chapter 1.2 § C states the discipline in full. No reading in this book rests on the author's eye alone, and where a reading remains undecided the book says so.

The same discipline governs every other source. The report's own transmission is tested against the reporter's notebook, in print only since 2025, and the received print fails that test at

the rule's root sentence (chapter 1.3 § B). The Bibles, the Roman and canon texts, Hobbes, the statutes and the reports of Parts 1 to 5 are read at the page or at the image of the page, never from a later edition's summary of it; early prints are quoted as printed, with the long s normalised; manuscripts are cited by leaf; translations are set beside the originals they translate. Where a source is read at length, the footnote at the foot of the page keeps the citation, the pin, the words the sentence rests on and the statement of what was not examined, and the text itself, original and rendering together with the account of how it was read, stands in the Notes at the back of the book, marked in the text by a letter beside the footnote's number. That is the reverse of the usual arrangement, in which the substance stands at the foot and the citations at the back; it is chosen so that the reader has the source at the line and the record where it can be read entire. Quotations of forty words or more that complete the sentence introducing them are set off from the text; shorter quotations, and those through which the sentence continues, are run in. The Introduction's quotations are documented where the chapters read them, and the Introduction carries no apparatus of its own. The genealogy of Part 2 is built from the bottom up, from what the opinions themselves cite. A doctrine anchored in text invites testing from the top down, by naming the constitutional provision and reading it; a doctrine that names no provision can be tested only from its root, by tracing the chain of authority backward and asking at each node whether the opinion produces the constitutional source the opinion citing it presupposes. The chain is built only from the opinions' own stated antecedents, and at each node the book records the source the opinion claimed and the source it produced; the gap between the two is the finding.

Comparative claims carry a discipline of their own. Every statement this book makes about another legal order classifies that order's *de jure* law, the text as written, and names what it does not measure: the order's common law, the congruency between the two, and the order's adherence to *stare decisis*. For the American order the book measures all four; for England, in part; for the others, the text alone, and it says so at each place. Two of the four terms, common law and *stare decisis*, are defined at chapter 2.2 § B, and all four for the comparison at chapter 4.1; the degree of examination is stated wherever a comparative finding is drawn.

### *C. The Source-Text Audit, the Verb Test, and the Strategic Paraphrase*

If interpretive discipline binds the court at least as strictly against its own doctrine as against enacted text, the court's use of its own precedents is auditable by the same standard, and the audit is mechanical. For each load-bearing citation in a doctrine's keystone opinion, the citing opinion's characterisation is placed beside the cited source's own words and compared element by element. Does the cited case hold what it is cited for? Does a quotation reproduce its source, or silently insert a word the source does not contain? Does a parenthetical that omits internal quotation marks mask a substantive alteration? Does the opinion attribute to a founding source a sense the source's own text forecloses? The audit tests a specific hypothesis: that the citation chain supporting a sourceless doctrine is not merely thin but at points inverted, held up by authorities which, read in their own words, cut the other way. Chapter 2.5 applies it to the apex decision and finds seven such instances. Each is established by quotation, and the method's virtue is that anyone with the reporter volumes can check it.

The verb test is the cleanest instance of the discipline turned on the court's own prose. To "recognize" a right, a doctrine or an immunity is to acknowledge something that already exists,

prior to and independent of the act of acknowledgment; the verb presupposes an antecedent that can be produced. It is not a synonym for "establish," "construct" or "hold to be implicit," each of which presupposes less. When an opinion describes an immunity as one the Court has "recognized" and cannot produce the antecedent, when the chain of recognition runs back not to a constitutional provision but to a prior opinion that itself recognised without producing, the verb has been misused, and the activity it names is not recognition but invention. Under the Constitution, legal authority is not invented but ratified: Article V prescribes the only route by which its text gains a word, proposal by two thirds of Congress or by a convention the States call for and ratification by three fourths of the States, and no court stands anywhere on that route. A court that rests a holding on an indefinite article cannot exempt its own verbs from the same scrutiny.

The strategic paraphrase is the audit's third object. It is paraphrase that strips a source's hedging: a limiting clause moved out of the quotation, a qualified statement restated without its qualification, a source's own disclaimer omitted so that the source appears to say without condition what it said with one. The 1607 report practised it on its Roman authority (chapter 1.4 § A); the apex decision practises it on its American authorities (chapter 2.5 § B). The book names each instance where it occurs, sets the paraphrase beside the source, and lets the reader read both.

## **PART 1 — ENGLISH ORIGIN AND REPUDIATION, 1591–1769**

*Part 1 restores the record that the report displaced. Chapter 1.1 reads the Anglesey of 1591 to 1600 from the Privy Council's registers and the Exchequer's commissions, a county in which the persons with documented reason for fear were the men who had called the local officers to account. Chapter 1.2 reads the cause of 1607 from its surviving file, the ten membranes of STAC 8/203/38 transcribed entire, and finds that every article of the court's instrument interrogated the accuser and none the accused, that the fear the report made law entered the cause as the accused sheriff's pleading, that the bench's own presents were custom while a pauper's ten shillings were conspiracy, that the order was the only one in the reports surveyed destroying a subject's pleading unheard, and that the judge headed the same bench within three years while the acquitted accuser stood indicted again. Chapter 1.3 reads the report that carried the rule out of the court, fixes the three locks it set, shows its root sentence standing inverted in the received print, finds the reporter's own hand stopping the reading of an exculpation on a trial record fifteen months before, and tests the forum it reserved from above, against the reporter himself in 1616, and from below, against a petitioning subject in 1618; the court's own registers being lost, the report is the only text there is. Chapter 1.4 reads the leaf and the sources the report named at their own pages, and finds that the leaf cites no English case for its rule and that the one English judge it names was condemned to death for the corruption the rule declares unquestionable, that a contemporary hand which sat through the term recorded no such cause, and that the Roman, scriptural and canon texts the 1607 court invoked, and the court's own practice in the decade before, each say the opposite of what the report made them say; the century's theorist of absolute sovereignty, reasoning from the same sources, refused the judge's exemption at every point, and*

*the founders who read him refused even the sovereign's. Chapter 1.5 finds Blackstone stating one premise and two rules. Chapter 1.6 follows England dismantling the court, its methods and its premise between 1641 and 1701, so that what stood ready for reception was the repudiation.*

### **1.1 Anglesey before the Case, 1591–1600**

The case did not begin at Westminster. It began on Anglesey, and the island's decade before the drowning is on the record — in the Crown's own books.

The Crown's council registers for 1591–92 — fifteen years before the case, in the same county, among some of the same houses — document where fear in Anglesey in fact resided. A subject, Owen Wood, sued the island's leading magnate, Sir Richard Bulkeley, in the Star Chamber and won a censure against him; within nine days the Council released Bulkeley to command the island's defence amid that season's Spanish-invasion scare, instructed the county's justices that "the censure he receaved in that Court should be no occasion to diminish his credit and reputacion," attributed the adjudicated conduct to "the greate provokement of the said Owen Wood" — and, the same day, confined the prevailing complainant to his house.<sup>1</sup> Within the year Wood was put out of the commission of the peace on the informations of Bulkeley and his fellow Deputy Lieutenants; Bulkeley recovered eight hundred pounds against him in a slander action Wood protested had been enforced "contrary to an order sett downe by their Lordships"; the Council could "see no cause to deale with the said Sir Richard to myttygate that somme which by

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<sup>1</sup> *Acts of the Privy Council of England*, n.s., vol. 21 (1591), at 137 (the letter to the justices of the peace of Anglesey, under the edition's marginal title "Release of Sir Richard Bulkeley"; the warrant to Owen Wood "not to goe forth of his house" begins on the same page).



due course of lawe he hath obtayned"; and the whole of the relief afforded the man who had won the censure was twelve days free of execution, "in which tyme he maie repaire into his contry."<sup>2</sup>

In the same registers, a private man, Foulk Thomas, performed an apprehension at Holyhead that the county's officers would not — "a Seminary preist and other suspected persons" — and the county's machinery undid the act at every layer: the prisoners "were taken from him by the Under-sheriffe of Anglesey" and escape followed; the bailiff and constable of Llifon "did not onely refuse . . . to give their assistance to the said Foulk, but used divers undutifull and lewd speeches to discourage others, whereby som escaped"; and on his return home he was "abused and offered violences . . . for doing her Majesty's service."<sup>3</sup> The Council's remedy was to deputize the Bishop of Bangor over the lay apparatus entire, and to instruct the local gentry that the man "may not in any kinde of sort be injured or molested, having deserved to be favored in respect of his dutifull endeavour to apprehend these lewd persons" — desert the center could declare but not protect. The register's editor gave that entry its lasting marginal title: "Sympathy with offenders in Wales."<sup>4</sup>

So when the sheriff's answer told the Star Chamber, fifteen years later, that a bill against the county's officials would "stryke a feare into the h[a]rts" of the county's jurors, the county's registered experience, in the Crown's own council books, was that the persons with documented reason for fear were the complainant who had prevailed and the citizen who had enforced. The conjecture the doctrine adopted assigns the fear to the office; the register of the doctrine's

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2 *Acts of the Privy Council of England*, n.s., vol. 22 (1591–92), at 568–69 (the referees' report of 18 June 1592; the words quoted are at 569: the commission of the peace, the eight hundred pounds, the twelve days).

3 *Acts of the Privy Council of England*, n.s., vol. 22 (1591–92), at 366 (the letter to the Bishop of Bangor, under the edition's marginal title "Lawlessness in Anglesey": the seminary priest, the under-sheriff, the escape) and 434 (Greenwich, 12 May 1592, the letter to Hugh Lewes and William Lewes: the bailiff and constable of Llifon, the violence offered on his return).

4 *Id.* at 434 (the order for Foulk Thomas's protection; the marginal title is the 1900–01 edition's).

birthplace assigns it to the men who called the office to account.<sup>5 i</sup> The exhibit is offered for the structure, for who absorbed the cost of enforcement, not for any causal identity with the case that followed: the 1591 release had a non-pretextual ground in the invasion scare and Bulkeley's Deputy-Lieutenancy, Wood's own answers confessed "very indyscreet speeches", and the Thomas matter carried a confessional charge the murder case did not.

And the compulsion ran the other way: two years before the sheriff's answer was drawn, the Crown's escheat commission for the island — issued out of the Exchequer in 1605, teste the same chief baron whom the notebook report places among the *Floyd* resolvers — had put the county's free tenants, comote by comote, on juries presenting their neighbors' holdings as the King's escheated and concealed lands, and had bound any empanelled man who withdrew to appear before the Barons of the Exchequer to show cause; the November 1605 return survives, sworn by a named Anglesey jury that closed one finding by confessing it did not know the parcel's bounds. So when the report reasons that indictors cannot be impeached because they are "returned by the sheriff by process of law" and "compellable to serve the law and the court," the compulsion it invokes was no hypothetical of the county's life; it was the Exchequer's standing machinery, and the jurors it conscripted were the same freeholders the answer professed to find so easily frightened.<sup>6 ii</sup>

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<sup>5</sup> *Acts of the Privy Council of England* (n.s., J.R. Dasent ed., HMSO 1900–01): the Wood–Bulkeley arc at vol. 21 (1591), pp. 125, 132, 137–39, and vol. 22 (1591–92), pp. 568–69 (the referees' report, Greenwich, 18 June 1592); the Foulk Thomas matter at vol. 22, pp. 366–67 and p. 434. That Wood's suit against Bulkeley charged jury corruption among other matters rests on the published catalogue of the surviving Elizabethan Star Chamber file of that suit (Edwards, *A Catalogue of Star Chamber Proceedings relating to Wales* (1929)), which has not been examined at piece level for this book. Quotations are as the 1900–01 edition prints them, from the author's reading of the 1900–01 edition, never silently corrected.

<sup>6</sup> TNA E 178/5052 (Exchequer, King's Remembrancer, special commissions of inquiry: Anglesey, 3 Jas. I): the letters-patent commission (teste Thomas Fleming, chief baron, at Westminster, 1605), binding empanelled jurors who withdrew to appear before the Barons; the inquisition indented taken 5 November 1605 before Owen ap Hugh ap Meredith, escheator of Anglesey, and three fellow commissioners; and the dorse endorsement recording delivery into court on 28 November. Read from the record copy (RC8413960, obtained August 2026) in the author's working transcription of 13 August 2026, disclosed as such; the readings relied on here are structural-layer only (frame clauses, dates, the presiding list, the juror-refusal clause, the ignorance token); no parcel-level reading is relied on

A man drowned by accident, with his horse, in 1600. That is the account recoverable now, from a second contemporaneous report and a modern reconstruction of the suppressed pleadings. Years later the death was recast as murder, and the prosecution was assembled on examinations taken from Welsh-speaking witnesses who were "not capable of the English Tongue" but whose statements were "written in English contrary to their sayings in welsh."<sup>7</sup> On those examinations a first man was indicted; when he denied the charge, "a large summe of money was offered" to him to accuse another in his stead, and the prosecution shifted to the man eventually convicted. The indicting grand jury was largely kin to the prosecutor, and one juror was afterward "fyned by the Councell of the Marches for a false verdict."<sup>8</sup> At trial an alibi placed the accused miles from the death; the judge knew that some of the trial jurors carried consideration "in their pocketts" and yet "did take noe order in it"; and when the jury "desired to heare the examinacons of those whoe did first fynde the Muredred man and his horse", the drowning evidence that distinguished accident from murder, the judge "would not permit it."<sup>9</sup> The witnesses recorded in English "denyed their examinacons sett downe in Engl[ish] and affirmed they made noe such deposicons."<sup>10</sup> The jury convicted and "asked forgiveness of [the

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here. For the resolving panel and the compellability ground: *Reports from the Notebooks of Edward Coke* (142 Selden Soc. 2025), p. 1655 ("ils sont retourne per le vicount per processe de ley . . . ils sont compellable a server le ley et le court"; the text quotes the edition's translation).

7 Kesselring, 43 Law & Hist. Rev. at 705 (the victim "had drowned entirely by accident in 1600"; the examinations "recorded in English rather than in Welsh, to their confusion"). The quoted phrasing — the witnesses "not capable of the English Tongue," their depositions "written in English contrary to their sayings in welsh" — is from a second, independent contemporaneous report of the case (Harvard Law School Library, MS 149, ff. 81r–83r), a later-seventeenth-century copy of a Jacobean Star Chamber reports collection, distinct from Coke's printed report and quoted here, from a transcription of the digitized manuscript, for particulars the printed report omits.

8 Harvard Law School Library, MS 149, f. 81v (the grand juror "fyned by the Councell of the Marches for a false verdict"); the note below in this section.

9 Harvard Law School Library, MS 149, f. 82r (the trial jurors' consideration "in their pocketts"; the judge "did take noe order in it"; the jury "desired to heare the examinacons of those whoe did first fynde the Muredred man and his horse"; the judge "would not permit it"); the note below in this section.

10 Harvard Law School Library, MS 149, f. 81v (the witnesses "denyed their examinacons sett downe in Engl[ish] and affirmed they made noe such deposicons"); the note below in this section.

accused] for the verdict"; he "notwithstanding was condemned and executed."<sup>11</sup> What the reports preserve are the complainant's allegations; no tribunal ever adjudicated them, because the court ordered the bill destroyed rather than examined.

The record that convicted carried two defects, each fatal. It was never authenticated: an instrument offered as a witness's sworn examination, but set down in a language the witness did not speak, is not an authentic record of what the witness said — it is a different statement attributed to him. And it was impeached past survival: its purported authors, brought to the bar, disavowed it. A conviction was entered, and a man put to death, on a record that was neither what it purported to be nor believed by the persons whose words it claimed to contain.

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i *Acts of the Privy Council of England* (n.s., J.R. Dasent ed., HMSO 1900–01): the Wood–Bulkeley arc at vol. 21 (1591), pp. 125, 132, 137–39 (the 16 May 1591 Theobalds session — release of Bulkeley; "the censure he received in that Court should be no occasion to diminish his credit and reputacion with you, especiallie considering the greate provokement of the said Owen Wood"; the same day's warrant that Wood "not . . . goe forth of his house"; the 18 May letters returning Bulkeley, Deputy Lieutenant, to "the charge of that Isle" upon "some discovery of certeine Spanishe forces and shipping") and vol. 22 (1591–92), pp. 568–69 (the referees' report, Greenwich, 18 June 1592: the commission of the peace; the £800; "see no cause to deale with the said Sir Richard to myttygate that somme which by due course of lawe he hath obtayned"; execution stayed "for the space of twelve daies"); the Foulk Thomas matter at vol. 22, pp. 366–67 (to the Bishop of Bangor, marginal "Lawlessness in Anglesey") and p. 434 (to Hugh Lewes and William Lewes, Greenwich, 12 May 1592 — the edition's marginal title at p. 434 is "Sympathy with offenders in Wales"). Three disclosures. *First*, the registers record the 1591 censure's existence and aftermath, not its grounds; that Wood's suit against Bulkeley charged jury corruption among other matters rests on the published catalogue of the surviving Elizabethan Star Chamber file of that suit (Edwards, *A Catalogue of Star Chamber Proceedings relating to Wales* (1929)), which has not been examined at piece level for this book. *Second*, the record detail behind the text's qualification: the 1592 revocation of Wood's commission recites that "by the confession of Woode in his owne answers (yt shuld seeme)" he had used "very indyscreet speeches"; the Foulk Thomas prisoner was a seminary priest, and "verye evill affected" is the register's recusancy vocabulary. *Third*, quotations are as the 1900–01 edition prints them, from the author's reading of the 1900–01 edition, never silently corrected.

ii TNA E 178/5052 (Exchequer, King's Remembrancer, special commissions of inquiry: Anglesey, 3 Jas. I): the letters-patent commission (teste Thomas Fleming, chief baron, at Westminster, 1605 — the regnal-year pair, England 3 and Scotland 38, fixes the window; the day and month tokens remain under verification), charging inquiry through the free tenants of five named comotes into escheated and concealed Crown lands and binding empanelled jurors who withdrew to appear before the Barons ("tunc ad accipiend[um] de eis qui sic retraxerint . . . sufficientem securitatem ad comp[ar]end[um] coram Baronibz de Sc[a]cc[ar]io n[ost]ro apud Westm"); the inquisition indented taken 5 November 1605 before Owen ap Hugh ap Meredith, escheator of Anglesey, and three fellow commissioners, presenting parcels comote by comote and closing the Menai finding "metas et bundas

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11 Harvard Law School Library, MS 149, ff. 81r–83r (the alibi; the trial jurors' consideration "in their pocketts," which the judge knew of and yet "did take noe order in it"; the refused request to "heare the examinacons of those whoe did first fynde the Murdred man and his horse"; the witnesses' disavowal at the bar; the jury's plea for "forgivenes"; the execution); the grand juror "fyned by the Councell of the Marches for a false verdict" is at *id.*, f. 81v; *accord* Kesselring, 43 Law & Hist. Rev. at 705 (the packed jury and the unjust execution). These particulars are the complainant's allegations as the reports preserve them.

## 1.2 The Cause of 1607: *Floyd v. Barker* Read from Its File

### *A. The Order: A Bill Defaced Without Answer*

The three locks did not enter the law as abstractions. They were fixed in the course of deciding an actual case, and that case repays examination — because the record the receiving courts never saw, the record that had been destroyed, shows the mechanism performing, at its very origin, the closure it would later be invoked to license. The point is not that the doctrine was once misapplied; it is that the doctrine's foundational case was itself an instance of the wrong the locks foreclose, and was sealed by the destruction of the proof.<sup>12</sup>

When a living complainant carried that record to the Star Chamber on the dead man's behalf, the court did not examine it. The same report that fixed Lock One — declaring that records "import verity in themselves, and none shall be received to aver any thing against the record itself" (chapter 1.3) — in the same proceeding, and "without any answer" from the accused judge, ordered the complaining bill "taken off the file and cancelled, and utterly defaced," fined the complainant, and committed him to prison until he should "confess[] his abettors."<sup>13</sup> The presumption of regularity was not inferred from an unrebutted record; it was

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<sup>12</sup> The case is *Floyd v. Barker*, 77 Eng. Rep. 1305 (Star Chamber 1607) (12 Co. Rep. 23) — the deepest English antecedent of the immunity chain, received into United States law by citation in *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868), and carried forward through *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335, 347 (1872), and *Spalding v. Vilas*, 161 U.S. 483, 498 (1896). See Part 2, chapters 2.3–2.4. The historical reconstruction relied on here is K.J. Kesselring, *Conspiracy, Crime, and Conflict in the Court of Star Chamber*, 43 Law & Hist. Rev. 693 (2025), which recovers the destroyed bill's contents and traces the decision's lineage: *Floyd* "created precedents cited even today in defense of judicial immunity." *Id.* at 705.

<sup>13</sup> *Floyd v. Barker*, 77 Eng. Rep. at 1305–07 (records "import verity in themselves, and none shall be received to aver any thing against the record itself"; the sworn-status presumption — "nor will the law admit proof against this presumption"; the bill, "without any answer to it," ordered by "all the Court . . . taken off the file and cancelled, and utterly defaced"). The complainant's sentence — fine, pillory, and imprisonment until he should "confess[] his abettors" — is recorded in the second account, MS 149, f. 83r ("the plt to bee fyned 100li & false clamore" — the figure firm in the manuscript's letterforms), and in Kesselring, 43 Law & Hist. Rev. at 705 ("fined £100 for false clamor, pilloried, and imprisoned").

manufactured by destroying the rebuttal. A presumption that must erase the contrary proof to sustain itself is not a finding of regularity but the suppression of one — and the report discloses the character of that verity in its own logic, holding a record conclusive even against demonstrable impossibility, so that a litigant could never aver "that the party who levied the fine was dead before the fine was levied."<sup>14</sup> Verity of that kind attaches to status, not to fact: the record is true because of who made it, not because it corresponds to what happened.

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<sup>14</sup> *Floyd v. Barker*, 77 Eng. Rep. at 1307 (a litigant may "never assign for error . . . that the party who levied the fine was dead before the fine was levied"). See Part 3, chapter 3.1 § B.

### *B. The One Destruction in the Reports*

The suppression failed, and its failure is what turns the point from inference into documentation. The order to deface the bill did not erase the bill's contents: a second, independent report preserved them, recording that the bill had been "read in open Court . . . to this effect"; the public archive still holds the cause's own file, its bill alone catalogued as "wanting"; and a modern peer-reviewed study has reconstructed the account from the surviving fragments.<sup>15</sup> Because the suppressed side survives, the erasure is visible for what it was — not a neutral rule of evidence operating upon an absent record, but the destruction of a present one. Nor was the reporter through whom the doctrine descends, Sir Edward Coke, a disinterested chronicler. He was a principal in the early-seventeenth-century contest between the common-law courts and the prerogative courts, and he used the decision to fix the proposition that common-law judges could not be called to account elsewhere for their judicial acts — a weapon in a jurisdictional struggle, not a considered rule of citizen redress. On the historian's finding, it was the reporter himself who secured the destruction of the bill.<sup>16</sup> The decision "created precedents cited even today in defense of judicial immunity"; the courts that later received it took the partisan report for settled law and never inspected the record behind it, because the record was gone.<sup>17</sup>

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15 MS 149, f. 81r ("[t]he bill was read in open Court w[hi]ch was to this effect"); The National Archives (UK), STAC 8/203/38 (*Lloyde v. Lewys*, Anglesey, June 1607) (catalogued "Documents: Bill wanting"); Kesselring, 43 Law & Hist. Rev. at 705 & n.47. The plaintiff's name varies across the records — Floyd, Lloyd, Lloyde, Fludd — which is part of why the surviving file long went unidentified. The file itself, and the transcription from which it is quoted below, are described in the transcription note at chapter 1.2 § C.

16 Kesselring, 43 Law & Hist. Rev. at 707 (the reporter "secured the destruction of the bill"); the decree itself was the court's.

17 Kesselring, 43 Law & Hist. Rev. at 705–07 (Coke "used Floyd's case against Justice Barker to insist that common law judges could not be sanctioned in the Star Chamber for their decisions in their own courts," a stance taken in the 1607 contest between the common-law and prerogative courts; and cautioning that Coke's reports from that contest are best read as the work of "a participant in a jurisdictional struggle" rather than "a neutral reporter of fact"). On the receipt of the rule into American law by citation alone, without examination of any record, see Part 2, chapters 2.3–2.4.

Nor is the gravity of that erasure a judgment imported from a later age. The report supplies the standard itself: the stated reason a judge may not be drawn in question is that such questioning "extends to the annihilating of a record" — a rule of record-sanctity announced in the very order that annihilated the accusation record, unanswered.<sup>18</sup> The age's own standard, then, condemns the act: a court that had in the same breath declared records sacred destroyed one.

The surrounding law measures how far the court had stepped outside its own practice. A survey made for this book of the record-destruction vocabulary in the reported English cases, reading at its site every reported order that a record or pleading be expunged, taken off the file, rased, cancelled, or defaced, across 150 of the 178 volumes of the English Reports from the Year Books to 1865, finds no other order destroying a subject's pleading without an answer to it.<sup>19iii</sup> Every other destruction the reporters record rides a stated ground and a hearing.

The Star Chamber's own practice book shows the court's ordinary course ten years before this cause: in 1597 a bill charging riot and felony, found "scandalous and slanderous," was dismissed and "withdrawn from the file and cancelled" only after "[d]ivers witnesses were examined and proved nothing at all," and the plaintiff was fined and imprisoned.<sup>20</sup> The Chancery would amend a record only where amendment did not "blot and deface" it; where it would, the Record "should be taken off the file; and a new Record put upon it." Even a forged deed, the

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18 *Floyd v. Barker*, 77 Eng. Rep. at 1307 (12 Co. Rep. 25) (questioning a judge for supposed corruption "extends to the annihilating of a record, or of any judicial proceedings before them").

19 The survey ran over the 150 volumes of *The English Reports* (Full Reprint, 178 vols., London 1900–32) available to the author; its method is stated in the Notes. The cell reported in the text is court-ordered destruction of a subject's pleading without an answer to it: one, this cause. In order quoted: *Maye v. Ebdon* (Star Chamber, Mich. 1597), in John Hawarde, *Les Reportes del Cases in Camera Stellata, 1593 to 1609*, at 81 (William Paley Baildon ed., London 1894); *Boyd v. Mills*, 13 Ves. Jun. 85, 87, 33 Eng. Rep. 226, 227 (Ch. 1806); *Frankland v. Hampden*, 1 Vern. 66, 23 Eng. Rep. 315 (Ch. 1682); *Dudly's Case*, 2 Sid. 71, 72, 82 Eng. Rep. 1263 (Upper Bench, Pasch. 1658); *Anonymous*, Jenk. 162, 145 Eng. Rep. 104 (digesting 8 Hen. 6, c. 12); Edward Coke, *The Fourth Part of the Institutes of the Laws of England* 73 (London 1797 ed.); *Floyd v. Barker*, 77 Eng. Rep. at 1307 (12 Co. Rep. 25). Where the reprint is the only witness read, the pin is to the reprint.

20 *Maye v. Ebdon* (Star Ch. 19 Oct. 1597), in John Hawarde, *Les Reportes del Cases in Camera Stellata* 81 (William Paley Baildon ed., London 1894).



Crown's own law officer reminded the Chancery in 1682, "cannot be torn or defaced by law, but must be kept so that the king may proceed upon it against the criminal."<sup>21</sup> And in 1658, when an acquitted defendant prayed the Upper Bench to rase his name from its record so that it should not remain a disparagement to his posterity, the court resolved that it would do so only if a precedent could be shown. Rasure of a record by which a judgment was avoided had been felony by statute since 1429, and the reporter's own Institutes hold that a record once removed into the King's Bench "cannot (being as it were in his centre) be remaunded back, unlesse it be by act of parliament."<sup>22</sup>

The order's second verb had a home of its own. In the statute book of the order's generation, *cancel* is the word for instruments and their enrolments, and *deface* is the word for forbidden objects to be marred past use: images and books, which the statute of 1549–50 ordered "openlye brent or otherwayes defaced and destroyed"; engines, which the statute of 1597–98 ordered the justices to "utterlye deface . . . in suche sorte as they cannot be ymployed agayne"; and, in the commission an ecclesiastical court received in 1620, "massing Stuff Reliques or other like superstitious things," to be defaced "in such manner as from thenceforth they may not serve for any supersticious Use, without destroyeing the Substance thereof except otherwise it cannot be defaced."<sup>23</sup> When a subject did the same to a court's paper it was a crime: the Crown's instructions to the Council in the Marches of Wales in 1617 listed "Raceing or Defacing of any

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21 *Frankland v. Hampden*, 1 Vern. 66, 23 Eng. Rep. 315 (Ch. 1682) (the passage quoted in the text); the survey note above in this section.

22 8 Hen. 6, c. 12 (1429), as digested in *Anonymous*, Jenk. 162, 145 Eng. Rep. 104 ("To erase a record, by which rasure judgment is reversed, is felony"); Edward Coke, *The Fourth Part of the Institutes of the Laws of England* 73 (London 1797 ed.) ("if any record be removed into this court, it cannot (being as it were in his centre) be remaunded back, unlesse it be by act of parliament").

23 3 & 4 Edw. VI c. 10, § 2 (1549–50), in 4 *Statutes of the Realm* pt. 1, at 111 (Record Comm'n 1819); 39 Eliz. c. 20, § 7 (1597–98), in 4 *Statutes of the Realm* pt. 2, at 922; 3 Jac. I c. 5, § 15 (1605–06), in 4 *Statutes of the Realm* pt. 2, at 1082 (the same verb, of relics; Pickering's edition numbers the clause § 26); Commission for Causes Ecclesiastical (1620), in 17 Thomas Rymer, *Foedera* 208 (as reprinted in 7 Rymer, *Foedera* 140 (3d ed., The Hague 1742)).

Bills, Pleadings, Orders, Rules, Proceedings or Records of the same Court" among the offences that Council was to try.<sup>24</sup> The reporter's own Eighth Part treats a record left "imperfect or erroneous" by a clerk's "voluntary defacing" as a misprision to be amended from the rest of the record, and recites in the same resolution the statute that made a clerk's stealing or avoiding a record felony.<sup>25</sup> *Floyd* added the object-verb, the adverb, and the absence of any examination. The complaint was not answered; it was marred past use, as the statute book marred the objects it forbade.

Against that uniform architecture, the ground named, the process run, the roll preserved even at the price of a new one, the corpus holds a single order destroying a subject's pleading unheard, and it is the order in this cause. Its stated ground, that questioning judges "extends to the annihilating of a record," makes the preservation of records the reason for the one destruction of a record the reporters preserve; and the same page of the report adds that "though the party is acquitted, yet the accusing stands with the record": the accusation against a subject outlives his acquittal on the roll, while the accusation against the judge was defaced without answer.<sup>26</sup> How the legal order that ultimately received the rule measures the same act — as felony, as constitutional violation, as ground to presume the destroyed accusation true — is the subject of Parts 2 and 3.

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24 Instructions to the Lord President and Council in the Marches of Wales (1617), in 17 Thomas Rymer, *Foedera* 32 (as reprinted in 7 Rymer, *Foedera* 23 (3d ed., The Hague 1742)).

25 *Blackamore's Case*, 8 Co. Rep. 160a–b, 77 Eng. Rep. 716–17 (K.B. 8 Jac. I) ("the fifth manner of misprision, in negligence of a clerk or officer . . . in negligent keeping of the records, or in voluntary defacing of them, whereby the record becomes imperfect or erroneous"; "if any record, or parcel thereof . . . are voluntarily stolen, carried away, withdrawn, or avoided by any clerk, that it shall be felony"; resolved "as well where the record becomes imperfect and erroneous by voluntary offence of the clerk, as by his careless negligence, that it should be amended"). The felony is the statute of 1429 cited in the note above in this section.

26 *Floyd v. Barker*, 77 Eng. Rep. at 1307 (12 Co. Rep. 25): both clauses stand on the one page, the second in the report's statement of the conspiracy resolutions that precede the order.

*C. The Surviving File: Sixteen Articles Against the Accuser*

The record, it turns out, is not entirely gone. The National Archives holds the cause's surviving file, STAC 8/203/38 — catalogued not under the judge's name but under a defendant sheriff's, as *Lloyde v. Lewys*, its inventory noting "Bill wanting," though the file's own Latin caption still styles the cause against Barker and others: the 1607 defacement order operates in the archive to this day, the bill absent from the file, the judge's name absent from the index. The modern study that reconstructed the case from the report and the Harvard manuscript discloses the file's survival in a footnote without using its contents, so that both of this book's manuscript witnesses stand in that study's apparatus, the one read there as a second account, the other named and left unread. For this book the record copy was obtained and its ten membranes transcribed entire, apparently for the first time; the quotations that follow are from that transcription, made and disclosed on the author's authority, and since conformed — readings, proper names above all — to the professional transcription commissioned from the Archives, whose final texts of all three surviving documents returned in August 2026.<sup>27</sup> What survives is everything around the destroyed bill: the examination of the counsel who drew it; the examination of the complainant, taken while he lay a prisoner in the Fleet, "attached" in the course of the cause he had brought;

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27 The National Archives (UK), STAC 8/203/38 (catalogued *Lloyde v. Lewys*, Anglesey, June 1607; "Documents: Bill wanting"). The file's survival is disclosed, without use of its contents, in Kesselring, 43 Law & Hist. Rev. at 705 n.47. Quotations here and in the notes at chapter 1.2 §§ C and G are from the author's transcription of the Archives' record copy (order RC8368179, ten membranes in English secretary hand: the examinations of John Towneley, the counsel who drew the bill, and of the complainant; a sixteen-article interrogatory instrument spanning two membranes; and the answer of the sheriff, John Lewis), made from the digitized images in July 2026. The transcription is diplomatic: square brackets mark editorial expansions of scribal abbreviation and uncertain readings; carets (^ ^) mark scribal interlineations; matter shown struck through is struck in the manuscript. A professional transcription was commissioned from The National Archives and made by Christopher Whittick, who is to be identified as the author of the transcripts he supplied; its final texts of all three surviving documents returned in August 2026, and every quotation from the file in this book has been read against them and conformed. Readings — proper names above all — follow the professional final text wherever the two layers diverged; the author's diplomatic orthography is retained where the professional text, which lightly modernizes spelling, confirms the word; and tokens the professional adjudicated letter-exact are printed in his forms. A record of the readings displaced by that comparison is available from the author.

the Court's single instrument of sixteen interrogatories, administered selectively to each man; and the answer of John Lewis, the sheriff who had returned the juries.

The Court's instrument shows what the tribunal thought wanted proof. All sixteen articles interrogate the accusation, not the accused: who procured the bill and who advised it; who drew it; who paid, or promised payment yet to come ("did they or any of them give you any fees for the same, or promise you hereafter"); who carried money to the prisoner; who passed words to the Warden for his appearance; whether the counsel is the alleged maintainer's kinsman ("is not the said Towneley of kynred w[i]th the said S[i]r R[i]chard").<sup>28</sup> Not one article asks whether what the bill said of the judge was true. The single article that so much as recites the bill's charges — among them that Barker "used to staie matters in Chancerie after Judgment and execuc[i]on" — asks only who gave "Instructions to insert" them; and the instrument's own noun for its quarry is maintenance ("what maynetenaunce or money have you receaved . . . since your imprisonment in the ffleete").<sup>29</sup><sup>iv</sup> The complainant's own counsel had seen the frame coming, deposing that he had warned, before any bill was filed, that the matters "would be . . . in the nature of a conspiracie." The premise the printed report announces as law — that a complaint against a judge is presumptively a conspiracy against him — was the working premise of the Court's questionnaire first.

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28 STAC 8/203/38, membrane 009, art. 15 ("did they or any of them give you any fees for the same, or promise you hereafter"), and membrane 008, art. 10 ("is not the said Towneley of kynred w[i]th the said S[i]r R[i]chard"; the verification transcription reads "of counsel with" here, and the leaf, re-read at magnification, reads "kynred," the divergence recorded as the transcription note requires); the instrument is set out in the note below in this section.

29 STAC 8/203/38, membranes 008–009 (the interrogatory instrument, June 1607, sixteen articles under scribal margin-numbers): art. 6; art. 11; art. 13 (the Chancery allegation, "he used to staie matters in Chancerie after Judgment and execuc[i]on," framed as "who gave you Instructions to insert" it); art. 14 ("what maynetenaunce or money have you receaved from S[i]r R[i]chard Bucklie, or of any of his [s]ervant[s] . . . since your imprisonment in the ffleete"); art. 15; art. 16. The instrument is unsigned, and was administered selectively. An earlier state of this book read an apparently struck line in the art.-13 zone of membrane 009; the reading is withdrawn and noted as an open question of the leaf only. Counsel's warning that the matters "would be . . . in the nature of a conspiracie" is deposed at membrane 001. All readings per the transcription note above in this section.

The sheriff's answer completes the picture, because it contains, as advocacy, the two moves the printed report would make law within the year. Its theory of the bill's purpose is fear of the fact-finders: the bill was contrived, it pleads, "of purpose not onlie to vex and trouble this def[endan]t w[i]th longe and tedious suits in lawe," "butt alsoe to stryke a feare into the h[a]rts of all such freeholders of the said Countie of Anglesey [as] . . . shalbe retorned or impannelled for or upon the try[a]ll" of the men then standing indicted.<sup>30 v</sup>

Coke's report resolves the case on the same argument, generalized into a rule: to admit such complaints "will be a means *ad deterrendos et detrahendos juratores a servitio Regis*" — to deter and draw away jurors from the King's service. And the answer's denial runs in the report's very vocabulary: there was no plot, it pleads, "touchinge the callinge in question of anie of the said p[er]sons in the said bill of compl[ain]t named"; the sentence that follows carries the companion phrase, Barker's upright conduct "in all the said . . . p[ro]ceedinges in or upon the said Inditem[en]ts"; and the report converts the pair into the shield — "none of the parties to the proceedings are to be drawn in question," the judge least of all, "except before the King himself."<sup>31 vi</sup> The answer even supplies the maintenance theory the interrogatories hunt: the complainant, "not worthe x s in all the worlde" (his poverty interlined into the engrossed answer), "is countenaunced and mainteyned herein by some privie Adversary that will not him self (as yt seemeth) be seene."

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30 STAC 8/203/38, membrane 010 (the answer of John Lewis, one of the defendants; counsel-signed at the foot): the purpose clause the text quotes, in fuller compass in the Notes. The report's Latin: *Floyd v. Barker*, 77 Eng. Rep. at 1306 (12 Co. Rep. at 24) ("a means *ad deterrendos et detrahendos juratores a servitio Regis*"). Readings per the transcription note above in this section.

31 STAC 8/203/38, membrane 010 ("Neither was there anie plott practize confederacie or combynac[i]on betwene this def[endan]t and the said M[r] Barker or anie other"; the maintenance passage, *id.*, "is countenaunced and mainteyned herein by some privie Adversary that will not him self (as yt seemeth) be seene"; the attachment and the interlineation adjudicated letter-exact by the commissioned professional, 31 July 2026). For the report's formula: *Floyd v. Barker*, 77 Eng. Rep. at 1305, 1306, 1307. Readings per the transcription note above in this section.

A pleading is not a source of law; it is a party's characterization, and here it is the characterization of the accused side. The file thus shows the immunity rationale at the moment of its birth: the fear entered the case as the defendants' framing of their accuser's bill and left it as doctrine — the report did not find the fear, it adopted it. The answering advocate's client, the sheriff, sits inside the report's protected class; the pleading and the rule share their operative phrase and their operative fear. That is calibration mistaken for source at the first node of the chain.

*D. Two Ledgers: Presents to the Bench, Ten Shillings to the Complainant*

The instrument's economics deserve a movement of their own, because the era's own archives price what the Court was pricing. The sixteen articles hunted the money behind a pauper's bill — the ten shillings the answer swears the complainant was not worth, the fees "give[n] . . . for the same, or promise[d] . . . hereafter," the "maynetenaunce or money . . . receaved . . . since your imprisonment in the ffileete."<sup>32</sup>

In the same years, inside the same judicial establishment, the private archive of a Council-in-the-Marches member — the Wynn of Gwydir Papers at the National Library of Wales, cited here solely by the Library's own published catalogue descriptions<sup>33</sup> — records the bench's own money moving the other way, openly and over the judges' signatures. The catalogue

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<sup>32</sup> STAC 8/203/38, membranes 008–009, arts. 14 and 15 (the interrogatory instrument, set out in the note at chapter 1.2 § C).

<sup>33</sup> Wynn (of Gwydir) Papers, GB 0210 GWYDIR, National Library of Wales (letters series NLW MS 9051E–9069E; documents series NLW MS 463B–470E), keyed to the printed *Calendar of Wynn (of Gwydir) Papers, 1515–1690* (NLW 1926). The records in this and the following notes are identified solely by the Library's own published item-level catalogue descriptions (harvested complete, 4 August 2026, and retained); quotation marks reproduce the catalogue's language, which for this fonds routinely preserves the letters' own phrases. Nothing is asserted about the manuscripts' contents beyond what the archive's own descriptions state; the records may be ordered, examined, and professionally transcribed in the same manner as the cause file (the Method). The disclosure posture is Kesselring's for the cause file itself, 43 Law & Hist. Rev. at 705 n.47 (identifying the record without using its contents).

describes the trial judge of the underlying cause himself, in his first months on the circuit: "Richard Barker, second justice of north Wales, at Beaumaris," writing in October 1602 to thank the Gwydir magnate "for the Gwydir wine, to his thinking more excellent than the grape of France or the wines of Greece or Spain."<sup>34</sup> It describes the senior common-law judge of the Welsh circuits, the Chief Justice of Chester, thanking the same magnate in December 1604 "for his gift, the most valuable of the many received by the Justice since his coming into these parts" — adding that had Wynn sent "a pair of gloves, or any thing of less worth, it might have been requited by another, while now (to his shame) he must remain Wynn's debtor."<sup>35</sup> It describes the Lord President of the Council in the Marches — the supervisory organ over the very county apparatus this file concerns — declining that magnate's present in October 1603 "for fear that (there being three Caernarfonshire murderers up for trial) he should be expected to show partiality in the matter": a refusal that names, in the supervision's own correspondence, exactly what the presents were understood to buy, and marks refusal as the exception that pending capital trials occasioned.<sup>36</sup> It describes the practice institutionalized — a sheriff of Denbighshire in 1616 delivering "£ 20 a week, through his steward," to the judges "for their joint provision, as was done by other sheriffs", and advised to write the second justice "enclosing two or three jacobus in the letter" — and it describes the practice enforced from the bench's side, in Wynn's own relation of a chief justice's displeasure "because he gave him no presents".<sup>37</sup>

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34 *Calendar of Wynn (of Gwydir) Papers* no. 227 (Richard Barker, second justice of north Wales, at Beaumaris, to John Wynn, 5 Oct. 1602), in the Library's item description (the catalogue note in this section).

35 *Calendar of Wynn (of Gwydir) Papers* no. 316 (Sir Richard Lewkenor, chief justice of Chester, to John Wynn, 5 Dec. 1604), in the Library's item description (the catalogue note in this section).

36 *Calendar of Wynn (of Gwydir) Papers* no. 256 (Richard Young, at Ludlow, to John Wynn, 13 Oct. 1603: the Lord President's refusal), in the Library's item description (the catalogue note in this section).

37 *Calendar of Wynn (of Gwydir) Papers* nos. 761 (Thomas Powell, sheriff of Denbighshire, to Sir John Wynn, 7 June 1616) and 727 (Sir John Wynn's relation of Sir Richard Lewkenor's proceedings against him), in the Library's item descriptions (the catalogue note in this section).

Six months after the resolution this Part examines, the same catalogue places the Chief Justice of Chester back on the gift circuit, thanking Wynn "for a present of fowls and other Christmas fare".<sup>38</sup>

The asymmetry between those two ledgers is the finding. Ten shillings of alleged maintenance behind a poor Welshman's bill was conspiracy, hunted through sixteen articles while the complainant lay attached in the Fleet; the priced favor of the English-appointed bench was custom, accounted like revenue and acknowledged in the judges' own thanks. The inequity ran along the same line the mistranslated examinations ran: money moving up from Welsh subjects to the bench was service, and money alleged to move between Welshmen to question the bench was crime — a distribution the country itself would name within the generation, petitioning the Prince of Wales in 1624 against a revenue scheme advanced "under pretence that the royal revenues out of Wales are not paid owing to the dishonesty of the King's officers, which is against common justice".<sup>39</sup>

### *E. The Bill as the Ordinary Remedy*

Nor was the bill that was defaced an exotic instrument. The Star Chamber bill was the era's ordinary remedy against every other captured office in this same web — the catalogue shows the same magnate, over a gaol abuse, "ready to prosecute both Sheriff and gaoler in the Star Chamber, or Court of the Marches, or before Lewkenor at the Assizes" — and the channel was in

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38 In order quoted: NLW MS 9052E/227 (Richard Barker to John Wynn, 5 Oct. 1602 — Barker sat the Anglesey circuit from 1602, W.R. Williams, *The History of the Great Sessions in Wales, 1542–1830* (1899)); NLW MS 465E/316 (Sir Richard Lewkenor, C.J. Chester, to Wynn, 5 Dec. 1604); NLW MS 9052E/256 (Richard Young at Ludlow to Wynn, 13 Oct. 1603 — the catalogue's "unwilling" so spelled; Wynn was then sheriff of Caernarfonshire); NLW MS 9055E/761 (Thomas Powell, sheriff of Denbighshire, to Wynn, 7 June 1616); NLW MS 9055E/727 (Wynn's relation, [Dec. 1615]); NLW MS 9053E/469 (Lewkenor to Wynn, 25 Dec. 1607, its postscript noticing the death of the circuit's chief justice). All catalogue tier per the Wynn Papers note above in this section.

39 NLW MS 9059E/1217 (petition by the inhabitants of Wales to Charles, Prince of Wales, [May?] 1624, as the catalogue describes it). Catalogue tier per the Wynn Papers note above in this section.



living use against the bench itself on the eve of the resolution: in January 1606/7, five months before the cause this Part examines was resolved, the catalogue records a Star Chamber proceeding in which a Ruthin man, "charged by his neighbour . . . with having brought false information against him, at the last Sessions, to Justice Lewkenor," begs his patron to "certify the Lord Chancellor in his behalf" — the description noting that Justice Lewkenor "is also cited for proceeding unjustly against Parry."<sup>40</sup> A subject's proceeding that reached a sitting justice was pending machinery, not fantasy, in the months the resolution was prepared. What the resolution protected, on the archive's own showing, was not the purity of the bench; it was the purchasability of it — and the office it lifted out of the remedy's reach was the one office whose favor the archive shows priced.

*F. The Sequel: The Judge Promoted, the Accuser Tried Again*

The sequel stands in the modern edition of the reporter's own notebook, in its biographical note on this very case: Richard Barker, the trial judge whose thanks for the Gwydir wine open this movement, "became C.J. Anglesey in 1610," chief justice of the same great sessions on which he had sat when the defaced bill charged him, three years after the resolutions put that bench beyond the subject's remedy.<sup>41</sup>

The sequel completes the pattern, and the receiving system has a name for it. The complainant had stood trial in the underlying matter himself — co-indicted in the cause of the

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40 NLW MS 465E/340 (copies of two letters of Wynn, 6 Mar. 1604/5); NLW MS 9053E/431 (Robert Turbridge at Caervallen to [Wynn, sheriff of Denbighshire], 16 Jan. 1606/7). Catalogue tier per the Wynn Papers note at chapter 1.2 § D.

41 *Reports from the Notebooks of Edward Coke*, vol. VII: 1604–1608, at 1655 n.4 (J.H. Baker ed., 142 Selden Soc. 2025) ("Richard Barker (d. 1636) of Shrewsbury, bencher of Gray's Inn; he became C.J. Anglesey in 1610.") — the edition's biographical note to its own report of this case (entry "3. Lloyd v. Barker," whose caption gives Barker as "one of the justices of the great sessions in the county of Anglesey," so the 1610 office heads the same bench). The edition is described in the notebook-edition note at chapter 1.3 § B. Barker's office at the wine letter's date, "second justice of north Wales, at Beaumaris," is the catalogue's (the Wynn letters note at chapter 1.2 § D). The elevation statement is the modern editor's, print tier; the underlying patent has not been examined.

wife's murder, he "hardly escaped and was found not guiltie," as the defendant sheriff's own sworn answer concedes: a common-law acquittal recast by the adversary's pen as an escape from justice.<sup>42</sup> And the acquittal did not end it: the follow-on file shows him prosecuted a second time upon the same transaction — acquitted as accessory before the fact "by good & lawfull verdict," then standing "indicted as accessarie after the saide murther."<sup>43 vii</sup> The foundation case of official immunity thus carries, in its own files, the twin the doctrine never discloses: finality for the official — not to be "drawn in question" — and no finality for the acquitted accuser.

### *G. The Name on the Doctrine*

What those courts received as venerable authority was, moreover, a case named for the man it crushed. The caption is the complainant's: *Rice ap Evan ap Floyd v. Richard Barker* — "Floyd," the living complainant who carried the bill, against Barker, the judge who had tried the cause. The printed report gives the executed man as another, "William Price"; the second account's defense recital speaks of "the pl[aintif]ts Brother . . . lately executed for Murder"; and the surviving file resolves the pair into something worse than either source alone discloses: two men of the complainant's family had been executed — his elder brother, John ap Jevan Lloyd,

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42 TNA STAC 8/203/38, m. 010 (answer of John Lewis, High Sheriff of Anglesey), at 010.r11 (the private-adversary/maintenance passage); the same recital is quoted in the note at chapter 1.2 § G and in the caption paragraph above — repeated here for the sequence it opens. The quotation begins at "hardly" (the final text reads "very hardly escaped"); readings are conformed to the professional final text (the transcription note at chapter 1.2 § C). The final text supplies the internal structure: the complainant, "together with an elder brother of his," had "been indicted as accessory for the willful murdering of the wife of the said elder brother" — the co-indictment was as accessory, consonant with the accessory-before acquittal the follow-on file records (the note below in this section).

43 TNA STAC 8/204/31 (Star Chamber; examinations of 30 April 1608, per the m. 001 date clause): interrogatories, m. 009 item 6 ("now standeth indicted as accessarie after the saide murther"); answer of Rees ap Evan Fludd, m. 011 ll. 5–6; depositions of Henry Lloyd, m. 002, and Richard Boulton, clerk of the peace, m. 004; answer of Thomas Holland, m. 007. The finding rests on the convergence of these five sites, not on any single one; readings are the author's, from the record copies, this file lying outside the commissioned transcription's scope, so these readings remain author-layer, disclosed as such. The theories differ — accessory before the fact, then accessory after — so the text states a second prosecution upon the same transaction, not a retrial of the same offence.

convicted of murdering his own wife, in a cause in which the complainant himself stood co-indicted and "hardly escaped and was found not guiltie"; and his kinsman, William ap Rees ap William, the print's "Price," "executed w[i]th yo[ur] said brother" upon the drowned man's murder — and it was the kinsman, at his death, who handed the complainant the written "direction . . . against Mr Barker" with the plea to "make [it] knowne to the state after I am dead, as you are my kinsman," which the complainant "vowed" to perform.<sup>44 viii</sup> The bill the court defaced was the performance of that vow. The executed could bring nothing, the dead leaving no record, so the suit descends under the name of the survivor — who was fined, imprisoned, and ordered to the pillory for bringing it.

The doctrine of judicial immunity thus comes down under the name of its first victim, and the American line that built on it never registered the fact, because it never read the case: *Randall* cited *Floyd and Barker's case* alone, in a single sentence of the opinion, and took from it only the rule, and a century later grand-juror immunity was still traced to the same case as "an almost equally venerable common-law tenet."<sup>45 ix</sup> *Randall* dated the case to 1608, a year late, and *Imbler* repeated the misdate a century on, a small but exact measure of how the taproot travelled: a court that had read the report would have taken its term from the report. No node of the

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44 The caption is Coke's: *Rice ap Evan ap Floyd v. Richard Barker*; the independent second account opens with the same complainant's caption (HLS MS 149, f. 81r; the office abbreviation after "Barker" is in the Notes), "Floyd" being the anglicized "Lloyd" (Llwyd). The print names the executed man "William Price" (77 Eng. Rep. at 1306); the second account's defense recital describes "the pl[aintif]ts Brother . . . lately executed for Murder" (MS 149, f. 82v); the Court's interrogatories name the brother, "John ap Jevan Lloyd your brother" (in the professional transcription's form), and the kinsman, "William ap Rees ap William" (STAC 8/203/38, membrane 008, arts. 2–3); the sheriff's answer supplies the outcomes (membrane 010); the dying charge is deposed at membrane 004. Readings are conformed to the professional final texts (the transcription note at chapter 1.2 § C).

45 *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868), quoting only the immunity rule and reciting none of the case's facts; its citation is the report's short form, "12 Coke, 25," and it dates the case to 1608, a year late — the resolutions were of Easter term 1607. *Imbler v. Pachtman*, 424 U.S. 409, 423 n.20 (1976) (grand-juror immunity "an almost equally venerable common-law tenet, see *Floyd v. Barker*"; the same note grounds judicial immunity in "roots extending to the earliest days of the common law," citing *Floyd*, and repeats the 1608 date). Neither opinion — nor *Bradley v. Fisher* nor *Spalding v. Vilas* — recounts the underlying execution or the destruction of the bill. See Part 2, chapters 2.3–2.4 (reception by citation, not adjudication).

receiving chain noted that the eponym was not a disappointed litigant vexing the judge who had ruled against him — the immunity rule's paradigm target — but a man twice bereaved by the record he was forbidden to question, once co-indicted himself, imprisoned as he carried a dead man's sworn charge, his bill "utterly defaced." The name on the doctrine is the name of the wrong it was raised to bury.

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iii The survey was made for this book in August–September 2026 over the 150 volumes of *The English Reports* (Full Reprint, 178 vols., London 1900–32) available to the author, the 28 volumes not consulted being listed in the survey's working papers, available on request; it read every occurrence of the destruction lexicon (expunge, off the file, rase, cancel, deface, annihilate, suppress, and their variants) at its site in the reported text, more than 3,900 windows across the litigation-record classes, with the classification protocol retained so that the counts can be reproduced. The cell reported in the text is court-ordered destruction of a subject's pleading without an answer to it: one, this cause. Every other destruction order in the corpus names its ground (impertinence, scandal, irregularity, fraud, satisfaction) and rides motion, reference, or show-cause process; and the courts treat the irreversibility of expunction as itself a reason for restraint. The reprint closes at 1865. The survey ran over the reprint's text; every passage quoted in this paragraph was then read in the print itself. In order quoted: *Maye v. Ebdon* (Star Chamber, Mich. 1597), in John Hawarde, *Les Reportes del Cases in Camera Stellata, 1593 to 1609*, at 81 (William Paley Baildon ed., London 1894) (Baildon's margin: "Slandorous bill dismissed with costs, and withdrawn from the file for want of proof"; the fine was £40); *Boyd v. Mills*, 13 Ves. Jun. 85, 87, 33 Eng. Rep. 226, 227 (Ch. 1806) (Erskine, L.C.: "Amendment may be permitted; if it can be done without disfiguring the Record: but if the amendments must be so considerable as to blot and deface the Record . . . the Record should be taken off the file; and a new Record put upon it"); *Frankland v. Hampden*, 1 Vern. 66, 23 Eng. Rep. 315 (Ch. 1682) (the Solicitor-General's observation to the court, carried into the reporter's headnote); *Dudly's Case*, 2 Sid. 71, 72, 82 Eng. Rep. 1263 (Upper Bench, Pasch. 1658) (in the reporter's law French: Sir James Croft, acquitted, prayed that his name "serra rase hors del record & que le record serra en tout deface quant a luy," lest it "remainder come un disparagement al posterity"; "Et fuit resolve p[er] Court que seroit rase si ils poent monstre aucun president en le cas"; the English in the text is the author's); *Anonymous*, Jenk. 162, 145 Eng. Rep. 104 (digesting 8 Hen. 6, c. 12: "To erase a record, by which rasure judgment is reversed, is felony"); Edward Coke, *The Fourth Part of the Institutes of the Laws of England* 73 (London 1797 ed.) (ch. 7, "The Court of Kings Bench"; the margin names the one statutory exception, 6 Hen. 8, c. 6; orthography as printed). The report's two clauses: *Floyd v. Barker*, 77 Eng. Rep. at 1307 (12 Co. Rep. 25) ("which extends to the annihilating of a record, or of any judicial proceedings before them"; "though the party is acquitted, yet the accusing stands with the record"), the second standing in the report's statement of the conspiracy resolutions that precede the order on the same page. Where the reprint is the only witness read, the pin is to the reprint.

iv STAC 8/203/38, membranes 008–009 (the interrogatory instrument, June 1607, sixteen articles under scribal margin-numbers): art. 6 ("what some or somes of money did you receave, or had you, of the said S[i]r R[i]chard & Willm Bulkeley . . ." — the reading confirmed by its mirror in the complainant's sworn answer to the same article, "he did not receive nor had any sum or sums of money"); the promised-payment probes at art. 15 ("did they or any of them give you any fees for the same, or promise you hereafter?" — the drawer's fee) and art. 11 (whether the Bulkeleys "did pay or promise to pay to the said Towneley any sum or sums of money, reward or recompense for his pains and care taken or to be taken in the said suit"); art. 13 (the Chancery allegation, "he used to staie matters in Chancerie after Judgment and execuc[i]on," framed as "who gave you Instructions to insert" it); art. 14 ("what maynetenaunce or money have you received from S[i]r R[i]chard Bucklie, or of any of his [s]ervant[s] . . . since your imprisonment in the ffleete"); art. 16 (the appearance-surety probe, and the complainant "ffirst atached" — so spelled in the author's diplomatic layer). An earlier state of this book read, in the art.-13 zone of membrane 009, an apparently struck line whose recoverable words concerned a reward "tendred or promised" respecting Mr Barker himself; only the name-token was ever firm, and the professional transcription does not record such a line — the reading is accordingly withdrawn from the text and noted here as an open question of the leaf only. The instrument is unsigned, and was administered selectively: the imprisoned complainant was "not appointed to be examined" upon the drawer-directed articles 13, 15, and 16 (his examination so states article by article), which the counsel answered — between them the two examinations left no article unanswered, the counsel also deposing to arts. 3–6 and objecting, on the scope of the court's own order, to the parts of 13 and 16 that reached beyond it. Counsel's warning that the matters "would be . . . in the nature of a conspiracie" (the final text: "would be specially in the nature of a conspiracy") is deposed at membrane 001 (Towneley's examination, in his answer to the fourth interrogatory). All readings per the transcription note at chapter 1.2 § C.

v STAC 8/203/38, membrane 010 (the answer of John Lewis, one of the defendants; counsel-signed at the foot). The purpose clause in fuller compass: the bill was "devised, framed and contrived by the Compl[ainan]t . . . of purpose not onlie to vex and trouble this def[endan]t w[i]th longe and tedious suits in lawe, w[i]thout anie colour or good grounde of suit (as yt seemith); butt alsoe to stryke a feare into the h[a]rts of all such freeholders of the said Countie of Anglesey [as] att the next greate Sessions . . . shalbe retorned or impannelled for or upon the try[a]ll of the said W[illia]m Bulkeley (whoe standeth indicted . . .) and of other the frends of the said W[illia]m Bulkeley" — the final text continuing "who stand there also indicted as principals for the said murder and are then also to receive their trial," so that the fear pleaded is of the fact-finders in the whole cluster of trials then impending. The report's Latin: *Floyd v. Barker*, 77 Eng. Rep. at 1306 (12 Co. Rep. at 24) ("And it will be a cause of infinite vexation and occasion of perjury and smothering of great offences, if such averments and supposals shall be admitted after ordinary and judicial proceeding: and it will be a means *ad deterrendos et detrahendos juratores a servitio Regis*."). Readings per the transcription note at chapter 1.2 § C.

vi STAC 8/203/38, membrane 010 ("Neither was there anie plott practize confederacie or combynac[i]on betwene this def[endan]t and the said M[r] Barker or anie other touchinge the callinge in question of anie of the said p[er]sons in the said bill of compl[ain]t named"; the phrase "in or upon the said Inditem[en]ts" opens the answer's next sentence, on Barker's conduct "in all the said . . . p[ro]ceedinges" — the attachment adjudicated letter-exact by the commissioned professional, 31 July 2026); the maintenance passage: *id.* ("is countenaunced and mainteyned herein by some privie Adversary that will not him self (as yt seemeth) be seene," the final text continuing "in these actions"; the interlineation reading "not worthe x s in all the worlde to this def[endan]ts kn[o]wledg[e]" — "herein," "privie," "seene" (an earlier reading's "knowne" retired), and the unit "s" ("definitely s for shillings" — ten shillings, not an earlier reading's £20) per the same letter-exact verdicts). For the report's formula: *Floyd v. Barker*, 77 Eng. Rep. at 1305 (headnote: where a party is convicted, "none of the parties to the proceedings are to be drawn in question in the Star-Chamber, or elsewhere, for any conspiracy"); *id.* at 1306 (resolving that Barker, "the sheriff who did execute him according to the said judgment," the examining justices, and the witnesses "were not to be drawn in question in the Star-Chamber, for any conspiracy"); *id.* at 1307 (a judge "shall not be drawn in question before any other Judge, for any surmise of corruption, except before the King himself"). Readings per the transcription note at chapter 1.2 § C.

vii TNA STAC 8/204/31 (Star Chamber; examinations of 30 April 1608, per the m. 001 date clause): interrogatories, m. 009 item 6 ("now standeth indicted as accessarie after the saide murther"); answer of Rees ap Evan Fludd, m. 011 ll. 5–6 (the accessory-before indictment and the acquittal "by good & lawfull verdict"); deposition of Henry Lloyd, m. 002 ans. 6 (hearsay-qualified); deposition of Richard Boulton, clerk of the peace, m.

004 ans. 6 (official knowledge; the after-the-said-murder element appears struck at this site); answer of Thomas Holland, m. 007 (interlineated acquittal-and-indictment pairing). The finding rests on the convergence of these five sites, not on any single one; readings are the author's, from the record copies (the transcription note at chapter 1.2 § C conventions apply; this file lay outside the commissioned transcription's scope — its final texts, returned August 2026, cover STAC 8/203/38 only — so these readings remain author-layer, disclosed as such). The theories differ — accessory before the fact, then accessory after — so the text states a second prosecution upon the same transaction, not a retrial of the same offence. And the file's own vocabulary knew the evil by name: its interrogatories elsewhere charge that a writ campaign was procured "for the doble vexacon" of that file's complainant (m. 009 item 7) — the period's own phrase for the evil, deployed there as a charge against the acquitted man's side; it is cited here for the vocabulary alone, not as the file's characterization of the re-indictment.

viii The caption is Coke's: *Rice ap Evan ap Floyd v. Richard Barker* (a justice of the grand sessions, county of Anglesey); the independent second account opens with the same complainant's caption — "Rice ap Evan Lloyd plt" against "Rich: Barker . . . et al defts" (HLS MS 149, f. 81r; the caption's office abbreviation after "Barker" reads "Ch" — an unresolved abbreviation — in the manuscript's letterforms, where both prior transcriptions expanded "Just[ice]"; that reading remains an unresolved abbreviation on the manuscript's letterforms (the commissioned professional transcription covers the Archives file, not the Harvard manuscript, and does not reach it), and the judicial office is in any event fixed by the report body's thrice-spelled "Juftice Barker") — "Floyd" being the anglicized "Lloyd" (Llwyd). The print names the executed man "William Price" (77 Eng. Rep. at 1306: "the grand jury who indicted one William Price for the murder of Hugh ap William"); the second account's defense recital, given while reciting the destroyed bill in open court, describes "the pl[aintif]ts Brother . . . lately executed for Murder" (MS 149, f. 82v). The recital alone would equate the two men; the surviving file shows that they were two. The Court's interrogatories name the brother, "John ap Jevan Lloyd your brother" (in the professional transcription's form), in the cause of his wife's death, and ask the complainant "whether you were justlie or wrongfullie indicted for that fact" (STAC 8/203/38, membrane 008, art. 2); they name the kinsman in the full patronymic form, "William ap Rees ap William" (arts. 2–3), "executed w[i]th yo[ur] said brother" (art. 2), and the complainant's own examination swears the degree — the two men "were the sons of cousin germans removed" (his answer to the second interrogatory); and the sheriff's answer supplies the outcomes — "upon their tryall the said Elder brother was thereof found guiltie and the said Compl[ainan]t . . . hardly escaped and was found not guiltie" (membrane 010). The dying charge is deposed at membrane 004: the condemned kinsman's written "direction for you against Mr Barker & others of their dealinges, w[hi]ch I prairie you make knowne to the state after I am dead, as you are my kinsman," which the deponent "vowed" to perform. The plaintiff's name varies across the records (Floyd, Lloyd, Lloyde, Fludd; see the name-forms note at chapter 1.2 § B); his autograph in the professional final reads "Rees ap Jevan Lloid." Readings are conformed to the professional final texts (the transcription note at chapter 1.2 § C); the name-forms above follow them.

ix *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868), quoting only the immunity rule and reciting none of the case's facts: "it was said as long ago as 1608, as reported by Lord Coke in *Floyd and Barker's case*, that insomuch as the judges of the realm have the administration of justice, under the king, to all his subjects, they ought not to be called in question for any judicial proceedings by them, except before the king himself." Three features of the invocation are worth recording. It stands alone in the Court's own sentence — not inside a string of authorities (the string of five cases at 535, four of them English and the fifth *Yates v. Lansing*, sits in a footnote to the *argument of counsel*, and the taproot is not among them; the long chronological strings that do carry *Floyd*, at 532 and 534, are counsel's too). Its citation is the report's short form, "12 Coke, 25," pinning a page in the middle of the report rather than its first. And the receiving court dates the case to 1608, a year late — the resolutions were of Easter term 1607. The misdating then propagates for a century: *Imbler's* footnote, below, cites "*Floyd v. Barker*, 12 Coke 23, 77 Eng. Rep. 1305 (1608)," so the modern prosecutorial-immunity node repeats the origin decision's error. *Imbler v. Pachtman*, 424 U.S. 409, 423 n.20 (1976) (grand-juror immunity "an almost equally venerable common-law tenet, see *Floyd v. Barker*"; the same note grounds judicial immunity in "roots extending to the earliest days of the common law," citing *Floyd*, and traces its American reception through *Yates v. Lansing* and *Bradley*). Neither opinion — nor *Bradley v. Fisher* nor *Spalding v. Vilas* — recounts the underlying execution or the destruction of the bill. See Part 2, chapters 2.3–2.4 (reception by citation, not adjudication).

### 1.3 The Report: The Three Locks, Their Author, and the Forum They Reserved

#### A. *The Three Locks*

The prerogative's procedural form was fixed in two companion decisions of 1607, and on their face they do not announce unaccountability. They announce a remedy — the official remains answerable "to God and the King," "except before the King himself" — and the modern doctrine leans on exactly that, urging that immunity leaves other channels intact. But the promised accountability is a sealed loop, and the three locks are in the text.

*Lock One bars proof.* Records, the report holds, "import verity in themselves, and none shall be received to aver any thing against the record itself."<sup>46</sup> The bar is a rule of evidence, not of venue: the fact of wrongdoing cannot be established because evidence of it is inadmissible by rule, and the verity attaches to the maker's sworn *status* — "the law will not suppose any [partiality], when he is sworn to serve the King," so that the law will "not . . . admit proof against this presumption."<sup>47</sup> *Lock Two routes the grievance to the sovereign alone.* To draw the officer into question "trench[es] to the scandal of the King himself, except it be before the King himself; for they are only to make an account to God and the King."<sup>48</sup> To impugn the officer is to impugn the Crown, and an offense against the sovereign can be answered only by the sovereign. *Lock Three closes that forum.* The companion decision holds that "the King in his own person cannot adjudge any case," and — decisively for the wronged subject — "the party cannot have remedy against the King."<sup>49</sup> So no proof may be heard; only the sovereign may hear it; and the sovereign

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<sup>46</sup> *Floyd v. Barker*, 77 Eng. Rep. 1305, 1305–06 (Star Chamber 1607) (the reprint's full construction is "presumption of law, that a justice sworn to do justice will do injustice").

<sup>47</sup> *Id.* at 1306 (the sworn-status verity and the private-witness asymmetry — only "a private person, produced by the party, and not returned by the sheriff," may be impeached).

<sup>48</sup> *Id.* at 1307.

<sup>49</sup> *Prohibitions del Roy*, 77 Eng. Rep. 1342, 1343 (1607) (12 Co. Rep. 63, 64).

cannot adjudicate and owes the party nothing. The exception "before the King himself" resolves to a null set. The remedial promise opens onto a wall.

*B. The Root Sentence Inverted in Print, and the Rule's Two Limits*

The blindness of the receiving tradition runs past the caption, to the letters of the rule itself. The foundational sentence of the rule, as it stands in the received print — the English Reports text that is all any citing court has ever had — negates itself: "the law will not admit any proof against this vehement and voilent [sic] presumption of law, that a justice sworn to do justice *will do injustice*."<sup>50 x</sup> As printed, the sentence forbids proof against a presumption that the sworn justice will do *wrong* — an irrebuttable presumption of official misconduct — the exact inverse of the rule four centuries of courts have taken it to state. The reading is a transmission error, and a datable one: Coke's own notebook report of the case, in print only since 2025, gives the clause sense-correct — *que justice jure a faire justice voet faire justice*, "that a justice sworn to do justice will do justice" — and its editor's apparatus shows the sentence unstable in every direction the copying tradition allows: dropped whole by eye-skip in two manuscript witnesses and rescued in their margins, and inverted to "will do injustice" in a third — the reading the posthumous print received and the English Reports perpetuate. The first edition of 1656 already prints the inversion while spelling "violent" correctly, so the error is native to the first print and no later reprint's. The correction is welcome; the diagnosis is the point. The sense-correct text was never before any court that built the doctrine — it lay unprinted in notebook manuscripts for

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50 *Floyd v. Barker*, 77 Eng. Rep. at 1306 (the sentence is quoted as the English Reports reprint prints it, including the reprint's misspelling "voilent" for "violent"; the 1656 first edition and the 1677 edition both spell "violent" correctly). The notebook text and apparatus: *Reports from the Notebooks of Edward Coke*, vol. VII: 1604–1608, at 1656 (J.H. Baker ed., 142 Selden Soc. 2025) (entry "3. Lloyd v. Barker," law-French text "que justice jure a faire justice voet faire justice"; apparatus n. 8: "Om. by haplography in Q and S, but in both MSS. supplied in margin. voet faire injustice I."). The 1656 first edition already prints the inversion ("that a Justice sworn to do Justice will do injustice"): the inversion is first-print-native. This book quotes the reprint because the reprint is the text the receiving courts cite; the print is quoted as printed, never silently corrected.



the whole of the doctrine's career — while the text that was before every one of them stated the presumption backwards, and no decision in the receiving chain appears ever to have noticed. A lineage that rested its rule on this sentence without registering that the sentence, as printed, says the opposite was not reading its foundation even at the level this book's method treats as minimal: what the letters on the page in fact say (the Method). The record-blindness of the reception is not a characterization; at the doctrine's root sentence, it is a typographical fact.

The words "vehement" and "violent" are not rhetoric but the top rank of the era's technical proof taxonomy, stated in the doctrine's own author's evidence treatise: presumptions come in "three sorts, viz. violent, probable, and light or temerary. *Violenta praesumptio* is manie times *plena probatio*," and Blackstone's chapter on trial carries the grade forward. The same treatise supplies the rule that even the top grade is weight, not preclusion, "*Quod stabitur praesumptioni donec probetur in contrarium*"; but, as you see, it hath many exceptions," and bounds the class the law will hear no proof against to named positive-law categories with stated rationales: the sealed acquittance, which is an estoppel; legitimacy within the four seas; flight-forfeiture. Measured by that rulebook, the report's "the law will not admit any proof against this vehement and voilent presumption" is a category violation rather than a strong metaphor: a violent presumption promoted to an irrebuttability the taxonomy nowhere licenses, with no named category, no stated rationale that survives its own facts, and the presumption's substrate standing decreed "utterly defaced" on the report's next page.<sup>51</sup> Story's prize court administered the identical grade the rulebook's way, as rebuttable weight with explanation the escape, against the destroyer of records.<sup>52</sup>

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51 *Floyd v. Barker*, 77 Eng. Rep. at 1305–06 (the root sentence as printed); above in this section.

52 Co. Litt. 6b ("three sorts, viz. violent, probable, and light or temerary. *Violenta praesumptio* is manie times *plena probatio*"); 3 Bl. Comm. \*371, whose first-edition note *u* cites Co. Litt. 373; Co. Litt. 373a–b ("*Quod stabitur praesumptioni donec probetur in contrarium*"; but, as you see, it hath many exceptions," the margin sourcing the maxim to Bracton, lib. 1, cap. 9; "the law will admit no prooffe against that which the law presumeth"; Butler's

Two features of the root, finally, bound the rule its own text stated. First, the 1607 rule reached only judicial acts: a judge could not be charged "for that which he did openly in Court as Judge," but conspiracy "before out of Court" was "extrajudicial," and "subornation of witnesses, and false and malicious prosecutions, out of Court" remained actionable.<sup>53</sup> Second, the rule was not an exemption from accountability but a channeling of it — the officer answered "to God and the King," "except before the King himself" — and the report itself records that forum operating, naming judges whose "causes were determined in Parliament, where some were banished, and some were fined and imprisoned."<sup>54</sup> The rule presupposed a live enforcement authority standing above the immunized official. What the transplant made of those two limits is the subject of Part 2; here it is enough that the rule as its own age wrote it secured accountability's forum before it barred the parties' suit.

### *C. The Reporter as Prosecutor, 1605–07*

The reporter through whom the rule descends confirms the point from his own career: the Coke who spoke in *Floyd* for the prerogative court was the Coke who would turn against it — in *Dr.*

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note 326 on the sealed acquittance as "an estoppel"). *Floyd v. Barker*, 77 Eng. Rep. at 1306–07; *The Pizarro*, 15 U.S. (2 Wheat.) 227, 241 (1817) (Story, J.), the note at chapter 3.3 § A.

<sup>53</sup> The limb survived, for officers other than judges, into the American common law of 1871, and the judges' branch of that corpus removed it: Scott A. Keller, *Qualified and Absolute Immunity at Common Law*, 73 Stan. L. Rev. 1337, 1358–59 (2021); see chapter 2.2.

<sup>54</sup> *Floyd v. Barker*, 77 Eng. Rep. at 1306–08 (the office/function limit — no charge "for that which he did openly in Court as Judge," but conspiracy "before out of Court" is "extrajudicial," and "subornation of witnesses, and false and malicious prosecutions, out of Court" remain actionable; the reserved forum — answerable "to God and the King," "except before the King himself"; the forum operating — Weyland, Hengham, "and the other justices . . . determined in Parliament, where some were banished, and some were fined and imprisoned"). On the non-reception into American law of a monarchical immunity premised on answerability to the Crown, see *Van Ness v. Pacard*, 27 U.S. (2 Pet.) 137, 144 (1829); Part 2, chapter 2.2. *Webster v. Fall*, 266 U.S. 507, 511 (1925); see Part 3, chapter 3.2 § C.

*Bonham's Case*, in the Petition of Right — and become the oracle of common-law liberty the colonists invoked. *Floyd* is the relic of the side its own author abandoned.<sup>55</sup>

Nor is the "participant" reading a modern retrospection: the charge was contemporary, printed, and addressed to the reporter by name. In January 1605/6 — fifteen months before the resolutions — the same Attorney General had carried the Crown's case against the eight surviving Gunpowder plotters, upon an indictment naming Henry Garnet, "Superior of the Jesuits within the Realm of England," among the movers of the treason.<sup>56</sup> Within the year, Robert Persons answered the Fifth Part of the *Reports* in a printed rejoinder whose title names "Syr Edvvard Cooke Knight, the Kinges Attorney generall," recounting Coke's conduct of Garnet's own trial and quoting the prosecutor's flourish back at him: "And you added in the heat of your eloquence, that if you proued [n]ot this, then let the vvorlde saie: That Garnet is an honest man."<sup>57 xi</sup> An adversary's polemic proves no charge; what it fixes is a date. The reporter's neutrality was contested in print, by a contemporary, in the months between the trials he prosecuted and the resolutions he reported: the participant of modern scholarship's caution was described as one in his own season. And the reporter answered — by refusing to. The preface to

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55 On Coke's role in *Floyd* as a partisan of the prerogative courts, see the note at chapter 1.2 § B. His later turn against the prerogative — in *Dr. Bonham's Case*, 8 Co. Rep. 113b (1610), and as draftsman of the Petition of Right, 3 Car. 1, c. 1 (1628) — made him the common-law authority the Revolutionary generation invoked, Otis among them. *Dr. Bonham's Case*, 8 Co. Rep. 113b, 77 Eng. Rep. 646, the operative holdings at 118a and 121a; on the chain's descent from *Floyd* by its own citations, chapter 2.4.

56 The proceedings of 27 January 1605/6 against the eight surviving conspirators — the indictment and the Attorney General's prosecution entire — are preserved in *A Complete Collection of State-Trials*, vol. I, item XIX (Francis Hargrave ed., 4th ed., London 1776). The indictment's naming clause is quoted in the text; the compilation names "Sir Edward Coke Attorney-General" speaking for the Crown, and the body of the prosecution is his. Every passage this book quotes from the item was read in the 1776 print ("the fourth edition . . . a new preface, by Francis Hargrave, Esquire," London, T. Wright, sold by G. Kearsly, 1776): the indictment's naming clause and the commissioner roll at cols. 231–32, the Attorney General's answer-attribution at col. 244. Long s is normalized to s in quotation; the compilation remains a text at a remove from the record, cited as what it is.

57 Robert Persons, *An Ansvvere to the Fifth Part of Reportes Lately Set Forth by Syr Edvvard Cooke Knight, the Kinges Attorney Generall* ([Saint-Omer] 1606) (issued "By a Catholicke deuynne"). Read in the 1606 print at leaves 23–24 (British Museum copy); the account of the reading, with its two residues, is in the Notes. The Sixth-Part preface quoted in the text: Edward Coke, *La Size Part des Reports* (London 1607), the English preface "To the Reader", read at the first-edition leaves (British Library microfilm; long s normalized). The modern historian's caution: the note at chapter 1.2 § B.

the Sixth Part of the *Reports*, in the resolutions' own year, acknowledges the answer "as lately hath beene published" — "full of maledictions and calumniations," it holds, "nothing pertinent to the state of the question" — and declines it in terms: "Expect not from me (good Reader) any reply at all, for I will not answere vnto his inuectiues, and I cannot make any replie at all to any part of his discourse" — the stated ground being that a reporter has nothing to defend: "The cause that I cannot replie is, for that I haue onely reported the Text, and as it were the verie voice of the auntient Lawes of this Realme."<sup>58</sup> The answer to the partisanship charge was a claim of pure transmission — the claim this book's method tests, and the one the root sentence, four centuries unread, fails.

What the prosecutor carried into that season, moreover, was not only a side but a premise. Expounding the treason statute of 25 Edw. III to the January commission, Coke stated as the trial's own law that to kill "any Justice of the one Bench or other; Justices of Assize, or any other Judge mentioned in the Statute of 25 Edw. III. sitting in their Judicial Places, and exercising their Offices" is treason, "for that every Judge so sitting by the King's Authority, representeth the Majesty and Person of the King; and therefore it is Crimen læsæ Majestatis, to kill him, the King being always in Judgment of Law present in Court."<sup>59</sup> <sup>xii</sup> That is Lock Two's equation — the judge is the King's person, so that to reach the judge is to reach the Crown — in the reporter's own mouth, as prosecutor, fifteen months before the resolutions generalized it; what *Floyd* performs is thereby visible as an extension of a premise its author already carried, from killing the judge to complaining of him. And the proceeding in which he stated it convicted on the record the state had itself prepared — *reos confitentes*, "the Traitors own voluntary Confessions

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<sup>58</sup> Edward Coke, *La Size Part des Reports* (London 1607), the English preface "To the Reader" (unpaginated; the three passages quoted in the text); see the note on Persons's *Ansvere* in this section.

<sup>59</sup> *State-Trials*, vol. I, item XIX (Hargrave 4th ed. 1776), at col. 236, in the Attorney General's address, expounding the treasons of 25 Edw. III (source per the State Trials note above in this section); long s and the ligature normalised. On the office/function line the passage itself draws, the note at chapter 1.3 § B.

at the Bar," their subscribed examinations "openly and distinctly read" to the court<sup>60</sup> — before a bench the resolutions would partly reconvene: Popham C.J. and the Chief Baron sat on the January commission and among the judges the notebook report names at the resolutions, where the Attorney General of the trial now sat as Chief Justice of the Common Pleas — and reported.<sup>61</sup>

The same hand survives on the trial's own record. The examination of Guy Fawkes taken 9 November 1605 "was read at the trial, with the exception of the part exculpating Gerard" — the Jesuit whom the indictment named among the movers: in the original, the omitted passage "is scored with red ink," and before it, in the margin, "in his own hand," stand the words *huc usque* — thus far — the Attorney General, as the nineteenth-century editors who inspected the original put it, "unwilling to publish to the world a passage which might serve for the justification of one whom he meant to accuse."<sup>62</sup> <sup>xiii</sup> A reading-stop in the prosecutor's own hand, drawn on the record to keep the exculpation from the courtroom, some fifteen months before the same hand reported the resolutions holding that records "import verity in themselves" and none shall aver against

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60 *Id.* at col. 243 ("especially seeing we have Reos confitentes, the Traitors own voluntary Confessions at the Bar"; the "voluntary and free Confessions of all the said several Traitors in writing subscribed with their own proper Hands, and acknowledged at the Bar, by themselves to be true, were openly and distinctly read"). Source per the State Trials note above in this section.

61 The January commission's roll, as the compilation prints it at col. 232, includes "The Lord Chief Justice of England, Sir John Popham" and "The Lord Chief Baron of the Exchequer, Thomas Fleming" (source per the State Trials note above in this section). The resolutions' bench: the notebook report's caption — "it was resolved by Popham and Coke C.JJ., [Fleming] C.B., Egerton L.C., and all the court of Star Chamber" (Baker ed., 142 Selden Soc. at 1655; the chief baron's name is the edition's bracketed identification; the printed report likewise names Popham, Coke, "the Chief Baron," and Egerton, 77 Eng. Rep. at 1305). Coke's own seat: he passed from Attorney General to Chief Justice of the Common Pleas in June 1606, between the trial and the resolutions. The overlap stated in the text is confined to what these two cited rolls show — Popham, the Chief Baron, and Coke himself; no claim is made for the commission's other members.

62 *A True Account of the Gunpowder Plot, Extracted from Dr. Lingard's History of England and Dodd's Church History, Including the Notes and Documents Appended to the Latter by the Rev. M. A. Tierney . . . with Notes and Prefatory Remarks by Vindicator* (London, C. Dolman 1851), at p. 8 n.† and p. 44 (Tierney's annotation: "the passage is scored with red ink, and that before it, in the margin, are written, in his own hand, the words '*huc usque*,'—*thus far*."). Both quotations are from the 1851 print; the description of the manuscript is the 1851 editors' report from their inspection of the State Paper Office original, and this book asserts nothing about the manuscript beyond their published statements. The exculpated man's presence in the indictment: the State Trials note above in this section.

them. The two gestures are one method — curate the record, then sanctify it — and the three locks gave the method its rule.

*D. The Reserved Forum Used Once: Coke Removed, 1616*

Coke's abandonment of the prerogative side was answered in kind, and by the forum *Floyd* had reserved. In October 1616 the King set down for his council the grounds on which Coke was to be dealt with, and among them that he might "very justly have proceeded then, not only to have put him from his place of Lord Chief Justice, but to have brought him in question in the Star Chamber, which would have been his utter overthrow."<sup>63</sup> The court whose suggestion no judge was to answer, on the report Coke had written nine years before, was the court the King now held over Coke; the grace of not putting him to answer there was recorded as a grace. The same paper charged his "perpetual turbulent carriage . . . towards all the settled jurisdictions of all his other courts, the High Commission, the Star Chamber, the Chancery," and required his answer to five passages of the Reports, "being all such as were expatiations of his own, and no judgments" — *Bonham* among them.<sup>64</sup> He was removed the next month, by a writ that stated no cause.<sup>65</sup> The rule that judges answer only "before the King himself" was, for its author, exactly true.

The forum had already sat that summer. In June 1616, over a royal command to stay proceedings that the twelve judges had written they held "to be contrary to law, and such as we

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63 Cuthbert William Johnson, *The Life of Sir Edward Coke*, 2d ed., vol. I (London 1845), at 315 (the King's paper of October 1616); the note below in this section.

64 *Id.* at 315 ("perpetual turbulent carriage"), 317 ("expatiations of his own, and no judgments").

65 Cuthbert William Johnson, *The Life of Sir Edward Coke*, 2d ed., vol. I (London 1845), at 314–17 (the King's paper to Bacon, printed from Harleian MSS 7006, which Johnson dates "probably . . . about the 10th of October, 1616"; the King "might . . . very justly have proceeded then, not only to have put him from his place of Lord Chief Justice, but to have brought him in question in the Star Chamber, which would have been his utter overthrow"); *id.* at 317–18, 321–22 (the five questions delivered by the Lord Chancellor on 17 October 1616; question 4 is *Dr. Bonham's Case*, "Lib. 8"). The writ of 16 November 1616 and the contemporary report that the King "thought him no ways corrupt, but a good justice" are printed *id.* at 334, 340; the manuscript for the paper is the Harleian collection, cited here through Johnson's print, whose dating is his own.

could not yield to by our oaths," the judges were summoned before the King in council, where "they all kneeled, confessed themselves in error, and solicited pardon" — Coke alone holding, in the King's presence, that the command "was a delay of justice, against the law, and contrary to their oaths."<sup>66</sup> The question then put to them was not whether any subject had been wronged but whether, "in a case were [sic] the King believed his prerogative or interest concerned," they "ought not to stay proceedings till his Majesty had consulted them."<sup>67</sup> All but Coke answered yes; Coke answered that "when the case happened, he should do that which should be fit for a judge to do."<sup>68</sup>

When his successor was sworn in November, the Lord Chancellor told the new Chief Justice what the vacancy meant. He was called to

a place vacant, not by death or cession, but by amotion and deposing of him that held the place before you, and that not as Sir William Thorpe in the time of the absence of King Ed. 3 . . . nor as Sir Robert Tresilian in the disordered and unruly time of King R. 2. But in the peaceable and happy Reign of Great King James . . . He putteth down one, and setteth up another; a Lesson to be learned of all, and to be remembred and feared of all that sit in Judicial places.

The fault was named in the same speech: the new judge's grandfather had

challenged not power for the Judges of this Court . . . to judge Statutes and Acts of Parliament to be void, if they conceived them to be against common right and reason; but left the King and the Parliament to judge what was common right and reason.

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<sup>66</sup> Johnson, *Life of Coke*, I at 297 (the judges' letter), 299 (the kneeling; Coke's answer); the note below in this section.

<sup>67</sup> *Id.* at 301 (the question put).

<sup>68</sup> Cuthbert William Johnson, *The Life of Sir Edward Coke*, 2d ed., vol. I (London 1845), at 297 (the judges' letter: "with one consent, do hold the same to be contrary to law, and such as we could not yield to by our oaths"), 298 (its signatories: Coke, Hobart, Tanfield, "and the nine Puisne Judges"), 299 (Coke at the council: the command "was a delay of justice, against the law, and contrary to their oaths"), 299–301 (the kneeling, the question put, and the answers, Johnson citing Bacon's Works, vol. 5, p. 433, for Coke's).

And the tenure was named: "sithe the Kings Majesty hath enabled you, who shall or can disable you."<sup>69</sup> Thorpe is the precedent *Floyd* itself recites for a judge called to account; the crown added Tresilian. Nine years after the report, it recited the two as the measure of what it had done to the report's author, and called it a lesson to be feared.

*E. The Forum Closed to the Subject: Judges Sentenced, Petitioners Punished*

The court that made the rule did not observe it. On 11 February 1596/7, ten years before *Floyd*, the Star Chamber "by the whole Court" sentenced a Justice of the Peace "to be deposed from the Commission of the Peace" for misdemeanours "in him as a Justice of the Peace," while holding the underlying riot "not triable in this Court, but by an action at common law."<sup>70</sup> In 1621 the same court sentenced the Judge of the Prerogative Court of Canterbury, "for bribery and other misdemeanors in his office of Judge," to a fine of twenty thousand pounds, imprisonment, and incapacity for "any office of judicature"; the whole bench of England, assembled at Serjeants' Inn, later held the King's pardon to have discharged everything but the fine.<sup>71</sup> Half a century on, Vaughan, Chief Justice, stated the course as history: judges who "have given corrupt and dishonest judgments . . . have in all ages been complained of to the King in the Starr-Chamber, or to the Parliament," and he listed the instances, from the judges Alfred punished to "the judgment of the ship-mony in the time of Charles the First, question'd, and the particular Judges

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69 The Lord Chancellor's speech to Sir Henry Montague on his swearing as Chief Justice of the King's Bench, *Moore (K.B.)* 827–29, 72 Eng. Rep. 931–32 (18 Nov. 1616). The Reports' own record of the vacancy: *Cro. Jac.* 407, 79 Eng. Rep. 348 (memorandum that Coke, "being in the King's displeasure, was removed from his place by a writ from the King, reciting, that whereas he had appointed him by writ to that place, that he had now amoved him"). On *Floyd's* recital of Thorpe and of Weyland and Hengham, 12 Co. Rep. 25–26, 77 Eng. Rep. 1307–08.

70 John Hawarde, *Les Reportes del Cases in Camera Stellata, 1593 to 1609*, at 68–69 (William Paley Baidon ed., London 1894) (Griffithe's case, 11 Feb. 1596/7).

71 *Cro. Car.* 56, 79 Eng. Rep. 652 (C.P. Hil. 2 Car. I) (Sir John Bennet, Judge of the Prerogative Court, sentenced in the Star Chamber "for bribery and other misdemeanors in his office"; the pardon; the resolution of "all the justices and Barons" at Serjeants' Inn that the pardon "hath taken away all force of the sentence in the Star Chamber, except for the fine").



impeacht."<sup>72</sup> On the same page he stated the forum's own theory of tenure: a judge's "fitness for his place" is not to be "censured, defamed, or vilified by any other person," the King alone being the one "to whom only it belongs to judge of the fitness of his ministers." The rule the receiving courts took as a settled exemption was, in the court that made it, a proposition contradicted by its own docket.

Nor did the forum the rule reserved ever open to the subject who sought it. In 1618 a Chancery suitor, John Wraynham, put into the King's hands a book against the Lord Chancellor's decree and asked in its epistle for "a public hearing before your majesty."<sup>73</sup> The King's recorded answer was that though he receives petitions from his subjects against his highest justices, "he will have his judges know, that they are subject to his account only, and to none else upon earth," and he delivered the book to his Attorney General.<sup>74</sup> The Star Chamber, sentencing, resolved that a subject may petition the King "in an humble and modest manner" for a re-hearing, that such a review is "a Commission of Grace, not of Right," and that "the justice of the decree was not to be questioned"; the petitioner was sentenced, Coke speaking first and the rest agreeing, to imprisonment, a fine of a thousand pounds, riding with his face to the horse's tail, and the loss of his ears.<sup>75 xiv</sup> Three years later the sentencer carried the same kind of complaint himself. When the

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<sup>72</sup> *Bushell's Case*, Vaughan 135, 138–39, 124 Eng. Rep. 1006, 1008 (C.P. 1670) (Vaughan, C.J.); the tenure passage is at the same page. The Reports record the bare removals of 1678 and 1681 as memoranda: 1 Ventris 329, 86 Eng. Rep. 212 ("Sir Richard Rainsford was removed"); 1 Ventris 354, 86 Eng. Rep. 228 (Pemberton made Chief Justice "in the room of Sir William Scroggs, who was displaced").

<sup>73</sup> *Proceedings against Mr. Wraynham*, 2 How. St. Tr. 1059, 1065–66 (the epistle); the note below in this section.

<sup>74</sup> *Id.* at 1065–66 (the King's saying).

<sup>75</sup> *Wrenham's Case*, Hob. 220, 80 Eng. Rep. 367 (Star Ch. 1618) ("it was lawful for any subject to petition to the King for redress in an humble and modest manner . . . but on the other side, it is not permitted under colour of a petition and refuge to the King, to rail upon the Judge or his sentence"; "the justice of the decree was not to be questioned in this case"); *Proceedings against Mr. Wraynham*, 2 How. St. Tr. 1059, 1073 (Coke, C.J.: a review of a decree "is very rare: and that is a Commission of Grace, not of Right"). The sentence lines at col. 1080 are lost in the print consulted; the terms and the date are reported, from Chamberlain's letter to Carleton of 5 May 1618, in 6 James Spedding, *The Letters and the Life of Francis Bacon* 311 (London 1872). Seventy years on the Attorney General cited "the Case of Wrenham in my Lord Hobart" against the Seven Bishops' petition: *The Proceedings and Tryal of the Seven Bishops* 382–84 (London 1739).

Commons in March 1621 weighed two suitors' charges of corruption against the same Lord Chancellor and were told the proof rested on single, interested witnesses, Coke answered that "he that accuseth himself by accusing another, is more than three witnesses," and was named to draw the complaint up for the Lords.<sup>76</sup> In 1629 the rule protected its author. A libel "directed to the King" against Coke, "late Chief Justice," calling him "traitor, perjured Judge" for a judgment of his court, sent the libeller to the pillory at Westminster and Cheapside, to prison until he had made "his submission in every Court," and to a fine of a thousand pounds.<sup>77</sup> Before and after, the petitioners who charged a Lord Chancellor or a Lord Keeper to the King lost their ears on the pillory and were fined, and a subject who accused a judge of treason in open court paid five thousand pounds to the King and ten thousand to the judge.<sup>78</sup> The one complaint against judges the King is recorded hearing came from a peer, the President of the Council of the North; the judge sent for to answer it before the King, in person, was Coke.<sup>79</sup>

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<sup>76</sup> The proceedings against Lord Chancellor Bacon for bribery and corruption, 2 How. St. Tr. 1087, 1093–94 (H.C. 17 Mar. 1620/1) (Sir Edward Coke: "It is objected, that we have but one single witness; therefore no sufficient proof. . . . In this, one witness is sufficient; he that accuseth himself by accusing another, is more than three witnesses"; the House then "Ordered, That the Complaint of Awbrey and Egerton against the Lord Chancellor and the bishop for Corruption . . . should be drawn up by sir Robert Phillips, sir Edward Coke, Mr. Noy, and sir Dudley Diggs"). The complainants were suitors in Chancery; the Chancellor was Bacon, whose decree Wraynham had questioned.

<sup>77</sup> *Jeffes' Case*, Cro. Car. 175, 79 Eng. Rep. 753 (K.B. 1629).

<sup>78</sup> John Hawarde, *Les Reportes del Cases in Camera Stellata* 176–77 (William Paley Baildon ed., London 1894) (Fourde, 1604: "perpetual imprisonment, to lose his ears upon the pillory, having papers on his head, 'to ride w[i]th his face to the horse taile, & to be fyned 1000li.'"; the court: "Let all men hereby take heede how they complayne in wordes againste any magistrate, for they are gods"); John Rushworth, *Historical Collections*, App. 29–30 (Norton, 1630: the petitioner "fined 3000 l. to acknowledge at the Chancery-Bar, with a Paper on his head declaring his offence, that the Decree . . . was just"; his agents "set on the Pillory with one Ear nailed to it, while the Courts sit . . . there to remain during Life"); *Harrison's Case*, Cro. Car. 503, 79 Eng. Rep. 1034 (K.B. 1638) ("I accuse Mr. Justice Hutton of high treason"; a fine of five thousand pounds, imprisonment during the King's pleasure, and "his submission in every Court in Westminster-Hall"; the judge's own action for defamation recovered "10,000l. damages"); *Hutton v. Harison*, Hut. 131, 123 Eng. Rep. 1151–52 (1638) (the judge's own memorandum of the fine and the damages).

<sup>79</sup> *Prohibitions* (the President of York's complaint), 13 Co. Rep. 30–31, 77 Eng. Rep. 1440 ("And the King sent for me to answer to that complaint: and I only, all the rest of the justices being absent, waited upon the King in the chamber near the gallery").

The Lord Chancellor whom Wraynham accused set the theory of the office down in print seven years later. *Of Iudicature* arranges what a judge owes by four references — "Vnto the *Parties that sue*; Vnto the *Aduocates that Plead*; Vnto the *Clerkes and Ministers of Iustice* vnderneath them; And to the *Soueraigne or State* about them" — names the faults toward the first three, among them to "giue Occasion to the Partie to say; *His Counsell or Proofes were not heard*," knows their price, "One Foule Sentence, doth more Hurt, then many Foule Examples," and names a remedy for none of them; the fourth reference alone runs upward, and it is consultation, ending with the judges as "Lions vnder the Throne."<sup>80</sup>

#### *F. The Court's Own Registers Lost*

Nor could the report ever be checked against the court's own registers, because the registers themselves did not survive. Hudson, writing his treatise on the court under James I, already complained that its records "are negligently kept, and many times lost," and that "the very sentences by which severe punishment hath been executed upon offenders have, by mere neglect, been wholly left unentered; so that there is no record to justify the inflicting of that punishment"; the order books passed to Sir Francis Bacon on his becoming clerk, delivered by the Lord Chancellor on 19 August 1608 as volumes of the "Kallender of Orders"; and in 1732 the keeper of records in the Exchequer reported of the court that "the decrees of this court are not at present

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<sup>80</sup> Francis Bacon, *Of Iudicature*, in *The Essayes or Counsels, Civill and Morall* 316, 317, 318, 321, 323–24 (London, Iohn Haviland for Hanna Barret, 1625) (Essay LVI; quoted as printed, long s normalised): at 317, the four references, and the passage the text quotes; at 318, "that that which was meant for Terroure, be not turned into Rigour"; at 321, the passage the text quotes; at 323, "when *Iudges* doe often Consult with the *King and State*"; at 324, "Let them be Lions, but yet Lions vnder the Throne; Being circumspect, that they doe not checke, or oppose any Points of *Soueraigntie*." The essay first appeared in this, the third and final authorial edition; the 1629 reprint (London, Haviland for Allot) resets it page for page, misnumbering 324 as 243, and is word-identical in the passages quoted but for *Soueraigntie* at 324; spellings vary elsewhere on the same leaves (at 323 *Happy* for *Happie*, *Soueraignty* for *Soueraigntie*, and *Rex* for *Lex* in the Twelve Tables' *Salus Populi Suprema Lex*); the modernised text is in *The Essays of Francis Bacon* 256–62 (George Edward Woodberry intro., Century Classics 1900).

anywhere to be found."<sup>81 xv</sup> No decree in *Floyd v. Barker* survives in the court's own archive. That the receiving tradition rests on the report alone is therefore not a preference the receiving courts exercised; it is a fact of the archive — the report is the only text there is, and the record behind the report was destroyed by the very order the report memorializes.

The era itself knew what that practice was worth, and said so through the officer best placed to say it. William Prynne — Benchet of Lincoln's Inn and, as his title page styles him, "Keeper of His Majesties Records in the TOWER of LONDON" — re-ran the record citations of Coke's chapter on "the Honourable Court of Star-chamber," the *Floyd* forum, against the original rolls in his custody, and published the results in 1669 with the transcripts "out of the Originals . . . at large inserted": the chapter "abound[s] with several mistaken numbers of membranaes, misquotations, and some grosser mistakes"; cited records "are not to be found in those Membranaes or Rolls, upon my diligentest perusal of them"; and the review states, of the precedents re-run there, the standing verdict — "how unsafe it is to take Records upon trust, from the reports of learned Judges, who never read nor perused their originals."<sup>82 xvi</sup> The warning issued under royal dedication, from the keeper of the originals, while originals could still be checked. What the immunity lineage would do is the condemned practice exactly — the report

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81 Cora L. Scofield, *A Study of the Court of Star Chamber* (Chicago 1900), at iii–iv; William Hudson, *A Treatise of the Court of Star Chamber*, pt. I, in 2 *Collectanea Juridica* 1, 6, 41 (Francis Hargrave ed., London 1792) (at 6, the sentence the text quotes). The 1732 report: Daniel Gosling, *The Records of the Court of Star Chamber at The National Archives and Elsewhere*, in *Star Chamber Matters: An Early Modern Court and Its Records* 19, 21 & n.13 (K.J. Kesselring & N. Mears eds., Univ. of London Press 2021) (open access), quoting John Lawton, keeper of the records in the Exchequer, in the words the text quotes, citing TNA SP 46/140. Whether BL Harley MS 2143, published as K. J. Kesselring (ed.), *Star Chamber Reports: BL Harley MS 2143* (List and Index Society, Special Series 57, 2018), carries a *Floyd* abstract is an open question, disclosed as such.

82 William Prynne, *Brief Animadversions on, Amendments of, & Additional Explanatory Records to, the Fourth Part of the Institutes of the Laws of England . . . Compiled by the Late Famous Lawyer Sir Edward Cooke Knight* (London 1669), the Epilogue's review of 4 Inst. cap. 5 at pp. 417–22; the chapter verdict and the diligentest-perusal statement at p. 417; the records-upon-trust verdict at p. 421. Quotations are from the 1669 print, long s normalized. Prynne's own Star Chamber history is disclosed lest the office be mistaken for disinterest: that court sentenced him, and took his ears. The verdict quoted is nonetheless a records-office finding, stated of named rolls, checkable then and now.

taken on trust, the original never perused — in the one case where perusal had been made impossible by the report's own decree.

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x *Floyd v. Barker*, 77 Eng. Rep. at 1306 (the sentence is quoted as the English Reports reprint prints it — including the reprint's misspelling "voilent" for "violent," a second letter-level decay mark in the same sentence; both readings were checked in two independent copies of the Full Reprint, which agree, the same volume elsewhere spelling "violent" normally; the 1656 first edition and the 1677 edition both spell "violent" correctly, so the misspelling is reprint-chain decay entering after 1677). The notebook text and apparatus: *Reports from the Notebooks of Edward Coke*, vol. VII: 1604–1608, at 1656 (J.H. Baker ed., 142 Selden Soc. 2025) (entry "3. Lloyd v. Barker," base MS "L," law-French text "que justice jure a faire justice voet faire justice" with the edition's facing translation "will do justice"; apparatus n. 8: "Om. by haplography in Q and S, but in both MSS. supplied in margin. voet faire injustice I."). The edition — the notebook report's first appearance in print — issued in 2025; the readings here are from the printed edition. Three disclosures. *First*, the transmission is now witnessed at every printed stage: the 1656 first edition of 12 Co. Rep. — Edward Coke, *The Twelfth Part of the Reports* (London 1656) (posthumous; *Floyd* at pp. 23–26) — has been collated against the notebook and the reprint. The first edition already prints the inversion ("that a Justice sworn to do Justice will do injustice") while spelling "violent" correctly: the inversion is first-print-native, standing in the doctrine's received text from its first appearance in print, and the notebook-vs-print divergence accordingly sits between the manuscript tradition and the posthumous first print — consistent with descent from an exemplar of MS I's family (descent and independent corruption remain formally indistinguishable, but the first edition forecloses the possibility that the inversion is a later reprint's error). This book quotes the reprint because the reprint is the text the receiving courts cite. *Second*, the sense of the rule is not in doubt — the report's surrounding text and the notebook alike state an irrebuttable presumption of official *rectitude*; the point is not that the doctrine secretly presumes misconduct, but that its foundational sentence has stood self-inverting in the standard text, apparently unremarked, for the doctrine's entire citing career — none of the 149 decisions in the genealogy record in Part 2 engages the sentence's wording, and the author has found no decision that remarks the inversion. *Third*, this book's own practice: the print is quoted as printed, never silently corrected.

xī Robert Persons, *An Ansvvere to the Fifth Part of Reportes Lately Set Forth by Syr Edvvard Cooke Knight, the Kinges Attorney Generall* ([Saint-Omer] 1606) (issued "By a Catholicke deuyne"; the dedicatory epistle is addressed to Coke directly). The Garnet-trial passage: Coke, it recounts, "protested to proue" the statute against the coming-in of priests "to be the most myldest law, the sweetest law, the law most full of mercy and pitty, that euer was enacted by any Prince so iniuriously prouoked," adding the flourish quoted in the text — which, Persons presses, "vvas a vvarrāt to al the hearers" that "in all their hearings you canonized his honesty." Quoted from the Text Creation Partnership keyboarding of the 1606 print (EEBO-TCP A09061, CC0 1.0), spelling and printed contractions as keyboarded; the bracketed letter in the text supplies a character the keyboarding marks illegible; TCP note-markers and a page-boundary marker (falling inside the quoted flourish, after "added") omitted. Every passage quoted here was read in the 1606 print (British Museum copy; the quoted matter at its leaves 23–24 as filed, the flourish standing in italic with the printer's own marginal note beside it — "M. Garnet an honest man by M. Attorneyes warrant." — and the page boundary falling after "And you adde[d]" as disclosed above), with two residues: the bracketed letter remains supplied, this copy's inner gutter being damaged at that glyph (the trace is consistent with "n" but not letterform-provable), and the title quotation continues to rest on the TCP keyboarding, the filed copy's title leaf wanting. The Sixth-Part preface quoted in the text: Edward Coke, *La Size Part des Reports* (London 1607), the English preface "To the Reader" — every quoted passage read at the first-edition leaves (British Library microfilm; long s normalized), including the print's own spelling shift "reply"/"replie" within one sentence. The acknowledgment names the answer to "that Case" (Caudrey's, of the Fifth Part) "as lately hath beene published," and its author only as "him that vsurpeth the sublime and broad spreading name of The Catholike Diuine" — the *Answer*'s stated authorship. The same leaf glosses the reporter's office by Moses (the margin prints "Moyse." beside "a president of a Iudge, (who also was the first Reporter of Law)"). The modern historian's caution: the note at chapter 1.2 § B.

xii *State-Trials*, vol. I, item XIX (Hargrave 4th ed. 1776), at col. 236. The print reads long-s "fitting" in both clauses — "fitting in their Judicial Places" and "every Judge so fitting"; a prior transcription had misread the long s as "fitting," the reading itself being the print's own. The ligature "læfæ" is the print's, normalized in the text as "læsæ." The premise's own limit is part of the record: the statute's protection, as expounded, attaches to the judge "sitting in their Judicial Places, and exercising their Offices" — the office/function line the *Floyd* resolutions would also carry.

xiii *A True Account of the Gunpowder Plot, Extracted from Dr. Lingard's History of England and Dodd's Church History, Including the Notes and Documents Appended to the Latter by the Rev. M. A. Tierney . . . with Notes and Prefatory Remarks by Vindicator* (London, C. Dolman 1851). The volume records the fact twice over, in substantially converging terms: the note to its Lingard narrative at p. 8 n.† ("See the fifth examination of Faukes, taken November 9th, and subscribed by him November 10th, in the State Paper Office. It was read at the trial, with the exception of the part exculpating Gerard. Before that in the original is drawn a line, with the words *huc usque*, in the handwriting of Sir Edward Coke, who was unwilling to publish to the world a passage which might serve for the justification of one whom he meant to accuse."), and Tierney's annotation to Dodd's account at p. 44 ("This examination Coke professed to read at the trial of the conspirators: but he thought it advisable to omit the part which I have printed in italics, and, accordingly, we find, in the original, that the passage is scored with red ink, and that before it, in the margin, are written, in his own hand, the words '*huc usque*,'—*thus far*."). Both quotations are from the 1851 print. The description of the manuscript — the red-ink scoring, the marginal words, the hand — is the 1851 editors' report from their inspection of the State Paper Office original; this book asserts nothing about the manuscript beyond their published statements. The exculpated man's presence in the indictment: the State Trials note at chapter 1.3 § C.

xiv *Wrenham's Case*, Hob. 220, 80 Eng. Rep. 367 (Star Ch. 1618) ("it was lawful for any subject to petition to the King for redress in an humble and modest manner . . . but on the other side, it is not permitted under colour of a petition and refuge to the King, to rail upon the Judge or his sentence, and to make himself Judge in his own cause, by prejudging it before the re-hearing (for which his suit to the King should be)"; "the justice of the decree was not to be questioned in this case"; "So he was censured a thousand pounds fine"); *Proceedings against Mr. Wraynham*, 2 How. St. Tr. 1059, 1065–66 (the epistle: "appoint a day of hearing . . . a public hearing before your majesty"; the King's saying), 1071 ("Had I thought his majesty would not have heard my cause, I would have sat down in silence"), 1073 (Coke, C.J.: a review of a decree "is very rare: and that is a Commission of Grace, not of Right"), 1078 (Montague, C.J.: "shall we then undergo the censure of every suitor? No state, at no time, ever suffered this"). The sentence lines at col. 1080 are lost in the print consulted; the terms and the date are reported, from

Chamberlain's letter to Carleton of 5 May 1618, in 6 James Spedding, *The Letters and the Life of Francis Bacon* 311 (London 1872) (13 *The Works of Francis Bacon*): Wraynham "was sentenced by Coke (who as the last appointed councillor spoke first—and with whom all the rest agreed) to be punished according to a precedent made while he was himself Attorney General . . . to be imprisoned, to pay a fine of £1000, to ride with his face to the horse's tail, and to lose his ears," Chamberlain adding that "there is hope it was rather *in terrorem* than to be put in execution." Seventy years on the case was still the Crown's authority: answering the Seven Bishops' petition, the Attorney General allowed that "access to the King by *Petition* is open to every Body, the most inferior *Person* is allowed to *petition* the King, but because he may do so, may he therefore suggest what he pleases in his *Petition*," and cited "the Case of *Wrenham* in my *Lord Hobart*" for the rule that "the Justice of the Decree is not to be questioned in the Case." *The Proceedings and Tryal of the Seven Bishops* 382–84 (London 1739) (K.B. Trin. 1688; the speaker is labelled "Mr. Att. Gen." and not named in the print).

xv Cora L. Scofield, *A Study of the Court of Star Chamber* (Chicago 1900), at iii: "the most valuable records of the Court are no longer to be found"; Hudson's complaint, quoted there in part and now read in the treatise itself: William Hudson, *A Treatise of the Court of Star Chamber*, pt. I, in 2 *Collectanea Juridica* 1, 41 (Francis Hargrave ed., London 1792) ("the records are negligently kept, and many times lost," said of the clerk's unsworn under-officers), and *id.* at 6 ("this negligence hath crept into the court of very late time, either in mr. Mills's age, or since the office hath been executed by many deputies"; on the same page, in Hudson's own words, "the very sentences by which severe punishment hath been executed upon offenders have, by mere neglect, been wholly left unentered; so that there is no record to justify the inflicting of that punishment"); Scofield's next clause qualifies the point: Hudson's complaint "will not account for the complete disappearance of the decrees and orders of the Court," *id.*, and the House of Lords committee of 1719 found that the last notice of the decree and order books "that could be got was that they were in a house in St. Bartholomew's Close, London," *id.* at iv; the 19 August 1608 delivery to "Sir Francis Bacon, then become clerk of the Star Chamber," of the "Kallender of Orders" volumes is set out *id.*, itemized book by book. The 1732 report: Daniel Gosling, *The Records of the Court of Star Chamber at The National Archives and Elsewhere*, in *Star Chamber Matters: An Early Modern Court and Its Records* 19, 21 & n.13 (K.J. Kesselring & N. Mears eds., Univ. of London Press 2021) (open access), quoting John Lawton, keeper of the records in the Exchequer ("the decrees of this court are not at present anywhere to be found"), citing TNA SP 46/140; the same chapter traces the 1719 deputy-chamberlains' report of the records lying "many years in a very great heap, undigested." The court's surviving proceedings class (STAC) holds pleadings and examinations — the class this book's cause file inhabits — not the decree and order books. A manuscript of "rough summaries taken from the order and decree books," touching just over a thousand cases, "mostly from the reigns of Elizabeth and James" (BL Harley MS 2143), is published as K. J. Kesselring (ed.), *Star Chamber Reports: BL Harley MS 2143* (List and Index Society, Special Series 57, 2018), Introduction at vii; whether it carries a *Floyd* abstract is an open question, disclosed as such.

xvi William Prynne, *Brief Animadversions on, Amendments of, & Additional Explanatory Records to, the Fourth Part of the Institutes of the Laws of England . . . Compiled by the Late Famous Lawyer Sir Edward Cooke Knight* (London 1669), the Epilogue's review of 4 Inst. cap. 5 at pp. 417–22; the chapter verdict and the diligentest-perusal statement at p. 417; the records-upon-trust verdict at p. 421, stated of "these two Reverend Chief Justices Reports" of the Abbot of Westminster's case, Dyer's and Coke's (4 Inst. 61; Prynne at 419: "misreported both by the Lord Dier . . . and by the reverend Author of the Institutes"), its own sentence submitting the comparison "to the indifferent Readers" upon that precedent "and that which next follows." Title-page matter as printed: the author styled "Keeper of His Majesties Records in the TOWER of LONDON"; the promise that "The transcripts of which Records out of the Originals, are at large inserted"; the epigraph "Tutius est petere fontes, quam sectari rivulos." Quotations are from the 1669 print, long s normalized; the fuller record of each medieval precedent Prynne re-ran at the rolls is available from the author. Prynne's own Star Chamber history is disclosed lest the office be mistaken for disinterest: that court sentenced him, and took his ears — a 1638 continental eyewitness pamphlet of the 14 June 1637 sentencing survives: *Een Cort ende Bondich Verhael, van seeckere bysondere ende voornaemste Redenen en Propoosten ghehouden in den Hoogen Raedt binnen Londen in Enghelandt . . . op den 14. Junij 1637* (1638), a Dutch account of the sentences on Bastwick, Burton and Prynne set down, its title page says, by one who was present. The verdict quoted is nonetheless a records-office finding, stated of named rolls, checkable then and now.

### 1.4 The Report's Sources, Read at the Page

The *Floyd* report cites English authority for every proposition it states about the record and about conspiracy, and for the rule itself it cites none. It rests the rule on the King's person, on a sentence it attributes to "the orator," and on a gloss of what it is to answer to God, and the one English judge it names was condemned at the roll for the very corruption the rule declares unquestionable. The reception question therefore cannot be asked of the rule as an English rule. It has to be asked of the sources the leaf itself names, and this chapter reads them at their own pages. Section A reads the leaf and the Thorpe roll, and the court's own practice in the decade before the resolution. Section B reads each source the leaf names, the King, the Roman law, and Scripture as the canon law and the English Bibles of 1607 read it, and states what the 1607 court and what Hobbes made of each; what the receiving order made of each is stated at chapter 3.3 § B, and the question the sources raise, whose decisions count, is answered at chapter 2.2 § B. Section C states why Hobbes is the hinge between the three eras this book joins, and records that the founders named him only to reject him.

#### *A. The Leaf Cites No English Case*

The *Floyd* report, at 12 Co. Rep. 24–25, cites English authority for every proposition it states about the record and about conspiracy: the Year Books of Edward III, Edward IV and Henry VI, the Assize book, Dyer, and the resolutions of Catlyn and Dyer, some fifteen pins in a page. For the rule itself it cites none. The judges

ought not to be drawn into question for any supposed corruption ... except it be before the King himself; for they are only to make an account to God and the King, and not to answer to any suggestion in the Star-Chamber.



The reasons given are that the King "is *de jure* to deliver justice to all his subjects," that the judges "have the custody and guard of the King's oath," that the matter "concerns the honour and conscience of the King," and that "the orator said well, *invigilandum est semper, multae insidiae sunt bonis*."<sup>83</sup> One English instance follows, and it cuts the other way: "Thorp's judgment, who was drawn in question for corruption before commissioners, was held against the law, and upon that he was pardoned," to which the report's editor adds that "the whole set of Judges were then so corrupt that the King was forced to try him by commission."<sup>84 xvii</sup>

The rolls say otherwise. William de Thorpe, Chief Justice of the King's Bench, confessed in 1350 to taking gifts in his office against his oath, was adjudged to be drawn and hanged and his goods forfeited, and was pardoned by the King on 10 March 1351 on the grounds the enrolled pardon states: mercy, his former services, and compassion for his desolation, the roll reciting that "in justice execution of the judgement should have been demanded." The Parliament of 1351 had the record and process read and found them rightly and duly made and the judgment upon them reasonable. Nothing in the roll or the Parliament says the judgment was against the law. The roll's own reason for the judgment is that Thorpe had broken, as far as in him lay, the King's oath to his people, which he had in his keeping, and it confines the judgment to those "*qui praedictum sacramentum fecerunt & fregerunt, & habent leges regales Angliae ad custodiendas*," the judges alone.<sup>85 xviii</sup> The sentence of death came on the King's second writ, and the historian of the

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83 *Floyd v. Barker*, 12 Co. Rep. at 25, 77 Eng. Rep. at 1307 (the four phrases quoted); the next note.

84 *Floyd v. Barker* (Star Ch. 1607), 12 Co. Rep. 23, 24–25, 77 Eng. Rep. 1305, 1307 (the editor's note on Thorpe, quoted in the text and entire in the Notes). The record: *Calendar of the Patent Rolls, Edward III*, IX (1350–54), at 30, 47, 61–62; *Calendar of the Close Rolls, Edward III*, IX (1349–54), at 277; Rot. Parl. ii. 227 (25 Edw. III, no. 10). Neither record says the judgment was "held against the law." Howell's *State Trials*, vol. I, carries a different Thorpe.

85 Rymer, *Foedera, Conventiones, Litterae et Acta Publica*, III, pt. i, at 208–10 (Record Comm'n 1825) ("Processus factus contra Willielmum de Thorpe, capitalem justiciarium placitorum," from Pat. 24 Edw. III, pt. 3, mm. 2, 3d): the judgment and its close, the latter confined to those "*qui praedictum sacramentum fecerunt & fregerunt, & habent leges regales Angliae ad custodiendas*," both entire in the Notes; the judges' oath in French at 209. The record as recited by counsel: Oliver St John's speech to the Lords at the conference of both Houses on the Commons' votes of 7 December 1640 (Cobbett dates the conference only "16 Car. 1640"), 3 *Cobbett's Complete*

English bench found no law then in force that made the offence capital.<sup>86 xix</sup> The report's own ground for the rule, that the judges "have the custody and guard of the King's oath," is therefore the language of the Thorpe roll; and in the roll it is the reason a Chief Justice was sentenced to death, not the reason he could not be questioned. At its source the one English case the leaf names is authority for the judge's answerability under the very oath the report invokes, not for his exemption. The name the crown paired with Thorpe in 1616 (chapter 1.3 § D) is a record of the same kind: Tresilian, who drew the answers given to the King at Nottingham in 1387, was appealed of treason and hanged at Tyburn on 19 February 1388, and the judges who had set their seals to the answers were convicted, sentenced to death, and spared into banishment.<sup>87 xx</sup>

The court that issued the rule had itself recited the roll as living law twice within the decade before, in 1598 and again in 1602, the second time in sentencing a justice of the peace and Councillor of the Marches who had taken money to acquit an accessory to murder, with the rule that a judge by patent, though never sworn, "shall be punished for extortion or corruption as a Judge." In June 1598, sentencing a servant who had slandered the Chief Justice over a trial the court first examined and pronounced just, the Lord Keeper said that had the Chief Justice been found guilty of the wrong charged, "this would have been his punishment, as the precedent is 24 Edward III.," and recited Thorpe's commission, his confession, and his condemnation "to death,

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*Collection of State Trials* 1262, 1273–74 (London 1809). The enrolment itself (TNA C 66) is cited here from the Record Commission's print.

86 Edward Foss, *The Judges of England*, III, 527–31 (London 1851) ("The charge was for receiving bribes contrary to his oath; an offence which did not touch the delinquent's life by any law then existing; and so the commissioners appointed for his trial found").

87 Foss, *The Judges of England*, IV, 1–4, 102–08 (London 1851) (the questions and answers sealed at Nottingham on 25 August 1387, "which had been already prepared by Chief Justice Tresilian"; the appeal of 17 November 1387; the other judges "convicted and sentenced to death and forfeiture of their property. On the application, however, of the clergy and other peers, their lives were granted to them; but they were all banished to different parts of Ireland"; Rot. Parl. iii. 229–37).

and to forfeit all his goods and land for ever."<sup>88 xxi</sup> Six years after that, in Michaelmas term 1604, the same court heard Coke himself, as Attorney General, prosecute a recusant for a petition to the King against two judges of the Northern Circuit, and the ground of the charge was the judges' accountability: the petitioner

scandalized Justice, the Judges whoe are sworne to do Justice & represente the kinge & haue his charge, & are to gyue to him an accounte, & for there ill Cariage are to receaue a heauye iudgemente, as [in] the Case of Justice Thorpe.<sup>89 xxii</sup>

And in the year of the report a charge to the Norwich assizes, printed under Coke's name, told the county that the King "is constrayned by his Ministers, Deputies, Iustices, and Iudges, to administer Iustice vnto all his people," that "into their hands, is (as it were) deliuered the Kinges owne Oath," that "if any (with a Kings Oath trusted) shall bee so vilde, as to falsifie their trust, such offence is more then Capitall," and that "to judge in a point of difference, hearing but one partie speake, is assuredly to be vnjust."<sup>90 xxiii</sup> And in November 1606, with Coke four months on the Common Pleas bench, the same court heard a subject's bill that charged a justice of the peace

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88 John Hawarde, *Les Reportes del Cases in Camera Stellata, 1593 to 1609*, at 99–101 (William Paley Baildon ed., London 1894) (30 June 1598, the information against Benjamin Bulle for slanderous words against the Lord Chief Justice; the Lord Keeper's Thorpe recital, quoted in the text and entire in the Notes). The court examined the judge's conduct before it punished the slander. The rule of jurisdiction stated the other way, at 98 (26 May 1598). *Winston v. Throckmorton* (7 May 1602), at 134–39 (the Thorpe recital at 136; "if a man be made a Judge by patent and be not sworn, still he is a Judge, and shall be punished for extortion or corruption as a Judge: and that he is not sworn is his own fault"). The court's maxim that rank aggravates the fault: *Plowden v. Braughton* (9 June 1602), at 146; the entry of 18 May 1603, at 162; *Throgmorton v. Stafforde* (11 October 1605), at 234–35.

89 Hawarde, *Les Reportes del Cases in Camera Stellata*, at 182–84 (29 Oct. 1604, Mich. 2 Jac.; Mr Pounce prosecuted *ore tenus* by Coke, the King's Attorney, for a petition to the King against two Judges of the Northern Circuit; the charge as reported at 183; the sentence at 184). The Crown's roll of fines taxed in the court, which Baildon prints as Appendix VII, enters Pounce for Michaelmas 2 Jac. under "Sclaunderinge the Justices of assize" at "Mli" and taxes the fine at "Cli": a thousand pounds was the sentence, a hundred the sum assessed (at 411). The Thorpe sentence is Hawarde's narrative of the Attorney's charge, the speaker named "Mr Attornie" at 183 and 184. The court had stated the rule two years before, in *Plowden v. Braughton*, at 145–46 (9 June 1602): "if he do evil and offend, this Court will punish him with great and heavy punishment".

90 *The Lord Coke his Speech and Charge. With a Discoverie of the Abuses and Corruption of Officers*, sigs. C2r–C3v (London: Nathaniel Butter, 1607), an unauthorized print of the charge at the Norwich assizes, attributed to Coke, quoted as printed ("Qui Iudicat causam parte inaudita altera, Æquum licet, Statuat, Iudex iniquus est"). The same charge, at sig. C4r, turns the psalm on the judges themselves, "*Vos Dij estis*; you are Gods on earth", and at sig. C1v gives the law's protection of a judge as protection of his person, by the King's presence.

with a judicial act, his refusal to grant restitution after a riot, and decided it on the depositions: Coke "Commended Dolman, the Justice of peace, & he did very discreatelye, for he had done iniustice yf he had graunted restitucyon ... & so he freedde him wth Commendacion *a poena et culpa*," adding that a judge "showlde not, neyther Can he, iudge accordinge to his owne pryuate knowledge, mes *secundum allegata et probata*."<sup>91</sup> <sup>xxiv</sup> And in January 1607, in the term before the resolution, the same court heard a man acquitted of murder charge his accusers with conspiring to indict him. Coke argued from the bench that a man lawfully acquitted could and should prosecute the confederates at common law, whose remedies against the false accuser were old, the exception *de odio et atia* from the late twelfth century, a writ of conspiracy from 1293, and the statute of 1305 that first defined the crime as an agreement to maintain false accusations; the Lord Chancellor answered that "this court will proceed for the king also," and the court, finding reasonable grounds for the prosecution, sided with the accusers.<sup>92</sup> In the court's own precedent and in its reporter's own charge, the custody of the King's oath was the ground of the judge's answerability, and the hearing of both parties the condition of a just sentence; and the subject's complaint against a judicial officer's judicial act was heard on the record and decided on its merits. Hawarde sat in the court through the Easter term of 1607, the term to which the report assigns the resolution, and his notes record four sittings, on 24 and 29 April and 1 and 6 May,

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<sup>91</sup> Hawarde, *Les Reportes del Cases in Camera Stellata*, at 309–12 (*Lady Russell v. Earl of Nottingham and others*, 7 November 1606, ten present; Coke at 310–11, as quoted, referring the second riot "to the Common lawe to receyue a tryall there"; Popham, "Without inquiry, a Justice of the Peace cannot grant restitution, if he did not see the force"; the Lord Chancellor alone, at 312, refusing to clear or commend the justice). The editor's note identifies the justice as Thomas Dolman. The suit reached the court after the petition route had been tried and had failed: Worcester to Shrewsbury, 24 September 1603, printed in Baildon's Appendix XVII, at 434.

<sup>92</sup> K. J. Kesselring, *Conspiracy, Crime, and Conflict in the Court of Star Chamber*, 43 *Law & Hist. Rev.* 693, 702, 704–05 (2025) (the history of the common-law remedies against the false accuser, which the text summarizes; *Rochester v. Toolarge*, TNA STAC 8/254/2 (1607): "Coke argued that Rochester could and should prosecute his case at common law, as he had been lawfully acquitted"; Ellesmere, as Hudson reports him, "did gravely confute that opinion," insisting that "this court will proceed for the king also," William Hudson, *A Treatise of the Court of Star Chamber*, in 2 *Collectanea Juridica* 104, 106–07 (Hargrave ed., London 1792), as quoted at her 705 & n. 46). Read at the page; Hudson's words are quoted here as she quotes them.

with the councillors and judges counted at each: a sheriff's blank warrant, a forged bond, a forged will, and a riot, and no cause between Floyd and Barker. The Trinity and Michaelmas terms that followed carry none either, and Baildon's index of the cases does not list it. A contemporary hand that sat through the term did not record the resolution the report prints as the court's.<sup>93 xxv</sup>

"The orator" is Cicero, and the sentence is not Cicero's own. It is a line of Accius's tragedy *Atreus*, which Cicero quotes in the speech for Plancius, in the form *vigilandum est semper: multae insidiae sunt bonis*, as the advice of a king sprung from Jupiter to his sons, and quotes again, in part, in the speech for Sestius, where the same passage of Accius also supplies *oderint dum metuant*.<sup>94</sup> The 1607 court's *invigilandum* is its own reading. The rule's Roman source, at the point where the court named it, is a tragic poet's king, cited through an orator who was pleading for a defendant.

At its own leaf, then, the rule is not offered as English common law. It rests on the King's person, on a Roman sentence, and on a gloss of what it is to answer to God. It also fails the test its reporter set for his own reports. In the preface to the Ninth Part, printed in his lifetime, Coke wrote that it is "one amongst others of the great Honours of the Common Laws, that Cases of great Difficulty are never adjudged or resolved *in tenebris* or *sub silentio suppressis rationibus*; but in open Court, and there upon solemn and elaborate Arguments," the judges "declaring at large the Authorities, Reasons and Causes of their Judgments and Resolutions in every such

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93 *Floyd and Barker*, 12 Co. Rep. 23, 77 Eng. Rep. 1305 (the heading "Pasch. 5 Jacobi Regis. In the Star-Chamber."). Hawarde, *Les Reportes del Cases in Camera Stellata*, at 319–22 (Easter term 1607, the four sittings), 322–27 (Trinity), 328–43 (Michaelmas); Index I, Cases, at 465–67 (no entry for the case under Floyd, Fludd, Lloyd or Barker; *Williams v. Lloyd*, at 105, is another matter).

94 Cicero, *Pro Plancio* 24.59, in *Cicero: The Speeches, Pro Archia ... Pro Plancio* 484–85 (N. H. Watts trans., Loeb Classical Library 158); the identification of the line as Accius's, from Watts's note and Holden's commentary, is in the note at Part 2, chapter 2.5 § B. Cicero, *Pro P. Sestio* 48.102, in H. A. Holden (ed.), *Cicero, Pro P. Sestio* 50 (3d ed., London 1889) ("*mūltae insidiae sūnt bonis* verissime dictum est; sed te *id, quod multi inuideant multique expetant, inscītiast*, inquit, *póstulare, nisi laborem sūmma cum cura écferas*. Nollem idem alio loco dixisset, quod exciperent improbi cives: *óderint, dum métuant*"). Cicero is the source and Accius the author; the two-clause line the 1607 court used is *Pro Plancio* 59 alone.

particular Case," and that he printed only "such ... as (in my Opinion) should hereafter be leading Cases for the publick Quiet."<sup>95</sup> The *Floyd* leaf records no argument at the bar, names no English authority for its rule, and was printed by other hands after his death.<sup>96</sup> The reception question cannot be asked of it as an English rule, because at its source it is not one. It has to be asked of the three sources the rule names, and Section B asks it.

### *B. The Three Sources, Each at Its Own Page*

What the receiving order made of each source is stated at chapter 3.3 § B, and the conclusions drawn from the sources together at chapter 2.2 § B. This section states what each source the leaf names says at its own page, what the 1607 court made of it, and what Hobbes made of it, and it adds the fourth body of law through which Scripture reached an English court, the canon law. The table states the spine; the paragraphs and notes carry the texts.

| Source   | What the source says at its leaf                                                                                                                                                                                           | What the 1607 court made of it                                                            | What Hobbes made of it (1651)                                                                                                                                                                                           |
|----------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| The King | The judge is questioned only "before the King himself"; the King "is <i>de jure</i> to deliver justice to all his subjects." No subject's complaint against a judge is recorded in that forum (chapters 1.3 § D, 3.2 § D). | A receiver who adjudicates, named and never opened to a subject; the petition prosecuted. | The sovereign alone exempt, because the subject is author of his acts (ch. 18); the judge a subject, judged "by men agreed on by consent of both" (ch. 23); the subject may sue the sovereign on a former law (ch. 21). |

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<sup>95</sup> Coke, Preface to *The Ninth Part of the Reports*, in *The Reports of Sir Edward Coke, Kt. ... in Thirteen Parts*, Part IX (London 1727), unpaginated; the next note.

<sup>96</sup> Edward Coke, Preface ("To the Reader") to *The Ninth Part of the Reports*, as printed in *The Reports of Sir Edward Coke, Kt. ... in Thirteen Parts*, Part IX (London 1727), unpaginated, the English column beside Coke's Latin ("spinosiores nunquam definiri aut discerni quaestiones in tenebris, vel sub silentio suppressis rationibus, sed in facie (ut dicam) Curiae, idque argumentis prius habitis solennibus & elaboratis"); the same preface on his method: "that herein no Authority cited might be wittingly omitted or coldly applied; no Reason or Argument made on either Side willingly impaired." The first eleven Parts appeared in Coke's lifetime, between 1600 and 1615, the Twelfth in 1656: Ian King, *The Legal Writing of Sir Edward Coke, the Anglo-Saxons, and Lex Terrae*, 39 *The Seventeenth Century* 329, 332 (2024); for the 1656 print and the notebook report of *Floyd*, the notebook-edition note at chapter 1.3 § B.

| Source    | What the source says at its leaf                                                                                                                                                                                                                                                                                                                                  | What the 1607 court made of it                                                                                                                                                                                                                   | What Hobbes made of it (1651)                                                                                      |
|-----------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|
| Roman law | The definitions of chapter 2.2 § B; no one condemned absent or unheard (D. 48.17.1, 48.19.5); the failed accuser not thereby a calumniator, and the angry word no accusation (D. 48.16.1); the anonymous libel punished and the signed accuser rewarded (CTh 9.34.1; C. 9.36.2); the law's fear aimed at the reckless litigant (Inst. 4.16 pr., chapter 2.2 § B). | The vocabulary kept and the law reversed: " <i>de jure</i> " in the idiom of the <i>lex regia</i> ; "the orator" for the maxim; the deterrent turned from the litigant onto the subject's accusation; a signed, sworn bill destroyed as a libel. | Justinian the catalogue of a law's sources; Cicero maxim; Rome's rules stated as laws of nature without citation.  |
| Scripture | Deut. 1:16–17 (hear both, fear no face, "for the iudgment is Gods"); Deut. 17:8–12 (the contemner of the determination dies); Ps. 82 ("Ye are gods ... But ye shall die like men"); Exod. 22:28 ("Gods," margin "Or, Iudges"); Acts 25:16 (the accused present, the accusers face to face, licence to answer); the Elizabethan glosses, below.                    | "The judgment is God's" read as "the judge answers to no man."                                                                                                                                                                                   | Scripture as history of lawful practice, never as authority for a rule.                                            |
| Canon law | No one condemned absent or unheard (C. 3 q. 9 cc. 1–6, c. 5 drawn from Acts 25:16); the failed accuser and the angry word (C. 2 q. 3, Gratian importing D. 48.16.1); the good judge judges as he hears (C. 3 q. 7 c. 4); no sentence binds but from one's own judge (C. 3 q. 8 c. 1); the record kept against the unjust judge (Lateran IV c. 38).                | The frame the Tudor injunctions and the High Commission inherited: one class denied a hearing, one instrument destroyed with its author.                                                                                                         | Words made a crime must be reduced to a formula the accused can know before he is cited ( <i>Appendix</i> , 1668). |

*The King.* The rule's operative clause names a receiver who adjudicates: the judge is not to be questioned "except it be before the King himself."<sup>97</sup> Chapter 3.2 § D found no instance of a subject's complaint against a judge adjudicated in that forum. Hobbes concedes the sovereign everything and the judge nothing. The one person a subject cannot accuse is the sovereign acting

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<sup>97</sup> *Floyd v. Barker*, 12 Co. Rep. at 25, 77 Eng. Rep. at 1307.

by his power, and the reason is the subject's own authorship: "every Subject is Author of the actions of his Sovereigne; he punisheth another, for the actions committed by himselfe."<sup>98</sup> The judge is a subject, and

there may arise a controversie between the party Judged, and the Judge; which because they be both Subjects to the Sovereign, ought in Equity to be Judged by men agreed on by consent of both; for no man can be Judge in his own cause.

Even against the sovereign the subject may sue wherever the sovereign "demandeth by force of a former Law, and not by vertue of his Power."<sup>99</sup> Coke's own *Institutes*, written after the report, leave the receiver the leaf names no seat. The King

hath committed all his power judiciall, some in one court, and some in another, so as if any would render himselfe to the judgement of the king in such case where the king hath committed all his power judiciall to others, such a render should be to no effect.

"[T]he king doth judge by his judges," and the King's Bench exists "regularly to examine and correct all and all manner of errors in fait, and in law, of all the judges and justices of the realm,"<sup>100</sup> and other misdemeanours

tending to the breach of the peace, or oppression of the subjects ... so that no wrong or injury, either publick or private, can be done, but that this shall be reformed or punished in one court or other by due course of law.<sup>101 xxvi</sup>

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98 Hobbes, *Leviathan* ch. 18, at 90 (London 1651) (Pogson Smith ed. at 136).

99 *Floyd v. Barker*, 12 Co. Rep. at 25, 77 Eng. Rep. at 1307. Hobbes, *Leviathan* ch. 18, at 90; ch. 23, at 125; ch. 21, at 113 (London 1651). The oath the *Floyd* court says the judges keep is the oath in the Thorpe roll, Section C above.

100 Coke, *The Fourth Part of the Institutes of the Laws of England* 71 (London 1797) (cap. 7: "the king doth judge by his judges," and the second head of the King's Bench's jurisdiction, as printed).

101 Coke, *The Fourth Part of the Institutes of the Laws of England* 70–71 (London 1797) (cap. 7, the Court of King's Bench; the King's Bench's second and third heads of jurisdiction as quoted); *id.* at 67–69 (cap. 6, the court for redress of delays of judgments under 14 Edw. III c. 5); *id.* at 60–66 (cap. 5, the Star Chamber).



Behind the *Institutes* stands the charter they cite: the King's promise to appoint as justices "only such as know the law of the realm and mean to observe it well," and to sell, deny, or delay right or justice to no one.<sup>102</sup>

*The petition to the King, after the rule.* Eighty-one years after the resolution the question the leaf decided went to a jury. Seven bishops had presented a petition to James II stating why they could not read his Declaration in their churches; the information, as counsel opened it to the jury, charged it as "a false, scandalous, malicious and seditious Libel, under Pretence of a Petition."<sup>103</sup> The Attorney General opened with the rule in its widest form:

No Man is allowed to accuse even the most inferior Magistrate of any Misbehaviour in his Office, unless it be in a legal Course, though the Fact is true ... no Man may come to a Judge, either by Word or Petition, You have given an unjust, or an ill Judgment.

The Chief Justice told the jury he took the paper to be a libel; two of the three puisne judges did not, Holloway because "it's the Birth-right of the Subject to Petition" and "to deliver a Petition cannot be a Fault," Powell because "to make it a Libel it must be False, it must be Malicious, and it must tend to Sedition"; and the jury returned Not Guilty.<sup>104 xxvii</sup> When the question the leaf decided against the subject reached a jury of the same order, the answer went the other way.

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102 Magna Carta (1215) cc. 40, 45, in William Sharp McKechnie, *Magna Carta: A Commentary on the Great Charter of King John* 395–98, 431–33 (2d ed., Glasgow 1914) ("Nulli vendemus, nulli negabimus aut differemus rectum aut justiciam"; "Nos non faciemus justiciarios, constabularios, vicecomites vel ballivos, nisi de talibus qui sciant legem regni et eam bene velint observare," McKechnie's rendering "We will appoint as justices, constables, sheriffs, or bailiffs only such as know the law of the realm and mean to observe it well," the clause "embracing all royal ministers and agents, both of the central and of the local government, from the chief justiciar down to the humblest serjeant"). Coke cites the 1225 form, c. 29, at 4 Inst. 67 ("Nulli vendemus, nulli negabimus, aut differemus justitiam vel rectum"; the 1644 pagination's 68, bracketed in the 1797 margin).

103 *The Proceedings and Tryal in the Case of the Seven Bishops* 142–43 (London 1739) (the information as opened to the jury).

104 *The Proceedings and Tryal in the Case of the Seven Bishops, in the Court of King's-Bench, Trinity Term 1688*, at 75–76 (the petition, and the information in Latin), 139 (the information read in English), 142–43 (the opening of it to the jury, the words the text quotes, and the Attorney General's opening), 407, 413 (Holloway J.), 420–23 (the directions), 425–28 (Allybone J.), 430–31 (the verdict of 30 June 1688) (London 1739). The court was Wright C.J. and Holloway, Powell and Allybone JJ.; the judges divided two and two on the question of law.

*Roman law.* Chapter 2.2 § B gives the Roman definitions, and Part 5, chapter 5.3, gives the Roman remedies against the judge; what belongs here is only what the leaf borrowed or inverted. The unheard plea, in words: "neque enim inaudita causa quemquam damnari aequitatis ratio patitur," the rescript of Severus and Antoninus as Marcian reports it, and Trajan's, that no one is condemned on suspicion, "satijs enim esse impunitum relinqui facinus nocentis quam innocentem damnari."<sup>105</sup> The failed accuser: the accused is acquitted first, and only then is the accuser's mind inquired into, honest error acquitting him, "Sed non utique qui non probat quod intendit protinus calumniari uidetur."<sup>106 xxviii</sup> The libel: the paper Constantine's law pursued was the anonymous one, the persons it named to suffer no charge from it, its author to be sought and made to prove his words and punished even if he proved something, "qui infamare maluit quam accusare," because he preferred to defame rather than to accuse; the law of 365 that Justinian's Code received rewards the man who "nomen suum profiteatur" and proves his charge, "laudem maximam ac praemium," and ends "huiusmodi autem libellus alterius opinionem non laedat."<sup>107</sup> Rome's one shield for a judge closed one route only: a wrong judgment was not treason, while

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105 D. 48.17.1 pr. (Marcian) ("Diui Seueri et Antonini Magni rescriptum est, ne quis absens puniatur: et hoc iure utimur, ne absentes dammentur"); D. 48.19.5 pr.–1 (Ulpian) ("Absentem in criminibus damnari non debere diuus Traianus Iulio Frontoni rescripsit. sed nec de suspicionibus debere aliquem damnari diuus Traianus Adsidio Seueri rescripsit"; the contumacious absent may be sentenced only in money or reputation, "uerum si quid grauius irrogandum fuisset, puta in metallum uel capitis poenam, non esse absentibus irrogandam"), in Theodor Mommsen & Paul Krueger (eds.), *Digesta Iustiniani Augusti* II, at 839, 846 (Berlin 1870). On the same page as the Trajan rescript, D. 48.19.6.1 punishes a governor's slaves "ut exemplo deteriti minus delinquant": the one *deterere* on these leaves is aimed at the wrongdoer.

106 D. 48.16.1 pr.–3 (Marcian), in Mommsen & Krueger, *Digesta* II, at 835 (the passage entire in the Notes). The only name Rome strikes from its own register is the accused's, for his protection: D. 48.2.3.1 (Paul), *id.* at 797 (in the Notes).

107 CTh 9.34.1 (Constantine, a.d. 319), in Theodor Mommsen & Paul M. Meyer (eds.), *Theodosiani Libri XVI cum Constitutionibus Sirmondianis* I.2, at 486 (Berlin 1905) (those the *libellus famosus* names "nullas exinde calumnias patiantur"; the author to be sought and to prove his charge, "nec tamen supplicio, etiamsi aliquid ostenderit, subtrahatur"; the *Interpretatio*: "fustigetur," and the clause the text quotes). Constantine's law was not received into Justinian's Code; the Code's title *de famosis libellis* carries the law of 365, C. 9.36.2, in Krueger (ed.), *Codex Iustinianus* 856 (Berlin 1877) (the finder who publishes an anonymous libel punished; the named accuser who proves his charge rewarded; the closing clause on the libel's effect, all in the words the text quotes). The shield: C. 9.8.1 (Alexander Severus, a.d. 223), *id.* at 819 ("nec etiam admittam te paratum accusare iudicem propterea crimine maiestatis, quod contra constitutionem eum dicis pronuntiasse"); the party's action and the public accusation, Part 5, chapter 5.3. *Case de Libellis Famosis* (Star Ch. 1605), 5 Co. Rep. 125a, 77 Eng. Rep. 250.

the party's action against the judge and the public accusation of corruption stayed open. The 1607 court took Rome's vocabulary and reversed Rome's law. The King "*de jure*" delivers justice, in the idiom of the *lex regia*; "the orator" supplies the maxim; the deterrent is kept and turned from the litigant onto the subject's accusation (chapter 2.2 § B); and the paper it punished as a libel was a signed bill filed in court, which is the paper Rome's law protected. Of Rome's two actions, the litigant's against the unjust judge and the defamed man's against the writer, the Star Chamber kept the second, in the *Case de Libellis Famosis* of 1605, and destroyed the first. Hobbes took Rome's law and left its citations. Justinian is his catalogue of a law's sources, paired with English counterparts; Cicero is maxim; and the rules that no sentence binds a successor, that the judge who condemns unheard is unjust, and that fear is the partial judge's effect on litigants, he states as laws of nature without a Roman name attached.<sup>108</sup>

*Scripture.* The court's gloss reads "the judgment is God's" as "the judge answers to no man." The gloss was in use in the same court three years earlier. In Michaelmas term 1604 a suitor who had petitioned the King against the Lord Chancellor's injunction was sentenced, for the petition, to perpetual imprisonment, the loss of his ears on the pillory, and a fine of a thousand pounds, and the court

condemned all petitions, especially where a Judge of the Court, a great man, or a magistrate is charged. "Let all men hereby take heede how they complayne in wordes againste any magistrate, for they are gods; & he must haue verye good matter that will goe aboute to Conuynce them, for feare he ouerthrowe not himselfe."<sup>109 xxix</sup>

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108 Hobbes, *Leviathan* ch. 26, at 137–47 (London 1651) (the seven sorts of civil law "in the Institutions of Justinian," "the Edicts, Constitutions, and Epistles of the Prince," "Senatus consulta," "the Edicts of Prætors," "Responsa Prudentum," each paired with its English counterpart); ch. 47, at 381 (*cui bono* as Cicero's maxim). The rules as laws of nature: ch. 26, at 144–45 (the sentence no law to a successor; the judge who condemns unheard unjust); ch. 15, at 77 (the partial judge deters men "from the use of Judges"). On the channels by which the Roman texts reached Coke's England, Paul Vinogradoff, *Roman Law in Mediaeval Europe*, Lecture IV, at 84–105 (London 1909); on the Roman law's entry into North American law by way of Quebec, William Bennett Munro, *The Genesis of Roman Law in America*, 22 Harv. L. Rev. 579, 585–89 (1909).

The verses it leans on read otherwise at their own pages. In Deuteronomy the clause is printed as the reason for two commands to the judge, to hear both parties and to fear no face:

Heare the causes betweene your brethren, and iudge righteously betweene euery man and his brother ... Ye shall not respect persons in iudgement, but you shall heare the small aswell as the great: you shall not bee afraid of the face of man, for the iudgment is Gods.<sup>110 xxx</sup>

The verse that puts the contemner of the priest's or judge's determination to death is, in the 1611 editors' own chapter argument, "The contemner of that Determination must die," contempt of a determination and not complaint of a wrong, and on the same leaf the king is to read the law all his days "that his heart bee not lifted vp aboue his brethren."<sup>111 xxxi</sup> The psalm that calls the judges gods is headed by the same editors "Iudges are gods" and cross-referenced to Deuteronomy 1:17, and it runs from the divinity to the reproof and the sentence in seven verses: "I haue said, Ye are gods ... But ye shall die like men."<sup>112 xxxii</sup> The verse Coke's generation used for the reviling of

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109 Hawarde, *Les Reportes del Cases in Camera Stellata*, at 176–77 (Fourde's case, Michaelmas term 1604; Baildon's note: docquet of 22 May 1605, "pardon to William Foorth of fine and corporal punishments for slanderous petitions against the Lord Chancellor"). The roll of fines taxed in the court, Baildon's Appendix VII, at 411, enters Fourde under "Sclaunder against his maties magistrates & Justice" at "Mli" and taxes the fine at "Cli": the thousand pounds was the sentence, a hundred the sum assessed, and the pardon followed. The petition went to the one receiver the rule names, and the court punished it as a libel; the pardon came by the judge's own intercession.

110 Deut. 1:16–17, in *The Holy Bible* (London: Robert Barker, 1611) (margin at v. 17 "Leuit. 19. 15. chap. 16. 19. 1. sam. 16. 7. pro. 24. 23." and "† Hebr. acknowledge faces."), consulted in *The Holy Bible: An Exact Reprint in Roman Type, Page for Page, of the Authorized Version Published in the Year 1611* (A. W. Pollard ed., Oxford 1911) and in a first-folio copy. The 1611 readings throughout this section are given as printed, with the long s normalized. Collations of the 1611 against the Aleppo and Leningrad codices at the judge loci found no textual variant, and the printed text of Kittel's *Biblia Hebraica* (2d ed., Stuttgart 1925) reads the same at Ps. 82 and 2 Chron. 19:6–7, its apparatus recording no manuscript variant at those verses; the commentary printed beside the verse in the first printed *Hagiographa* (Ketuvim\* with commentary, Naples 1487, at the leaf carrying 2 Chron. 19) reads it as a rule of the judge's liability, quoted in the Notes; the one word אלהים is "the Iudges" at Exod. 22:8–9, "Gods" with the margin "Or, Iudges" at 22:28, and "Gods" in "the iudgment is Gods" at Deut. 1:17.

111 Deut. 17:8–13, 18–20 (1611) (chapter argument "8 Hard controuersies are to bee determined by the Priests and Iudges. 12 The contemner of that Determination must die."; v. 12 margin "† Hebr. not to hearken."; vv. 18–20, the king's copy of the law). The chapter before, Deut. 16:18–19; John 7:51, margin "Deut. 17. 10. and 19. 15."; Deut. 19:17–20 and the History of Susanna 61–62, whose margins cite each other; Eccclus. 11:7–8. Theodotion's *Susanna* at vv. 48–49: H. B. Swete (ed.), *The Old Testament in Greek according to the Septuagint\** III, at 582–83 (3d ed., Cambridge 1905).

112 Ps. 82 (1611) (running head "Israels obstinacie. · Psalmes. · Iudges are gods."; argument "The Psalmist hauing exhorted the Iudges, 5 and reproued their negligence, 8 prayeth God to iudge."; v. 2 margin "Deut. 1. 17.";

judges, "Thou shalt not reuile the Gods," carries the judges only in the margin, "Or, Iudges," and the next chapter on the same leaf is the law of the judge: "neither shalt thou speake in a cause, to decline after many, to wrest iudgement ... And thou shalt take no gift: for the gift blindeth the wise."<sup>113 xxxiii</sup> The folio Bibles of that generation, the Bishops' of 1568 and 1572, had glossed the same verse as a licence and not a shield: "A priuate man may reprehende the magistrate, so it be done with modestie: but without rebukes, railing, and euyl speakyng," the note reads, "considering whose person he representeth." The quarto of 1569 dropped the note, and the 1602 and the 1611 print the verse without it. And the Roman rule the canon law received stands in Acts in the mouth of a Roman governor: "It is not the maner of the Romanes to deliuer any man to die, before that he which is accused, haue the accusers face to face, and haue licence to answer for himselfe concerning the crime laid against him."<sup>114 xxxiv</sup> Erasmus, annotating the chapter in 1535, read the favour the priests asked of Festus as the judge's favour, and their request as one for a sentence under a feigned show of hearing, "ficta specie cognitionis," since "Quis enim postulat damnationem à iudice indicta causa?", who asks a judge for condemnation

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v. 6 margin "Iohn 10. 34."). Luke 18:2–6 ("Heare what the vniust iudge saith"). Jer. 36:23–32. The Septuagint, Ps. 81 in its numbering, multiplies the gods, "Ο θεός ἔστι ἐν συναγωγῇ θεῶν, ἐν μέσῳ δὲ θεοὺς διακρίνει," and reads at v. 6 "ἐγὼ εἶπα Θεοί ἐστε," the words John 10:34 quotes: Swete, *The Old Testament in Greek* II, at 323 (3d ed., Cambridge 1907). Vatablus's note at Ps. 82:1 in the Commelin polyglot (1599), at 156 ("Deos vocat iudices, vt ipse Christus exponit Iohan. 10.35"); Erasmus, *Annotaciones*, In Ioannem cap. X (Basel 1535), at 251, on the Gospel's citation of the verse.

<sup>113</sup> Exod. 22:28 (1611) ("Thou shalt not reuile the || Gods, nor curse the ruler of thy people," margin "|| Or, Iudges." and "\* Acts 23. 5."); Exod. 23:1–2, 7–8 on the same leaf. The margin is inherited: the Bishops' folio of 1602, the translators' base text, prints "|| Or, iudges." at 22:27; the folios of 1568 (fol. xlviii v, n. o) and 1572 (fol. xlii, n. o) print the note the text quotes, entire in the Notes; the quarto of 1569 already prints the margin without the note. The Commelin polyglot of 1599, at 170, prints Pagnini's "Iudicibus non maledices" against the margin "H. Diis".

<sup>114</sup> Acts 25:16 (1611); *id.* 25:18, 26–27, 26:1, 26:32. The 1611's words at the verse are the Bishops' revision's (the New Testament of 1575, "haue the accusers face to face"), its own changes being to drop the Great Bible's favour clause and to read "to die" where the 1568 has "that he shoulde perishe" and the 1575 "that hee should perish", both rendering the printed Greek's "εἰς ἀπόλειαν" (Stephanus 1551, fol. 450v; Beza 1598, at 564; Erasmus's *Annotaciones* (Basel 1535), at 328; Erasmus's text of the same year, *Novum Testamentum* (Basel 1535), at 229, prints the itacistic "εἰς ἀπόλειαν"). Erasmus's annotations, *In Acta Apost. cap. XXV*, in the same Basel edition of 1535, at 327–28, gloss the favour the priests ask as "fauorem iudicis" and read v. 15 as the text quotes it, the annotation entire in the Notes. For the canon drawn from the verse, the canon-law paragraph of this Section.

with the cause unheard. Hobbes uses Scripture as history of lawful practice and never as authority for a rule; his one text on accusation is the town clerk's at Ephesus, who sends the accusers to a lawful assembly.<sup>115</sup>

The 1611 Bible postdates the resolution by four years. The Bibles in use in 1607 were the Geneva of 1560 and the Bishops' of 1568, and both gloss the verses the leaf leans on. At Deuteronomy 17:12 the Geneva glosses the contemner's death with a proviso on the judge, "So long as he is the true minister of God, and pronounceth according to his worde," and the Bishops' with the same, "As long as he is the true minister of god and pronounceth agreeable to his worde"; at 1:17 both gloss "the iudgement is Gods" as the judge's subordination, the Geneva "And you are his lieutenants," the Bishops' "And man is but Gods minister."<sup>116 xxxv</sup> The verse the court read as the judge's exemption was thus printed, in the two English Bibles of the court's own day, with a condition on the judge and a name for his office that answers to a superior. And the psalm that calls the judges gods was, in the same year and in the reporter's own charge to the Norwich jury quoted in Section A, the verse of the judge's death: "Vos Dij estis; you are Gods on earth ... but if by vs, that so are called Gods, Iustice and Iudgement be peruerted; it will be heauy for our soules, when we shall dye like men." The glosses are the Genevan annotators' of 1560, taken into the Bishops' of 1568; the two English Bibles before Geneva, Coverdale's of 1535 and the Great Bible of 1540, print the verses without any note, as the 1611 does after them. The 1611's silence at 17:12 was not inherited from a bare page. The Bishops' folio of 1602, the base

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115 Hobbes, *Leviathan* ch. 22, at 122–23 (London 1651) (Acts 19:40, the accusation to be brought before a magistrate); for the appointment of judges he cites Exod. 18, 1 Sam. 8, 1 Kings 3:9 and Matt. 23:2–3 as Scripture confirming the sovereign's right of judicature, never as rules binding the judge who holds it.

116 *The Bible and Holy Scriptures Conteyned in the Olde and Newe Testament* (Geneva: Rouland Hall, 1560): Deut. 17:12, fol. 88v, n. h; Deut. 1:17, n. m; Ps. 82:7, fol. 253, n. e; Ecclus. 11:8, fol. 428v; Acts 25:10, nn. d –e. *The holie Bible conteynnyng the olde Testament and the newe* (London: Richard Jugge, 1568): Deut. 17:12, fol. cxviii r, n. i; Deut. 1:17, n. g; Ps. 82, argument; Ecclus. 11:7; Acts 25:11, n. b. The 1611 leaves at every one of these places carry no interpretive note. The reading is a classification of the printed texts; what it does not measure is which Bible the 1607 court read.

text its translators annotated, had dropped the note at 1:17, as the printing of 1577 already had while the folio of 1578 still carried it, but still printed the proviso at 17:12, and the hand that rewrote the verse around it left the note standing.<sup>117 xxxvi</sup> Two leaves on, at 19:17, where both parties to a cause "shall stand before the LORD, before the Priests and the Iudges," the same hand rewrote the verse around the Bishops' note "God is present, where his true ministers are," and the 1611 printed nothing there either. Which Bible the 1607 court read is not known; its leaf does not say, and Coke's own Bible is not identified. The reading survived into the receiving century. In 1644 Rutherford's *Lex, Rex*, arguing from the same verses against the royalist reading, held that "Not only kings but all inferior judges are gods," that "the judge is but God by office," that because "the judgment is the Lord's" the king "cannot limit the conscience of the inferior judge," and that inferior judges are "admonished" and "condemned in God's word for unjust judgment."<sup>118 xxxvii</sup>

*Canon law.* The church's law received the Roman rule and the verse together. At Gratian's page the canons that no one is condemned absent or unheard are, in Friedberg's notes, Pseudo-Isidore's: the first from the *interpretatio* to a Theodosian law, the third from another, the fourth from Chalcedon, and the fifth "petitum ex Act. ap. c. 25. v. 16," Festus's answer put into the mouth of a third-century pope by a ninth-century forger and received as law by Gratian: "Non oportet quemquam iudicari uel dampnari prius, quam legitimos habeat presentes

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117 For the 1560 and 1568 notes, the note above in this section. Coverdale's Bible of 1535 and the Great Bible of 1540 print Deut. 1:17 and 17:12 without any note. The translators' own base text, the Bishops' folio of 1602 (Bodleian Arch. A b.18), prints no lettered note at Deut. 1:17 (fol. L4v), still prints note i at 17:12, "As long as he is the true minister of God, and pronounceth agreeably to his word" (fols. M5r–M5v), and keeps note l at 19:17 (fol. M6r); the hand that made the 1611 rewrites the verses around them and leaves the notes standing. Of the fifteen Bishops' printings read, 1568 to 1602, the 1:17 gloss is printed in the folios of 1568, 1572, 1574, 1575 and 1578 and in no other, while the notes at 17:12 and 19:17 stand in every one.

118 Samuel Rutherford, *Lex, Rex: The Law and the Prince* (London 1644), Questions XIX–XX, in the Edinburgh edition of 1843, at 87–90 (the passages the text quotes, entire in the Notes; the gods of Psalm lxxxii are "not a congregation of kings"). The royalist answered is Maxwell's *Sacro-sancta Regum Majestas* (1644), Rutherford's "Prelate."

accusatores, locumque defendendi accipiat ad abluenda crimina."<sup>119 xxxviii</sup> The three sources are one source at this leaf. The Latin the canonists read at Jehoshaphat's charge to the judges turns the judgment back upon the judge: "non enim hominis exercetis iudicium, sed Domini: & quodcumque iudicaueritis, in vos redundabit," whatever you shall judge will fall back upon you; the 1611 renders the same clause as God's presence with the judge, "who is with you in the iudgement," the reading of the Hebraist Latin of Tremellius and Junius, and puts the Hebrew in the margin, "in the matter of iudgement."<sup>120 xxxix</sup> The 1611's vocabulary at the judge verses is otherwise the Latin's: "Gods" for *Diis* at Exodus 22:28, "the wise" for *prudentes* and "gift" for *munera* at 23:8, "respect persons" for *accipere personam* at Deuteronomy 1:17 and 16:19, "sentence" for *sententiam* at 17:11, "Answer not" for *ne respondeas* at Ecclesiasticus 11:8, and at Luke 18:6 "vniust iudge," which is Beza's "iudex ille iniustus" rather than the Vulgate's *iudex iniquitatis*; and Festus's answer, which Gratian quotes in the Vulgate's words, is the sentence the canon received.<sup>121 xl</sup> The same *causa* carries Ambrose on the good judge, addressed to the judges of the world, "Discite iudices seculi": he "nichil ex arbitrio suo facit ... sed sicut audit, ita iudicat," and judges as he hears;<sup>122 xli</sup> and the rule that "Nullum ... sententia a suo iudice non dicta

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119 *Decretum Gratiani* C. 3 q. 9 cc. 1–6, in Emil Friedberg (ed.), *Corpus Iuris Canonici* I, cols. 529–30 (Leipzig 1879) (c. 5 (Marcellus), as quoted in text). Friedberg's notes attribute cc. 1–6 to Pseudo-Isidore and give the sources: c. 1 from the *interpretatio* to CTh 11.39.9; c. 3 from the *interpretatio* to CTh 9.1.15 and the *Statuta ecclesiae antiqua*; c. 4 from Chalcedon, act. 10; c. 5 "petitum ex Act. ap. c. 25. v. 16."

120 2 Par. 19:6–7, *Biblia Sacra Vulgatae Editionis* (Rome: Typographia Apostolica Vaticana, 1592), at 380; 2 Chron. 19:6–7 (1611), margin "† Hebr. in the matter of iudgement."; the 1611's supplied verb stands in the Hebraist Latin of Tremellius and Junius, "qui vobiscum *futurus est* in rebus iudiciariis," the supplied words set in italic, *Testamenti Veteris Biblia Sacra sive Libri Canonici* (Geneva 1617), at 85. The Septuagint keeps the Hebrew's verbless clause: H. B. Swete (ed.), *The Old Testament in Greek according to the Septuagint* II, at 90 (3d ed., Cambridge 1907).

121 *Biblia Sacra Vulgatae Editionis* (Tournai 1881): Exod. 22:28 and 23:8, at 52; Deut. 1:17, at 115; Deut. 16:19, at 126; Deut. 17:11–12, at 127; Eccles. 11:8, at 466; Luke 18:6, N.T. at 58 (Beza's Latin, in the Geneva volume of 1617, at 134, reads "iudex ille iniustus," Tremellius "iudex iniquitatis" with the note "vel iniquus"); Acts 25:16, N.T. at 106. The 1611 readings are those quoted in this Section and its notes. The Latin of the 1592 editio princeps was found identical wherever both were read (2 Par. 19:6–7, the note above in this section).

122 C. 3 q. 7 c. 4 (Ambrose, on Ps. 118 *Beati immaculati*), Friedberg I, col. 527, § 1 (the canon entire in the Notes).



constringat," no sentence binds but from one's own judge, "quia et leges seculi idipsum fieri precipiunt," the Roman Correctors referring the secular law to Justinian's Code.<sup>123 xlii</sup> On the failed accuser Gratian copies the Digest by name. The calumniator who fails "talionem recipiat," but "Aliud est accusationem non implere, et aliud conuicium non probare," and Fabian's canon rules that "Conuicium non est pro accusatione habendum," the angry word no accusation and carrying no penalty unless its speaker chooses to write it; then Marcian's text follows, "sicut in Digest. l. XLVIII. legitur," and the Code on pardon, "Indulgentia, patres conscripti, quos liberat notat."<sup>124 xliii</sup> And the Fourth Lateran Council of 1215 ordered every judge to keep a written record of the whole proceeding by a public person or two fit men, "Quoniam contra falsam assertionem iniqui iudicis innocens litigator quandoque non potest veram negationem probare," so that "si super processu iudicis fuerit suborta contentio, per hoc possit veritas declarari": the record is kept for the litigant against the judge, and the originals stay with the scribes.<sup>125 xliiv</sup> The one class the canon law denied a hearing was the relapsed heretic, left to the secular judge "sine ulla penitus audientia," and the one instrument it destroyed with its author was the condemned notary's, "cum auctore damnato damnentur."<sup>126</sup> That is the frame the Tudor injunctions and the High

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123 C. 3 q. 8 c. 1 (Zephyrinus, *ad Episcopos Siciliae*), Friedberg I, col. 529, § 1; the Roman Correctors' gloss on "leges seculi," printed by Friedberg from the Editio Romana, refers it to C. 7.45.14 (Justinian, a.d. 529), Krueger (ed.), *Codex Iustinianus* 684 (the canon, the gloss with its identification, and the Code's own rule at C. 7.48.4, Krueger at 686, are in the Notes).

124 C. 2 q. 3, Friedberg I, cols. 451–54: c. 2 (Damasus), "Calumpniator, si in accusatione defecerit, talionem recipiat."; Gratian's dictum; c. 5 (Fabian) and its rubric; Gratian's quotation of D. 48.16.1 pr.–1 by name; and the Code on pardon (C. 9.43, read here as Gratian quotes it), the words the text quotes being entire in the Notes. The Star Chamber applied the talion by name two days before the Throckmorton hearing, against Robert Pie on 5 May 1602: Hawarde, *Les Reportes del Cases in Camera Stellata*, at 129–33; Kesselring, 43 *Law & Hist. Rev.* at 710 n. 59.

125 Fourth Lateran Council (1215), c. 38 = X 2.19.11, Friedberg II, cols. 313–14 (rubric "Iudex debet habere notarium vel duos viros idoneos, qui scribant acta iudicii"); the same canon in J. D. Mansi, *Sacrorum Conciliorum Nova et Amplissima Collectio* XXII, cols. 1023–26 (Venice 1778), Latin and Greek. The English reception is Otho (1237), *De Sigillis Authenticis*, in Lyndwood, *Provinciale* (Oxford 1679), at 67, with Lyndwood at 277–78 and 312; and Lateran IV c. 8 = X 5.1.24 (*Qualiter et quando*), Friedberg II, cols. 745–46, is the canon law's own statement of the premise the *Floyd* leaf shares and of the remedy it refused.

126 *Ad abolendam* (Lucius III, 1184), X 5.7.9, Friedberg II, col. 781 (the relapsed "saeculari iudicio . . . relinquendos," the elided words being those the text quotes); *Vergentis in senium* (Innocent III, 1199), X 5.7.10,

Commission inherited, and Hobbes's Latin *Appendix* gives the burning regime's span as the life of that commission, "Ab anno primo Elizabethae ad annum decimum septimum Caroli primi," naming the *Injunctiones* of 1559.<sup>127</sup> Hobbes's own rule for the crime of words is a legality standard: "quoties Verba fiunt crimen," the words must be reduced to a formula, so that anyone may know without syllogisms which words are criminal and which are not.<sup>128</sup> Part 5 carries the Basilika's statement of the rule that a man judges unjustly in his own cause, the Greek form of the canon at C. 3 q. 7.<sup>129</sup> The one immunity the canon law did hold was the Roman see's, and its record in the *Liber Pontificalis* is a trial. In 501 Symmachus, accused before King Theodoric by senators who "suborned false witnesses," stood before a synod of a hundred and fifteen bishops and "was acquitted of the false accusation"; the editor of the English text records that he appeared "waiving the claim of his see not to be judged by inferiors," and that the bishops "left the accusations against him to the judgment of God."<sup>130 xlv</sup>

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cols. 782–83 (heresy rated above *laesa maiestas*, "longe sit gravius aeternam quam temporalem laedere maiestatem"; "Si tabellio, instrumenta confecta per ipsum nullius sint penitus momenti," ending in the words the text quotes).

127 Hobbes, *Leviathan* (Amsterdam 1668), *Appendix* cap. 2, at 350, 355 (Elizabeth committed the ecclesiastical administration to bishops "una cum paucis ex consilio suo privato, Diplomate sub Sigillo Magno Angliae"; "Elizabethae consuetudine quadam in Legem transeunte, Haereticos comburi solitos esse"; the relapsed heretic "Potestati seculari comburendus tradebatur"; the span "Ab anno primo Elizabethae ad annum decimum septimum Caroli primi"); cap. 3, at 364 (Elizabeth "emisit Mandata quaedam, per omnes Dioeceses, quas Mandata appellavit Injunctiones"). The High Commission was abolished in the same session as the Star Chamber (chapter 1.6).

128 Hobbes, *Leviathan* (1668), *Appendix* cap. 2, at 356 ("quoties Verba fiunt crimen, juxta Concilii Niceni sententiam, Verba illa in Formulam debere redigi, ut unusquisque quae verba crimen habent, quae non habent, sine pluribus Syllogismis certus esse possit").

129 Part 5, chapter 5.4; the canon's Roman form is CTh 2.2.1 = C. 3.5.1 ("neminem sibi esse iudicem uel ius sibi dicere debere"), Krueger at 243, and D. 5.1.17 ("iniquum est aliquem suae rei iudicem fieri"), Mommsen & Krueger I, at 166.

130 *The Book of the Popes (Liber Pontificalis)* I, 116–19 (Louise Ropes Loomis trans., Records of Civilization, New York 1916) (the life of Symmachus; Loomis's note on the synod of 501). The maxim itself, *prima sedes a nemine iudicatur*, is not printed in the *Liber Pontificalis* at these pages. Its canonical place is C. 9 q. 3 c. 13, Friedberg I, col. 610 (rubric "Prima sedes nullius iudicio subiaceat"), with the rule's one exception at D. 40 c. 6, col. 146, the pope "a nemine est iudicandus, nisi deprehendatur a fide deuius." All from the 1879 edition.

### C. Hobbes as the Hinge

Hobbes is the link between the three eras this chapter joins, and he is a link of a particular kind: a witness, not a channel. Four facts make him so.

*Contemporaneity.* *Leviathan* appeared in 1651, forty-four years after the report and ten after the Star Chamber's abolition, while the rule still stood in Coke's *Reports* and before any American court existed to receive it. Its author was the century's theorist of absolute sovereignty. If the age's law contained an officer's exemption from the subject's complaint, he had every reason to state it.

*Same sources, opposite conclusions.* Hobbes reasons from the three sources the *Floyd* rule names and from nothing else. The sovereign's command makes law; Scripture is history of lawful practice; Cicero is maxim; Justinian is the catalogue of a law's sources. He reaches *Floyd's* result for one person only, the sovereign's own, and refuses it for the judge at every point. The forum stays open: a controversy between the party judged and the judge has a judge, and the judge is a subject (Section B). The sentence is no law to a successor.

[A]ll Judges, Sovereign and subordinate, if they refuse to heare Proofoe, refuse to do Justice: for though the Sentence be Just, yet the Judges that condemn without hearing the Proofes offered, are Unjust Judges, and their Presumption is but Prejudice; which no man ought to bring with him to the Seat of Justice, whatsoever precedent judgements, or examples he shall pretend to follow.<sup>131</sup>

"No man is supposed to be Punisht, before he be Judicially heard, and declared guilty," and the punishment of the innocent breaks three laws of nature, in the Latin "actiones hostiles."<sup>132</sup> The

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131 Hobbes, *Leviathan* ch. 23, at 125 (London 1651) (Pogson Smith ed. at 186); ch. 26, at 144–45 (Pogson Smith at 214–15), the passage beginning "It is also against Law, to say that no Proofoe shall be admitted against a Presumption of Law." Latin, cap. 26, at 133–34 (Amsterdam 1668): "Injusti enim Iudices sunt, qui quod ad sui defensionem producit reus, audire nolunt."

132 Hobbes, *Leviathan* ch. 28, at 164–65 (1651) (Pogson Smith at 243–44); Latin, cap. 28, at 149: "Punitiones Civium innocentium, sive graves, sive leves, sunt omnes contra Leges Naturae, & actiones hostiles."

partial judge "doth what in him lies, to deterre men from the use of Judges," and the judge's fitness is "to devest himselfe of all feare"; fear disqualifies the judge, it does not immunize him.<sup>133</sup> The word for what *Floyd* conferred is "impunity," and it is always a vice of the commonwealth, never a right of an officer; "immunity" in its legal sense does not occur in either text.<sup>134</sup> His late dialogue on the common law, written against Coke's *Institutes* and *Reports*, keeps the same forum. Since judges "may err," it belongs to the King "to give Remedy to them, that by the Ignorance or Corruption of a Judge shall suffer Damage"; and the statute of 4 Henry IV that quiets judgments "until the Judgment be undone by Attaint or by Error" he reads as confirming that a judgment stands only until "the Judgment be undone by Error, or Corruption proved."<sup>135 xlv</sup>

*Vocabulary the receiving order could read.* Hobbes states the ancient rules in the idiom of the law of nature rather than the statute book, and the founding generation had its own idiom for the same propositions: the hearing, the jury, the petition, no King. Whether the founders took these from him is a question of fact, and the shelf answers it. Four of them named him in print, and each named him to reject him. Wilson opened the *Lectures on Law* by refusing the definition of law as the command of a superior, traced it from Blackstone through Pufendorf to Hobbes, and quoted and rejected Hobbes's ground for dominion in irresistible power; Adams placed

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133 Hobbes, *Leviathan* ch. 15, at 77 (1651) (Pogson Smith at 119), marginal head "The eleventh Equity"; ch. 26, at 146–47 (Pogson Smith at 217).

134 Hobbes, *Leviathan* ch. 30, at 180 (1651) (Pogson Smith at 265) ("so as the great, may have no greater hope of impunity, when they doe violence, dishonour, or any Injury to the meaner sort, than when one of these, does the like to one of them"). "Immunity" in the legal sense is absent from the 1651 English and the 1668 Latin; the one English "Immunitie," ch. 21, is a gloss on Roman liberty. The Latin concedes impunity once, and only to kings: "Confirmatur hic Regum impunitas," cap. 20, at 102, a sentence with no counterpart at the same place in the 1651 text.

135 *A Dialogue between a Philosopher and a Student of the Common Laws of England*, in *The Moral and Political Works of Thomas Hobbes of Malmesbury* 598, 606–07 (London 1750) (first published 1681) (the Philosopher: "since they may err, and that the King is not bound to any other Law but that of Equity, it belongs to him alone to give Remedy to them, that by the Ignorance or Corruption of a Judge shall suffer Damage"; the Lawyer's 4 Hen. IV c. 23; the Philosopher: "before the Judgment be undone by Error, or Corruption proved"). At 606–07 the Philosopher supplies the receiver the statute presupposes, "some other Power, by the King constituted, to reverse erroneous Judgments," since "no Court can be esteemed in Law, or Reason, a competent Judge of its own Errors".

Hobbes among the Restoration writers for "simple monarchy and absolute power" against "the doctrine, that laws, and not men, should govern"; Hamilton, in 1775, found in Hobbes's state of nature a doctrine that made moral obligation "the mere contrivance of politicians"; Jefferson, in 1816, lamented a French author's adopting "the principle of Hobbes, that justice is founded in contract solely."<sup>136</sup> <sup>xlvi</sup> Not one of them names Hobbes on judicature. The founders' Hobbes is the theorist of sovereignty they repudiated; the Hobbes of chapters 23, 26 and 28 they did not cite. He therefore enters this chapter as the 1651 witness only, never as a channel of influence, and the founders enter as witnesses that his sovereign was refused at the founding. The refusal sharpens the comparison. The American doctrine that a court cannot be answered by the subject it has judged is not something the founders took from Hobbes, since Hobbes himself kept that forum open and condemned the judge who condemns unheard; and the "energy" the founders did want in an office was, as chapter 2.5 § D showed, a structural property of its design, paired with answerability rather than freed from it.

*The other contemporary voice.* Bacon, the King's Solicitor from 1607 and afterwards Chancellor, published his essay on judicature in the enlarged *Essayes* of 1625. The judge's office is "*Ius dicere*, and not *Ius dare*"; "One Foule Sentence, doth more Hurt, then many Foule Examples. For these doe but Corrupt the Streame; The other Corrupteth the Fountaine"; "Patience and Grauitie of Hearing, is an Essentiall Part of Iustice"; and "Let not the Iudge meet

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<sup>136</sup> James Wilson, *Lectures on Law*, in 1 *The Works of the Honourable James Wilson* 69–70 (Bird Wilson ed., Philadelphia 1804) (the definition of law "traced from Sir William Blackstone to Puffendorff. This definition of Puffendorff is substantially the same with that of Hobbes"; Hobbes's "To those, whose power is irresistible, the dominion of all men adhereth naturally, by their excellence of power" quoted from *De Cive* and called "strange"); 2 *id.* 234 (Hobbes's advice to princes to destroy the Greek and Latin authors, "savage and tyrannick maxims," citing *Leviathan* pt. 2, ch. 21). 3 John Adams, *A Defence of the Constitutions of Government of the United States of America* 211–12 (London 1788). Alexander Hamilton, *The Farmer Refuted* (1775), in 1 *The Works of Alexander Hamilton* 61–62 (Henry Cabot Lodge ed., Federal ed., New York 1904). Thomas Jefferson to John Adams, 14 October 1816, in 15 *The Writings of Thomas Jefferson* 76 (Lipscomb & Bergh eds., 1903–05); Jefferson to Francis W. Gilmer, 7 June 1816, *id.* at 24. *The Federalist* does not name Hobbes; Adams's own copy of Hobbes is described in the Notes.

the Cause halfe Way; Nor giue Occasion to the Partie to say; His Counsell or Proofes were not heard."<sup>137</sup> Judges are to be "Lions, but yet Lions vnder the Throne."<sup>138</sup> Four years before the essay was printed he had been sentenced by the Lords, on his own confession, for taking money as a judge, to a fine of forty thousand pounds, imprisonment at the King's pleasure, and incapacity for office, and he wrote to the Lords that he was glad of one thing: "That hereafter the Greatness of a Judge or Magistrate shall be no Sanctuary or Protection to him against Guiltiness."<sup>139</sup> <sup>xlvi</sup> The two contemporaries who wrote on the judge, the Chancellor from the bench and the theorist from his study, agree with the roll and against the leaf.

*What Hobbes does not supply.* No "immunity," no record destruction, no *Floyd*, no Star Chamber. His silence is part of the finding. The theorist who had every reason to state an officer's exemption if the age's law contained one stated none, and stated its opposite as a law of nature.

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xvii *Floyd v. Barker* (Star Ch. 1607), 12 Co. Rep. 23, 24–25, 77 Eng. Rep. 1305, 1307. The pins on the same page for the record and conspiracy points: 47 Edw. 3, 15; 21 Edw. 4, 67; 27 Ass. pl. 12, 18, 23; 1 Hen. 6, 4; 39 Hen. 6, 52; 7 Hen. 7; 11 Hen. 7, 4, 28; 1 Mar. Dyer 89; 21 Hen. 6, 34; 2 Ric. 3, 9; 28 Ass. pl. 21; 9 Hen. 6, 60; and the resolution of Catlyn and Dyer. The editor's note on Thorpe: "See Cotton's Records 74. 316. That Thorp's judgment was by Parliament adjudged just and legal: but in truth the whole set of Judges were then so corrupt that the King was forced to try him by commission.—*Note to former edition.*" The record: *Calendar of the Patent Rolls, Edward III*, IX (1350–54), at 30 (24 Edw. III, pt. 2, mm. 3d, 2d: the commission of 3 November 1350 "to deliver from prison William de Thorpe, 'chivaler,' ... for misdeeds in the office of chief justice"; the commission of 19 November "to render judgement upon the said William"; the mandate of 24 November to send into chancery "the record and process ... and of the judgement of hanging and forfeiture of his goods adjudged against him," the record "ending with the sentence that the judgement of hanging be pardoned by virtue of a writ of the king"); *id.* at 61–62 (25 Edw. III, pt. 1, m. 17: the pardon of 10 March 1351, reciting that Thorpe, "charged with having received gifts in his office contrary to the form of the oath required of him on assuming the office, confessed the same and put himself on the

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137 Bacon, "Of Iudicature," *Essayes* (1625) at 316–24 (the passages quoted as printed); the next note.

138 Francis Bacon, "Of Iudicature," in *The Essayes or Counsels, Civill and Morall* 316–24 (London, Iohn Haviland for Hanna Barret, 1625) (Essay LVI; quoted as printed).

139 *A Collection of the Proceedings in the House of Commons against the Lord Verulam, Viscount St. Albans, Lord High Chancellor of England, for Corruption and Bribery* 23–27 (2d ed., London 1721) (the Commons' particulars; the Lords' judgment of 3 May 1621; Bacon's submission, "The first is, That hereafter the Greatness of a Judge or Magistrate shall be no Sanctuary or Protection to him against Guiltiness, which is the Beginning of a golden Work" (the 1721 print's reading; the Lords Journal text as printed in 7 James Spedding, *The Letters and the Life of Francis Bacon* 242 (London 1874), from L.J. iii. 84, reads "no sanctuary or protection of guiltiness; which, in few words, is the beginning of a golden world"))).

king's grace," that the justices "adjudged him to death and his goods to be forfeit to the king," and that "although in justice execution of the judgement should have been demanded, the king tempering justice with mercy, pardoned him the death sentence," and afterwards, "recalling with due gratitude his previous services and compassionating from his heart his desolation," pardoned the trespasses and restored his lands and goods); *id.* at 47 (the forfeiture, 4 and 6 March 1351); *Calendar of the Close Rolls, Edward III*, IX (1349–54), at 277 (24 Edw. III, pt. 2, m. 4d) (memorandum that the record and process "are enrolled on the dorse of the patents of this year"); Rot. Parl. ii. 227 (25 Edw. III, no. 10) (the judgment read in Parliament and affirmed). Neither record says the judgment was "held against the law." Howell's *State Trials*, vol. I, carries a different Thorpe.

xviii Rymer, *Foedera, Conventiones, Litterae et Acta Publica*, III, pt. i, at 208–10 (Record Comm'n 1825) ("Processus factus contra Willielmum de Thorpe, capitalem justiciarium placitorum," from Pat. 24 Edw. III, pt. 3, mm. 2, 3d): the commission of 3 November 1350 "ad deliberationem de Willielmo de Thorpe chivaler, capto & detento in prisiona nostra, pro quibusdam delictis & maleficiis, per ipsum contra nos, ad dampnum fidelium nostrorum, ac contra formam sacramenti sui ... factis"; his confession of five gifts, £100 in all, taken from men indicted before him at Lincoln to stay the process against them; the King's writ reciting the ordinance that the justices of both benches and the barons of the Exchequer take fee of no one but the King and swear the oath, with its penalty "quod ipse erit ad voluntatem nostram, de corpore, terris & catallis," the King imposing by word of mouth ("tunc oretenus talem imposuimus poenam") the penalty of drawing and hanging and forfeiture; the judgment, "consideratum est per praedictos justiciarios ... quod, quia praedictus Willielmus de Thorpe, qui, sacramentum domini Regis, quod erga populum suum habuit custodiendum, fregit maliciose, false, & rebelliter, in quantum in ipso fuit, & ex causis supradictis, per ipsum Willielmum, ut praedictum est, expresse recognitis, suspendatur, & quod omnia terrae & tenementa, bona & catalla sua, domino Regi remaneant forisfacta"; the King's writ of 19 November under the privy seal, in French, granting his life "de notre espediale grace & auctoritate roiale ... mes volons que son corps soit remys en prison attendant notre grace"; the close, "Et non est intentio domini Regis, quod hujusmodi iudicium in consimili casu versus quemcumque alium, ex quacumque causa, se teneat vel extendat, set solummodo versus illos, qui praedictum sacramentum fecerunt & fregerunt, & habent leges regales Angliae ad custodiendas"; and the judges' oath in French at 209 ("Vous jurrez que bien & loialment servirez a notre seigneur le Roi & seon poeple en l'office de justice ... & que vous ferrez owel lei & execution de droit a touz ses sugitz, riches & povres, sanz avoir regarde a quecumque persone, & que vous ne prendrez par vous ne par autre, en prive nen apert, doun, regarde, d'or ne d'argent ... & en cas que vous soiez trove en default desore en nuls des pointz avantditz, vous serrez en la volente le Roi de corps, terres, & davoit de faire ent ce que lui plerra"). The record as recited by counsel: Oliver St John's speech to the Lords at the conference of both Houses, delivering the Commons' votes of 7 December 1640 against the ship-money judgment, 3 *Cobbett's Complete Collection of State Trials* 1262, 1273–74 (London 1809) ("Sir William Thorpe, chief justice of the King's-Bench, in Edw. 3's time, having of five persons received five several bribes, which in all amounted to 100*l.* was for this alone adjudged to be hanged, and all his lands and goods forfeited. The reason of this Judgment is entered in the roll, in these words; 'Quia praedict' Willielmus Thorpe, qui sacramentum domini regis erga populum suum habuit ad custodiendum, fregit malitiose, false et rebelliter, quantum in ipso fuit;' ... There is this notable declaration in that judgment; that is, that this judgment was not to be drawn into example against any other officers who should break their oaths, but only against those 'qui praedictum sacramentum fecerunt et fregerunt, et habent leges Angliae ad custodiendum;' that is, only to the judges oaths, who have the laws entrusted to them. This judgment was given 24 Ed. 3. The next year in the parliament 25 Ed. 3, it was debated in parliament, whether this judgment was legal; *et nullo contradicente*, it was declared to be just and according to the law; and that the same judgment may be given in time to come upon the like occasion. This case is in point, that it is death for any judge wittingly to break his oath, or any part of it. This oath of Thorpe is entered in the roll, and is the same *verbatim* with the judges oath in 18 Ed. 3, and the same which the judges now take."). St John's account of the trust is on the same column: the King "at his coronation, is bound by his oath to execute justice to his people, according to the laws ... His majesty again, as he trusts the judges with the performance of this part of the oath, so doth he likewise exact another oath of them, for their due execution of justice to the people, according to the laws." St John's Latin differs from the enrolment as printed by the Record Commission in four small readings ("erga populum suum habuit ad custodiendum" for "quod erga populum suum habuit custodiendum"; "malitiose" for "maliciose"; "quantum" for "in quantum"; "leges Angliae" for "leges regales Angliae"); the sense is the same. The enrolment itself (TNA C 66) is cited here from the Record Commission's print.

xix Edward Foss, *The Judges of England*, III, 527–31 (London 1851) (the commission of 3 November 1350 and the confession; "whereupon he was committed prisoner to the Tower of London, and all his lands and goods were

ordered to be seized into the king's hands, until the royal will and pleasure should be known. With this legal and reasonable judgment, however, the king was not satisfied; and accordingly issued another writ on November 19, in which, after reciting the oath taken by the justices ... it was added, that when Sir William de Thorpe took that oath, the king, 'ore tenus,' imposed such punishment, that if he in any manner acted contrary thereto, he should be adjudged to be degraded and hanged ... He then commands the same parties immediately to pronounce the judgment agreed upon"; "The charge was for receiving bribes contrary to his oath; an offence which did not touch the delinquent's life by any law then existing; and so the commissioners appointed for his trial found"; the Peers' affirmance "with a reservation which sufficiently manifested their hesitation in recognising it; viz., that such a judgment should be only good against a delinquent who had the administration of the laws of England"; Coke's "restored to all his lands, as by the record appeareth" (3 Inst. 145) reads a pardon of the hanging only, the forfeiture "left unnoticed, and consequently unpardoned," part of the lands restored the following year). Foss's citation of *Liber Assisarum* 28 Edw. III, p. 145, where Thorpe is "then made chief justice," he himself reads as a later commission of assize in Sussex, not a restoration.

xx Foss, *The Judges of England*, IV, 1–4, 102–08 (London 1851) ("the conviction and banishment of the whole bench (with the exception of one member of it) on charges of high treason ... one for introducing, and the rest for submitting to the introduction of, the unconstitutional practice of giving extra-judicial opinions to the sovereign—a practice seldom resorted to but for the purpose of affording an apparent sanction to forced interpretations of doubtful enactments, either oppressive to the people, or stretching the legal prerogatives of the crown"; the questions and answers sealed at Nottingham on 25 August 1387, "which had been already prepared by Chief Justice Tresilian"; the appeal of 17 November 1387; the thirty-nine articles, "Not the least prominent among these was the constraint they had put upon the justices to set their hands to the answers"; "All of the appellees, except Brambre who was in custody, were pronounced guilty for default of appearance"; Tresilian "asked what he had to say why execution should not be done according to the judgment pronounced; and becoming as one struck dumb, so that he could not answer, he was led away to undergo his sentence"; the other judges "convicted and sentenced to death and forfeiture of their property. On the application, however, of the clergy and other peers, their lives were granted to them; but they were all banished to different parts of Ireland"; the reversal of 21 Ric. II and revival under Henry IV; Rot. Parl. iii. 229–37). Foss also records, at 103, that Tresilian's own trials of the insurgents of 1381 at St Albans, in which "No witnesses appear to have been examined," were followed by "an act of pardon and indemnity ... for those who had acted 'without due process of the law'" (Stat. of the Realm, ii. 20).

xxi John Hawarde, *Les Reportes del Cases in Camera Stellata, 1593 to 1609*, at 99–101 (William Paley Baildon ed., London 1894) (30 June 1598, Trin. 40 Eliz., eleven councillors and judges present: the information against Benjamin Bulle, servant to Lady Paget, "on confession by the party of slanderous words against the Lord Chief Justice of the Bench [Sir John Popham]," for telling a witness after a capital trial that the prisoner "coulede not be guyltye" and that "the matter shall be hearde againe before the Councelle"; "adjudged by the whole Court to be a heinous offence against the Queen and her dignity, against the common justice of the land, and a slander of the same, and a great defamation of the Lord Chief Justice of England; and he [the Lord Chief Justice] was acquitted of this, and discharged"; the trial reported by Anderson C.J., the Recorder and others "the most just that could be; inasmuch as the prisoner had a copy of the indictment ... and of the examinations of the witnesses on both sides"; the Lord Keeper: "if the Chief Justice had been found guilty of this offence, in the first place, he would draw the vengeance of God on all the land for innocent blood, he had abused the Queen and her justice ... And this would have been his punishment, as the precedent is 24 Edward III.: Sir William Thorpe, Chief Justice of England, was accused of taking bribes; whereupon the King directed a grave Commission of the most honourable lords of the land, who examined the matter, and found him guilty of taking of one £10, of another £20, and in all not £60, and condemned him to death, and to forfeit all his goods and land for ever; and the cause of his judgment was 'for that he had falselye, iniustlye, & trayterouslye, & rebelliouslye, as muche as in him laye, offended the kinge's mastie, his lawes, his Crowne & dygnitye"; Bulle sentenced to imprisonment, £200, and the pillory at Westminster, Newgate and Cheapside). The court examined the judge's conduct before it punished the slander; Baildon's note refers the Thorpe recital to Foss, *Judges*, iii. 527. Nine years before the *Floyd* resolution, in the same court, the rule of jurisdiction was stated the other way, at 98 (26 May 1598; shoulder-note "Jurisdiction of the Star Chamber, which is great"): "Ruled by the Court, that if any Judge, Justice, officer or subject of the realm shall go beyond his bounds and limits, and misdemean himself in any manner, this Court has power and authority to examine and punish this; and this is clear law without any doubt or question." The court recited Thorpe again on 7 May 1602, at 134–39 (*Winston v. Throckmorton*, eleven councillors and judges present), sentencing a justice of the peace and member of



the Council of the Marches who had taken a statute for £1600, of which £800 was paid, to acquit and discharge an accessory to murder: the Attorney on the slandered peers and Chief Justice, "if theise Fountaines be thus scandalized wth Corruption, what shall wee poore brookes look for"; the recital at 136, "the punishment of Sir William Thorpe, Chief Justice of England, for adjourning the trial of a felon to the next Assizes following, for which offence he was indicted, arraigned, and executed for high treason; and this was confirmed by Act of Parliament, so heinous, grievous and odious is the offence of corruption and extortion in a Judge," a telling the roll contradicts on the offence and the execution, as Baildon's note from Foss records; the rule against the plea that the defendant was never sworn, "if a man be made a Judge by patent and be not sworn, still he is a Judge, and shall be punished for extortion or corruption as a Judge: and that he is not sworn is his own fault"; the judges' resolution at 137 that the offence was extortion and not within the pardons of 35 and 39 Elizabeth; and the sentence at 139, "for the first offence only, the extortion, fined 2000 marks, with imprisonment and public confession at the next Assizes." The court's own maxim in those years was that the officer's rank aggravated his fault. *Plowden v. Braughton* (9 June 1602), at 146: a justice of the peace and councillor of the Marches, "in a place of justice and dignity for his virtue and erudition, *et quanto maior est dignitas tanto magis fuerit plus reum* [sic]," fined £200 and removed from the commission. The entry of 18 May 1603, at 162, reporting the King's "expresse Charge" that "the vulgar shall not leape into his throne & reforme any contempte herein, but shall Complaine to the maiestrate," closed by the reporter with the tags "*Culpabilis neclectus damnabilis contemptus. Dignitas personae auget culpam*"; on the same page a recusant informed against *ore tenus* on his confession was refused a copy of it and counsel, and delivered "a noate declaringe that by the lawes of this Realme no man ys to be Condemned but vpon bille & aunsweare or originall proces serued vpon him." *Throgmorton v. Stafforde* (11 October 1605), at 234–35: a justice of the peace fined £20 for a blow with a riding rod, "for it was a great offence because he was a Justice of the Peace and ought to keep the peace," the court holding the cause "fitter for another place than this Court" and adding that "although malice be the accuser, justice should be the punisher. ... *Dignitas delinquentis auget peccatum*."

xxii Hawarde, *Les Reportes del Cases in Camera Stellata*, at 182–84 (29 Oct. 1604, Mich. 2 Jac.; "Mr Pounce, a great and ancient recusant, was prosecuted *ore tenus* by Coke, the King's Attorney, for a petition delivered by him to the King, against Baron Sauuelle and Sir Edward Phillips, the King's Serjeant, Judges of the Northern Circuit, for executing one Baillie"; the charge as reported at 183; "he Called them Hamans & Susanna's Judges"; the sentence at 184, "Fyned 1000li, imprisonmente duringe ye kinge's pleasure in ye tower, & to stande one the pillorie here at Westminster, & in Lancashire, & to haue his eares nailed, but not cutte of"). The Thorpe sentence is Hawarde's narrative of the Attorney's charge, the speaker named "Mr Attornie" at 183 and 184. The court had stated the rule two years before, in *Plowden v. Braughton*, at 145–46 (9 June 1602): a justice of the peace accused of procuring an informer before himself was acquitted for want of proof, "For a Judge, in his just and honest courses, will be protected by this Court with grace and favour, and the proof to accuse him must be plain and apparent, and such evidence is only *ad informandam conscientiam*; but if he do evil and offend, this Court will punish him with great and heavy punishment"; and on the same day, at 146, a wife who had petitioned the Queen and the Lord Keeper for a common-law trial after a Star Chamber sentence was ordered "that if she did this again, she should be lashed."

xxiii *The Lord Coke his Speech and Charge. With a Discoverie of the Abuses and Corruption of Officers*, sigs. C2r–C3v (London: Nathaniel Butter, 1607), an unauthorized print of the charge at the Norwich assizes, attributed to Coke, quoted as printed ("the Kings Maiestie at his Coronation is sworne to doe Iustice vnto all his Subiects, which in his owne Person it is impossible to performe. And therefore his Highnesse is constrayned by his Ministers, Deputies, Iustices, and Iudges, to administer Iustice vnto all his people ... for vnto them, and into their hands, is (as it were) deliuered the Kinges owne Oath; because, what he is sworne vnto, must be by them in his behalfe performed ... Thus by the Kings Commission the Kings owne Oath is put into our hands"; the rule of judging "not according to our owne Will, Conceit, or Opinion, but Secundum Legem & Consuetudinem Maneriae Anglicanae"; "Partialitie in a Iudge, is a Turpitude ... A Iudge that will bee Partiall, will receiue a Bribe"; "A Iudge must vprightly, with an equall and indifferent eare and minde fully heare and vnderstand each cause before hee judgeth ... Qui Iudicat causam parte inaudita altera, Æquum licet, Statuat, Iudex iniquus est"). The same charge, at sig. C4r, turns the psalm on the judges themselves: "To Kings, Rulers, Iudges, and Magistrates, this sentence is proper, *Vos Dij estis*; you are Gods on earth: when by your execution of Iustice and Iudgement, the God of heauen is by your actions represented: but if by vs, that so are called Gods, Iustice and Iudgement be peruered; it will be heauy for our soules, when we shall dye like men"; and at sig. C1v the protection the law gives a judge is of his person, by the King's presence: a blow struck before him costs the hand "because the offence was done as in the presence of the

Prince," and "if a Iustice of Assise shall happen by any in his Circuit to be slaine, the Law adiudgeth it to bee *Lese Crimen Maiestatis*."

xxiv Hawarde, *Les Reportes del Cases in Camera Stellata*, at 309–12 (*Lady Russell v. Earl of Nottingham and others*, 7 November 1606, "The Former Cause ... formerlye referred to the Judges, was now this daye hearde one bothe sides againe," ten present: the Lord Chancellor, the Archbishop of Canterbury, the Lord Treasurer, Northampton, Exeter, Zouche, the Bishop of London, the two Chief Justices and the Chief Baron; the Chief Baron first, "the Justice of peace did very discreatelye, for there was no breache of the peace, therefore no Cause to binde any to the peace," and of the second riot that he "Coulede not acquite nor condemne them ... because it coulede not appeare vnto them in iudgemente whether it were an auntyente lodge or no, nothinge beinge mencyned wthin the bookes [depositions], (wherevpon they must onelye iudge)"; Coke at 310–11, as quoted, referring the second riot "to the Common lawe to receyue a tryall there"; Popham, "Without inquiry, a Justice of the Peace cannot grant restitution, if he did not see the force"; Zouche and the Bishop of London agreeing with the two Chief Justices; the Lord Treasurer acquitting all, "for in iudgemente *quod dubites refeceris*"; the Lord Chancellor alone, at 312, "I Cannot Cleere nor Commende Dolman, the Justice of peace, for yf he had done [well], vpon the sighte of suche an assemblye, suche weapons, suche an occasyon, suche woordes, yf he had done well he shoulde haue bounde them all to the peace for most safetie"). The editor's note identifies the justice as Thomas Dolman. The suit reached the court after the petition route had been tried and had failed. On 24 September 1603 the Earl of Worcester wrote to the Earl of Shrewsbury that the Lord Admiral had taken possession of Donnington "vppon my Lady Russell, and kepethe the Castell and her lady[-ship] owt of dores; who complayned to the King, but found littell redress, and so is turned to the Lawe" (Nichols, *Progresses of James I*, i. 274, as printed in Baildon's Appendix XVII, at 434).

xxv *Floyd and Barker*, 12 Co. Rep. 23, 77 Eng. Rep. 1305 (the heading "Pasch. 5 Jacobi Regis. In the Star-Chamber."). Hawarde, *Les Reportes del Cases in Camera Stellata*, at 319–22 ("Veneris, 24 April. 1607, termino Pasche," the editor noting "Five Councillors and Judges were present"; 29 April, seven; 1 May, eight; 6 May, nine; *Galette's case*, *Robinson v. Nethersall*, *Margerie v. Drue*, *Earl of Lincoln v. Dimmocke*), 322–27 (Trinity: 10 June, eight present, the Chief Justice's death announced "While the Courte was sitting"; the Lord Chancellor's charge "the daye after th'endinge of this terme"), 328–43 (Michaelmas: eleven sittings from 14 October to 27 November, seven to eleven present; *Standishe v. Woolner*, at 330, a knight and justice of the peace fined and "thruste oute of the Commission"; *Stepney v. Warren*, at 334–36, a Welsh justice sentenced on 4 November, "in iudgemente or punishmente the person of any man ys not to be respected, but th'offence, *pena delicto non delinquenti*," and "disabled from bearinge any ministeriall or iudiciall office"; *Lewes v. Lany*, at 342–43, Coke on 20 November: "for generall Judges of the lande, they can take nothinge, eyther before or after, for they haue there Fee of the kinge"); Index I, Cases, at 465–67 (no entry for the case under Floyd, Fludd, Lloyd or Barker; *Williams v. Lloyd*, at 105, is another matter).

xxvi Coke, *The Fourth Part of the Institutes of the Laws of England* 70–71 (London 1797) (cap. 7, the Court of King's Bench: the ordinance of 20 Edw. III c. 1 quoted "speaking in the kings person," that the justices "shall from henceforth do even law and execution of right to all our subjects, rich and poor, without having regard to any person, without letting to do right for any letters or commandement which may come to them from us, or from any other"; "8 H. 4. the king hath committed all his power judiciall ..."; "8 H. 6. the king doth judge by his judges (the king having distributed his power judiciall to severall courts) and the king hath wholly left matters of judicature according to his lawes to his judges"; "the king himselfe cannot be judge in propria causa"; the King's Bench's second and third heads of jurisdiction as quoted). *Id.* at 67–69 (cap. 6, the court for redress of delays of judgments under 14 Edw. III c. 5: a prelate, two earls and two barons "to heare by petition delivered unto them the complaints of those that will complaine them of such delayes and grievances" by the justices; "In divers cases the party grieved shall have an action for unjust delay"; Shard J., "We cannot nor will delay any man in respect of our oath"). *Id.* at 60–66 (cap. 5, the Star Chamber: its standing judges, its jurisdiction "for oppression, and other exorbitant offences of great men, (whom inferiour judges and jurors (though they should not) would in respect of their greatnesse be affraid to offend) bribery, extortion ... scandalous libelling," the paragraph before it having set the court's end, "Ut poena ad paucos, metus ad omnes perveniat, without respect of persons"; "Quod arbitrio iudicis relinquitur, non facile trahit ad effusionem sanguinis"; the court "cannot sit for hearing of causes under the number of eight at the least"; the Procter case of 12 Jac., "paribus sententiis reus absolvitur").

xxvii *The Proceedings and Tryal in the Case of the Seven Bishops, in the Court of King's-Bench, Trinity Term 1688*, at 75–76 (the petition and the information, "in quo quidem falso, ficto, malitioso, permitioso & seditioso libello

continetur"), 143 (the Attorney General's opening), 407 (Wright C.J.: "the Bishops might petition the King, but this is not the right way of bringing it"; Serjeant Baldock: "the Subject has a Right to petition; but I shall affirm it also, he has a Duty to obey"), 413 (Holloway J.: "don't compare the writing of a Book to the making of a Petition; for it's the Birth-right of the Subject to Petition"), 420–23 (the directions: Wright C.J., "any thing that shall disturb the Government, or make Mischief and a Stir among the People, is certainly within the Case of *Libellus Famosus*; and I must in short give you my Opinion, I do take it to be a Libel"; Holloway J., "to deliver a Petition cannot be a Fault, it being the Right of every Subject to Petition ... I cannot think it is a Libel"; Powell J., "If there be no such Dispensing Power in the King, then that can be no Libel which they presented to the King"), 425–28 (Allybone J.: "whether it be in the form of a Supplication, or an Address, or a Petition, if it be what it ought not to be, let us call it by its true Name ... It is a Libel"; "there may be every Tittle of a Libel true, and yet it may be a Libel still"; his recollection of a resolution of the judges in James I's time "That to frame a Petition to the King to put the Penal Laws in Execution, is next door to Treason," which Powell J. corrected as a petition carrying a threat), 430–31 (the verdict of 30 June 1688) (London 1739). The court was Wright C.J. and Holloway, Powell and Allybone JJ.; the judges divided two and two on the question of law.

xxviii D. 48.16.1 pr.–3 (Marcian), in Mommsen & Krueger, *Digesta* II, at 835 ("Accusatorum temeritas tribus modis detegitur et tribus poenis subicitur: aut enim calumniatur aut praeuaricantur aut tergiuersantur. ... Sed non utique qui non probat quod intendit protinus calumniari uidetur: nam eius rei inquisitio arbitrio cognoscentis committitur, qui reo absoluto de accusatoris incipit consilio quaerere, qua mente ductus ad accusationem processit, et si quidem iustum eius errorem reppererit, absoluit eum, si uero in euidenti calumnia eum deprehenderit, legitimam poenam ei irrogat"). The only name Rome strikes from its own register is the accused's, for his protection: D. 48.2.3.1 (Paul), *id.* at 797 ("Quod si libelli inscriptionum legitime ordinati non fuerint, rei nomen aboletur et ex integro repetendi reum potestas fiet").

xxix Hawarde, *Les Reportes del Cases in Camera Stellata*, at 176–77 (Fourde's case, Michaelmas term 1604: "He having a cause pending in the Chancery, and foreseeing that the Lord Chancellor would grant an Injunction against him, preferred a petition to the King that he would require the Lord Chancellor to stay the granting of the Injunction, for it would undo him, his wife and his children"; the King's messenger; the Chancellor "notwithstanding, granted the Injunction, and Fourde preferred another petition to the King informing him of this, and concluded that the question now was whether the commandment of the King or the order of the Chancellor should take effect"; "for sowing sedition between the King and his Peers, Fourde was sentenced to have perpetual imprisonment, to lose his ears upon the pillory, having papers on his head, 'to ride w[i]th his face to the horse taile, & to be fyned 1000li.'"; the Lord Chancellor "left the Court, and the Lord Treasurer gave sentence"; the next Star Chamber day the Chancellor "was with the Kinge, vpon his knee, for Fourde's pardon, & had obtayned the same"; Baildon's note: docquet of 22 May 1605, "pardon to William Foorth of fine and corporal punishments for slanderous petitions against the Lord Chancellor").

xxx Deut. 1:16–17, in *The Holy Bible* (London: Robert Barker, 1611) (running head "A repetition of · Deuteronomie. · former things."; margin at v. 17 " *Leuit. 19. 15. chap. 16. 19. 1. sam. 16. 7. pro. 24. 23.*" and "· *Hebr. acknowledge faces.*"), consulted in *The Holy Bible: An Exact Reprint in Roman Type, Page for Page, of the Authorized Version Published in the Year 1611* (*A. W. Pollard ed., Oxford 1911*) and in a first-folio copy. The 1611 readings throughout chapter 1.4 § B are given as printed, with the long s normalized. A collation of the 1611 against the Aleppo Codex, made for this work at the seven judge loci the codex still carries (its Torah leaves are lost before Deut. 28:16, so Exod. 22:28 and the Deuteronomy verses cannot be read there: Ps. 82; 2 Chron. 19:6–7; Jer. 36:23–25; 1 Sam. 8:1–11; 1 Kings 3:9, 11; Prov. 18:5, 13, 17; Prov. 24:23–25), found no textual variant at any locus; the 1611 follows the qere רבא over the codex's ketiv רבא at Prov. 18:17; the 1611's own margins record the Hebrew at six of these points ("Hebr. hearing" at 1 Kings 3:9, "Hebr. to heare" at 3:11, "Hebr. iudge" at Ps. 82:3, "Hebr. in the matter of iudgement" at 2 Chron. 19:6, "Hebr. returneth a word" at Prov. 18:13, "Hebr. acknowledge faces" at Deut. 1:17); and at 1 Kings 3:9 the hearing heart, לב שמע, is rendered "vnderstanding." In every Hebrew locus the fear is the judge's toward God, and the litigant's face is what he must not regard. A second collation, against the Leningrad Codex at the seven Pentateuch loci (Exod. 22:8–9, 28; 23:1–9; Deut. 1:16–17; 16:18–20; 17:8–13, 18–20; 19:15–21), likewise found no textual variant. A third reading, of the printed text in Rudolf Kittel (ed.), *Biblia Hebraica, editio altera emendatior, Pars II* (Stuttgart 1925), at 973–74 (Ps. 82) and 1293 (2 Chron. 19:6–7), found the same text at every judge word; the apparatus at Ps. 82 records the Greek and Syriac transposing

words at v. 3 and the editors' own conjectures at vv. 6–8 ("frt dl," "prps"), and at 2 Chron. 19 carries no entry at vv. 6–7. The commentary the first printed Hagiographa sets beside the verse, transmitted under Rashi's name (Ketuvim with commentary, Naples 1487, at the leaf carrying 2 Chron. 19, pencilled p. 60 in the copy read), takes "for yee iudge not for man" as a rule of liability, "אם הטית את הדין חייב ... לשלם מה שגזלת," if you have perverted the judgment you are liable to repay what you have robbed, and "who is with you in the iudgement" as the end of the judge's excuse, He sits with you in judgment "שלא יאמ' הדיין מה לי," so that the judge should not say, what have I to do with this trouble, adding the maxim "אין לו לדיין אלא מה שעיניו רואות," a judge has nothing but what his eyes see. The renderings are this book's; the print's abbreviations are expanded, its line-end catch-letters dropped, and one word between "liable" and "to repay" left unread, and the noun after "what have I to do with" rendered as this trouble from its sense, the type of the word not being read with confidence. It shows the translators' choices on the word the 1607 court read divinely: one word, אלהים, is "the Iudges" three times in the 1611's own text at Exod. 22:8–9 (the reading of the English text since the Great Bible of 1540; Coverdale's of 1535 has "the Goddes"), "Gods" with the margin "Or, Iudges" at 22:28, and "Gods" in "the iudgment is Gods" at Deut. 1:17; שחד is "gift" in every statement of the judge's rule (Exod. 23:8; Deut. 16:19; 2 Chron. 19:7) and "bribes" only of Samuel's sons (1 Sam. 8:3); the four "sentence" of Deut. 17:9–11 render "word" three times and "mouth" twice, the "sentence" of v. 10 standing for both; the hearing verb is kept three times in Moses' charge at Deut. 1:16–17, and the contemner of 17:12 is one who "will not hearken"; and seven further margins at these loci record the Hebrew the text smoothed. The Septuagint at the same verses reads "Διακούετε ἀνὰ μέσον τῶν ἀδελφῶν ὑμῶν, καὶ κρίνατε δικαίως ... οὐκ ἐπιγνώσῃ πρόσωπον ἐν κρίσει· κατὰ τὸν μικρὸν καὶ κατὰ τὸν μέγαν κρινεῖς, οὐ μὴ ὑποστειλῇ πρόσωπον ἀνθρώπου, ὅτι ἡ κρίσις τοῦ θεοῦ ἐστίν," keeping the Hebrew's acknowledging of faces that the 1611 margin records and adding that the judge shall not shrink from a man's face: H. B. Swete (ed.), *The Old Testament in Greek according to the Septuagint I*, at 340 (3d ed., Cambridge 1901). At Exod. 22:8–9 (its 22:7–8) the Septuagint reads the deposit law's threefold אלהים as the one God, "ἐνώπιον τοῦ θεοῦ" twice and "διὰ τοῦ θεοῦ," where the 1611 has "the Iudges" and the Vulgate "deos," and at 22:28 (its 22:27) it keeps the plural, "θεοὺς οὐ κακολογήσεις," with the Vulgate's "Diis" (Swete I, at 147–48). The 1611 reads the same word "the Iudges" once more at Exod. 21:6, "Then his master shall bring him vnto the Iudges," with no note in the margin at the verse; a lawyer's defence of that rendering against the critics' "God" is H. M. Wiener, *Studies in Biblical Law* 25–26 (London 1904) ("only an admittedly doubtful rendering of אלהים, a word which is by some translated 'judges'"; "Now let us try substituting 'judges' for 'God.' Master and slave go to the judges. Where do the judges meet? Not at the notional door of a hypothetical 'sanctuary,' but at the gate"). The Hebraist Latin printed in 1599 had already put the judges in the text and the gods in the margin: the new Latin column of the Commelin polyglot, Pagnini's version, reads at Exod. 22:8–9 "applicabitur dominus domus ad Iudices" and "vsque ad Iudices veniet causa vtriusque: is quem cōdemnauerint Iudices," each "Iudices" lettered to the margin "H. Deos," while the Vulgate column beside it reads "ad eos" at v. 8 and "ad deos" at v. 9, and the Greek "ἐνώπιον τοῦ θεοῦ": *Sacra Biblia, Hebraice, Graece, et Latine, cum annotationibus Francisci Vatabli\** (ex officina Commeliniana, 1599), at 169.

xxxī Deut. 17:8–13, 18–20 (1611) (chapter argument "8 Hard controuersies are to bee determined by the Priests and Iudges. 12 The contemner of that Determination must die."; v. 12, "And the man that will doe presumptuously, and will not hearken vnto the Priest (that standeth to minister there before the LORD thy God) or vnto the Iudge, euen that man shall die," margin "† Hebr. not to hearken."; vv. 18–20, the king's copy of the law). The chapter before, Deut. 16:18–19 ("Thou shalt not wrest iudgement, thou shalt not respect persons, neither take a gift: for a gift doth blind the eyes of the wise, and peruert the wordes of the righteous"). John 7:51 ("Doth our Law iudge any man before it heare him, & know what he doth?") carries the margin "Deut. 17. 10. and 19. 15." Deut. 19:17–20 (both men stand before the judges, who "shall make diligent inquisition"; the false witness suffers what he intended; "those which remaine shall heare, and feare"), margin at v. 19 "Prou. 19. 5, 9. dan. 13. 62.", and the History of Susanna 61–62, margin "Deut. 19. 19." (the judges who condemned "without examination" put to death under the false-witness law: the two margins cite each other). Eccclus. 11:7–8 ("Blame not before thou hast examined the trueth: vnderstand first, and then rebuke. Answer not, before thou hast heard the cause"). The false-witness grammar was English practice in the receiving century: Titus Oates, whose sworn evidence had sent men to their deaths, was convicted of perjury before the King's Bench on 8 May 1685, the indictment reciting that he "had sworn, and caused to be put to Death several Persons"; A True Narrative of the Tryal of Titus Oates for Perjury at the

Kings-Bench-Barr at Westminster 1–4 (Dublin reprint, 1685). The sentence is not in the tract. The 1611's "examination" is the Greek's: Theodotion's text of Susanna reads at v. 48 "οὐκ ἀνακρίναντες οὐδὲ τὸ σαφὲς ἐπιγνόντες κατεκρίνατε θυγατέρα Ἰσραήλ," and at v. 49 "ἀναστρέψατε εἰς τὸ κριτήριον"; the older Greek version has "ἀπεκτείνετε," you killed, for "you condemned," and no v. 49. H. B. Swete (ed.), *The Old Testament in Greek* according to the Septuagint\* III, at 582–83 (3d ed., Cambridge 1905) (the two versions on facing pages).

xxxii Ps. 82 (1611) (running head "Israel's obstinacie. · Psalmes. · Iudges are gods."; argument "The Psalmist hauing exhorted the Iudges, 5 and reprobued their negligence, 8 prayeth God to iudge."; v. 2 margin " Deut. 1. 17."; v. 6 margin " Iohn 10. 34."). Luke 18:2–6 (running head "An vniust iudge."; "Heare what the vniust iudge saith"). Jer. 36:23–32 (running heads "The roule burnt." and "Another written."; the king who "would not heare" burns the roll; the roll is rewritten "and there were added besides vnto them, many like words"). The Septuagint, Ps. 81 in its numbering, multiplies the gods: "Ο θεὸς ἔστη ἐν συναγωγῇ θεῶν, ἐν μέσῳ δὲ θεοῦ διακρίνει." God stood in an assembly of gods and in the midst judges gods, where the 1611 has "the Congregation of the mightie," the reading of the Hebraist Latin, Tremellius and Junius "Deus astat in coetu Dei fortis, inter magistratus iudicat" (*Testamenti Veteris Biblia Sacra* (Geneva 1617), at 141) and Pagnini's interlinear "Deus stans in coetu fortis: in interiori diuorum iudicauit" (Arias Montanus ed., Geneva [1618], at 31); v. 2 "πρόσωπα ἁμαρτωλῶν λαμβάνετε"; v. 3 "κρίνατε ὀρφανὸν καὶ πτωχόν" (the 1611 "Defend," margin "Heb. iudge"); v. 6 "ἐγὼ εἶπα Θεοὶ ἐστε," the words John 10:34 quotes and the Vulgate's "Dii estis" (in Codex Vaticanus, Vat. gr. 1209, p. 1366, col. 1, ll. 27–29, the Gospel's citation reads "ΟΤΙ ΕΓΩ ΕΙΠΑ ΘΕΟΙ ΕΣΤΕ," and the scribe, who contracts and overlines ΘΝ, ΙΣ and ΘΥ in the surrounding lines, writes ΘΕΟΙ at v. 34 and ΘΕΟΥΣ at v. 35 in full and unbarred; Vercellone and Cozza, *Bibliorum Sacrorum Graecus Codex Vaticanus*, Novum Testamentum (Rome 1868), at 132; the printed Greek of Erasmus (Basel 1535), at 157, Stephanus (1551), fol. 320r, and Beza (1598), at 406, reads "Εγὼ εἶπα, θεοὶ ἐστε" without the codex's ὅτι, and Beza's type keeps the codex's distinction, "θεοὶ" and "θεοῦς" in lower case against "Θεοῦ"; v. 7 "ὁμεις δὲ διὴ ὡς ἄνθρωποι ἀποθνήσκετε, καὶ ὡς εἷς τῶν ἀρχόντων πίπτετε." Swete, *The Old Testament in Greek* II, at 323 (3d ed., Cambridge 1907). The judges' reading of the psalm stood in print beside the Hebrew in 1599: Vatablus's note at Ps. 82:1 in the Commelin polyglot glosses the assembly as "in magnifica & frequenti congregatione iudicum. vel, in congregatione potentiae. i. potentium, hoc est, in senatu, qui solet valere autoritate. Deos vocat iudices, vt ipse Christus exponit Iohan. 10.35," the columns above it reading, in Pagnini's version, "in medio Deorum iudicat" and, in the Vulgate's, "in medio autem deos diiudicat" (at 156). Erasmus's own annotation on the Gospel's citation of the verse, *In Ioannem cap. X*, in the Basel edition of 1535, at 251, treats the sentence as a question of word order, the margin reading "Ordo perturbatur," and follows Hilary in taking the gods for "sanctis hominibus," the men to whom the word of God came; the judges are not named there.

xxxiii Exod. 22:28 (1611) ("Thou shalt not reuile the || Gods, nor curse the ruler of thy people," margin "|| Or, Iudges." and "\* Acts 23. 5."); Exod. 23:1–2, 7–8 on the same leaf. In the Geneva text of 1560 the word is in the text: "Thou shalt not raile vpō the Iudges, nether speake euil of the ruler of thy people." The margin is inherited. The Bishops' folio of 1602, the translators' base text, prints at 22:27 "Thou shalt not raile vpon the || gods, neither blaspheme the ruler of thy people," with the margin "|| Or, iudges." and no lettered note; in the copy the translators annotated, Bodleian Arch. A b.18, fol. E4v, the hand strikes "raile vpon" for "reuile" and "neither blaspheme" for "nor curse" and leaves the margin standing. At 23:8 the same folio prints "for gifts blinde the ‡ seeing, and peruert the words of the righteous," margin "‡ Wise.", with the note "d Against bribes."; the hand strikes "seeing," and the 1611 prints "the wise" with "the seeing" in the margin. At 23:3 the 1602 note reads "Trueth of the matter, & not respect of any person, is to be esteemed in iudgement." The two folio Bishops' Bibles before it gloss the verse itself: the 1568 (fol. xlvi v, n. o, read in a copy with its margins uncut) and the 1572 (fol. xlii, n. o) print at "Thou shalt not (o) rayle vpon the || gods" the note "A priuate man may reprehende the magistrate, so it be done with modestie: but without rebukes, railing, and euyl speakyng, both for auoydyng disorder, and considering whose person he representeth" (the 1572's spelling; the 1568 reads "euil speakyng" and "consideryng"), with "|| Or, iudges." above it; the quarto of 1569 already prints the margin without the note and reads "thy people," as the 1602 and the 1611 do after it. The Commelin polyglot of 1599 prints the two words the other way about at the verse: Pagnini's column "Iudicibus non maledices," lettered to the margin "H. Diis," beside the Vulgate's "Diis non detrahes" and the Greek "Θεοὺς οὐ κακολογήσεις" (at 170).

xxxiv Acts 25:16 (1611); *id.* 25:18, 26–27, 26:1, 26:32 (the accusers "brought none accusation of such things as I supposed"; "after examination had, I might haue somewhat to write"; "Thou art permitted to speake for thy selfe"; "This man might haue bene set at libertie, if he had not appealed vnto Cesar"). The Great Bible of 1540 reads the

answer "It is not the maner of the Romaynes, for fauoure to delyuer any man, that he shulde peryshe, before that he which is accused, haue the accusars before hym, and haue lycence to answere for hym selfe"; Coverdale's of 1535 has no favour word and cites Deut. 17 in the margin at the verse. The Bishops' folio of 1568 keeps "for fauour" and "haue the accusers before hym," and reads v. 10 "to the Iewes haue I no harme done"; the Bishops' New Testament of 1575 has "haue the accusers face to face" and "haue I done no wrong" while still reading "for fauour," so the 1611's words at both verses are the Bishops' revision's, and its own changes are to drop the favour clause and to read "to die" where the 1568 has "that he shoulde perishe" and the 1575 "that hee should perish." Both render the printed Greek's "εἰς ἀπόλειαν," which stands in Stephanus's of 1551, fol. 450v, in Beza's of 1598, at 564, and in Erasmus's *Annotaciones* (Basel 1535), at 328 (his text of the same year, at 229, prints the itacistic "εἰς ἀπόλειαν"), and for which the Vulgate has no word: Erasmus's Latin gives "ut pereat," Beza's "quempiam perdendum concedere," and Beza's note 16 glosses the Roman rule as "in gratiam alicuius ad mortem damnare, indicta videlicet causa"; Beza's Latin as reprinted at Geneva in 1617, at 246, reads "quempiam ad exitium concedere," and Tremellius's Latin from the Syriac beside it "vt dent filium hominis donum ad necem priusquam venerit litigator eius, & arguat eum in facie eius." Erasmus's own annotations on the chapter, *In Acta Apost. cap. XXV*, in the same Basel edition of 1535, at 327–28, gloss the favour the priests ask of Festus as "fauorem iudicis," render δίκην at v. 15 as *sententiam* because "Quis enim postulat damnationem à iudice indicta causa? Sed postulabant, ut ficta specie cognitionis Paulus uideretur iure damnatus," and read the Greek of v. 16 as "donare in perniciem siue in interitum. Est autem χαρίζεσθαι, in gratiam alicuius donare," noting copies that had written "Damnare, pro Donare," the reading the Vulgates of 1592 and 1881 print at the verse (the note at chapter 1.4 § B on the Vulgate loci) where Erasmus's own lemma reads *donare*. The Rheims New Testament of 1582, the English rendering of the Vulgate, reads at the verse "it is not the Romans' custom to yield up any man before that he which is accused have his accusers present, and take place to make his answer for to clear himself of the crimes," at John 7:51 "Doth our law judge a man, unless it first hear him, and know what he doeth?" and at Luke 18:6 "Hear what the judge of iniquity sayeth": *The Vulgate New Testament with the Douay Version of 1582 in Parallel Columns*, at 199, 135, 108 (Samuel Bagster and Sons, London 1872) (the 1582 text in that print's modernised spelling). For the canon drawn from the verse, the canon-law paragraph of this Section.

xxxv *The Bible and Holy Scriptures Conteyned in the Olde and Newe Testament* (Geneva: Rouland Hall, 1560): Deut. 17:12, fol. 88v, n. h ("So long as he is the true minister of God, and pronou̇ceth according to his worde"); Deut. 1:17, n. m ("And you are his lieutenants"); Deut. 16:20, n. k ("The magistrat must constātly follow the tenor of the Lawe"); Ps. 82:7, fol. 253, n. e ("No tittle of honour shal excuse you, but you shalbe subiect to Gods iudgement, and rēder a compt as wel as other men"); Ecclus. 11:8, fol. 428v ("Giue no sentence, before thou hast heard the cause"); Acts 25:10, nn. d–e ("Seing him self betrayed by the ambition of the iudge"; "It is lawful to require the defense of the Magistrate to mainteine our right"). *The holie Bible conteynyng the olde Testament and the newe* (London: Richard Juge, 1568): Deut. 17:12, fol. cxviiij r, n. i ("As long as he is the true minister of god and pronounceth agreeable to his worde"); Deut. 1:17, n. g ("And man is but Gods minister"); Ps. 82, argument ("they must dye and make accompt of their doynge aswell as other, howe great in authoritie soeuer they be"); Ecclus. 11:7 ("Condemne no man before thou haue tryed out the matter"); Acts 25:11, n. b (the appeal "the vttermost remedie for such as by wrong iudgement are oppressed"). The 1611 leaves at every one of these places carry no interpretive note. The reading is a classification of the printed texts; what it does not measure is which Bible the 1607 court read.

xxxvi For the 1560 and 1568 notes, the note at chapter 1.4 § B on the Geneva and Bishops' glosses. *Biblia, the Bible, that is, the holy Scripture of the Olde and New Testament* (Myles Coverdale, 1535), Deut. i ("for the iudgment is Gods") and Deut. xvij, fo. lxxxij ("the same shal dye"), the margins carrying cross-references only; *The Byble in Englyshe* (Great Bible, Cranmer ed., 1540), Deut. i ("for the iudgement is Gods") and Deut. xvij, fo. lxxvj v ("that man shall dye"), text only, the pointing hands at the verses marking places where no note was printed. The translators' own base text, the Bishops' folio of 1602 (Bodleian Arch. A b.18), stands between: at Deut. 1:17 it prints no lettered note, only the cross-references "Leui. 19.15 / pro. 24.23," so the 1568's "And man is but Gods minister" had already left the text the translators worked from; at 17:12 it still prints note i, "As long as he is the true minister of God, and pronounceth agreeably to his word," and at 17:9 note g, "Who shall pronounce sentence according as the Priest shall instruct him, agreeably to Gods word," and the hand that made the 1611 strikes and rewrites vv. 9–12 around them ("aske" to "enquire," "to minister" struck, "euen that man," "Or, iudgment") and leaves note i standing on the leaf; Deut. 1:16–17 at fol. L4v, Deut. 17:8–13 at fols. M5r–M5v. At Deut. 19:17, fol. M6r, the 1602 likewise keeps the 1568's note l, "God is present, where his true ministers are," on the leaf where the hand rewrites vv. 15–20

into the 1611's words and leaves the note untouched; the 1611 prints no note at the verse. At 16:18–20 neither the 1568 nor the 1602 prints a note. The Bishops' folio of 1572 still prints all three glosses: at Deut. 1:17, fol. xciii, n. g ("And man is but gods minister"); at 17:12, fol. Cii v, n. i ("As long as he is the true minister of God and pronounceth agreeably to his worde"); at 19:17, fol. Ciii v, n. l ("God is present, where his true ministers are"); so the first of them left the Bishops' text between 1572 and 1602; the folios of 1584 (Deut. 1:17 at fol. 72 r and, in a second setting, fol. 76 r) and 1595 (fol. 74 r) print the verse without it, as do the quartos of 1569 (fol. 87 v) and 1576 (fol. 78 v) and the printing of 1577 (fol. 86 v), while the printings of 1574 (fol. 85 r), 1575 (fol. 84 v) and 1578 (fol. 85 r) still carry it; the gloss is printed in the folios of 1568, 1572, 1574, 1575 and 1578 and in no other Bishops' printing read, being absent from every printing with chapter-and-verse marginal references (1576, 1577, 1584, 1585, 1588, 1591, 1595, 1602) and from the quarto of 1569 with its reduced notes, the 1578 being the last printing read that has it, while the notes at 17:12 and 19:17 stand in every one of the fifteen Bishops' printings read, folio and quarto, from 1568 to 1602.

xxxvii Samuel Rutherford, *Lex, Rex: The Law and the Prince* (London 1644), Questions XIX–XX, in the Edinburgh edition of 1843, at 87–90 (the first two passages quoted here close Question XIX, at 87, answering the Prelate's "Kings are *Dii Elohim*"; Question XX, "Whether or no inferior judges be univocally and essentially judges, and the immediate vicars of God, no less than the king, or if they be only the deputies and vicars of the king," begins at 88) ("Not only kings but all inferior judges are gods. Psal. lxxxii., God standeth in the congregation of the gods, that is not a congregation of kings. So (Exod. xxii. 8,) the master of the house shall be brought ... to the gods, or to the judges"; "The judge is but God by office, and representation, and conservation of the people"; on 2 Chron. xix. 6–7, "if the inferior judges, in the act of judging, were the vicars and deputies of king Jehoshaphat, he would have said, judge righteous judgment. Why? For the judgment is mine ... But the king saith, They judge not for man, but the Lord"; "the king cannot limit the conscience of the inferior judge, because the judgment is not the king's, but the Lord's"; on Deut. i. 17, "Moses appointed judges, but not as his deputies to judge and give sentence, as subordinate to him; for the judgment (saith he) is the Lord's, not mine"; "then could neither inferior judges be admonished nor condemned in God's word for unjust judgment," with Deut. xvii. 11, i. 17 and Exod. xxiii. 2 among the texts cited; "I judge it blasphemy to say, that a sentence of an inferior judge must be no sentence, though never so legal nor just, if it be contrary to the king's will, as Grotius saith"). The royalist answered is Maxwell's *Sacro-sancta Regum Majestas* (1644), Rutherford's "Prelate."

xxxviii *Decretum Gratiani* C. 3 q. 9 cc. 1–6, in Emil Friedberg (ed.), *Corpus Iuris Canonici* I, cols. 529–30 (Leipzig 1879) (Gratian: "De accusatoribus uero uel testibus, quod in absentem uocem accusationis uel testificationis exhibere non ualeant, multorum auctoritatibus liquet."; c. 1 (Telesphorus), "Accusatori omnino non credi decernimus, qui absente aduersario causam suggerit, ante utriusque partis iustam discussionem."; c. 2 (Eleutherius), "Caueant iudices ecclesiae, ne absente eo, cuius causa uentilatur, sententiam proferant, quia irrita erit ... Proditoris uero nec calumpnia, nec uox audiat."; c. 3 (Calixtus), "quia per scripturam nullus accusari potest, sed propria uoce, et presente eo, quem accusare uoluerit, suam quisque agat accusationem."; c. 4 (Cornelius), "Omnia, que aduersus absentes in omni negotio aut loco aguntur aut iudicantur, omnino uacuentur, quoniam absentem nullus addicit nec ulla lex dampnat."; c. 5 (Marcellus), as quoted in text; c. 6 (Damasus), "non fore canonicum quemquam sacerdotum iudicare uel dampnare ante, quam accusatores canonicè examinatos presentes habeat locumque defendendi accipiat"). Friedberg's notes attribute cc. 1–6 to Pseudo-Isidore and give the sources: c. 1 from the *interpretatio* to CTh 11.39.9; c. 3 from the *interpretatio* to CTh 9.1.15 and the *Statuta ecclesiae antiqua*; c. 4 from Chalcedon, act. 10; c. 5 "petitum ex Act. ap. c. 25. v. 16."

xxxix 2 Par. 19:6–7, *Biblia Sacra Vulgatae Editionis* (Rome: Typographia Apostolica Vaticana, 1592), at 380 ("præcipiens iudicibus, Videte, ait, quid faciatis: non enim hominis exercetis iudicium, sed Domini: & quodcumque iudicaueritis, in vos redundabit. Sit timor Domini vobiscum, & cum diligentia cuncta facite: non est enim apud Dominum Deum nostrum iniquitas, nec personarum acceptio, nec cupido munerum"); the same text in *Biblia Sacra Vulgatae Editionis Sixti V et Clementis VIII auctoritate edita* (Tournai 1881), at 296–97. 2 Chron. 19:6–7 (1611) ("Take heed what ye doe: for yee iudge not for man, but for the LORD, who is with you † in the iudgement. Wherefore now, let the feare of the LORD be vpon you, take heed and doe it: for there is no *iniquitie with the LORD our God, nor respect of persons, nor taking of gifts*"; margins "† Hebr. in the matter of iudgement." and "Deut. 10. 17. iob 34. 19. act. 10. 34. rom. 2. 11. Col. 3. 6. 1. pet. 1. 17."). The Hebrew clause has no verb; the Septuagint keeps it so, "καὶ μεθ' ὑμῶν λόγοι τῆς κρίσεως," with you are the matters of judgment, supplying neither the Vulgate's redounding nor the 1611's divine presence, and at v. 7 reads "οὐδὲ θαυμάσαι πρόσωπον οὐδὲ λαβεῖν

δῶπα": H. B. Swete (ed.), *The Old Testament in Greek according to the Septuagint* II, at 90 (3d ed., Cambridge 1907) (the text of Vaticanus; no variant in Alexandrinus at the clause). The 1611's supplied verb stands in the Hebraist Latin of Tremellius and Junius, "non enim pro homine iudicaturi estis, sed pro Iehoua: qui vobiscum *futurus est* in rebus iudiciariis," the supplied words set in italic, *Testamenti Veteris Biblia Sacra sive Libri Canonici* (Geneva 1617), at 85; Pagnini's interlinear keeps the Hebrew's verbless clause, "& vobiscum in verbo iudicij," *Biblia Hebraica, eorundem Latina interpretatio Xantis Pagnini* (B. Arias Montanus ed., Geneva [1618]), at 211.

xI *Biblia Sacra Vulgatae Editionis* (Tournai 1881): Exod. 22:28, at 52 ("Diis non detrahes, et principi populi tui non maledices"); Exod. 23:8, at 52 ("Nec accipies munera, quæ etiam excæcant prudentes, et subvertunt verba justorum"); Deut. 1:17, at 115 ("nec accipietis cuiusquam personam, quia Dei iudicium est"); Deut. 16:19, at 126 ("Non accipies personam, nec munera: quia munera excæcant oculos sapientum"); Deut. 17:11–12, at 127 ("sequerisque sententiam eorum ... nolens obedire sacerdotis imperio ... et decreto iudicis, morietur homo ille"); Ps. 81:1, 6, at 401 ("Deus stetit in synagoga deorum: in medio autem deos dijudicat ... Ego dixi: Dii estis"); Ecclus. 11:8, at 466 ("Priusquam audias, ne respondeas verbum"); Dan. 13:48, at 624 ("non iudicantes, neque quod verum est cognoscentes"); Luke 18:6, N.T. at 58 ("Audite quid iudex iniquitatis dicit") (Beza's Latin, printed beside Tremellius's Latin from the Syriac in the Geneva volume of 1617, at 134, reads "iudex ille iniustus," Tremellius "iudex iniquitatis" with the note "vel iniquus"; Beza's margin at John 7:24, at 166, refers the verse to Deut. 1:17); John 7:51, N.T. at 73 ("Numquid lex nostra iudicat hominem, nisi prius audierit ab ipso," margin "Deut. 17, 8 et 19, 15"); Acts 25:16, N.T. at 106 ("non est Romanis consuetudo damnare aliquem hominem prius quam is, qui accusatur, præsentibus habeat accusatores, locumque defendendi accipiat ad abluenda crimina"). The 1611 readings are those quoted in this Section and its notes. The Latin of the 1592 editio princeps was found identical wherever both were read (2 Par. 19:6–7, the note at chapter 1.4 § B on 2 Par. 19:6–7).

xli C. 3 q. 7 c. 4 (Ambrose, on Ps. 118 *Beati immaculati*), Friedberg I, col. 527 (rubric "Ille de uita alterius iudicet, qui non habet in se ipso quod puniat."; "Iudicet ille, qui ad pronuntiandum nullo odio, nulla offensione, nulla leuitate ducatur. ... § 1. Bonus iudex nichil ex arbitrio suo facit et domesticæ proposito uoluntatis, sed iuxta leges et iura pronuntiat, scitis iuris obtemperat, non indulget propriæ uoluntati, nichil paratum et meditatum de domo defert, sed sicut audit, ita iudicat, et sicut se habet natura, decernit; obsequitur legibus, non aduersatur, examinat causæ merita, non mutat. Discite iudices seculi, quem in iudicando tenere debeatis affectum, quam sobrietatem, quam sinceritatem. ... § 3. In iudicando cordi magis est custodia ueritatis, quam obedientia uoluntatis.").

xlii C. 3 q. 8 c. 1 (Zephyrinus, *ad Episcopos Siciliæ*), Friedberg I, col. 529 (rubric "Episcopus non nisi a pluribus audiatur et iudicetur."; "§ 1. Nullum namque eorum sententia a suo iudice non dicta constringat, quia et leges seculi idipsum fieri precipiunt. ... § 4. Absens uero nemo iudicetur, 'quia et diuinæ et humanæ leges hoc prohibent.'"); Friedberg's note: "Caput Pseudoisid." The Roman Correctors' gloss on "leges seculi," printed by Friedberg from the Editio Romana, refers it to the Code, "libro septimo, titulo de sententiis et interlocutionibus omnium iudicum, lege penultima," and quotes "Cuius in agendo quis observat arbitrium, eum habere etiam contra se iudicem in eodem negotio non dedignetur": that is C. 7.45.14 (Justinian, a.d. 529), Krueger (ed.), *Codex Iustinianus* 684, the title having sixteen laws of which the fifteenth is Greek, so that the vulgate's "penultimate" is Krueger's fourteenth. The Correctors add that the words carrying the Code reference "non sunt in epistola Zephyrini, neque in vetustis Gratiani codicibus"; Friedberg prints the canon without them. The Code's own rule that "ne quemquam litigatorum sententia non a suo iudice dicta constringat" is C. 7.48.4, Krueger at 686.

xliii C. 2 q. 3, Friedberg I, cols. 451–54 (Gratian: "Qua autem pena feriendi sint qui in accusatione deficiunt, canonum censura diffinit. Penam enim illati criminis cum dispendio existimationis excipient."; c. 1 (Gaius), "Si quis circa huiusmodi personas non probanda detulerit, auctoritate huius sanctionis intelligat se iacturam infamiae sustinere"; c. 2 (Damasus), "Calumpniator, si in accusatione defecerit, talionem recipiat."; c. 3 (Hadrian), "Qui non probauerit quod obiecerit, penam, quam ipse intulerit, patiatur."; Gratian, "Aliud est accusationem non implere, et aliud conuicium non probare. Illud enim nulli sine abolitione, hoc omnibus licet."; c. 5 (Fabian), rubric "Conuicium non est pro accusatione habendum.", "Si quis iratus crimen cuilibet temere obiecerit conuicium non est pro accusatione habendum, sed permissio tractandi spatio id, quod iratus dixit, per scripturam se probaturum esse fateatur, ut, si forte resipiscens que per iracundiam dixit iterare aut scribere noluerit, non ut reus criminis teneatur.", Friedberg's n. 28: "Cap. Pseudoisid., desumptum ex Leg. Rom. Wisigoth. IX, 1, 3. interpret."; c. 8, from the *Liber Capitulorum*, rubric "De eo, quem penitet criminaliter accusasse."; then Gratian, "Notandum quoque est, quod, sicut in Digest. l. XLVIII. legitur, tit. de abolit. criminum," quoting D. 48.16.1 pr.–1 ("Accusatorum temeritas tribus modis detegitur ... Nam si quidem ita pronunciauerit: 'Non probasti,' pepercit ei: sin autem pronunciauerit:



'Calumpniatus es,' condempnauit eum ... Nam facti quidem questio in arbitrio est iudicantis: penae uero persecutio non eius uoluntati mandatur, sed legis auctoritati reseruatur.", § 3 as his own sentence ("Temeritas enim facilitatis ueniam continet, et inconsultus calor calumpniae uicio caret, et ob hoc nullam penam huic irrogari oportet."), and the Code on pardon: "Abolicio autem penam remittit, infamiam non tollit. Unde Inppp. Valens, Valentinianus, et Gracianus IX. lib. C. eod. titulo de generali abolicione dixisse leguntur: 'Indulgentia, patres conscripti, quos liberat notat, nec infamiam criminis tollit, sed penae gratiam facit.'"). The Code passage (C. 9.43) is read here as Gratian quotes it. The Star Chamber applied the talion by name two days before the Throckmorton hearing: on 5 May 1602 Coke, as Attorney, informed against Robert Pie, a barrister of the Inner Temple who had procured a fellow barrister's indictment for highway robbery on his own evidence; Pie's pleas of 25 Edw. III c. 4, "that he should not be condemned before bill and answer," and of 20 Edw. I were "held ... frivolous," and the whole court condemned the offence "By the law of God and the Civil Law, oculus pro oculo, dens pro dente, manus pro manu, etc., and also per legem talionis ... he has made Justice a murderer and robber," sentencing him to 1000 marks, the pillory, the loss of both ears and perpetual imprisonment: Hawarde, *Les Reportes del Cases in Camera Stellata*, at 129–33 (Baildon's note citing State Papers, Dom., Eliz., 284, no. 14). Hudson's treatise lists the case among solitary practices proceeded against "as in conspiracy," "so was Pye for malicious seeking to indict Mr Meyrick of the Temple for felony"; no bill survives, the interrogatories and depositions being TNA, STAC 5/A48/31, STAC 5/A24/17 and STAC 5/A25/31, *Attorney General v. Robert Pye*: Kesselring, 43 Law & Hist. Rev. at 710 n. 59 (quoting Hudson, "Star Chamber," 106).

xliv Fourth Lateran Council (1215), c. 38 = X 2.19.11, Friedberg II, cols. 313–14 (rubric "Iudex debet habere notarium vel duos viros idoneos, qui scribant acta iudicii"; "Quoniam contra falsam assertionem iniqui iudicis innocens litigator quandoque non potest veram negationem probare, quum negantis factum per rerum naturam nulla sit directa probatio, ne falsitas veritati praeiudicet, aut iniquitas praeualeat aequitati, statuimus, ut tam in ordinario iudicio quam extraordinario iudex semper adhibeat aut publicam, si potest habere, personam, aut duos viros idoneos, qui fideliter universa iudicii acta conscribant ... Et omnia sic conscripta partibus tribuantur ita, quod originalia penes scriptores remaneant, ut, si super processu iudicis fuerit suborta contentio, per hoc possit veritas declarari, quatenus hoc adhibito moderamine sic honestis et discretis deferatur iudicibus, quod per improvidos et iniquos innocentium iustitia non laedatur."); the same canon in J. D. Mansi, *Sacrorum Conciliorum Nova et Amplissima Collectio* XXII, cols. 1023–26 (Venice 1778), Latin and Greek, headed "De scribendis actis ut probari possint." In England the legatine constitution of Otho (1237), *De Sigillis Authenticis*, opens from the absence of the officer the canon presupposes, "Quoniam Tabellionum usus in Regno Angliæ non habetur," and puts the authentic seal in his place (*Constitutiones Legatinae*, in Lyndwood, *Provinciale* (Oxford 1679), at 67, with John of Athon's gloss; Lyndwood's own gloss at 76 refers to it). Lyndwood at 277–78, on Archbishop Edmund's constitution requiring two or three men in every deanery to denounce the public excesses of prelates and clerks, counts among the denunciations the ecclesiastical forum will hear one "de Iudice faciente oppressionem," and holds that the denouncer, unlike the accuser, need not subscribe ("Sed nunquid talis Denunciator debet se subscribere, sicut ille qui accusat? Dic quod non"); at 312 Stephen Langton's constitution forbids archdeacons and their officials to compel purgation on their apparitors' suggestion or to be "Judices & Actores" in their own cause, the gloss adding "Regulare enim est, quod in causa sua propria nemo potest esse Iudex." Lateran IV c. 8 = X 5.1.24 (*Qualiter et quando*), Friedberg II, cols. 745–46, the prelate as a target set up for the arrow, "qui quasi signum sunt positi ad sagittam," with an inquiry ex officio in which the superior acts "non tanquam idem sit accusator et iudex," the accused present ("Debet igitur esse praesens is, contra quem facienda est inquisitio"), the articles exposed to him, and the witnesses' very names published ("non solum dicta, sed etiam nomina ipsa testium sunt ei ... publicanda"), is the canon law's own statement of the premise the *Floyd* leaf shares and of the remedy it refused.

xlv *The Book of the Popes (Liber Pontificalis)* I, 116–19 (Louise Ropes Loomis trans., Records of Civilization, New York 1916) (the life of Symmachus: the double election of 498 and Theodoric's "righteous judgment"; "some of the clergy and some of the senate, in particular Festus and Probinus, full of zeal and craft, brought charges against Symmachus and suborned false witnesses whom they sent to King Theodoric, the heretic, at Ravenna to accuse the blessed Symmachus"; the king's "visitor" Peter of Altinum, "although the canons forbade it"; "Then the blessed Symmachus assembled 115 bishops and in the synod was acquitted of the false accusation and Peter of Altinum, the intruder upon the apostolic see, and Laurentius of Nuceria were condemned"; Loomis's note on the synod of 501: "At this session Symmachus agreed to appear, waiving the claim of his see not to be judged by inferiors ... Nevertheless in October the assembled bishops declared that they could find no reason why he should not continue in full enjoyment of his office and left the accusations against him to the judgment of God"). The maxim itself,

*prima sedes a nemine iudicatur*, is not printed in the *Liber Pontificalis* at these pages. Its canonical place is C. 9 q. 3 c. 13, Friedberg I, col. 610 (rubric "Prima sedes nullius iudicio subiaceat"; "Nemo iudicabit primam sedem, iustitiam temperare desiderantem. Neque enim ab augusto, neque ab omni clero, neque a regibus, neque a populo iudex iudicabitur"), with Gratian's dictum after c. 9 ("Sola enim Romana ecclesia sua auctoritate ualet de omnibus iudicare; de ea uero nulli iudicare permittitur"), c. 10 (rubric "Apostolicae sedis iudicium a nemine est retractandum") and c. 14, Symmachus's own synod ("sedis istius presulem suo sine questione reseruauit arbitrio"). On the same leaf the Roman Correctors of 1582 give the source: on c. 13, "In omnibus vetustis Gratiani exemplaribus citatur ex Innocentio. Sed fere eadem habentur in concilio Romano sub Silvestro c. 20"; on c. 10, "neque in Bonifacii, neque in Innocentii epistolis inventum est quod hic affertur"; and Friedberg's note refers c. 13 to "c. 20. apocryphi constituti Sylvestri ap. Mansi II, 631." The rule's one exception is stated at D. 40 c. 6, col. 146, the pope "a nemine est iudicandus, nisi deprehendatur a fide deuius." The same Silvester texts supply the clerical forum at C. 11 q. 1 c. 9, col. 628 ("Testimonium clerici aduersus laicum nemo recipiat, nemo clericum quemlibet in publico examinare presumat nisi in ecclesia"), beside the imperial law at c. 5 ("Habent illi suos iudices, nec quicquam his publicis est commune cum legibus"): a rule of forum for clerics, not an exemption of any judge from judgment. All from the 1879 edition.

xlvi *A Dialogue between a Philosopher and a Student of the Common Laws of England*, in *The Moral and Political Works of Thomas Hobbes of Malmesbury* 598, 606–07 (London 1750) (first published 1681) (the Philosopher: "It were so indeed, if Judges could not err; but since they may err, and that the King is not bound to any other Law but that of Equity, it belongs to him alone to give Remedy to them, that by the Ignorance or Corruption of a Judge shall suffer Damage"; the Lawyer's 4 Hen. IV c. 23, "after Judgment given in the Court of our Lord the King, the Parties, and their Heirs, shall be there in Peace, until the Judgment be undone by Attaint or by Error"; the Philosopher: "This Statute is so far from being repugnant to that I say, as it seemeth to me to have been made expresly to confirm the same: For the Substance of the Statute is, that there shall be no Suit made by either of the Parties for any thing adjudged ... before the Judgment be undone by Error, or Corruption proved"). The same page asks, of Coke's translation from one chief-justiceship to the other, whether he "would therefore have reversed" his own erroneous judgment: "It is possible he might, but not very likely." At 606–07 the Philosopher supplies the receiver the statute presupposes: "I do believe there is some other Power, by the King constituted, to reverse erroneous Judgments, both in the King's Bench, and in the Court of Common Pleas"; the statute's "before the King himself" is "the King in Person," since "in those Days the King did usually sit in Court with his Council, to hear Causes, as sometimes King James"; and the reason a further court must have existed is stated as a rule: "no Court can be esteemed in Law, or Reason, a competent Judge of its own Errors," so that the court of error "could not be either the Parliament or the Privy Council, or the Court wherein the erroneous Judgment was given."

xlvii Adams's own copy of Hobbes (*The Moral and Political Works*, London 1750; John Adams Library, Boston Public Library) carries three manuscript cross-references in one hand, to Harrington's *Works* and twice to Sidney, at the *Human Nature* title and at *Leviathan* chs. XV and XXI; the hand is not attributed, and the copy is unmarked at chs. XXIII, XXVI and XXVIII.

xlvi A *Collection of the Proceedings in the House of Commons against the Lord Verulam, Viscount St. Albans, Lord High Chancellor of England, for Corruption and Bribery* 23–27 (2d ed., London 1721) (the Commons' particulars, including "In most Causes my Lord's Servants have undertaken one Side or another, insomuch as it was usual for Counsel, when their Clients came unto them, to ask what Friend they had at York-House"; the Lords' judgment of 3 May 1621, delivered by the Lord Chief Justice as Speaker, "guilty, as well by Oath of Witnesses, as by his own Confession, of those and many other Corruptions ... That he be fined 40000 l. to be imprisoned in the Tower during the King's Pleasure, made incapable to bear Office in the Common-Wealth, never to sit in Parliament, nor to come within the Verge"; Bacon's submission, "The first is, That hereafter the Greatness of a Judge or Magistrate shall be no Sanctuary or Protection to him against Guiltiness, which is the Beginning of a golden Work" (the 1721 print's reading; the Lords Journal text as printed in 7 James Spedding, *The Letters and the Life of Francis Bacon* 242 (London 1874), from L.J. iii. 84, reads "no sanctuary or protection of guiltiness; which, in few words, is the beginning of a golden world"). "The next, That after this Example, it is like that Judges will fly from any Thing in the Likeness of Corruption (though it were at a great Distance) as from a Serpent; which tends to the purging of the Courts of Justice").

### 1.5 Blackstone's Two Chapters, 1765–69: One Premise, Two Rules

Begin with the book through which the rule reached the generation that would receive it. Blackstone's third book opens with a taxonomy that is analytically neutral and that nothing in the founding disturbs: wrongs are either private — "an infringement . . . of the . . . rights belonging to individuals, considered as individuals" — or public, "a breach and violation of public rights and duties, which affect the whole community, considered as a community."<sup>140</sup> The categories are sound; American law uses them everywhere. The prerogative lies not in the taxonomy but in two rules of *assignment* that Blackstone states in companion chapters of the same book, on a single premise.

The first is the entry rule. "[N]o person, natural or corporate, can have an action for a public nuisance, or punish it; but only the king in his public capacity of supreme governor, and *pater-familias* of the kingdom" — the common injury being his, "no one can assign his particular proportion of it"; the subject may sue only where he "suffers some extraordinary damage, beyond the rest of the king's subjects."<sup>141</sup> The second is the exit rule. "That the king can do no wrong, is a necessary and fundamental principle of the English constitution"; no action lies against the sovereign, "for who shall command the king?"; the law cannot furnish a remedy "without . . . setting up some superior power with authority to call him to account."<sup>142</sup> These two rules rest on one premise: the King is the principal. He owns the community's injuries because the community's order is his household — he is its *pater-familias* — and he is unanswerable because no superior exists to call him to account. Blackstone's own syntax welds the halves: the courts redress wrongs "between subject and subject," he writes, "reserving such injuries or

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<sup>140</sup> 3 William Blackstone, *Commentaries* \*2.

<sup>141</sup> *Id.* \*219–\*220.

<sup>142</sup> *Id.* \*254–\*255.

encroachments as may occur between the crown and the subject, to be distinctly considered hereafter."<sup>143</sup> The sealed structure — the citizen barred from suing for the public wrong, the sovereign and his officers shielded from suit — is not a twentieth-century construction. It is chapters 13 and 17 of one book, and both stand on the King-as-principal.

Blackstone's chapters state the rules at their strictest, and the temptation — indulged by the modern doctrines that claim this pedigree — is to read the statement as the practice. It was not. On the entry side, England's own courts operated a floor far more porous than chapter 13's rule: the informer actions, the *qui tam* statutes, and relator practice let strangers with no injury of their own put the sovereign's law in motion and take a share of the penalty — a practice so established that the First Congress of the United States, legislating within living memory of it, enacted *qui tam* statutes of its own, a history the Supreme Court would later pronounce "well nigh conclusive" that such informer suits were "Cases" and "Controversies" of the sort traditionally resolved by the judicial process.<sup>144</sup> The strictness, where it operated, was managerial: the courts' recorded hostility to the informer trade — Coke's own "viperous vermin" — and the strict construction of the penal statutes sound in multiplicity and vexation, the ordinary registers of judicial administration, not in any proprietary premise about who owns the public's wrongs.<sup>145</sup>

The two chapters, then, supply the premise and not the practice: a single principal who owns the community's injuries and answers to no superior, stated as the reason of both rules —

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143 *Id.* \*115–\*116 ("between subject and subject . . . reserving such injuries or encroachments as may occur between the crown and the subject").

144 *Vermont Agency of Nat. Res. v. United States ex rel. Stevens*, 529 U.S. 765, 777 & nn.6–7 (2000) (the First Congress catalogue and the "well nigh conclusive" pronouncement).

145 Ann Woolhandler & Caleb Nelson, *Does History Defeat Standing Doctrine?*, 102 Mich. L. Rev. 689, 731–32 (2004) (the informer-hostility and strict-construction material, "viperous vermin" at 731, quoting Coke; their affirmative defense of the tradition is functional — public rights kept in "the hands of politically accountable officers" — not textual or proprietary). Short quotation only; the work is in copyright.

and a legal order that in daily operation let the subject through the entry door the premise nominally closed. That gap matters to what follows, because the premise is what the next two Parts watch England repudiate, and the practice is what crossed the Atlantic with the colonists. What Part 2 makes of the gap on the American side — a reception that constitutionalized the strict statement while disclaiming the porous practice — is its subject, not this book's; the English half of the record is that both existed, and only one of them was law's daily reality.<sup>146</sup>

### 1.6 England Repudiates the Court and Its Premise, 1641–1701

Within a generation of the reports' printing, the court that decided the case no longer lawfully existed: England had abolished it. The Court of Star Chamber was dissolved by statute in 1641, *An Act . . . for taking away the Court commonly called the Star Chamber*, 16 Car. 1, c. 10, its jurisdiction "cleerely and absolutely dissolved taken away and determined" as of 1 August 1641, on the ground — recited from Magna Carta and the medieval due-process statutes — that its "Censures and Decrees . . . have by experience beene found to be an intollerable burthen to the Subjects and the meanes to introduce an Arbitrary Power and Government," its judges having "undertaken to punish where no Law doth warrant."<sup>147</sup> xlix The charter's chapter had been pleaded in the court itself in May 1603, by a recusant prosecuted *ore tenus* who, Hudson records, delivered into court the *nullus liber homo* in his defence; the Lord Keeper answered with the disjunctive, "per legale iudicium parium suorum, which was by indictment, or some writ original, vel per legem terræ," the court's own process being the law of the land, and Hawarde's

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146 The reception-side argument, with the full apparatus, is Part 2, chapters 2.3–2.4.

147 *An Act for the Regulating of the Privy Council and for taking away the Court commonly called the Star Chamber*, 16 Car. 1, c. 10 (royal assent 5 July 1641; the operative dissolution is fixed at "the first day of August . . . one thousand six hundred fourty and one"). Text per *Statutes of the Realm* vol. 5, pp. 110–11; the orthography quoted is the print's. Some scholarship, including Kesselring, styles the Act 17 Car. 1, c. 10 on the alternative regnal-session computation.

note of the sitting has him hold that the court "hathe aunciente warraunte & authoritie bothe by Common & statute lawe to proceede in this kinde."<sup>148</sup> What Parliament recited in 1641 as the ground of abolition, the court had heard from the bar and overruled thirty-eight years before. The tribunal that authored the immunity rule was thus condemned and dissolved by its own Parliament, for want of due process, thirty-four years after *Floyd* and a century and a third before the Declaration of Independence — the same Act sweeping away the very Council in the Marches of Wales that had assembled the case against the executed man.

The same Parliament reached the judges' record itself. On 26 February 1640/1 the Lords ordered the Exchequer record of the judgment in *Hampden's Case*, and "the several Rolls in each several Court of Kings Bench, Common-Pleas, Exchequer, Star-Chamber, and Chancery, wherein the Judges extrajudicial Opinions in the Cases made touching Ship-money be entered," brought into the House, "and that a Vacat shall be made in the Upper House of Parliament of the said several Records."<sup>149</sup> The clerk's memorandum records it done:

*Vacatur istud Recordum & Judicium . . . per considerationem & judicium Dominorum Spiritual. & Temporal. in Curia Parliam. & irrotulamentum ejusdem cancelatur* [This Record and Judgment are vacated . . . by the consideration and judgment of the Lords Spiritual and Temporal in the Court of Parliament, and the enrolment of the same is cancelled] . . . And that all the Rolls be rased cross with a Pen, and subscribed with the Clerk of the Parliaments hand. All which was accordingly done in open Court.<sup>150</sup>

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148 William Hudson, *A Treatise of the Court of Star Chamber*, pt. I, in 2 *Collectanea Juridica* 1, 4–5 (Francis Hargrave ed., London 1792); Hawarde, *Les Reportes del Cases in Camera Stellata*, at 162–64 (18 May 1603). Hawarde's note does not name the Charter but records the plea's substance; Hudson's does not record the sentence. The plea is noticed in K. J. Kesselring & Natalie Mears, Introduction, in *Star Chamber Matters: An Early Modern Court and Its Records* 6 & n. 15 (Univ. of London Press 2021). Long *s* normalised.

149 John Rushworth, *Historical Collections of Private Passages of State* (the volume for 1640–41), Appendix at 217 (the Lords' order of 26 February 1640 [1640/1]); the clerk's memorandum follows in the text, with its note.

150 John Rushworth, *Historical Collections of Private Passages of State* (the volume for 1640–41), Appendix at 217 (the Lords' order of 26 February 1640 [1640/1] and the clerk's memoranda of 27 February); the English of the Latin memorandum, in brackets, is the author's.

Carrying up the Commons' impeachment of the judges that summer, Edward Hyde asked the Lords how the guilty could have been punished "when the Judges themselvs have been Delinquents," and said of the six who had upheld the levy that "upon vulgar fears" they had "delivered up the precious Forts they were trusted with."<sup>151</sup> The record that "import[ed] verity in [itself]" was cancelled by the hand of the sovereign the rule had reserved to protect; and the fault charged against the judges was fear.

That abolition was a beginning, not an end. The same statute that dissolved the Star Chamber opened a constitutional reformation which the next century and a half carried to completion, and at each stage the reform repudiated a feature of the court just abolished. The inquisitorial *ex officio* oath — the compelled self-accusation the Star Chamber had forced on John Lilburn in 1637, and which *Floyd's* own decree reproduced when it imprisoned the complainant until he should "confess[] his abettors" — fell with the court, and its repudiation "[was] implanted . . . into the Bill of Rights" as the privilege against self-incrimination.<sup>152</sup> The Glorious Revolution of 1688 and the Bill of Rights of 1689 condemned the suspending and dispensing prerogative and the revived prerogative tribunals of the later Stuarts, and declared that "cruell and unusuall Punishments" ought not be "inflicted" — a clause occasioned by a sentence for the perjury that had procured wrongful executions, and carried almost verbatim into the Eighth Amendment.<sup>153</sup> The Act of Settlement of 1701 secured what the Star Chamber had most

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<sup>151</sup> *Id.* at 1360–61 (Hyde's speech at the delivery of the impeachment of the Barons of the Exchequer). The articles of impeachment against Sir Robert Berkeley, which the volume's index places at 606, are not relied on here.

<sup>152</sup> *Miranda v. Arizona*, 384 U.S. 436, 458–59 (1966) (the privilege's "critical historical event" was the Star Chamber Oath forced on John Lilburn in 1637; on its account "Parliament abolished the inquisitorial Court of Star Chamber," and the resulting principles "were implanted . . . into the Bill of Rights"); accord *Brown v. Walker*, 161 U.S. 591, 596–97 (1896) (the privilege had "its origin in a protest against the inquisitorial and manifestly unjust methods" of the older system). See the note at chapter 1.2 § A.

<sup>153</sup> Bill of Rights 1689, 1 W. & M. sess. 2, c. 2 ("[t]hat excessive Baile ought not to be required nor excessive Fines imposed nor cruell and unusuall Punishments inflicted"), *Statutes of the Realm* VI, at 142–43; the petitioning prelates it recites are the Seven Bishops of chapter 1.3 § E and chapter 1.4 § B. The cruel-and-unusual clause passed almost verbatim into U.S. Const. amend. VIII; it was occasioned by the sentence in *Titus Oates's Case* (1685). *The Memoires of Titus Oates, Written for Publick Satisfaction* 14 (Thomas Graves, London 1685) ("His

conspicuously denied — judges holding office "during good behaviour" rather than at the sovereign's pleasure, the model the Framers wrote into Article III, and whose absence the Declaration of Independence would indict in the King's having "made Judges dependent on his Will alone."<sup>154</sup>

The same year fixed where the cost of an officer's wrong then fell. In *Lane v. Cotton*, decided in the Easter term of 1701 before Holt, Turton, Powys and Gould, a subject whose Exchequer bills had been taken from a letter inside the London post office sued the two Postmasters-General; three judges held that "[t]he head of a public office under Government . . . is not responsible to an individual for a loss occasioned by the default of such servants. The servant who is guilty of the default, is," and Holt, dissenting, would have charged the head because "the care of the whole is committed to him, and the rest are but his deputies."<sup>155</sup> <sup>lii</sup> The case is not a judge's, and that is its use here: in the year the judges' tenure was secured, the Crown's immunity for its servants' wrongs was paid for by the servant's own exposure, and the subject who could not reach the Postmaster could reach the receiver. What the reception would carry across the water as one rule the English law of 1701 held as two, the sovereign shielded and the servant answerable; Part 4, chapter 4.3 returns to what became of the second half.

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Sentence, though it seem Severe, is much less than he deserves"). See The Federalist No. 84 (Hamilton) (naming the lineage; the citation documents the founding generation's knowledge of the descent, not an endorsement of bills of rights, which No. 84 opposes).

<sup>154</sup> Act of Settlement 1701, 12 & 13 Will. 3, c. 2 (judges' commissions to run *quamdiu se bene gesserint* — "during good behaviour" — removable only upon the address of both Houses), ending the Stuart practice of tenure at the royal pleasure. The provision is the acknowledged model of the Article III tenure guarantee. See The Federalist No. 78 (Hamilton) ("The experience of Great Britain affords an illustrious comment on the excellence of the institution." — the essay's closing sentence); U.S. Const. art. III, § 1; Declaration of Independence (1776) ("He has made Judges dependent on his Will alone, for the tenure of their offices, and the amount and payment of their salaries.").

<sup>155</sup> *Lane v. Cotton*, 1 Ld. Raym. 646, 91 Eng. Rep. 1332 (K.B. 1701); the Salkeld report, 1 Salk. 17, 91 Eng. Rep. 17 ("Because Breeze is an officer, and he is liable"). The contract side of the same configuration is *Macbeath v. Haldimand*, 1 T.R. 172, 99 Eng. Rep. 1036 (K.B. 1786) (Ashhurst, J., at 181–82; Buller, J., at 182). The pairing is the Law Library of Congress's, Clare Feikert, *United Kingdom: Immunity and Government and Executive Agencies in the 1700s*, LL File No. 2002-13698 (Sept. 2002), at 1; the judges are quoted here separately, from the page.



xlix *An Act for the Regulating of the Privy Council and for taking away the Court commonly called the Star Chamber*, 16 Car. 1, c. 10 (royal assent 5 July 1641; the regnal-session style "1640" notwithstanding, the operative dissolution is fixed at "the first day of August . . . one thousand six hundred fourty and one"). The Act recites Magna Carta (9 Hen. III, c. 29) and the Edwardian due-process statutes (5, 25, 28, 36, 42 Edw. III — "no Freeman shall be taken or imprisoned . . . but by lawfull Judgement of his Peers or by the Law of the Land"; "no Man be put to answer without presentment . . . or by due Processe") and dissolves the Star Chamber — together with the cognate prerogative courts, expressly including "the Court before the President and Councill in the Marches of Wales" — returning their matters to "the Common Law of the Land . . . in the ordinary course of Justice." Text per *Statutes of the Realm* vol. 5, pp. 110–11, from which every quotation in this note is taken: the running heads read "16° CAR. I. c. 10" and "A.D.1640"; the recitals stand in the print's own margins (Magna Charta, 9 H. III c. 29; 5 E. III c. 9; 25 E. III st. 5 c. 4; 28 E. III c. 3; 36 E. III c. 15; 42 E. III c. 3); and the orthography quoted here is the print's — "intollerable burthen," "Arbitrary Power," "fourty and one," "lawfull Judgement of his Peers," "punish where no Law doth warrant," "the Common Law of the Land and in the ordinary course of Justice," "Councell in the Marches of Wales." Some scholarship, including Kesselring, styles the Act 17 Car. 1, c. 10 on the alternative regnal-session computation. Pickering's *Statutes at Large* vol. VII independently corroborates the enumeration and substance ("Anno decimo sexto Caroli. C.10," the session styled 1640, dissolution from the first day of August 1641, the Marches court expressly included) — but that eighteenth-century edition silently modernizes spelling and capitalization ("intolerable," "forty," lower case throughout), so it corroborates the *citation* and must not be used to correct the *wording* above.

l William Hudson, *A Treatise of the Court of Star Chamber*, pt. I, in 2 *Collectanea Juridica* 1, 4–5 (Francis Hargrave ed., London 1792) ("I well remember that mr. Carew, Pasch. 1. Jacobi, being produced ore tenus for an audacious part in shutting up his parish-church-door, denying the Common Prayer to be used according to the form established in the reign of queen Elizabeth, did, at his defence of the crime, deliver into court that part of Magna Charta, Nullus liber homo capietur . . . nisi per legale iudicium parium suorum, vel per legem terræ. But the grave lord keeper Egerton, well weighing that it was not only necessary to proceed to the censure of the gentleman at that time, but to give satisfaction to the world that the proceedings in that kind were just and legal, did learnedly declare the true meaning of that law, shewing the disjunctive per legale iudicium parium suorum, which was by indictment, or some writ original, vel per legem terræ"; at 5, "this court hath not encroached upon the common law, or any way opposeth the liberties of the Great Charter"); Hawarde, *Les Reportes del Cases in Camera Stellata*, at 162–64 (18 May 1603; Coke, as Attorney, informing *ore tenus* against "Henry Carewe, esquire, a dangerous recusant, upon examination and confession," who "requested a copy of it, but by order of this Court, he could not have it, nor counsel"; the four heads of the offence at 163; the Lord Keeper at 164, "this Cowrte hathe aunciente warraunte & authoritie bothe by Common & statute lawe to proceede in this kinde, 10 E. 2 [?] and 12 R. 2. For the kinge's Justice is ordinarie or extra-ordinarie"; the sentence, "fined 1000li, imprisonment during the king's pleasure, recognition of his faulte in the churche & at the Assises: & to be bounde to his good behauioure"). Hawarde's note does not name the Charter but records the plea's substance, Carewe delivering "a noate declaringe that by the lawes of this Realme no man ys to be Condemned but vpon bille & aunsweare or originall proces serued vpon him" (at 162, quoted at the Hawarde note at chapter 1.4 § A); Hudson's does not record the sentence. The plea is noticed in K. J. Kesselring & Natalie Mears, Introduction, in *Star Chamber Matters: An Early Modern Court and Its Records* 6 & n. 15 (Univ. of London Press 2021). Long *s* normalised.

li Bill of Rights 1689, 1 W. & M. sess. 2, c. 2 (declaring "the pretended Power of Suspending of Laws or the Execution of Laws by Regall Authority without Consent of Parlyament" to be "illegall," and "[t]hat excessive Baile ought not to be required nor excessive Fines imposed nor cruell and unusuall Punishments inflicted"). The same Act, *Statutes of the Realm* VI, at 142–43, recites among the late King's offences "Committing and Prosecuting diverse Worthy Prelates for humbly Petitioning to be excused from Concurring to the said Assumed Power," and declares "That it is the Right of the Subjects to petition the King and all Commitments and Prosecutions for such Petitioning are Illegall" and "That the Freedome of Speech and Debates or Proceedings in Parlyament ought not to be impeached or questioned in any Court or Place out of Parlyament"; the petitioning prelates are the Seven Bishops of chapter 1.3 § E and chapter 1.4 § B. The cruel-and-unusual clause passed almost verbatim into U.S. Const. amend. VIII; it was occasioned by the sentence in *Titus Oates's Case* (1685) — a punishment for the perjury that had procured the wrongful executions of those Oates accused. A pamphlet of the same year, hostile to Oates, called the

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sentence severe while holding it too light: *The Memoires of Titus Oates, Written for Publick Satisfaction* 14 (Thomas Graves, London 1685) ("His Sentence, though it seem Severe, is much less than he deserves; our English Law-makers, as never imagining the possibility of so unexampled an Offender, having provided no Punishment equal to the Demerits of such unprecedented Villany"). See *The Federalist* No. 84 (Hamilton) (naming the lineage — "Such was MAGNA CHARTA . . . Such was the PETITION OF RIGHT . . . Such, also, was the Declaration of Right presented by the Lords and Commons to the Prince of Orange in 1688, and afterwards thrown into the form of an act of parliament called the Bill of Rights" — though in service of the argument that such "stipulations between kings and their subjects" have "no application to constitutions professedly founded upon the power of the people"; the citation documents the founding generation's knowledge of the descent, not an endorsement of bills of rights, which No. 84 opposes).

lii *Lane v. Cotton*, 1 Ld. Raym. 646, 91 Eng. Rep. 1332 (K.B. 1701) (Easter Term, 13 Will. 3; headnote as printed at 1332; "Turton, Powys, and Gould, Justices, that judgment ought to be given for the defendants: and Holt, that judgment ought to be for the plaintiff"). The Salkeld report, 1 Salk. 17, 91 Eng. Rep. 17, gives the majority's second reason in four words, "Because Breeze is an officer, and he is liable," and Holt's ground that "the care of the whole is committed to him, and the rest are but his deputies." The contract side of the same configuration is *Macbeath v. Haldimand*, 1 T.R. 172, 99 Eng. Rep. 1036 (K.B. 1786) (Ashhurst, J., at 181–82: "Great inconveniencies would result from considering a governor or commander as personally responsible . . . For no man would accept of any office of trust under Government upon such conditions"; Buller, J., at 182: "where a man acts as agent for the public, and treats in that capacity, there is no pretence to say that he is personally liable"). The pairing is the Law Library of Congress's, Clare Feikert, *United Kingdom: Immunity and Government and Executive Agencies in the 1700s*, LL File No. 2002-13698 (Sept. 2002), at 1 (citing W.S. Holdsworth, 6 *A History of English Law* 267 (1937)), whose single quotation from *Macbeath* splices Ashhurst and Buller, JJ., and gives the report's first page as 174; the judges are quoted here separately, from the page.

## PART 2 — AMERICAN RECEPTION AND GENEALOGY, 1761–2024

*Part 2 follows the rule across the Atlantic and traces its American genealogy from the bottom up, from what the opinions themselves cite. Chapter 2.1 shows the Founding cutting all three locks and enumerating official impunity secured by a sham proceeding among the marks of a tyrant. Chapter 2.2 asks what crossed in 1791 and what was received in 1868, and finds that the rule crossed by citation, without the record and without the King to whom its operative clause sent the subject's plea; it states the book's first ground, the transfer of the plea to a King the Republic does not have, and asks whose decisions, preceding American jurisprudence, count as supporting American stare decisis, finding that English decisions are evidence of the common law received and not precedents of the American hierarchy. Chapter 2.3 traces the spine of the modern doctrine and finds a constitutional source at no node. Chapter 2.4 reads the entry by citation in 1868 to 1896 and the curated pedigree that set the liability cases aside, a pedigree that descends, through Coke's own Marshalsea, from Bonham's Case, the decision that forbids it.*

*It reads the bar's record of 1951 to 2000, in which no brief for an official names Floyd v. Barker and the question of the source was put once, by the Hunzikers, two farmers without counsel, and the two occasions on which the source was put in issue before the Court. What it shows is an entry made by citation rather than adjudication, the question about the source asked from the bar and never answered as such. Chapter 2.5 reaches the apex in the presidential decisions of 1982 and 2024, finds it resting on a same-day pair that cannot supply each other's authority, audits the keystone opinion's authorities and finds seven inverted, reads the fearlessness rationale against the judicial oath Parliament fixed in the same summer of 1868 and against the Federalist's own definition of energy, and finds at every node one hypothetical, the official deterred by exposure, credited for the official and never tested against the citizen.*

## **2.1 The Revolution and the Founding, 1761–1791**

That reformation crossed the Atlantic and became a revolution. The general writs of assistance that James Otis attacked in 1761 as "the worst instrument of arbitrary power . . . that ever was found in an English law book" produced the Fourth Amendment, and the Court would later read the Fourth and Fifth Amendments together against that "recent history of the controversies on the subject, both in this country and in England."<sup>156</sup> And the Declaration of Independence, submitting to a candid world the facts that "define a Tyrant," enumerated the Star Chamber's own marks among them: the deprivation of "the benefits of Trial by Jury," the "transporting us beyond Seas to be tried," the making of "Judges dependent on his Will alone," and — most exactly — the

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<sup>156</sup> James Otis's 1761 argument against the writs of assistance is recounted — with his characterization of the writ as "the worst instrument of arbitrary power, the most destructive of English liberty, and the fundamental principles of law, that ever was found in an English law book" — in *Boyd v. United States*, 116 U.S. 616, 625 (1886), which construed the Fourth and Fifth Amendments against "the contemporary or then recent history of the controversies on the subject, both in this country and in England."

"protecting [of officials], by a mock Trial, from punishment for any Murders which they should commit on the Inhabitants of these States."<sup>157</sup> Official impunity secured by a sham proceeding is the *Floyd* pattern precisely: a judge shielded for a wrongful execution by a court that would not examine the record. The founding charter named that pattern an act of tyranny fit to justify revolution. And the statute behind that grievance had justified itself in the doctrine's own voice. The Administration of Justice Act of 1774 — the "Murder Act," in the colonists' name for it — removed the trials of officials charged with capital offenses out of the province on the stated ground that officials must not "be discouraged from the proper Discharge of their Duty, by an Apprehension, that in case of their being questioned for any Acts done therein, they may be liable to be brought to Trial . . . ." <sup>158</sup> The fear rationale thus appears twice on the pre-constitutional record as power's own justification for official impunity — in 1607 as the Star Chamber's reason, and in 1774 as Parliament's, a parallel confession and not a link in the chain, whose citations run through *Floyd v. Barker* and never through the statute — and the founding answered it both times: the first court was abolished, the second statute was enumerated as tyranny. What later courts would receive as a neutral structural prediction is, on the record the founding left, the tyrant's stated ground.

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157 The internal standard: *Floyd v. Barker*, 77 Eng. Rep. at 1307 (questioning a judge for supposed corruption "extends to the annihilating of a record, or of any judicial proceedings before them"; the defacement order on the same page — the note at chapter 1.2 § A). The Declaration grievances this book quotes follow the National Archives' transcription of the engrossed text: "the benefits of Trial by Jury"; "transporting us beyond Seas to be tried" ("for pretended offences"); "He has made Judges dependent on his Will alone, for the tenure of their offices, and the amount and payment of their salaries"; the mock-Trial clause, whose engrossed antecedent is "them" (the quartered troops) — this book's bracket "[of officials]" disclosing the substitution; and "every act which may define a Tyrant." How the receiving legal order measures the destruction of the accusation record — as felony and forfeiture of office, as ground to presume the destroyed proof true, as a due-process violation and a denial of access to courts, and against the era's own proof-taxonomy besides — is set out, source by source, in Part 3, chapter 3.3 and its apparatus, and the era's own proof taxonomy at chapter 1.3 § B.

158 Administration of Justice Act 1774, 14 Geo. 3, c. 39, pmbl. & § 1, in 12 *Statutes at Large* 75–76 (1776) (orthography as printed; removing to another colony or to Great Britain the trials of persons charged with "Murther, or other capital Offence" committed "in the Execution of his Duty as a Magistrate, for the Suppression of Riots, or in the Support of the Laws of Revenue," where the governor certifies that "an indifferent Trial cannot be had within the said Province"). One of the Coercive ("Intolerable") Acts; the colonial epithet was the "Murder Act," and the Declaration's "mock Trial" grievance is its standard referent.

The bearing of that record is structural, not rhetorical. The American Bill of Rights and the immunity rule descend from the same root and run in opposite directions. The Fourth, Fifth, Sixth, Seventh, and Eighth Amendments, the Article III tenure the Act of Settlement modeled, and the habeas guarantee the Suspension Clause preserves are, severally and together, the codified repudiation of what the Star Chamber was and did — jury-less, oath-compelled, prerogative-dependent, punishing "where no Law doth warrant." *Floyd v. Barker* is the thing they repudiate. To receive that court's rule as the foundation of official immunity is therefore not merely to build on a court that England dissolved; it is to draw the rule that exempts the official from account out of the very tribunal whose abolition is the headwater of the American due-process tradition, and to do so in the face of a founding charter that enumerated impunity-by-sham-process among the marks of a tyrant. The reception reached past the Constitution's own origin to the antithesis it was written to bury.

The American constitutional order dismantled the loop at each weld. **Lock Two fell** with the Crown: there is no King; questioning an official is not *lèse-majesté*; sovereignty resides in the people, and officials answer *downward* to them through Article III.<sup>159</sup> **Lock One fell** when verity by status gave way to verity by process: official acts became examinable — by grand jury and petit jury, under the rules of evidence, on direct appeal, by habeas corpus. No act is true because of who performed it; every act is testable by process.<sup>160</sup> **Lock Three fell** with the right-remedy principle: "where there is a legal right, there is also a legal remedy," and the officer-suit framework exists precisely so that the sovereign's immunity never leaves the injured party without a forum.<sup>161</sup> The whole accountability architecture of the Founding — Article III, the grand jury, the rules of evidence, the Suspension Clause, the individual damages remedy — is

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<sup>159</sup> *Id.* (*Rex non debet esse sub homine, sed sub Deo et lege*); U.S. Const. art. III.

<sup>160</sup> U.S. Const. amend. V (grand jury; Due Process); *id.* amends. VI, VII; art. I, § 9, cl. 2 (Suspension Clause); Fed. R. Evid.

the negation of the sealed loop, built to ensure the subject is never routed to a forum that cannot grant relief. And it was a deliberate reception: the common law was taken up only so far as applicable to the new order — "only that portion which was applicable to their situation" — and a monarchical immunity premised on answerability to the Crown was not applicable to a republic.<sup>162</sup>

## 2.2 What Crossed in 1791, and What Was Received in 1868

### *A. What Crossed, and What Was Received*

Part 1 has read the inheritance entire: the three locks fixed in the 1607 texts (chapter 1.3 § A); the cause in which they were fixed by destroying the complaint rather than answering it, so that the doctrine carries the name of the man the decree fined and imprisoned (chapter 1.2);<sup>163</sup> the premise on which Blackstone rested the pair (chapter 1.5); the two limits the rule's own text stated, and the forum it reserved and never opened to a subject (chapter 1.3 §§ B, D–E); and England's repudiation of the tribunal, its methods and its premise between 1641 and 1701 (chapter 1.6). Two consequences belong here rather than there, because they are American.

The American line revived the rule anyway, and not as a defense external to the courts but as a determinant of their power: by converting the jury's fact questions into a judge's threshold ruling (chapter 3.1 § C), the immunity built on that abolished court decides whether the Seventh Amendment jury the Constitution commands within the Article III judicial power ever

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<sup>161</sup> *Marbury v. Madison*, 5 U.S. (1 Cranch) 137, 163 (1803); *Ex parte Young*, 209 U.S. 123 (1908); *Larson v. Domestic & Foreign Commerce Corp.*, 337 U.S. 682, 689–90 (1949).

<sup>162</sup> *Van Ness v. Pacard*, 27 U.S. (2 Pet.) 137, 144 (1829).

<sup>163</sup> The National Archives (UK), STAC 8/203/38 (*Lloyde v. Lewys*, Anglesey, June 1607) (catalogued "Documents: Bill wanting"). The file's ten membranes were transcribed entire by the author and conformed to the professional verification transcription; Part 1, chapter 1.2 § C sets out the transcription method, the verification apparatus, and the reading-status discipline this chapter's quotations ride on.

sits. A prerogative court dissolved for arbitrary process now supplies the rule by which an Article III court withholds the jury the Constitution preserves.

The common law crossed the Atlantic on the condition chapter 2.1 quoted, that the receiving generation adopted only the portion applicable to their situation, and this rule fails the condition on its face. Its operative clause does not bar the judge's answer; it transfers it, from the ordinary forum to "the King himself," who "is *de jure* to deliver justice to all his subjects" and delegates that power to his judges.<sup>164</sup> The clause names a receiver who adjudicates, and the American order has none; nor had the receiver ever answered where the rule was made, so that the rule was overruled, in the American idiom, by silence. That argument, the first of the book's two grounds, is made once, in the two paragraphs that follow, on the record of chapter 1.3 § E. What in fact happened at the threshold is where this book's genealogy begins: in 1868, *Randall v. Brigham* received the rule by citation, without the record, under the victim's name — and the chain built on that reception kept the lock and threw away the key.<sup>165</sup>

**The first ground: the transfer, and the plea unanswered.** The rule's own words do the work. A judge "shall not be drawn in question before any other Judge, for any surmise of corruption, except before the King himself," being "only to make an account to God and the King, and not to answer to any suggestion in the Star-Chamber"; and the King "is *de jure* to deliver justice to all his subjects" and delegates that power to his judges (chapter 1.3 §§ A–B).<sup>166</sup> The clause does not extinguish the plea. It removes it from the court that could hear it and lodges

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<sup>164</sup> *Floyd v. Barker*, 12 Co. Rep. at 25, 77 Eng. Rep. at 1307 (the reserved forum: "the King himself," who "is *de jure* to deliver justice to all his subjects").

<sup>165</sup> *Floyd v. Barker*, 77 Eng. Rep. at 1306–08 (the judicial-acts limit; the reserved forum operating — "some were banished, and some were fined and imprisoned"); *Van Ness v. Pacard*, 27 U.S. (2 Pet.) 137, 144 (1829) (the common law received "only that portion which was applicable to their situation"); *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868) (the citation-only reception; see chapter 2.4).

<sup>166</sup> *Floyd v. Barker*, 77 Eng. Rep. at 1307 (12 Co. Rep. 25): the resolution, its reasons and the King's *de jure* duty stand on the one page.

it with the one person who, on the rule's own theory of delegation, could hear it: the source of the judicial power himself. For the transfer to be law rather than a bar, the receiver must receive, and the rule admits no substitute forum and no substitute remedy, so that its whole operation consists of one act, the King's answer. The record of that forum is in chapter 1.3 §§ D and E. No subject's plea against a judge is recorded answered before the King himself. Where subjects approached the forum from below, the petition itself was prosecuted, with fine, prison, the pillory and submission in every court; and the one recorded moment at which the King spoke to the question, on receiving a Chancery suitor's book against the Lord Chancellor in 1618, was to say that his judges "are subject to his account only, and to none else upon earth" and to hand the book to his Attorney General, the court that sentenced the petitioner naming the re-hearing he had sought "a Commission of Grace, not of Right."<sup>167</sup> The forum was convened once from above, in 1616, against the rule's own author, on a grievance of the King's and no subject's; it was refused from below in 1618; and the court that made the rule was abolished in 1641 (chapter 1.6). A rule whose only operation is the King's answer, performed for no subject, has been refused by the rule's own apex. No opinion reversing it was needed and none exists; the refusal is in the pattern, and the pattern was complete a generation before the court ceased to exist. That is a reading of the record, stated as such: no instrument says the King would not hear a subject; the record says he did not, and the rule's logic says what that means.

American jurisprudence then received the rule without the one thing that made it a rule rather than a bar. The transfer clause names a receiver who adjudicates. Article III names none: the source of the judicial power here is the Constitution itself, which cannot be sat before, take an account or examine a judge, and which delegates the power to courts so that the answer is

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<sup>167</sup> *Proceedings against Mr. Wraynham*, 2 How. St. Tr. 1059, 1065–66 (1618) (the King's saying), 1073 (Coke, C.J.: a review of a decree "is very rare: and that is a Commission of Grace, not of Right"); the note at chapter 1.3 § E.



given in court (chapter 3.1 § A). The common law crossed on the receiving order's own condition, that the founding generation adopted "only that portion which was applicable to their situation" (chapter 2.1)<sup>168</sup>, and this rule fails the condition twice, on its face for want of a receiver and in fact as refused where it was made (§ B below). The receiving courts did not perform the transfer badly; they had nowhere to transfer to. What they did instead, in 1868 and after, was keep the bar and drop the receiver (below), and the modern doctrine's offer of impeachment and the political process as the remedy is not the reserved forum performed badly but a substitute invented because that forum cannot exist here (chapter 3.1 § A).

What stood at the water's edge in 1791, then, was not a rule awaiting adoption but a ruin awaiting inspection. The condition on which the common law crossed had content: a monarchical immunity premised on answerability to the Crown presupposed a Crown to answer to, a live forum above the immunized official, and a subject whose wrongs belonged to someone else. The Founding supplied none of these; its constitutional architecture — the jury guarantees, the privilege against self-incrimination, the tenure of judges, the prohibition on cruel and unusual punishments — is, as Part 1, chapter 1.6 showed, the codification of England's own repudiation of the court that made the rule. On the English record this book has read, the rule arrived at the threshold with its tribunal abolished, its report's root sentence inverted in print, its cause file mutilated by its own decree, and its rationale twice answered as the tyrant's stated ground.

It crossed anyway, by the 1868 citation chapter 2.4 § A examines, and the record it crossed without was not unreachable; it was unasked for.<sup>169</sup> When the affirmance of the first American case to adopt the rule was argued in 1811, counsel objected that the Star Chamber had

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<sup>168</sup> *Van Ness v. Pacard*, 27 U.S. (2 Pet.) 137, 144 (1829).

<sup>169</sup> *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868); carried forward through *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335, 347 (1872), and *Spalding v. Vilas*, 161 U.S. 483, 498 (1896). The reception chain, node by node, is chapters 2.3–2.5 of this Part.

been abolished and that the report's "annihilating of a record" clause had been left out of the quotation, and one senator dissented that judges answerable to the King "as their principal and constituent" could not be so answerable in a republic — objections lodged on the record and answered by none of the fourteen who affirmed.<sup>170</sup> No American decision cites the affirmance; the English report *Bradley* quotes does, and lists it pinned to the pages of the dissent. A century and a half later the deepest reach any Justice has made toward the source stopped at the same place: dissenting in *Pierson v. Ray*, Justice Douglas called the doctrine "a more sophisticated manner of saying 'The King can do no wrong,'" cited *Floyd and Barker* by name to the Star Chamber and quoted its report — and asked nothing of what the court had done in the cause.<sup>171</sup> When the rivalry itself was at last argued to the Court as a party's position — in *Pulliam v. Allen* (1984), that Coke had expanded the immunity "for the purpose of giving one type of rival court an advantage over another" — the Court adopted it as history, wrote that "Coke and his colleagues of the Star Chamber" had declared the King's Bench judges immune "in competing courts," and stopped there: its Star Chamber is Coke's seat, not a tribunal whose process is

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170 *Yates v. Lansing*, 9 Johns. 395 (N.Y. 1811), *aff'g* 5 Johns. 282 (N.Y. Sup. Ct. 1810) (Kent, C.J.) (the American entry: the rule received as having "a deep root in the common law," maintained "through every revolution of their government," 5 Johns. at 291, with *Floyd* cited at 293 and its "annihilating of a record" limb omitted). In the Court for the Correction of Errors, counsel for the plaintiff in error objected that the case "was in the court of star-chamber, which was, afterwards, abolished for its arbitrary assumption of jurisdiction," 9 Johns. at 397 (Rodman and Van Buren), and in reply that "[t]he language of that decision is not fully stated by the Chief Justice," *id.* at 410 (Emmet), supplying the omitted clause; Clinton, Sen., dissenting, *id.* at 426, 431–32 ("But this can never be applicable here"), 441 ("whether the ministers of justice may oppress with impunity!"); the reporter's tally, *id.* at 442 ("For affirming, 14. For reversing, 5."). No decision in the American chain cites 9 Johns.; *Bradley* quotes Kent's opinion below. The English report *Bradley* quotes does: the reporter's note to *Fray v. Blackburn*, 3 B. & S. 576, 578 n.(a), 122 Eng. Rep. 217, 218 (Q.B. 1863), runs the rule "from *Floyd v. Barker* (12 Co. 23, 24, 25), down to *Kemp v. Neville*" and lists, among the authorities counsel for the judge "was prepared to cite," "*Gates [Yates] v. Lansing* (5 Johns. U.S. 282, 290–292, 295; affirmed in the Court of Errors, 9 Johns. U.S. 395, see pp. 424, 432)" — the affirmance, pinned to the pages of the dissent.

171 *Pierson v. Ray*, 386 U.S. 547, 565 & n.5 (1967) (Douglas, J., dissenting) ("*Floyd & Barker*, 12 Co. Rep. 23, 25, 77 Eng. Rep. 1305, 1307 (Star Chamber 1607)"; "[b]ecause the judges were the personal delegates of the King they should be answerable to him alone"). Chapter 2.5 § E sets that answer beside its successors; this book's point is narrower — that the record the dissent did not reach is the one read in chapter 2.4.

examined.<sup>172</sup> The receiving tradition has read the print with care, on both sides. It has not read the file. The baseline defence written a century and a half later rests where *Randall* rested: it grounds absolute judicial immunity at common law around 1871 on *Bradley*, on *Randall's* "as old as the law" and on Bishop's "however erroneous, mistaken, or even corrupt," cites no English judicial-immunity case, and so restates the reception as its defence.<sup>173</sup> The same canvass finds that for officers other than judges the malice limb survived into the American common law of 1871, an immunity defeated by proof of an improper motive; it was the judges' branch of that corpus that removed it.<sup>174</sup>

### *B. Whose Decisions Count*

Two chapters of Part 3 leave one question standing. Chapter 3.2 § D shows that the doctrine weighs a Star Chamber resolution of 1607 against two centuries of American decision without stating the standard it applies, and that the one standard the receiving order stated, applicability to the situation of the receiving generation, is a standard the doctrine has never applied to *Floyd* and the rule cannot meet. Chapter 3.3 measures the founding act by the receiving system's own law. What both chapters presuppose and neither decides is the prior question: whose decisions, preceding American jurisprudence, count as supporting American stare decisis, and whether an

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172 Brief for Respondents at 24–25, 37, *Pulliam v. Allen*, No. 82-1432 (U.S. filed July 25, 1983) (Wyatt and Jeffries, counsel) (from Block, 1980 Duke L.J. 879, and Feinman & Cohen, 31 S.C. L. Rev. 201 (1980)); *Pulliam v. Allen*, 466 U.S. 522, 529–31 & n.8 (1984). The Court's rivals are the conciliar and prerogative courts, not the persons Part 1, chapter 1.3 places in the contest. Chapter 2.4 sets the argument beside the other challenges to the source made at the American bar.

173 Scott A. Keller, *Qualified and Absolute Immunity at Common Law*, 73 Stan. L. Rev. 1337, 1357–58 (2021) ("absolute immunity for judges' exercise of judicial power was well established at common law around 1871"). *Floyd v. Barker*, *The Marshalsea*, *Scott v. Stansfield* and *Kemp v. Neville* do not appear in the article, nor does Blackstone; its one notice of the English tradition is *Anderson v. Creighton*, 483 U.S. 635, 644 n.5 (1987) ("it is the American rather than the English common-law tradition that is relevant"), quoted *id.* at 1356 n.109.

174 Keller, 73 Stan. L. Rev. at 1359 (an officer's qualified immunity at common law defeated by malice, shown by "any improper or wrongful motive, and it [was] not essential that actual malevolence or corrupt design be shown," the plaintiff bearing the burden of proving the improper purpose by clear evidence); *id.* at 1338. The judges' branch: *id.* at 1358 (Bishop's "however erroneous, mistaken, or even corrupt") and *Bradley's* successors, chapter 2.5.

English decision that fails the reception condition was ever law here at all. This section answers it; chapter 1.4 has read the leaf and the sources it names.

Before the limits chapter 3.2 § D draws, a prior question: by what standard does the doctrine weigh an English decision against an American one on the same question? It has never stated one. It has applied one at every node, and the two can be laid side by side. English decision is weighed by age and recital, without its record: *Floyd* received as "as old as the law"; *Kemp*, *Scott*, and *Groenvelt* cited for the rule they announced while the cases on the same pages that confined it were ruled past; the record of the founding cause never read by any court in the chain. American decision is weighed the other way: Congress wrote "every person," and the Court presumed it did not mean judges; a Justice read the legislative record and showed the presumption false; *Pulliam* let a citizen through on the doctrine's own history, and Congress narrowed it within twelve years; the Hunzikers, two farmers without counsel, put the source in issue, and a footnote declined. The measure the chain applies is therefore this: an English recital outweighs an American dissent on the record, an English word outweighs an American enactment, and English antiquity outweighs the American reception condition — that the founding generation "adopted, only that portion which was applicable to their situation" — which is the one standard the receiving order actually stated. The vocabulary conceals the choice. Two centuries of the Court's own decisions on official liability are a body of law made by judicial decision; the doctrine calls that body "precedent" and reserves the name "common law" for the English inheritance, so that its own dissents, narrowings, and enactments read as departures from the common law rather than as the common law's development on American soil. A doctrine that cannot state the standard it applies has not measured anything. It has chosen

— and the standard it displaced is the only one the receiving order ever stated, and the one, as Part 1, chapter 1.3 showed, that the rule fails on its face and had already failed at its source.<sup>175</sup>

The defence that the doctrine is settled mistakes what kind of thing is said to be settled. Common law is the body of judicial decisions that interpret de jure law according to the principle of stare decisis. A node is one such decision. Stare decisis is a court's rule of adherence to its own corpus of decision: that it should generally stand by what has been decided. The first is a corpus; the second is adherence to the corpus; neither supplies the other's authority. When the immunity is defended as "recognized," "well settled," or "supported by our history," the sentence has the form of a stare decisis claim — stand by what was decided — but the thing pointed at is not an American decision on the question. It is the English inheritance, received only so far as applicable to the new order, and at the far end of the chain a decree the receiving court never read. Stare decisis cannot reach that. It binds a court to its own prior holdings and those of its superiors; it does not convert an unreceived foreign decree into a holding by citing it. A citation is not a decision, and stare decisis attaches to decisions. The two defences thus answer different objections and neither answers the one put: the common-law defence answers whether there is a pedigree, and produces a citation; the stare decisis defence answers whether this Court has decided the question, and produces a recital. Between them lies the question this book asks — whether the rule was ever received as law here — and neither reaches it. Stare decisis stands by what was decided. The immunity stands on what was cited.<sup>176</sup>

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175 The nodes are those of chapters 2.3 and 2.4: *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868) ("as old as the law"); the curated pedigree, chapter 2.4 §§ A–B and the notes there; *Tenney v. Brandhove*, 341 U.S. 367 (1951), and the legislative record read in *Pierson v. Ray*, 386 U.S. 547, 559–67 (1967) (Douglas, J., dissenting); *Pulliam v. Allen*, 466 U.S. 522 (1984), and the 1996 amendment to 42 U.S.C. § 1983 by Pub. L. 104-317 (barring injunctive relief against a judicial officer "unless a declaratory decree was violated or declaratory relief was unavailable"); *Hunziker v. German-American State Bank*, 908 F.2d 975 (7th Cir. 1990) (unpublished), n.4, chapter 2.4 § C. The reception condition: *Van Ness v. Pacard*, 27 U.S. (2 Pet.) 137, 144 (1829); Part 1, chapter 1.6. On the refusal of the rule at its own apex, Part 1, chapter 1.3.

176 On the reception condition, *Van Ness v. Pacard*, 27 U.S. (2 Pet.) 137, 144 (1829), and Part 1, chapter 1.6; on the citation-only entry, *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868), and chapter 2.4. The

*The definitions are ancient.* The paragraph above stated the definitions this section applies: common law is the corpus a jurisdiction's courts make by decision, and stare decisis is a court's adherence to its own corpus; chapter 4.1 keeps the same terms for the comparison. What this section adds is that the definitions are not modern. Justinian's *Institutes*, the elementary book of the Roman law as Coke's generation could read it, says of the Emperor's judicial decisions that "whatever the Emperor settles by rescript, or decides in his judicial capacity, or ordains by edicts, is clearly a statute," and in the same title that a penalty inflicted on an individual does not go beyond the person and is not to be followed as a precedent.<sup>177</sup> The Code says it as a command to judges. In 529 the Emperor forbade any judge or arbiter to follow a decision he thought wrongly given, or the sentences of the highest prefects and magnates, "non enim, si quid non bene dirimatur, hoc et in aliorum iudicum uitium extendi oportet, cum non exemplis, sed legibus iudicandum est" (for if something is not well decided, that ought not to be extended into a fault of other judges as well, since judgment is to be given by laws, not by examples), and required all his judges to follow "ueritatem et legum et iustitiae ... uestigia," the footsteps of truth, of the laws, and of justice.<sup>178</sup> Hobbes, in 1651, says the same of every judge, sovereign and subordinate: "though the Sentence of the Judge, be a Law to the party pleading, yet it is no Law to any Judge, that shall succeed him in that Office"; "No mans error becomes his own Law; nor obliges him to

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principle that a question never considered is never decided, *Webster v. Fall*, 266 U.S. 507, 511 (1925), is stated at chapter 3.2 § C.

<sup>177</sup> Justinian, *Institutes* 1.2.6, in J. B. Moyle (trans.), *The Institutes of Justinian* 5 (2d ed., Oxford 1889) (what the Emperor determines "has the force of a statute, the people having conferred on him all their authority and power by the *lex regia*"; but "[s]ome of these of course are personal, and not to be followed as precedents," such as "a penalty inflicted for individual wrongdoing," which "do not go beyond the particular person").

<sup>178</sup> C. 7.45.13 (Justinian to Demosthenes, praetorian prefect, a.d. 529), in Paul Krueger (ed.), *Codex Iustinianus* 684 (editio maior, Berlin 1877): "Nemo iudex uel arbiter existimet neque consultationes, quas non rite iudicatas esse putauerit, sequendum, et multo magis sententias eminentissimorum praefectorum uel aliorum procerum (non enim, si quid non bene dirimatur, hoc et in aliorum iudicum uitium extendi oportet, cum non exemplis, sed legibus iudicandum est), nec si cognitionales sint amplissimae praefecturae uel alicuius maximi magistratus prolatae sententiae: sed omnes iudices nostros ueritatem et legum et iustitiae sequi uestigia sancimus." Krueger's margin records the Byzantine receptions, *Basilica* 9.1.79 and *Peira* 51.33, on which see Part 5, chapter 5.4.

persist in it"; and "all the Sentences of precedent Judges that have ever been, cannot all together make a Law contrary to naturall Equity."<sup>179</sup> The sixth-century compilation and the seventeenth-century theorist say what the definitions say: a sentence binds its parties; it becomes law only by the lawgiver's will; an unjust one never does.

*Coke's ground, refused by his contemporary.* The opening paragraph of this section showed that the vocabulary which calls the American corpus "precedent" and reserves "common law" for the English inheritance conceals a choice. The ground of that choice is older than the vocabulary, and a contemporary of the rule rejected it by name. Coke's own account of what makes the common law law, as Hobbes quoted it from the commentary on Littleton, was that it is "an *Artificiall perfection of Reason, gotten by long study, observation, and experience.*"<sup>180</sup> Hobbes quoted the phrase, cited the leaf, and answered it:

For it is possible long study may encrease, and confirm erroneous Sentences: and where men build on false grounds, the more they build, the greater is the ruine: and of those that study, and observe with equall time, and diligence, the reasons and resolutions are, and must remain discordant.<sup>181</sup>

The refusal matters to this section's question because it refuses the only ground on which a 1607 resolution could bind a court that never sat in its hierarchy: not the will of any lawgiver the

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179 Thomas Hobbes, *Leviathan* ch. 26, at 144–45 (London 1651) (W. G. Pogson Smith ed., Oxford 1909, at 213–15). The sentences run in the order p. 144 ("No mans error ..."; "all the Sentences of precedent Judges ...") and p. 145 ("though the Sentence of the Judge, be a Law to the party pleading ..."). Latin: *Leviathan* cap. 26, at 133 (Amsterdam 1668): "In Iudiciis ergo Praejudicia valere non debent, neque sententiam iniquam excusare possunt."

180 Hobbes, *Leviathan* ch. 26, at 139–40 (London 1651) (Pogson Smith ed. at 207), the margin naming "Sir Edw. Coke, upon Littleton, Lib. 2. Ch. 6. fol. 97. b."

181 Hobbes, *Leviathan* ch. 26, at 139–40 (London 1651) (Pogson Smith ed. at 207), the margin reading "Sir Edw. Coke, upon Littleton, Lib. 2. Ch. 6. fol. 97. b." Coke is named three times across the 1651 English and the 1668 Latin texts; *Floyd*, the *Star Chamber*, and the *Reports* are never named. On Coke's definition and its uses, see Allen D. Boyer, *Understanding Authority and Will: Sir Edward Coke and the Elizabethan Origins of Judicial Review*, 39 B.C. L. Rev. 1 (1998); Michael Lobban, *The Common Law Mind in the Age of Sir Edward Coke*, *Amicus Curiae*, no. 33 (2001); Ian King, *The Legal Writing of Sir Edward Coke, the Anglo-Saxons, and Lex Terrae*, 39 *The Seventeenth Century* 329 (2024); and, on the prefaces to the *Reports*, Antonia Smith, *The Prefaces to Sir Edward Coke's Reports and Modern Historical Jurisprudence*, 54 *Victoria U. Wellington L. Rev.* 613 (2023).

receiving order recognizes, but the accumulated study of the profession that produced it. Hobbes's answer restates the definitions above. Study confirms error as readily as truth, and a sentence is law to its parties only. The chain of American decisions that cites the 1607 rule and reads no record (above, and chapter 2.4) is the structure Hobbes describes: building on a ground no one has examined, and growing more confident with each course laid.

*The three tests, applied.* The spine of this section is a table of three tests read across four columns: the 1607 court, Hobbes in 1651, the modern doctrine, and Rome. Read down, each column is consistent with itself. Read across, the modern doctrine agrees with the 1607 court on every row and disagrees with both Hobbes and Rome on every row. That is a finding about sources, not about motive. The argument on each row is made elsewhere in this book, and one sentence each is enough here.

*Whose decision binds.* The chain received the rule on its antiquity alone and hardened it by re-citing the same English line (above, and chapter 2.4 § A); against the *Institutes* and Hobbes's chapter 26 it treats a sentence as a law to every successor, and a foreign court's sentence, refused by its own apex, as a law to a hierarchy that did not exist when it was given (above).<sup>182</sup>

*Which way fear runs.* The keystone of the modern doctrine is that officials must act "fearlessly," a rationale that entered from a 1949 tort opinion and was recited until it sounded like law (chapter 2.5 § C). Rome aimed the law's fear at the reckless litigant: the *Institutes* close on the pains taken by those who had charge of the law "to deter men from reckless litigation," by

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<sup>182</sup> The rule's American reputation at the end of the nineteenth century is stated by Ardemus Stewart, *The Irresponsibility of the Judiciary*, 43 Am. L. Reg. & Rev. 383, 383 (1895) ("one of the oldest and most firmly settled rules of the common law"; "If he had jurisdiction, he is secure"). The reason is drawn from Hawkins and from a Scottish appeal, the report's page is misprinted (Stewart's "12 Co. Rep. 223"), and the leaf's own sources are not mentioned.



"money fines, the employment of the oath, and the fear of infamy";<sup>183</sup> Hobbes made the partial judge the cause of the subject's flight from the courts and required of the good judge that he divest himself of all fear (chapter 1.4 § C); and the judicial oath Parliament fixed by statute puts the English judge on the same side, swearing to do right "without Fear or Favour" (chapter 2.5 § C). Coke's own account of the Star Chamber put the fear where Rome did, on the offender, and named the judges' fear of great men as the mischief the court existed to meet: its end was that "*Ut poena ad paucos, metus ad omnes perveniat*, without respect of persons, be they publique or private, great or small," and its matter "oppression, and other exorbitant offences of great men, (whom inferiour judges and jurors (though they should not) would in respect of their greatnesse be affraid to offend)."<sup>184</sup> The 1607 court alone, and the doctrine that cites it, put the fear in the judge and the deterrent on the complainant.

*Where the plea goes.* The modern rule keeps the bar and has no receiver: under Article III there is no King before whom the plea against a judge may be brought, and the doctrine has never named a substitute (chapter 3.1 § A; Conclusion to Parts 2 and 3). Rome made the judge pay the party and rewarded the subject who accused him (Part 5, chapter 5.3); Hobbes gave the party a judge (chapter 1.4 § C); English law before the rule gave him a petition against the justices' delays, an action for unjust delay, and a King's Bench to correct the errors of every judge (chapter 1.4 § B); and the receiving order's own answer is the jury and the court (chapter 3.1 § C), which the doctrine's threshold ruling removes.

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183 Justinian, *Institutes* 4.16 pr., in Moyle (trans.), *The Institutes of Justinian* 204 (2d ed., Oxford 1889) ("great pains have been taken by those who in times past had charge of the law to deter men from reckless litigation"; the means "money fines, the employment of the oath, and the fear of infamy"). The Roman remedies against the judge himself, the *iudex qui litem suam fecit* at both grades and the unjust judgment as an injury to the litigant (D. 5.1.15.1; Inst. 4.5 pr., 4.4.1), are set out in Part 5, chapter 5.3.

184 Coke, 4 Inst. 63 (cap. 5), quoted in the King paragraph of chapter 1.4 § B; and *id.* at 66 (the 1644 pagination, bracketed in the 1797 margin; the 1797 print's own running head reads †65), "Quod arbitrio iudicis relinquitur, non facile trahit ad effusionem sanguinis," the court's rule against its own discretion in punishment.

*The word for the thing.* The 1607 report has no word "immunity"; its phrase is the account to God and the King (chapter 1.4 § A). Hobbes has "impunity," a vice. Rome has *impunitas* for the wrongdoer who escapes, and for the sovereign alone the position that he cannot be made a defendant, which is Hobbes's Latin too, "ne Reus quidem fieri," said of the sovereign and never of the judge.<sup>185</sup> "Immunity" as a right of the officer is the doctrine's own word, not its sources'.

*A rule received by citation to sources already answered.* English decisions preceding American jurisprudence are evidence of the common law received, admissible under the reception condition; they are not precedents of the American hierarchy, and stare decisis does not run to them. *Floyd* fails the condition twice: it had no receiver, and it was refused at its source.

The sources add three things, each a finding about sources. First, *Floyd* is not an English common-law decision at its own leaf: for the rule it cites no English case, and the one English instance it names, Thorpe's judgment, records a Chief Justice tried and condemned for corruption. Its sources are the King's person, a Roman poet's line through a Roman orator, and Scripture as a prerogative court glossed it. Second, on each of those sources the receiving order spoke in terms, and chapter 3.3 § B states how. Third, a contemporary of the rule, reasoning from the same three sources and holding the most absolute theory of sovereignty the century produced, reached the opposite result on every point but the sovereign's own person, and the founders who read him rejected even that. A rule whose three sources the receiving order each answered, and whose contemporary theorist of sovereignty refused it, fails the reception condition not twice but at every point where the condition can be applied. What the American

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<sup>185</sup> Hobbes, *Leviathan* (1668), cap. 18, at 88 ("non potest qui Summam habet Potestatem à Civibus occidi, aut quomodocunque Iure puniri. Nam qui Injuriam facere non potest, ne Reus quidem fieri, multo minus condemnari potest"), the Latin of ch. 18, at 90 (1651), quoted in chapter 1.4 § B. For *impunitas* as the wrongdoer's escape, D. 48.19.5 pr. ("satiù enim esse impunitum relinqui facinus nocentis quam innocentem damnari"), quoted in the Roman-law paragraph of chapter 1.4 § B.

chain calls adherence to precedent, in *Floyd's* case, is adherence to a foreign court's gloss on sources the American order had already answered.

The conclusion can be put in one sentence, with its reach stated in the same breath. The modern American doctrine of judicial immunity stands alone: against the ancient sources its founding case cites, each of which spoke against it in terms; against the English record before and around that case, which at the roll condemned the Chief Justice who broke his oath and at the leaf cites no English decision for the rule; and, on the classification made in Part 4 of this work, against the *de jure* law of the orders there compared. The first two are measured at the record in this section and in chapter 1.4. The third is a classification of *de jure* law, the text as written; what it does not measure, for any order but the American, is that order's common law, the congruency between the two, and its adherence to *stare decisis*, and for England this work measures those in part. The doctrine is not the common law of England received. It is a prerogative court's resolution of 1607 that cited no English case, received into the American order through Coke's report without examination of its sources, and called precedent by the chain that followed. Chapter 3.4 states what a court faithful to its own precedents may do with that finding; Part 4 states the four terms by which the comparison is made and the measurement not made; Part 5 gives the older record's answer.

### **2.3 The Spine: Immunity With No Constitutional Source**

This chapter traces the immunity chain from the bottom up, building the genealogy only from what the opinions themselves cite, and lays it out in a single column. Chapters 2.4 and 2.5 then examine the two places where the column is decided: the entry, where a 1607 rule was received by citation rather than adjudication and has since been put in issue from the bar without answer;

and the apex, where the doctrine reached the presidency on a base the genealogy shows cannot bear it.

A doctrine grounded in constitutional text can be tested from a foundation; this one cannot, because it names none. The immunity edifice does not begin in Article II, or in any clause, or even in an American court reasoning from constitutional first principles. It enters United States law in **1868**, and it enters not by adjudication but by an act of citation: *Randall v. Brigham* took the rule and its rationale from Coke's report of the 1607 Star Chamber decision in *Floyd v. Barker*, that "the superior judges are the delegates of the king . . . to him alone are they accountable," and examined no record and produced no constitutional provision.<sup>186</sup> That citation is the doctrine's American headwater, the unexamined point of entry to which the bottom-up trace returns in chapter 2.4 § A, where the entry is read in full.

The fear rationale, however, had entered American law earlier still — sixty years before *Randall*, and in a form that shows the untethered transplant was a road taken, not a road required. In *Coffin v. Coffin* (1808), construing the speech-or-debate privilege of a written state constitution, Chief Justice Parsons grounded legislative immunity expressly in fear: the privilege exists "to support the rights of the people, by enabling their representatives to execute the functions of their office *without fear of prosecutions, civil or criminal*," preserving "the free and unreserved exercise of the duties of a representative, *unawed by the fear of legal prosecutions*."<sup>187</sup> That is the fearlessness keystone (chapter 2.5 § C) in its first American voice, and it already booked the citizen's lost remedy as the admitted price — "a private benefit must

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<sup>186</sup> *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868) (Field, J.) (receiving official immunity as a rule "as old as the law," "maintained by a uniform course of decisions in England for centuries, and in this country ever since its settlement," resting on "what . . . was said as long ago as 1608, as reported by Lord Coke in *Floyd and Barker's case*," 12 Co. Rep. 23, 25 — the sentence the text quotes, to "except before the king himself").

<sup>187</sup> *Coffin v. Coffin*, 4 Mass. 1, 27, 28 (1808) (Parsons, C.J.) ("without fear of prosecutions, civil or criminal" (27); "unawed by the fear of legal prosecutions" and "a private benefit must submit to the public good" (both 28)).

submit to the public good." But *Coffin* did two things the later doctrine discarded. It anchored the privilege in *constitutional text* — the enacted speech-or-debate clause — rather than in a borrowed maxim of antiquity. And it set the privilege's *ceiling* in that same text, holding that in a republic of written constitutions privilege may be claimed only as the people conferred it, "for a struggle for privileges, in this state, would be a contest against the people, to wrest from them what they have not chosen to grant."<sup>188</sup> The fear rationale was thus first received under discipline: bounded by the text that granted it and disclaimed wherever the text did not reach. What entered the *judicial* line in 1868 was the same rationale stripped of both limits — fear without a textual anchor and without a textual ceiling. *Coffin* is therefore not a node in the chain the table below traces but the road beside it — the proof that the rationale could have been held to text, and was not. The American reception then proceeds branch by branch — legislature (1808), judiciary (1868), executive (1896), Presidency (1982–2024) — each step further from the textual discipline the first observed, as chapter 2.5 § C traces in detail.

What begins in **1951** is narrower and later: the reading of that received immunity *into* a federal statute whose text makes "[e]very person" who deprives another of constitutional rights "liable to the party injured."<sup>189</sup> In *Tenney v. Brandhove*, the Court declined to find that 42 U.S.C. § 1983 had abrogated the common-law immunity of legislators, reasoning that "[w]e cannot believe that Congress — itself a staunch advocate of legislative freedom — would impinge on a tradition so well grounded in history and reason by covert inclusion in the general language."<sup>190</sup> The ground is a tradition and a presumption about intent; the opinion concedes that congressional

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<sup>188</sup> *Id.* at 34 (in a written-constitution republic, privilege extends only to what the people granted: "a struggle for privileges, in this state, would be a contest against the people, to wrest from them what they have not chosen to grant"; disclaiming the English origin, "acquired by the successful struggles of centuries, directed either against the monarchy or an hereditary aristocracy").

<sup>189</sup> 42 U.S.C. § 1983.

<sup>190</sup> *Tenney v. Brandhove*, 341 U.S. 367, 376 (1951).

power even to reach the legislators at issue "would be a big assumption."<sup>191</sup> Justice Douglas, in dissent, named the cost: "If a committee departs so far from its domain to deprive a citizen of a right protected by the Constitution, I can think of no reason why it should be immune."<sup>192</sup> He lost, and the structure of that node set the pattern for the statutory line above it: a received common-law immunity read into a remedial statute on a presumption, over a dissent that named the citizen's constitutional injury.

The presumption was not merely unsupported; it was affirmatively false, and a dissenting Justice proved it from the legislative record sixteen years later. In *Pierson v. Ray*, the Court read judicial immunity and a police good-faith defense into the same statute, reasoning that "[t]he legislative record gives no clear indication that Congress meant to abolish wholesale all common-law immunities."<sup>193</sup> Justice Douglas answered from the 1871 debates: "every member of Congress who spoke to the issue assumed that the words of the statute meant what they said and that judges would be liable," with the Act's opponents objecting *because* it stripped immunity.<sup>194</sup> His textual point was unanswerable — "[e]very person' would mean every person, not every person except judges"<sup>195</sup> — and again he lost. Nor was the text the Court construed the whole text Congress had passed: § 1 of the Act of 1871 made the wrongdoer liable "any such law, statute, ordinance, regulation, custom, or usage of the State to the contrary notwithstanding," words dropped when the Revised Statutes of 1874 recompiled the section; two recent studies read the clause as displacing the common-law defences the Court would later read

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<sup>191</sup> *Id.*

<sup>192</sup> *Id.* at 382–83 (Douglas, J., dissenting).

<sup>193</sup> *Pierson v. Ray*, 386 U.S. 547, 554–55 (1967); see *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335 (1872).

<sup>194</sup> *Pierson*, 386 U.S. at 559–62 (Douglas, J., dissenting).

<sup>195</sup> *Id.* at 559.

in, and the omission as changing nothing.<sup>196</sup> The doctrine's foundational premise, in short, is contradicted by the very record it claims to rest on.

From there the chain ascends by policy. *Scheuer v. Rhodes* generated the balance of competing values that later opinions would quote, resting executive immunity on the "danger that the threat of . . . liability would deter [an official's] willingness to execute his office" and on the maxim that "it is not a tort for government to govern."<sup>197</sup> *Wood v. Strickland* extended the qualified immunity to school officials on "common-law tradition . . . and strong public-policy reasons."<sup>198</sup> None of these decisions produced constitutional text; each rested on the prior link and a prediction about official behavior.

Three months before *Butz*, the judicial line had moved the other way, and the two decisions of the same Term are the doctrine's two faces. In *Stump v. Sparkman* (1978) an Indiana circuit judge had approved a mother's petition to have her fifteen-year-old daughter sterilized on the day it was presented, in an ex parte proceeding with no hearing, no notice to the daughter, and no guardian ad litem; the court of appeals had held the approval "an illegitimate exercise of his common law power because of his failure to comply with elementary principles of procedural due process."<sup>199</sup> The Court reversed. It took from *Bradley* the rule that immunity fails only in the

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196 Act of Apr. 20, 1871, ch. 22, § 1, 17 Stat. 13 (the clause closes the section's liability sentence); Rev. Stat. § 1979 (1874), 18 Stat. pt. 1, at 348 (the section recompiled without it, the margin citing "20 April, 1871, c. 22, s. 1, v. 17, p. 13"); both read at the page. The clause's recovery and its bearing on the defences: Alexander A. Reinert, *Qualified Immunity's Flawed Foundation*, 111 Calif. L. Rev. 201 (2023) (not held; cited as Jaicomo and Nelson cite it); Patrick Jaicomo & Daniel Nelson, *Section 1983 (Still) Displaces Qualified Immunity*, 49 Harv. J.L. & Pub. Pol'y 151, 151–54 (2026) (the omission of 1874 changed nothing). Neither treats *Floyd*, *Bradley* or the Star Chamber; this book's ground is the source of the immunity, not the codification of the statute, and stands on either reading of the clause.

197 *Scheuer v. Rhodes*, 416 U.S. 232, 240–42 (1974) (quoting *Dalehite v. United States*, 346 U.S. 15, 57 (1953) (Jackson, J., dissenting)); see *Monroe v. Pape*, 365 U.S. 167 (1961).

198 *Wood v. Strickland*, 420 U.S. 308, 318 (1975).

199 *Stump v. Sparkman*, 435 U.S. 349, 351–53 (1978) (the petition, its same-day approval, and the operation, recited from the opinion of the Court rather than the syllabus); *id.* at 359 (quoting *Sparkman v. McFarlin*, 552 F.2d 172, 176 (7th Cir. 1977)).

"clear absence of all jurisdiction," and it added the instruction that has governed every judicial-immunity case since: "the scope of the judge's jurisdiction must be construed broadly where the issue is the immunity of the judge," so that a judge "will not be deprived of immunity because the action he took was in error, was done maliciously, or was in excess of his authority," and "is absolutely immune from liability for his judicial acts even if his exercise of authority is flawed by the commission of grave procedural errors."<sup>200</sup> The citizen's constitutional interest — the due-process holding below — survives in the reports only in dissent: Justice Stewart's "[a] judge is not free, like a loose cannon, to inflict indiscriminate damage whenever he announces that he is acting in his judicial capacity," and Justice Powell's naming of "the central feature of this case — Judge Stump's preclusion of any possibility for the vindication of respondents' rights elsewhere in the judicial system."<sup>201</sup> The history the Court recited had been contested before it: amici had told the Court, seven weeks earlier, that the common-law immunity was "somewhat uneven," confined in England to superior courts only by an Act of 1848, and adopted by thirteen states by 1871 while six held judges liable for malice; the opinion does not mention the brief (chapter 2.4).<sup>202</sup> *Stump* is the node at which the *Bradley* exception was pegged: the jurisdiction on which

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200 *Stump*, 435 U.S. at 356–57 (citing *Bradley*, 80 U.S. at 351–52); *id.* at 359.

201 *Id.* at 367 (Stewart, J., dissenting); *id.* at 369 (Powell, J., dissenting).

202 Motion for Leave to File Brief Amici Curiae and Brief for Amici Curiae American Coalition of Citizens with Disabilities, Epilepsy Foundation of America, Counsel for Handicapped People, and Developmental Disabilities Law Project at 34–37, *Stump v. Sparkman*, No. 76-1750 (U.S. filed Jan. 9, 1978) (Robert L. Burgdorf Jr., Donald N. Bersoff & Nancy B. Shuger, counsel). At 36: "In the light of this history, it is disingenuous to say that if Congress had wanted to abrogate absolute immunity for judges it 'would [have] specifically so provided.'" At 37: "to ground judicial immunity on the basis of legislative immunity is genuinely to misread both the common law and the legislative history of the Civil Rights Act." *Stump* was decided March 28, 1978; the opinion of the Court cites no amicus brief. The Sparkmans' own briefs, by counsel, name no English decision and argue jurisdiction and the non-judicial character of the act: Brief for Respondents in Opposition at ii, *Stump v. Sparkman*, No. 76-1750 (U.S. filed Aug. 6, 1977) (Richard H. Finley, counsel) (the table of authorities lists American decisions only); Brief for Respondents at i–iii, 10, 18, *Stump v. Sparkman*, No. 76-1750 (U.S. filed Dec. 16, 1977) (Richard H. Finley & Eugene Gressman, counsel) (the citations list American decisions only; Argument I, immunity only for judicial acts within jurisdiction, at 10; Argument II, the secret approval a non-judicial act, at 18). The amici's history is drawn from Pollock and Maitland and two student notes; like every challenge in the record, it reaches *Floyd* through the print and does not ask what the court did in the cause.



liability had turned since *Marshalsea* (chapter 2.4) was henceforth to be read "broadly" precisely where its breadth decides whether the judge answers.

*Butz v. Economou* (1978) is the hinge, and it deserves emphasis because it is the one node where the citizen's side is named in constitutional terms — and prevails. Rejecting absolute immunity for most federal executives, the Court reasoned that to grant it would mean "a suit under the Constitution could provide no redress to the injured citizen," would "seriously erode the protection provided by basic constitutional guarantees," and would leave officials free to infringe "such important personal interests as liberty, property, and free speech."<sup>203</sup> The citizen's constitutional interest is not merely acknowledged; it is the operative reason the immunity is *limited*. *Butz* is the high-water mark — and everything after it is downhill, and into dissent.

The descent tracks the doctrine's climb toward the apex office. In *Nixon v. Fitzgerald* (1982), the Court announced absolute presidential immunity from civil damages for official acts, grounding it in "Article II interests" and in *Spalding v. Vilas* (1896), and producing no Article II text.<sup>204</sup> The injured citizen, a constitutional protagonist in *Butz* four years earlier, became "a regrettable cost," set against "broad public interests" and "the effective functioning of government"; the "sufficient" substitute for a remedy was said to be impeachment, the press, Congress, and the vigilance of the electorate — checks on the *office*, nothing for the *person*.<sup>205</sup> Justice White, joined by three others, called the result what it was: "a reversion to the old notion that the King can do no wrong."<sup>206</sup> The citizen-protective view that commanded a majority in *Butz* was now a four-vote dissent. The same day, *Harlow v. Fitzgerald* recast qualified immunity in "objective" terms, and in the sentence that did so conceded that the recasting was only

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<sup>203</sup> *Butz v. Economou*, 438 U.S. 478, 505 (1978).

<sup>204</sup> *Nixon v. Fitzgerald*, 457 U.S. 731, 748–49 (1982); see *Spalding v. Vilas*, 161 U.S. 483 (1896).

<sup>205</sup> *Nixon v. Fitzgerald*, 457 U.S. at 751, 754 & n.37, 757.

<sup>206</sup> *Id.* at 766 (White, J., dissenting).

essentially one: "By defining the limits of qualified immunity essentially in objective terms, we provide no license to lawless conduct."<sup>207</sup> Objectivity admits no degrees. A standard essentially objective is objective as a statement is mostly true, and the adverb is the kind of qualifier the Method's § C teaches the reader to watch, one the later restatements shed (chapter 2.5 § C). The same decision removed from the jury a question the Court conceded was one "of fact that some courts have regarded as inherently requiring resolution by a jury" (chapter 3.1 § C).<sup>208</sup> And the standard it defined, a reasonable official who did not know that a right was clearly established, cannot fit the office the companion decision governs: the President is charged to take care that the laws be faithfully executed and holds the Department of Justice to that end, so that there is no reasonable President who did not know the law against whom his conduct could be measured; the measuring rod does not exist for the office, which is why the apex opinion of 2024, invoking *Harlow* for the immunity's existence, never applied its standard to the President (chapter 2.5 § A; chapter 3.2 § E). *Clinton v. Jones* (1997) is the counter-pole that proves the rule: a sitting President enjoys no immunity from civil suit for unofficial conduct — but even there the citizen's interest is framed as a procedural "interest in bringing the case to trial," and the holding turns on the official's burden being speculative on the record, not on the citizen's right.<sup>209</sup> And in *Trump v. United States* (2024), the culmination, the doctrine reached absolute immunity for "core" acts and at least presumptive immunity for "official" acts at the "outer perimeter," while forbidding the use of immune acts even as evidence; the accountability side of the ledger appears all but only in dissent: the root "accountab-" occurs forty-five times in Justice Jackson's dissent, on all

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207 *Harlow v. Fitzgerald*, 457 U.S. at 819; the *Harlow* note in this section.

208 *Harlow v. Fitzgerald*, 457 U.S. 800, 816, 819 (1982); *id.* at 818 (the standard: "clearly established statutory or constitutional rights of which a reasonable person would have known"); *id.* at 819 ("By defining the limits of qualified immunity essentially in objective terms, we provide no license to lawless conduct").

209 *Clinton v. Jones*, 520 U.S. 681, 707 (1997).

but one of its twenty-one pages, five times in Justice Sotomayor's, and once in the opinion of the Court, there describing the broader immunity the Court rejects.<sup>210</sup>

Between the 1982 twins and *Clinton*, the judicial line produced the one modern decision that let a citizen through, and then the one act of Congress the chain contains. In *Pulliam v. Allen* (1984) a Virginia magistrate had jailed two men, unable to post the bail she set, on charges that carried no jail term; the Court held, five to four, that judicial immunity bars neither prospective injunctive relief nor the attorney's fees that follow it, because Congress meant § 1983 "to protect the people from unconstitutional action under color of state law, 'whether that action be executive, legislative, or judicial.'"<sup>211</sup> *Pulliam* is also the one modern decision that went to the root. Its history opens at *Floyd and Barker* (1607), quotes the report's "annihilating of a record" passage as "the theory upon which the concept of judicial immunity was built," and examines no record — the reception described in chapter 2.2, performed again in 1984.<sup>212</sup> The history was the respondents' own, argued from two 1980 law-review studies, and the Court took it exactly as far as narrowing the doctrine's reach (chapter 2.4).<sup>213</sup>

Congress answered in 1996. Section 309 of the Federal Courts Improvement Act wrote into § 1983 that "in any action brought against a judicial officer for an act or omission taken in

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210 *Trump v. United States*, 603 U.S. 593, 607–609 (2024) (immunity for the "conclusive and preclusive" core, which "Congress cannot act on, and courts cannot examine"); *id.* at 618–619 (presumptive immunity extending to the "outer perimeter" of official responsibilities); *id.* at 630–632 (the evidentiary bar). On the last clause, the count is of the opinions' word forms; the Court's one use is at *id.* at 634, where the Court is not weighing accountability against the immunity it grants but describing the consequence of the *broader* immunity Trump urged and it rejects (that a President who conceals his crimes, or whom Congress lacks the will to impeach, "can never be held accountable for his criminal acts in the ordinary course of law"). The count is of word forms in the preliminary print; the method is that of the "energy" census in chapter 2.5 § D and the note there.

211 *Pulliam v. Allen*, 466 U.S. 522, 524–25 (1984) (the facts); *id.* at 541–44 (the holdings) (quoting *Mitchum v. Foster*, 407 U.S. 225, 242 (1972)). Justice Powell dissented, joined by the Chief Justice and Justices Rehnquist and O'Connor, *id.* at 544.

212 *Pulliam*, 466 U.S. at 530–31 ("the theory upon which the concept of judicial immunity was built"); the next note.

213 *Pulliam*, 466 U.S. at 530–31 (quoting *Floyd and Barker*, 12 Co. Rep. 23, 25, 77 Eng. Rep. 1305, 1307 (Star Chamber 1607)). The Court's account of the case — a common-law judge "charged in the Star Chamber with conspiracy" — is the report's; on the record the report omits, see Part 1, chapter 1.2.

such officer's judicial capacity, injunctive relief shall not be granted unless a declaratory decree was violated or declaratory relief was unavailable," and into § 1988(b) that such an officer "shall not be held liable for any costs, including attorney's fees, unless such action was clearly in excess of such officer's jurisdiction."<sup>214</sup> It is the only node in the chain that was enacted rather than received, and the hearing that produced it opened with an 1868 English Exchequer judge quoted without his name and with the charge that *Pulliam* "disregards four centuries of unbroken precedent" (chapter 2.4).<sup>215</sup> Two features of the enactment bear on the chain. The damages immunity *Pierson* presumed remains where *Pierson* left it, in no statute; what Congress enacted was a fence around the one gate *Pulliam* had opened. And the fence carries the *Bradley* limit — fees survive where the act was "clearly in excess of such officer's jurisdiction" — so that the only immunity Congress has ever written turns, as the tradition did, on jurisdiction rather than status.<sup>216</sup>

The chain, laid out, reads in a single column:

| Year / Case                           | Immunity created or moved                                         | Antecedent claimed → produced                                    | Constitutional source | The citizen's constitutional interest |
|---------------------------------------|-------------------------------------------------------------------|------------------------------------------------------------------|-----------------------|---------------------------------------|
| 1607 <i>Floyd v. Barker</i>           | English judicial immunity by sworn status; the sealed loop        | crown prerogative ("delegates of the king")                      | None (English)        | —                                     |
| <b>1868 <i>Randall v. Brigham</i></b> | <b>the American entry</b> — immunity received "as old as the law" | Coke's report of <i>Floyd</i> (1607); citation, not adjudication | None                  | —                                     |
| 1896 <i>Spalding v. Vilas</i>         | transplanted to executive officers                                | English <i>judicial</i> immunity ( <i>Scott v. Stansfield</i> )  | None                  | —                                     |

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214 Federal Courts Improvement Act of 1996, Pub. L. No. 104-317 (the judicial-officer provisos codified at 42 U.S.C. §§ 1983, 1988(b), as the Code's amendment credits record).

215 *Judicial Immunity: Hearing on S. 590 Before the Subcomm. on Courts and Administrative Practice of the S. Comm. on the Judiciary*, 101st Cong. 1 (1989) (S. Hrg. 101-664) [hereinafter *S. 590 Hearing*] (opening statement of Sen. Heflin) (quoting, without attribution, Kelly, C.B., in *Scott v. Stansfield*, L.R. 3 Ex. 220, 223 (1868)). "Four centuries" from 1989 reaches 1607.

216 42 U.S.C. § 1988(b) (the proviso quoted above in this section).

| Year / Case                            | Immunity created or moved                                                                                                                                                               | Antecedent claimed → produced                                                                            | Constitutional source | The citizen's constitutional interest                                                              |
|----------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------|-----------------------|----------------------------------------------------------------------------------------------------|
| 1951 <i>Tenney</i>                     | Legislative immunity read into § 1983                                                                                                                                                   | "tradition" + "we cannot believe Congress" → presumption                                                 | <b>None</b>           | named in dissent (Douglas), lost                                                                   |
| 1967 <i>Pierson</i>                    | Judicial + police immunity into § 1983                                                                                                                                                  | no "clear indication that Congress meant to abolish" → presumption refuted by the 1871 record            | <b>None</b>           | concededly unconstitutional arrest; officers win                                                   |
| 1974 <i>Scheuer</i>                    | Executive qualified immunity; the balance                                                                                                                                               | common law → policy ("not a tort for government to govern")                                              | <b>None</b>           | reduced to assumed cost                                                                            |
| 1975 <i>Wood</i>                       | QI extended to school officials                                                                                                                                                         | tradition + "public-policy reasons"                                                                      | <b>None</b>           | operates only as the cutoff                                                                        |
| 1978 <i>Stump</i>                      | Judicial immunity for an ex parte sterilization order — no notice, no hearing; "grave procedural errors" immunised                                                                      | <i>Bradley</i> 351–52 → jurisdiction<br>"construed broadly where the issue is the immunity of the judge" | <b>None</b>           | due-process holding below reversed; named only in dissent (Stewart + 2; Powell)                    |
| 1978 <i>Butz</i>                       | QI for federal executives; rejects absolute                                                                                                                                             | the <i>Scheuer</i> balance                                                                               | <b>None</b>           | <b>high-water mark — names and limits immunity</b>                                                 |
| 1982 <i>Nixon v. F.</i>                | Absolute presidential immunity (civil)                                                                                                                                                  | "Article II interests" + <i>Spalding</i>                                                                 | <b>None</b>           | demoted to "regrettable cost"; White + 3 dissent                                                   |
| 1982 <i>Harlow</i>                     | "Objective" QI; subjective prong removed                                                                                                                                                | common law + policy (efficiency)                                                                         | <b>None</b>           | jury fact-question removed                                                                         |
| 1984 <i>Pulliam</i>                    | (Counter-pole) no immunity from prospective injunctive relief or § 1988 fees                                                                                                            | <i>Floyd</i> (1607) read from the print; the 1871 Congress's purpose                                     | —                     | wins, 5–4: § 1983 reaches state action "whether . . . executive, legislative, or judicial"         |
| 1996 Pub. L. 104-317 (amending § 1983) | Congress fences <i>Pulliam</i> : no injunction against a judicial officer absent a violated or unavailable declaratory decree; no fees unless "clearly in excess of . . . jurisdiction" | the 1989 hearing: Kelly C.B. (1868) quoted unnamed; "four centuries of unbroken precedent"               | <b>None</b>           | the <i>Pulliam</i> plaintiffs, jailed on non-jailable charges, cited by the opposition; overridden |

| Year / Case                  | Immunity created or moved                   | Antecedent claimed → produced                                            | Constitutional source | The citizen's constitutional interest |
|------------------------------|---------------------------------------------|--------------------------------------------------------------------------|-----------------------|---------------------------------------|
| 1997 <i>Clinton v. Jones</i> | (Counter-pole) no immunity, unofficial acts | —                                                                        | —                     | wins as a <i>procedural</i> interest  |
| 2024 <i>Trump v. U.S.</i>    | Absolute/presumptive presidential immunity  | <i>Nixon v. F.</i> + "Article II" + <i>Youngstown</i> + <i>McDonnell</i> | <b>None</b>           | appears <b>only in dissent</b>        |

Every cell in the fourth column reads the same. That column is the bottom-up argument.

What stands in that column's place, node after node, is a recital of age. The recitals can be laid out in the same way, each with what it names as the ground of the age it claims:

| Year / Case          | The recital                                                                                                                                                                                                                              | What it names for the age                                                                   |
|----------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| 1868 <i>Randall</i>  | "This doctrine is as old as the law"; "maintained by a uniform course of decisions in England for centuries, and in this country ever since its settlement"                                                                              | <i>Floyd and Barker</i> , "said as long ago as 1608," from Coke's report; no decision named |
| 1872 <i>Bradley</i>  | "a general principle of the highest importance"; "the settled doctrine of the English courts for many centuries, and has never been denied, that we are aware of, in the courts of this country"; Kent's "a deep root in the common law" | <i>Floyd and Barker</i> , "reported by Coke, in 1608"; <i>Yates v. Lansing</i> (N.Y. 1810)  |
| 1896 <i>Spalding</i> | "the same general considerations of public policy and convenience which demand for judges of courts of superior jurisdiction immunity"                                                                                                   | the judges' immunity, carried to the heads of departments                                   |
| 1951 <i>Tenney</i>   | "taproots in the Parliamentary struggles of the Sixteenth and Seventeenth Centuries"; "a tradition so well grounded in history and reason"                                                                                               | the Bill of Rights of 1689 and the state constitutions, for legislators                     |

| Year / Case                     | The recital                                                                                                                                                                                             | What it names for the age                                                                                                                                        |
|---------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1967 <i>Pierson</i>             | "Few doctrines were more solidly established at common law than the immunity of judges ..., as this Court recognized when it adopted the doctrine, in <i>Bradley</i> "; "this settled principle of law" | <i>Bradley</i>                                                                                                                                                   |
| 1974 <i>Scheuer</i>             | "The modern concept owes much to the elaboration and restatement of Coke and other judges of the sixteenth and early seventeenth centuries"                                                             | Holdsworth; <i>Floyd v. Barker</i> , placed in the King's Bench                                                                                                  |
| 1976 <i>Imbler</i>              | "roots extending to the earliest days of the common law"; "The common-law rule of immunity is thus well settled"                                                                                        | <i>Floyd v. Barker</i> (1608); <i>Yates v. Lansing</i> ; <i>Bradley</i> ; for prosecutors, five lower-court cases of 1933 to 1949, three of them federal (n. 21) |
| 1978 <i>Butz</i>                | <i>Bradley's</i> "settled doctrine of the English courts for many centuries"                                                                                                                            | <i>Bradley</i>                                                                                                                                                   |
| 1978 <i>Stump</i>               | "The governing principle of law is well established and is not questioned by the parties"; "this long-established principle"                                                                            | <i>Bradley</i> ; <i>Randall</i> ; <i>Pierson</i>                                                                                                                 |
| 1980 <i>Owen</i>                | "a tradition of immunity ... so firmly rooted in the common law"; "so well grounded in history and reason"                                                                                              | <i>Pierson</i> ; <i>Tenney</i>                                                                                                                                   |
| 1982 <i>Harlow</i>              | the immunity of legislators and of judges "now is well settled"                                                                                                                                         | <i>Eastland</i> ; <i>Stump</i>                                                                                                                                   |
| 1982 <i>Nixon v. Fitzgerald</i> | "rooted in the constitutional tradition of the separation of powers and supported by our history"; "taken for granted for nearly two centuries" (Burger, C.J., concurring)                              | Story's <i>Commentaries</i> of 1833; "our history"                                                                                                               |

| Year / Case                                                                                                                                               | The recital                                                                                                                                                                                                                                                                                                                                                                          | What it names for the age                                                                                                                                                                                                                                                                                                                  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1991 <i>Mireles</i>                                                                                                                                       | <i>Bradley's</i> "general principle of the highest importance"                                                                                                                                                                                                                                                                                                                       | <i>Bradley</i>                                                                                                                                                                                                                                                                                                                             |
| 1993 <i>Buckley</i>                                                                                                                                       | the prosecutor's immunity "well settled"                                                                                                                                                                                                                                                                                                                                             | <i>Imbler</i>                                                                                                                                                                                                                                                                                                                              |
| 2012 <i>Rehberg</i>                                                                                                                                       | "long recognized"; "long-established absolute immunity"; "well grounded in history and reason"; "an entrenched feature of our § 1983 jurisprudence"                                                                                                                                                                                                                                  | <i>Tenney; Burns; Pierson</i>                                                                                                                                                                                                                                                                                                              |
| 2024 <i>Trump</i>                                                                                                                                         | "rooted in the constitutional tradition of the separation of powers and supported by our history"                                                                                                                                                                                                                                                                                    | <i>Nixon v. Fitzgerald</i>                                                                                                                                                                                                                                                                                                                 |
| the sovereign's side: 1858 <i>Beers</i> , 1890 <i>Hans</i> , 1907 <i>Kawananakoa</i> , 1979 <i>Nevada v. Hall</i> , 1999 <i>Alden</i> , 2019 <i>Hyatt</i> | "an established principle of jurisprudence in all civilized nations"; the answer "public property since before the days of Hobbes"; "enjoyed as a matter of absolute right for centuries"; "The generation that designed and adopted our federal system considered immunity from private suits central to sovereign dignity"; "well established and widely accepted at the founding" | no authority ( <i>Beers</i> ); <i>Beers (Hans)</i> ; Hobbes, Bodin, Eliot and Baldus ( <i>Kawananakoa</i> ); Pollock and Maitland on feudal origins ( <i>Nevada v. Hall</i> , overruled in 2019 with its premise kept); Blackstone and Iredell's dissent in <i>Chisholm (Alden)</i> ; <i>Alden</i> , Madison and Hamilton ( <i>Hyatt</i> ) |

The recitals share three features. Each names an earlier node of the chain, and where a node names anything older than the chain it names Coke's report of *Floyd*, dated a year late and once placed in the wrong court, Kent's opinion of 1810, or a treatise. The one enacted text of any age in the column is the Bill of Rights of 1689, and it protects legislators. And none names a decision that had read the record of the case the recital descends from; the settledness is the recital's own. The doctrine's weight thus rests on a claim of age, and the claim concerns a real question, among the oldest any legal order has answered: whether a subject may proceed against



the judge who wronged him. Part 5 reads the answers, from Babylon to the England of the dooms, and every one of them is a remedy (chapter 5.7). If age settles the question, it settles it against the rule.<sup>217</sup>

## 2.4 Entry by Citation, Not Adjudication

### *A. The Entry by Citation: Randall, Bradley, Spalding, 1868–1896*

Chapter 2.3 placed the doctrine's American entry in 1868; the entry repays a closer look, because it set the terms for everything built on it. The rule did not enter United States law by examination but by citation: in *Randall v. Brigham*, the Court received it on its antiquity alone, examining no record and producing no constitutional provision — the citation to Coke's report of *Floyd v. Barker* was the reception.<sup>218</sup> *Bradley v. Fisher* (1872) then hardened the rule, and *Spalding v. Vilas* (1896) carried it to the executive branch — each by re-citing the same English line, never

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217 *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868); *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335, 347 (1872) (Kent's phrase from *Yates v. Lansing*, 5 Johns. 282, 291 (N.Y. Sup. Ct. 1810)); *Spalding v. Vilas*, 161 U.S. 483, 498 (1896); *Tenney v. Brandhove*, 341 U.S. 367, 372, 376 (1951); *Pierson v. Ray*, 386 U.S. 547, 553–54 (1967); *Scheuer v. Rhodes*, 416 U.S. 232, 239 n.4 (1974) ("*Floyd v. Barker*, 12 Co. Rep. 23, 77 Eng. Rep. 1305 (K. B. 1607)"); *Imbler v. Pachtman*, 424 U.S. 409, 423 n.20, 424 (1976); *Butz v. Economou*, 438 U.S. 478, 508 (1978); *Stump v. Sparkman*, 435 U.S. 349, 355–56 (1978); *Owen v. City of Independence*, 445 U.S. 622, 637 (1980); *Harlow v. Fitzgerald*, 457 U.S. 800, 807 (1982); *Nixon v. Fitzgerald*, 457 U.S. 731, 749 (1982), and *id.* at 758 (Burger, C.J., concurring); *Mireles v. Waco*, 502 U.S. 9, 10 (1991) (per curiam); *Buckley v. Fitzsimmons*, 509 U.S. 259, 269 (1993); *Rehberg v. Paulk*, 566 U.S. 356, 361 (2012); *Trump v. United States*, 603 U.S. 593, 611 (2024). The sovereign's side: *Beers v. Arkansas*, 61 U.S. (20 How.) 527, 529 (1858) (Taney, C.J.); *Hans v. Louisiana*, 134 U.S. 1, 17 (1890) (quoting *Beers*), and *Seminole Tribe of Florida v. Florida*, 517 U.S. 44, 69 (1996) (quoting *Hans*); *Kawananakoa v. Polyblank*, 205 U.S. 349, 353 (1907) (Holmes, J.) ("the answer has been public property since before the days of Hobbes"; a sovereign exempt "not because of any formal conception or obsolete theory, but on the logical and practical ground that there can be no legal right as against the authority that makes the law on which the right depends"); *Nevada v. Hall*, 440 U.S. 410, 414 (1979), and *Alden v. Maine*, 527 U.S. 706, 715 (1999) (quoting it); *Alden*, 527 U.S. at 715; *Franchise Tax Board of California v. Hyatt*, 587 U.S. 230, 236, 238 (2019) (overruling *Nevada v. Hall* while holding that the States' immunity "was well established and widely accepted at the founding," and quoting *The Federalist* No. 81 for "the general sense and the general practice of mankind"). Each formula in the table is quoted from the U.S. Reports at the page cited. On *Floyd*'s date and court, chapter 2.2; on the record none of the chain read, Part 1.

218 *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868).

re-examining the foundation.<sup>219</sup> And the foundation those courts declined to examine was, on its now-recoverable record, itself a case of the very evidentiary closure the immunity rule performs — a conviction obtained on an un-authenticated, recanted record and sealed by the destruction of the complaining bill (Part 1, chapter 1.2). The chain's root node is not neutral ancient authority; it is the wrong the doctrine exists to foreclose, decided by foreclosing it. The receiving bar's own inventory of what it took shows the same entry from the other side. In the decade of *Yates v. Lansing*, the Pennsylvania judges reported to their legislature which British statutes were in force, and the digest printed from their report carried the statute of Edward I defining conspirators with Coke's *Institutes* as its gloss, stated the writ of conspiracy as the acquitted man's remedy for "the infamy, imprisonment, and vexation done to him" on Coke's authority, and marked the section of 3 Hen. VII c. 1 that constituted the Star Chamber as not in force; it carried no trace of *Floyd*.<sup>220</sup> What was received as law in force was the complainant's remedy; what arrived half a century later, by citation, was the court's rule against him.<sup>221</sup>

*Spalding* is the deepest available antecedent for American *executive* immunity, and it announces its own provenance without disguise. It extends immunity to a cabinet officer by analogy to judges: "the same general considerations of public policy and convenience which demand for judges of courts of superior jurisdiction immunity . . . apply to a large extent to . . .

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219 *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335, 347–51 (1872); *Spalding v. Vilas*, 161 U.S. 483, 495, 498 (1896).

220 Roberts, *Digest of Select British Statutes* 38 (the writ of conspiracy: "the infamy, imprisonment, and vexation done to him"); the Roberts note in this section.

221 Samuel Roberts, *A Digest of Select British Statutes in Force in Pennsylvania, According to the Report of the Judges of the Supreme Court* 38, 96, 102 (Pittsburgh 1817): at 38, the writ of conspiracy, in which the acquitted defendant "should recover damages for satisfaction in regard of the" wrongs the text names, "done to him . . . which lord Coke says he had read to have begun in this sort before the reign of H. 1."; at 96, 33 Edw. I stat. 2, "Who be conspirators," in force per the Report of the Judges, glossed "2 Inst. 562 — 3 Inst. 143"; at 102, 3 Hen. VII c. 1 ("The authority of the court of Star-chamber"): "Only those parts of this statute are in force, which are distinguished by the numbers from 6 to 19, both inclusive, and by the number 26. *Report of the Judges*." The digest names neither *Floyd v. Barker* nor any immunity of judges.

heads of Executive Departments."<sup>222</sup> And it builds that analogy on English and American *judicial-immunity* precedent — quoting *Scott v. Stansfield*, an 1868 decision of the English Court of Exchequer, for the proposition that a judge must be free to act "without fear of consequences."<sup>223</sup> The taproot of American executive immunity is therefore neither American, nor constitutional, nor executive: it is a foreign judicial decision, transplanted by analogy and carried forward by a recurring keyword. The doctrine did not lose its constitutional source somewhere in the twentieth century. It never had one, because the act that brought it into American law was a citation, not an adjudication. The Court has said as much of its own method: in deciding whether officials performing a function are entitled to absolute immunity it has "generally looked for a historical or common-law basis for the immunity in question," and of the cognate sovereign immunity it has said that "the principle has never been discussed or the reasons for it given" and that "it has never been understood how the doctrine of sovereign immunity came to be adopted in the American democracy."<sup>224</sup>

The antiquity *Randall* invoked will not survive the examination *Randall* omitted. The "uniform course of decisions in England for centuries" the Court received on faith was not uniform. The same reporters and courts the immunity line cites held, in the same volumes, the opposite rule for the case that mattered: a judge or officer who acts without jurisdiction is personally answerable in trespass, the proceeding *coram non judice* and "an action will lie against" him in false imprisonment — and the liability turns on his *knowledge*. Coke himself laid that rule down in *The Case of the Marshalsea* (1612); a century later *Smith v. Bouchier* (1734)

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<sup>222</sup> *Spalding*, 161 U.S. at 498.

<sup>223</sup> *Id.* at 495 (quoting *Scott v. Stansfield*, L.R. 3 Ex. 220, 223 (1868)).

<sup>224</sup> *Mitchell v. Forsyth*, 472 U.S. 511, 521 (1985) ("in deciding whether officials performing a particular function are entitled to absolute immunity, we have generally looked for a historical or common-law basis for the immunity in question": a search for antecedent authority, not for constitutional text); *United States v. Lee*, 106 U.S. 196, 207 (1882) (the principle "always . . . treated as an established doctrine"); *Owen v. City of Independence*, 445 U.S. 622, 645 n.28 (1980).

entered judgment against the very judge who had ordered an arrest on an insufficient oath, the proceeding "*coram non judice*, and a mere nullity," because "the Judge and the plaintiff knew" the oath would not support it.<sup>225</sup> A second counter-current ran beside the first: that an officer could not be stripped of his place without notice, cause, and an opportunity to be heard, the deprivation otherwise void and a writ of restitution awarded — the rule of *Bagg's Case* (1615) and *Willis v. Gipps* (1846), and the very rule *Randall* enforced on the other half of its own judgment, in holding that an attorney may be deprived of his office only where "notice should be given to the attorney of the charges made and opportunity afforded him for explanation and defence."<sup>226</sup> The tradition the Court called uniform in fact ran in three directions, and the doctrine kept only the strand that shielded the official.

### *B. The Curated Pedigree: The Liability Cases Set Aside*

That the selection was made with the contrary authority in view is visible on the face of the immunity cases themselves. *Kemp v. Neville* (1861) — the decision that strung the English chain together to extend immunity to a university officer — marshalled the jurisdiction-liability cases by name in the same breath, and escaped them only by holding that its officer "had jurisdiction in respect of the matter, and the person, and the place"; *Scott v. Stansfield* (1868), the keystone *Spalding* would carry into American executive law, had *Houlden v. Smith* — a judge "is answerable" when he acts without jurisdiction — and the malice question *Thomas v. Churton*

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<sup>225</sup> *The Case of the Marshalsea*, 10 Co. Rep. 68b, 77 Eng. Rep. 1027 (K.B. 1612) (Coke, C.J.) (where a court "has not jurisdiction of the cause," "the whole proceeding is *coram non judice*," and "an action will lie against" the suitor and the officers in false imprisonment); *Smith v. Bouchier*, 2 Stra. 993, 93 Eng. Rep. 989 (K.B. 1734) (judgment for the plaintiff against the judge who arrested on an insufficient oath, the proceeding "*coram non judice*, and a mere nullity," because "the Judge and the plaintiff knew the oath was not sufficient").

<sup>226</sup> *Bagg's Case*, 11 Co. Rep. 93b, 77 Eng. Rep. 1271 (K.B. 1615) (Coke, C.J.) ("a removal, without hearing the party removed, is bad"; the grievied officer "may have a special action on the case," and "a writ of restitution shall be awarded"); *Willis v. Gipps*, 5 Moo. P.C. 379, 13 Eng. Rep. 536 (P.C. 1846) (a judge "amoved . . . without giving him notice, or affording him an opportunity of answering the charges" held "illegal, and reversed"). *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 539–40 (1868) (the other branch of its judgment).

had pointedly reserved pressed upon it at the bar, and ruled past both.<sup>227</sup> The immunity tradition was not inherited intact; it was curated, by courts that had the limiting cases before them, that pegged their own protection to the jurisdiction those cases made decisive, and that wrote a shield turning on status anyway. A "history and tradition" assembled by setting aside the parts of the history that cut the other way is not the deeply rooted practice the Court demands of a citizen who invokes a tradition (chapter 3.2 § F); it is a selection — and the selection, not the tradition, is the holding. That claim is no longer an assertion resting on examples: the full course of decisions the doctrine invokes has been reconstructed case by case — one hundred forty-nine decisions, from the *Liber Assisarum* of 1354 through the 2025 Term, each read in the authoritative report and charted for what the doctrine's own sources say about fear, jurisdiction, notice, and the citizen left before the court — and the reconstruction is maintained as a verified documentary record companion to this book.<sup>228</sup> liii

The examination yields a deeper finding still: the immunity line descends, through its own citations, from the one decision that forbids it. *The Case of the Marshalsea* — the fountainhead of the jurisdiction-liability rule, and Coke's own — rests in turn on *Dr. Bonham's Case* (1610), which its authoritative report invokes by name (8 Co. Rep. 121).<sup>229</sup> *Bonham* is the

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227 *Kemp v. Neville*, 10 C.B. (N.S.) 523, 142 Eng. Rep. 556 (C.P. 1861) (extending immunity to the Vice-Chancellor of Cambridge while citing the jurisdiction-liability cases by name — including *Houlden v. Smith*, "held liable in trespass because he . . . had the means of knowing that he had no jurisdiction" — and resting protection on the finding that he "had jurisdiction in respect of the matter, and the person, and the place," 142 Eng. Rep. 568); *Scott v. Stansfield*, L.R. 3 Ex. 220 (1868) (the demurrer was argued with *Houlden v. Smith* pressed contra at the bar — a judge "is answerable for an act done by his command, when he has no jurisdiction," L.R. 3 Ex. 222 — and with the replication "probably founded upon" the malice question *Thomas v. Churton* had pointedly reserved, L.R. 3 Ex. 221; the court ruled past both, Kelly C.B. resting the exemption on "a series of decisions uniformly to the same effect, extending from the time of Lord Coke to the present time," L.R. 3 Ex. 223).

228 The record comprises two instruments prepared for this book and available from the author: *Appendix: The Case-by-Case Genealogy*, one entry per decision, 149 entries, 1354–2025, and *The Immunity/Standing Genealogy Matrix*, the same decisions charted across fifteen analytic fields; how the corpus was read is stated in the Notes.

229 *The Case of the Marshalsea*, 77 Eng. Rep. at 1039–40, invokes *Dr. Bonham's Case*, 8 Co. Rep. 121, for the officer-liability rule.

authority the genealogy cannot afford to read, because Coke there held three things, each fatal to an office-only immunity: that "the common law will controul Acts of Parliament . . . and adjudge them to be utterly void" when they run "against common right and reason" — the principle American law made the foundation of judicial review in *Marbury*; that no man may be judge in his own cause, *iniquum est aliquem suæ rei esse judicem* — the taproot of due-process disqualification; and that officials who hold "an authority only," and are "not made judges, nor a Court given them," answer for their commitments "in an action of false imprisonment."<sup>230</sup> The crown read the passage the same way, and objected to it at the time. In October 1616, in the proceeding that ended with Coke's removal from the King's Bench (Part 1, chapter 1.3 § D), the King caused cases from the Reports to be collated and required Coke's answer to five, "being all such as were expatiations of his own, and no judgments"; the fourth was *Bonham*, put to him in the Lord Chancellor's own words — "what he means by this passage, that in many cases the common law shall control acts of Parliament, and sometimes judge them to be merely void" — and the fifth was *Bagge's Case*, on the King's Bench's authority to correct "any manner of misgovernment."<sup>231</sup> The two propositions the receiving tradition would take from Coke — that power exercised against common right is void, and that the King's Bench stands above the rival jurisdictions — were the two the King put in issue against their author. When Coke's successor

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230 *Dr. Bonham's Case*, 8 Co. Rep. 113b, 77 Eng. Rep. 638 (C.P. 1610) (Coke, C.J.), the operative holdings at 8 Co. Rep. 118a (the common law "will controul Acts of Parliament . . . and adjudge them to be utterly void" when "against common right and reason"; "*iniquum est aliquem suæ rei esse judicem*" — no man may be a judge in his own cause) and 121a (the censors "are not made judges, nor a Court given them, but have an authority only," so the cause of their commitment "is traversable in an action of false imprisonment"). On *Bonham* as the root American law made of judicial review (*Marbury*), see above in this Section; the *Marbury* lineage is the standard account, framed here as received-in-America rather than as settled English law.

231 Cuthbert William Johnson, *The Life of Sir Edward Coke*, 2d ed., vol. I (London 1845), at 317–18, 321–22 (Ellesmere and Bacon deliver the five questions on 17 October 1616; question 4, "In *Dr. Bonham's case* . . . Lib. 8"; question 5, "In *Bagge's case* . . . Lib. 11"); the King's paper of October 1616, with the words the text quotes, and the removal of November 1616 are cited in the notes at Part 1, chapter 1.3 § D. On the King's Bench-supremacy history the Court adopted in *Pulliam*, see *supra* chapter 2.3 and the note at chapter 2.4 § D.

was sworn the next month, the Lord Chancellor named the fault from the bench, holding up the new Chief Justice's grandfather as the good judge:

He challenged not power . . . to judge Statutes and Acts of Parliament to be void, if they conceived them to be against common right and reason; but left the King and the Parliament to judge what was common right and reason.

The immunity chain inherited the second as history and never noticed that the first had been challenged in the same breath.

A word on the man. This book criticizes Coke's report at length; it makes no finding on his state of mind in 1607, which no record before it can settle. Two facts about his disposition are on the record. In June 1616, when the twelve judges were called before the King over the command to stay proceedings, all kneeled and confessed error; Coke alone answered that when the case came he would do what was fit for a judge to do (chapter 1.3 § D). And as Attorney General he took up a Star Chamber prosecution for the rapes at Snargate in 1598, which the local justice had refused to bring, when rape was seldom prosecuted; one of the three complainants was a maidservant of fourteen, assaulted by three men and left for dead, and he pressed the cause to a verdict.<sup>232</sup> Neither fact decides what he meant in 1607. Both stand beside the report.

The same lineage surfaces again inside the chain: *Groenvelt v. Burwell* (1700), a node the immunity cases recite, arose from the identical College-of-Physicians commitment power

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<sup>232</sup> Louis A. Knafla, *Sir Edward Coke and the Star Chamber: The Prosecution of Rapes at Snargate, 1598–1602*, in K.J. Kesselring & Natalie Mears eds., *Star Chamber Matters: An Early Modern Court and Its Records* 61 (Univ. of London Press 2021), at 61 (the case "unusual in that rape cases were seldom prosecuted in the early modern era" and "unusual in that Sir Edward Coke decided to take it on and then, after a lengthy intermission, put all his weight behind the prosecution in Star Chamber"; "Local authorities had refused to prosecute the men who were accused of the atrocities, but eventually Coke stepped in"), 62 (Coke "relentless in his search for information as the men at first fled into France and elsewhere"; the verdict, the three chief perpetrators fined £200 each and three lesser ones £40 each), 64 (the complainants: Agnes Horn, "aged thirty-five"; Joan Grigsby, "aged thirty"; "Mary Gamby, aged fourteen"), 65 ("Mary Gamby was left in dire straits, assaulted by three men who left her for dead"; the parish justice, William Lamb, told the complainant the assault was "but a trick of youth"), 70 (rape "a crime denounced in the abstract but not much prosecuted in practice"), 73 (the Home Counties assize record of the two reigns: "about 40% of the cases are of children aged two to twelve"). The chapter is Knafla's, in the volume Kesselring edited with Mears. The kneeling of June 1616 is documented at chapter 1.3 § D.

*Bonham* had confined; and *Randall* supplies the proof from its own authority. Its due-process branch relies on *Dimes v. Grand Junction Canal* (1852), which voided the Lord Chancellor's decree on the principle "that no man is to be a judge in his own cause" — and which roots that principle, in turn, on Coke's Reports, the same reporter whose eighth volume carries *Bonham*. The disqualification rule *Randall* invokes thus descends, on the face of *Randall*'s own citation, to the books that hold no official may judge his own cause and power exercised against common right void.<sup>233</sup> The loop closes inside the very corpus the Court received on faith: the doctrine that grants the official an office-only shield traces, by its own authorities, to Coke's holding that no official may judge his own cause, that power exercised against common right is void, and that the officer who exceeds his authority answers in damages — the holding the Founding made the cornerstone of judicial review and due process, and the precise antithesis of the immunity drawn from the same books.

### *C. The Bar's Record, 1951–2000: How the Doctrine Was Argued*

The reconstruction can be tested from below as well as from above, and the test has been run. Beside the reported decisions, the record assembled for this book now holds the doctrine as it was *argued*: a run of immunity briefs filed in a single federal circuit between 1951 and 2000, on both sides, together with the printed record of the 1989 Senate hearing that produced the 1996 codification (chapter 2.3) — every quoted passage read in the digitized print.<sup>234</sup> liv The briefs

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233 *Groenvelt v. Burwell*, 1 Ld. Raym. 454, 91 Eng. Rep. 1202 (K.B. 1700) (Holt, C.J.) (the same College-of-Physicians commitment power adjudicated in *Bonham*); *Dimes v. Proprietors of the Grand Junction Canal*, 3 H.L.C. 759, 793, 10 Eng. Rep. 301, 315 (H.L. 1852) (Lord Campbell) (the maxim "that no man is to be a judge in his own cause should be held sacred," and "not . . . confined to a cause in which he is a party," voiding the Lord Chancellor's decree for his undisclosed interest in the canal company), which roots that maxim on *Sir John Egerton v. Lord Derby*, 12 Co. Rep. 114 — a report of Coke's, the same reporter whose eighth volume carries *Bonham*. Because *Randall* cites *Dimes* as authority for its due-process holding, the disqualification principle descends, on the face of *Randall*'s own citation, to the Coke/*Bonham* root.

234 Seventeen briefs from the Seventh Circuit, 1951–2000, eleven filed for officials and six for citizens, read in the digitized prints (University of Illinois at Urbana-Champaign copies; the hearing, the Pennsylvania State



show the working method of the doctrine, and it is the method of 1868 at every level. Of the eleven documents filed for an official, nine cite *Bradley*, and none reaches behind it except as *Bradley's* own quotation of *Taaffe v. Downes* travels inside a passage quoted whole. That is the defendants' side of the set. The six briefs filed for citizens are read below; one of them, the Hunzikers' of 1989, names *Floyd* and *Marshalsea* and rejects them. The Department of Justice, defending two federal judges in 1976, opened with *Randall's* "uniform course of decisions in England for centuries" and named no English decision; the judge's counsel in *Stump*, at the circuit stage, wrote "This was the settled law of England and is similarly accepted in this country" and cited *Bradley*; by 1979 a municipal defendant's entire argument was a single paragraph of *Stump*.<sup>235</sup> Not one brief filed for an official names *Floyd v. Barker*. The only English decision a defender cites by name is *Marshalsea's* rival strand carried in *Bradley*; the only brief that pleads *Marshalsea* itself as authority is the *plaintiff's*, in 1951, and it pleads the liability rule: "Such has been the law from the days of the *Marshalsea*, 10 Coke 68. It was recognized as such in *Bradley v. Fisher*."<sup>236</sup> The citizen reached further into the tradition than any defender in the set, and reached for the strand the doctrine had curated out.

The briefs also show the curation happening. Judge Stump's own counsel stated the exception with the knowledge element *Bradley* gave it — "[w]here the act is done in the clear absence of all jurisdiction and this is known to the judge, there is no immunity" — and then

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University copy); the list, the two-reader method and the full-text-search basis of the statements that a brief names no English decision are in the Notes; the row-by-row analysis of the set is available from the author.

235 Brief for the Appellees at 3, *Sullivan v. Hoffman*, the brief-list note above in this section (quoting *Randall*, 74 U.S. at 535–36); Stump Brief, the brief-list note above in this section, at 5–6; Brief for Defendant-Appellee at 2, *Craig*, the brief-list note above in this section (quoting *Stump*, 435 U.S. at 355). Of the eleven documents filed for officials, the two that do not cite *Bradley* (*Soderbeck*; *Justice v. Town of Blackwell*) are municipal- and qualified-immunity briefs. *Taaffe v. Downes* appears only inside the *Bradley* passage quoted whole in Brief for Defendant-Appellee at 11, *Reynolds*, the brief-list note above in this section.

236 Brief and Argument for Appellant at 5, *Shemaitis*, the brief-list note above in this section (printed "corum non iudice" in the original; the passage is repeated at 11 as a quotation from *Manning v. Ketcham*, 58 F.2d 938 (6th Cir. 1932)).

asked for a rule under which the knowledge could not matter: "Fundamental concepts underlying 'jurisdiction' are deistic. Judges, however, are mere humans and prone to err . . . to err is human; thus, such protection is both necessary and just."<sup>237</sup> In *McCloud v. Rector* — a litigant jailed at eight in the evening on opposing counsel's telephone call, with no petition filed and no process served — the judge's brief conceded at most a "slight 'excess of jurisdiction'" and argued that jurisdiction over the person must not count toward the exception "because it is the very act of obtaining 'jurisdiction of the party' . . . which often gives rise to suits against judges. . . . If a contrary meaning is intended then the cases are simply wrong."<sup>238</sup> The plaintiff's reply set *Bradley* against *Bradley*: the power of a court "should never be exercised without notice to the offending party . . . . This is a rule of natural justice," at page 354, against the shield at page 351.<sup>239</sup> That is the notice-and-hearing counter-current of *Bagg's Case*, pleaded from *Bradley's* own text; and the argument that answered it — that the limit must be read out because it is where the suits arise — became the law in *Stump*, whose "construed broadly" instruction a state attorney general was quoting as settled canon by 1980.<sup>240</sup>

Two further things the briefs record deserve stating, because the reports do not. The first is what the shield's own defenders conceded it left standing. Defending a state judge in 1974, the Illinois Attorney General told the court that the plaintiff retained the Judicial Inquiry Board, habeas corpus, appeal, and criminal prosecution — that "the judicially fashioned doctrine of

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237 *Stump* Brief, the brief-list note above in this section, at 6 (Point D); *id.* at 14 (Point VI, headed "Justice Requires a Correct Result, To-Wit: Absolute Immunity"); *see also id.* at 15 ("Whether the decision was right or wrong, he is under the law granted immunity."). Justice Stewart's dissent in *Stump*, 435 U.S. at 369, answered the same register — the petitioners' argument for "an aura of deism which surrounds the bench": "if aura there be, it is hardly protected by exonerating from liability such lawless conduct as took place here."

238 *Rector* Brief, the brief-list note above in this section, at 8 (the facts), 19, 24. The brief's phrase at 24 is "jurisdictional immunity," twice.

239 Reply Brief of Plaintiff-Appellant at 5, 10, *McCloud*, the brief-list note above in this section (quoting *Pomeranz v. Class*, 82 Colo. 173, 257 P. 1086, 1090 (1927), quoting *Bradley*, 80 U.S. at 354).

240 Brief of Defendant-Appellee at 3, *Augustyniak*, the brief-list note above in this section (quoting *Stump*, 435 U.S. at 356–57, which the brief attributes to "*Bradley v. Fisher*, 13 Wall. at 351").

official immunity does not reach 'so far as to immunize criminal conduct proscribed by an Act of Congress,'" and that "18 USC § 242 provides a method of fully protecting citizens from judges who commit corrupt acts in office."<sup>241</sup> The accountability the doctrine's beneficiaries pointed to in 1974 is the accountability the apex opinion would later hold the office could not bear (chapter 2.5 § B).

The second is how rarely the pedigree itself was put in issue, and by whom. Across four decades of briefing in the record, the plaintiffs who answered argued the doctrine's own exceptions — jurisdiction, notice, function — competently and from inside it. The question this book asks was put to the court of appeals once, in January 1989, by two litigants without counsel. Donald and Joan Hunziker were hog farmers of Stephenson County, Illinois. On 10 April 1985 a state judge issued the bank that had financed their farm a writ of replevin ex parte, without notice to them; the next day the sheriff and three deputies came unannounced to their farmstead and took much of their livestock, grain and feed, and farm equipment; no hearing on the merits, their brief says, was ever held.<sup>242</sup> Appealing the dismissal of a civil-rights complaint against, among others, the judge who issued the writ, they argued under their own headings that the Supreme Court's decisions

rely upon *Floyd v. Barker* (1607) and *the Case of the Marshalsea* (1613), which is misplaced reliance, for those cases arose in the period of time . . . when the King

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241 Brief for Defendant-Appellee at 13–14, *Reynolds*, the brief-list note above in this section (quoting *Gravel v. United States*, 408 U.S. 606, 627 (1972), and *O'Shea v. Littleton*, 414 U.S. 488 (1974)). The same brief states the plaintiffs' grievance as that the judge "put the wrong man in jail," *id.* at 11.

242 Appellants' Brief and Argument at 1–2, *Hunziker*, the brief-list note above in this section ("an Illinois state action in replevin of farming assets done without notice"; on 11 April 1985 the sheriff "arrived unannounced at the farmstead of the Hunzikers, and without any prior notice to them seized their farm property"; "No hearing on merits was ever held"); the district court's memorandum opinion of 3 October 1988, reproduced in the brief's appendix at 4–5 (the opinion's pp. 2–3): the Hunzikers "hog farmers residing in Stephenson County, Illinois"; the bank "lent them money to operate their farm"; the writ of replevin issued ex parte on 10 April 1985, the hearing "conducted without notice to plaintiffs"; on 11 April the sheriff and three deputies served it, and "[s]ubject to the writ were much of the Hunzikers' livestock, grain and feed, and farm equipment"; the livestock afterwards sold "due to its perishable nature."

and his courts were the law, and the people acting through their Parliament had not yet established their right to rule the realm.

They argued that those cases "clearly assumed judicial liability under several circumstances" and "Bradley glossed over such liability";<sup>243</sup> that

[t]he unquestioning importation to the colonies of such precedents lifted from the early English law without benefit of such exceptions has caused a substantial distortion in the development of the American law, which effectively adopted the rule but without its exceptions;

and that the transplant "totally ignores the varying SOURCE of power of the judiciary under the two forms of government."<sup>244</sup> They asked the court: "Is it not ironic that the Courts of the United States, with sovereignty plainly reposed in the PEOPLE should rely upon concepts of judicial immunity derived from a system assuming the power to govern by divine right?"<sup>245</sup>

The argument was built from a 1980 law-review study the Hunzikers quoted for the proposition that the statements in *Stump* and *Bradley*

are unworthy of the overwhelming weight they are given because they are poor history at two levels: the courts have not understood correctly the primary sources, the prior cases, and the courts have evaluated inadequately the circumstances out of which the earlier cases arose.<sup>246</sup>

That study had already been answered, in 1985, in a footnote of the article by a state supreme court justice that the Senate hearing of October 1989 reprinted — the only document in the set that reaches 1607 from the doctrine's side. It recites Coke's "vehement and violent presumption

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243 Appellants' Brief and Argument at 25–26, 28, *Hunziker* (the brief-list note above in this section).

244 Appellants' Brief and Argument at 25–26, 28, *Hunziker*, the brief-list note above in this section (capitalization of the printed headings normalized; emphasis in the original). The brief places the American reception at Kent's *Yates v. Lansing*, 5 Johns. 282 (N.Y. Sup. Ct. 1810), resting on *Phelps v. Sill*, 1 Day 315 (Conn. 1804), *id.* at 27 — the state-court reception that preceded the Supreme Court's own in *Randall* (chapter 2.3).

245 *Id.* at 25–26 (emphasis in the original).

246 *Id.* at 23 (quoting Feinman & Cohen, *Suing Judges: History and Theory*, 31 S.C. L. Rev. 201, 254 (1980)) (cited as quoted in the brief).

of law, that a justice sworn to do justice, will do injustice" as the doctrine's "ringing affirmation," from the print, and tells its readers that Justice Douglas's derivation of the rule from "the King can do no wrong" is "highly questionable" — eight pages after reporting that Coke held judges "accountable only to God and the King."<sup>247</sup>

The court of appeals affirmed in an unpublished order, decided on the briefs without oral argument, and disposed of the argument in a footnote:

A majority of the Hunzikers' appellate brief is dedicated to decrying the concept of judicial immunity and explaining the Supreme Court's erroneous reliance on English common law and American legislative history to justify applying the doctrine to Sec. 1983 cases. We decline to address the Hunzikers' contentions concerning the concept of judicial immunity.<sup>248</sup>

The same order disposed of the sheriff by the same relocation. Illinois law made the replevin bond the sheriff's own gate: the plaintiff "shall give to the sheriff or other officer a bond with sufficient security in double the value of the property" before service, the officer may serve only "[u]pon the bond being given," and an officer who "returns an insufficient bond" is "liable to the party injured for all damages such party may sustain by reason of such neglect" where "the bond was insufficient when taken" — and the state court had itself, two months after the seizure, required the bank to secure the bond it had given.<sup>249</sup> The court of appeals asked instead whether the *order* was facially valid, held that "[t]he writ itself was proper," and extended the judge's

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247 Joseph R. Weisberger, *The Twilight of Judicial Independence — Pulliam v. Allen*, 19 Suffolk U. L. Rev. 537 (1985), reprinted in *S. 590 Hearing* (the hearing note at chapter 2.3), at 215, 223, 226 n.60 (answering Feinman & Cohen on whether the early immunity reached justices of the peace).

248 *Hunziker v. German-American State Bank*, 908 F.2d 975 (7th Cir. July 10, 1990) (unpublished order) (Cudahy, Easterbrook & Manion, JJ.), *reh'g and reh'g en banc denied* (Sept. 4, 1990), *aff'g* 697 F. Supp. 1007 (N.D. Ill. 1988). The quoted passage is note 4 of the order. The order sustained the judge's immunity on *Stump* — in the order's words, "irregularities in following state procedures do not divest a court of its jurisdiction" (citing 435 U.S. at 359). The order was unpublished and, under the circuit's rule then in force, not citable as precedent; it is cited here as a historical fact about what was argued and how it was answered, not as authority. It is unpublished and is quoted from its online reproduction.

249 Ill. Rev. Stat. ch. 110, ¶¶ 19-112 (the bond "[b]efore the service of the order"), 19-116 (service "[u]pon the bond being given"), 19-114 and 19-115 (the officer's liability, "unless the bond was insufficient when taken") (1985), as reproduced in the Hunzikers' brief at Addendum III; the next note.

immunity to the officers who executed it; the statute that made the officer answer for his own default is not mentioned.<sup>250</sup>lv The judge's immunity was sustained on *Stump*. Set out plainly: a writ served on an unsecured bond was held proper against a statute that required a secured bond before service; the officers who served it were covered by the judge's immunity; the argument from 1607 was declined in a footnote; and the order that did all this was unpublished and, by the circuit's own rule, not to be cited as precedent. The order of 1607 took the subject's bill off the file, "cancelled, and utterly defaced"; the order of 1990 kept the subject's argument, and its own answer to it, out of the record of the law. What Congress did in 1996 is chapter 2.3's last row.

#### *D. The Source Put in Issue Twice: Stump and Pulliam*

The neighbouring immunity in the same record does not behave this way: the sovereign-immunity prints go to *Chisholm* and to Blackstone by name, and four Justices contest the source directly.<sup>251</sup> In the judicial-immunity line the source has been put in issue from the bar twice at the Supreme Court, and neither time did the Court answer it as a question about the source. Seven weeks before *Stump* was decided, a coalition of disability-rights organizations told the Court that "[w]hile some form of judicial immunity has a long history, *see Floyd v. Barker's Case*, 77 Eng. Rep. 1305 (Star Chamber 1608), that history is somewhat uneven," traced the English rule through Pollock and Maitland and the Justices Protection Act of 1848, counted the American

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250 Ill. Rev. Stat. ch. 110, ¶¶ 19-112, 19-114 (officer's liability for an insufficient bond), 19-115 ("unless the bond was insufficient when taken"), 19-116 (1985), as reproduced in the addendum to the Hunzikers' brief (the note above in this section), at Addendum III. *Hunziker*, 908 F.2d 975, pt. B ("The writ itself was proper, and the state court later (in June 1985) required the bank to secure the bond."), applying *Henry v. Farmer City State Bank*, 808 F.2d 1228, 1239 (7th Cir. 1986). Whether a seizure on an unsecured bond is void or merely irregular under Illinois law is not resolved here; the point is which instrument the court examined; the rest is in the Notes.

251 Karl Singewald, *The Doctrine of Non-Suability of the State in the United States* 45-46 (Johns Hopkins Univ. Studies in Hist. & Pol. Sci. ser. XXVIII, no. 3, 1910) (the maxim "the king can do no wrong" as the ground of *officer liability*: "To authorize a wrong . . . is to do a wrong; hence . . . the alleged authority cannot exist"); *Alden v. Maine*, 527 U.S. 706, 715 (1999) (deriving the States' immunity from Blackstone's account of the Crown); *id.* at 762 & n.1 (Souter, J., dissenting) ("the general prerogative of sovereign immunity appears nowhere in the Constitution").

states in 1871, and concluded that Congress "could not have been laboring under the impression that the common law of either England or the United States unalterably, uniformly, or universally held that judges were absolutely immune"; the opinion answers none of it.<sup>252</sup> Six years later the respondents in *Pulliam* argued, as parties, that the immunity "was subsequently expanded by Lord Coke for the purpose of giving one type of rival court an advantage over another," that "[i]n this context Lord Coke first enunciated the now familiar justification of independence of the judiciary, from the Star Chamber and, in fact, from all but 'God and the King,'" and that no modern justification "can . . . be derived from a need for independence from the Star Chamber." The Court adopted the history — *Floyd* as a move in the King's Bench's contest with its "17th- and 18th-century rivals," citing the respondents' own authority for it — and used it to hold that the immunity does not bar prospective relief. It did not ask what the rival court had done in the cause; the history it took was a history of purpose, argued from two law-review studies, and the record was no more before it than before any court in the line.<sup>253</sup> *Pierson*,

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252 Motion for Leave to File Brief Amici Curiae and Brief for Amici Curiae American Coalition of Citizens with Disabilities, Epilepsy Foundation of America, Counsel for Handicapped People, and Developmental Disabilities Law Project at 34–37, *Stump v. Sparkman*, No. 76-1750 (U.S. filed Jan. 9, 1978) (Robert L. Burgdorf Jr., Donald N. Bersoff & Nancy B. Shuger, counsel). At 36: "In the light of this history, it is disingenuous to say that if Congress had wanted to abrogate absolute immunity for judges it 'would [have] specifically so provided.'" At 37: "to ground judicial immunity on the basis of legislative immunity is genuinely to misread both the common law and the legislative history of the Civil Rights Act." *Stump* was decided March 28, 1978; the opinion of the Court cites no amicus brief. The Sparkmans' own briefs, by counsel, name no English decision and argue jurisdiction and the non-judicial character of the act: Brief for Respondents in Opposition at ii, *Stump v. Sparkman*, No. 76-1750 (U.S. filed Aug. 6, 1977) (Richard H. Finley, counsel) (the table of authorities lists American decisions only); Brief for Respondents at i–iii, 10, 18, *Stump v. Sparkman*, No. 76-1750 (U.S. filed Dec. 16, 1977) (Richard H. Finley & Eugene Gressman, counsel) (the citations list American decisions only; Argument I, immunity only for judicial acts within jurisdiction, at 10; Argument II, the secret approval a non-judicial act, at 18). The amici's history is drawn from Pollock and Maitland and two student notes; like every challenge in the record, it reaches *Floyd* through the print and does not ask what the court did in the cause.

253 Brief for Respondents at 24–25, 37, *Pulliam v. Allen*, No. 82-1432 (U.S. filed July 25, 1983) (Deborah Chasen Wyatt, counsel of record; John C. Jeffries, Jr.) (citing Block, *Stump v. Sparkman and the History of Judicial Immunity*, 1980 Duke L.J. 879, and Feinman & Cohen, *Suing Judges: History and Theory*, 31 S.C. L. Rev. 201 (1980); the brief cites *Floyd* as "77 Eng. Rep. 1305, 1306-07 (K.B. 1607)"). The Court: *Pulliam*, 466 U.S. at 529–31 & n.8 ("In time, Coke's theory was expanded beyond his narrow concern of protecting the common-law judges from their rival courts" (citing Feinman & Cohen, 31 S.C. L. Rev. at 211)). The petitioner, the Commonwealth's Attorney General, cited *Floyd* for the immunity, as "K.B. 1608," under the heading "The English Common Law Establishing Judicial Immunity Was Adopted By This Court As The American Rule," Brief for the Petitioner at 6; none of the eight amici on either side named it. The dissent took the respondents' other half — immunity as the product of

by contrast, was decided with no English decision before the Court from either side: none of the six filings cites one, and the majority's *Scott v. Stansfield* and the dissent's *Floyd* were supplied from the bench. The litigants who put the question in the court of appeals had no bar. Nor had the litigant at the English root: *Fray v. Blackburn*, the case *Bradley* quotes for the harassment rationale, was decided on demurrer against a plaintiff appearing in person, and the report twice records that the judge's counsel "was not called upon."<sup>254</sup> At the forum the rule itself reserved, the pattern was already old: Wraynham, who had asked the King for a hearing against the Lord Chancellor, answered the Attorney General in person at the Star Chamber bar and was fined.<sup>255</sup>

Chapter 3.4 § D returns to what that pattern explains.

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liii The record comprises two instruments prepared for this book and available from the author: *Appendix: The Case-by-Case Genealogy*, one entry per decision, 149 entries, 1354–2025, each closing with a note stating the edition and page read; and *The Immunity/Standing Genealogy Matrix*, the same 149 decisions charted across fifteen analytic fields — among them the fear/fearlessness language each case uses, whether its hypothetical harms were tested against any record, which contrary authorities it cited and ruled past, whether its warrant is text or recited antiquity, and whether protection turns on jurisdiction or status. Every English decision but one was read in the English Reports reprint (*Prohibitions del Roy* rests on a text transcription of the reprint), with argument-of-counsel, headnote-versus-body, and editorial-apparatus attributions noted entry by entry; American quotations were read in the official reports, with the same syllabus-versus-opinion discipline applied (e.g., the *Owen* "compelled both" formulation, corrected from the Syllabus to the opinion of the Court, 445 U.S. 650–51). Where a scan is partial or a phrasing survives only in a secondary report, the entry says so.

liv The briefs are digitized prints of the University of Illinois at Urbana-Champaign copies, the hearing of the Pennsylvania State University copy. Every passage quoted in this Section was read at the printed page by two readers working independently; statements that a brief names no English decision rest on a full-text search of the whole print. Filed for an official: Brief for Defendants-Appellees, *Cawley v. Warren*, No. 11160 (7th Cir. 1954); Brief for Defendant-Appellee, *Reynolds v. Rutledge*, No. 73-1871 (7th Cir. Apr. 24, 1974); Brief of Certain Defendants-Appellees, *Loden v. Walker*, Nos. 75-1202 & 75-1263 (7th Cir. 1975); Brief of Defendant-Appellee Judge Harold D. Stump, *Sparkman v. McFarlin*, No. 76-1706 (7th Cir. Sept. 30, 1976); Brief of Defendant-Appellee

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appellate review — to the opposite conclusion, *id.* at 546–47 (Powell, J., dissenting). The two brief sets are the only ones in the Court's judicial-immunity line examined for this book; the *Stump* set is in the *Stump* amici note above in this section.

254 *Fray v. Blackburn*, 3 B. & S. 576, 577–78, 122 Eng. Rep. 217, 218 (Q.B. 1863) ("Honyman, who appeared in support of the demurrer, was not called upon"; "The plaintiff in person, contrà"; "Honyman was not called upon to reply"). Judgment for the defendant on the demurrer; the plaintiff's application, again in person, for leave to amend by adding malice and corruption was refused, Crompton, J., stating the rule and its rationale in the passage *Bradley* quotes. *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335, 349 (1872).

255 *Proceedings against Mr. Wraynham*, 2 How. St. Tr. 1059, 1065–66 (1618) ("the lords asked Mr. Wraynham what he could say for himself"; "yet nature commands me to defend myself"); *Wrenham's Case*, Hob. 220, 80 Eng. Rep. 367 (Star Ch. 1618).



Judge Ralph E. Rector, *McCloud v. Rector*, No. 76-1324 (7th Cir. July 20, 1976); Brief for the Appellees, *Sullivan v. Hoffman*, No. 76-1133 (7th Cir. 1976); Brief for Defendant-Appellee, *Craig v. Circuit Court, Branch 13*, No. 78-2558 (7th Cir. Mar. 1, 1979); Brief of Defendant-Appellee, *Augustyniak v. Gundersen*, No. 80-2473 (7th Cir. Dec. 1980); Brief of Defendant-Appellee, *Soderbeck v. Burnett County*, Nos. 83-3161 & 83-3232 (7th Cir. 1984); Reply Brief, *Justice v. Town of Blackwell*, Nos. 86-2878 & 86-3031 (7th Cir. 1987); Brief of Appellees, *Lee v. Nager*, No. 91-3108 (7th Cir. 1992). Filed for a citizen: Brief and Argument for Appellant, *Shemaitis v. Reid*, No. 10444 (7th Cir. 1951); Brief for Plaintiff-Appellant, *Sauber v. Gliedman*, No. 13002 (7th Cir. 1960); Reply Brief of Plaintiff-Appellant, *McCloud v. Rector*, No. 76-1324 (7th Cir. July 26, 1976); Reply Brief of Appellant, *Ohse v. Hughes*, No. 85-3074 (7th Cir. 1986); Appellants' Brief and Argument, *Hunziker v. German-American State Bank*, No. 88-3160 (7th Cir. Jan. 1989) (pro se); Brief of Plaintiff-Appellant, *Morrell v. Mock*, No. 00-1429 (7th Cir. 2000). The *Sauber* and *Morrell* briefs cite neither *Bradley* nor any English authority and are not otherwise relied on. Appellate dispositions are not stated where the Seventh Circuit's opinion has not been examined; the exceptions are *Stump* and *Hunziker*. The row-by-row analysis of the set is available from the author.

Iv III. Rev. Stat. ch. 110, ¶¶ 19-112 (bond "[b]efore the service of the order"), 19-114 (officer's liability for an insufficient bond), 19-115 ("unless the bond was insufficient when taken"), 19-116 (service "[u]pon the bond being given") (1985), as reproduced in the addendum to the Hunzikers' brief, the brief-list note at chapter 2.4 § C, at Addendum III. The court of appeals' treatment: *Hunziker*, 908 F.2d 975, pt. B ("The Hunzikers assert that the writ was not facially valid because the attached bond was unsecured; we disagree. The writ itself was proper, and the state court later (in June 1985) required the bank to secure the bond."), applying *Henry v. Farmer City State Bank*, 808 F.2d 1228, 1239 (7th Cir. 1986) ("[S]heriffs and other court officers who act in reliance on a facially valid court order are entitled to quasi-judicial immunity from suit for Sec. 1983 damages."). The bond ordered on April 10, 1985 was \$380,000; the seizure was April 11. *Hunziker v. German-American State Bank*, 697 F. Supp. 1007 (N.D. Ill. 1988) (memorandum opinion of Oct. 3, 1988, as appended to the brief at 4). Neither § 19-114 nor § 19-115 appears in the order. Whether a seizure on an unsecured bond is void or merely irregular under Illinois law is not resolved here; the point is which instrument the court examined. The June 1985 order is known only from the court of appeals' recital. The omission reaches the constitutional footing of the ex parte procedure itself. In the prejudgment-seizure cases the creditor's bond is one of the features the Court weighed: *Fuentes v. Shevin*, 407 U.S. 67, 83-84 (1972), struck the Florida and Pennsylvania replevin statutes and held that a bond requirement, though it may "deter wholly unfounded applications," is "no substitute for an informed evaluation by a neutral official" and "no replacement for the right to a prior hearing"; *Mitchell v. W.T. Grant Co.*, 416 U.S. 600, 606-07 (1974), upheld Louisiana's sequestration because the writ issued only on a judge's authorization "and only after the creditor seeking the writ has filed a sufficient bond," with an immediate hearing on dissolution — "a constitutional accommodation of the conflicting interests"; *North Georgia Finishing, Inc. v. Di-Chem, Inc.*, 419 U.S. 601, 607 (1975), struck a garnishment statute that had "none of the saving characteristics of the Louisiana statute." The Illinois procedure the sheriff executed carried the *Mitchell* safeguards on its face — judicial issuance (¶ 19-107), a prompt hearing (¶ 19-105), and the bond (¶ 19-112) — and the one of them entrusted to the officer was, on the state court's own later order, not met. The Hunzikers' *Fuentes* argument was itself never reached: made and then waived in the state settlement, the court of appeals held it res judicata, 908 F.2d 975, n.5.

## 2.5 The Apex: Presidential Immunity, 1982–2024

The chain reaches the presidency in 1982 and completes the ascent in 2024. This chapter examines the apex on its own terms: the two same-day decisions on which the presidential doctrine rests (Section A); the keystone opinion's use of its own authorities, inverted at seven points (Section B); the fearlessness rationale and the pedigree it conceals (Section C); the Federalist's "energy," read against its source (Section D); and the asymmetry with which the doctrine credits its founding hypothetical — and what alone can displace it (Section E).

### *A. Two Decisions of One Day as Each Other's Authority*

The modern presidential doctrine rests on a base that cannot bear it. The two decisions *Trump v. United States* treats as antecedent authority — *Nixon v. Fitzgerald* and *Harlow v. Fitzgerald* — were argued the same day and decided the same day, June 24, 1982, as companion cases in a single volume of the United States Reports.<sup>256</sup> They reference each other, but only as locational markers within the volume: *Harlow* states that "[a]s we reiterated today in *Nixon v. Fitzgerald*, ante, p. 731, our decisions consistently have held that government officials are entitled to some form of immunity."<sup>257</sup> "As we reiterated today" is not a citation of established antecedent; it is an acknowledgment that both opinions are productions of the same moment. Neither can be the other's source, because neither preceded the other.

The contrast with another famous same-day pair is dispositive. *Brown v. Board of Education* and *Bolling v. Sharpe* were also decided the same day, and also cross-reference each

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<sup>256</sup> *Nixon v. Fitzgerald*, 457 U.S. 731 (1982); *Harlow v. Fitzgerald*, 457 U.S. 800 (1982) (both argued Nov. 30, 1981, and decided June 24, 1982).

<sup>257</sup> *Harlow*, 457 U.S. at 806.

other.<sup>258</sup> But each is independently anchored in constitutional text — *Brown* in the Fourteenth Amendment's Equal Protection Clause, *Bolling* in the Fifth Amendment's Due Process Clause — so the cross-reference coordinates two textually grounded holdings rather than substituting for a missing ground. *Brown* performed a *corrective return* to a text that an earlier decision had misread; the antecedent was the Amendment, always present. The 1982 immunity twins perform the inverse: each invents what the constitutional text does not supply, and each leans on the other to obscure that neither produces it. Bidirectional cross-citation stands in for antecedent authority. Chief Justice Burger's *Harlow* dissent makes the move visible in a phrase, asserting that the Court had decided "what has been taken for granted for 190 years"<sup>259</sup> — a claim of antecedent existence offered without the 1792–1981 case law that would establish a 190-year tradition, because no such case law exists. Traced backward, the chain terminates in a same-day pair, resting on an 1896 decision of narrow context, resting on an English maxim the Founding overthrew. At no layer is a constitutional provision produced.

Two further features of the pair confirm that it cannot bear the weight placed on it. First, the twins are not merely non-sequential; they are *substantively incompatible*, so that treating them as one coherent antecedent compounds the defect rather than curing it. *Harlow* makes liability turn on an objective and *conditional* test — the official is protected *unless* he violated "clearly established" law — a standard whose entire premise is the official's possible good-faith ignorance of the law's content. *Nixon v. Fitzgerald*, decided the same hours, makes the President's immunity *absolute* and *unconditional*: it attaches even where the law is settled and the breach is knowing. The two standards cannot be combined into a single rule, and the

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<sup>258</sup> *Brown v. Board of Education*, 347 U.S. 483 (1954); *Bolling v. Sharpe*, 347 U.S. 497 (1954) (both decided May 17, 1954).

<sup>259</sup> *Harlow v. Fitzgerald*, 457 U.S. 800, 822 (1982) (Burger, C.J., dissenting) ("what has been taken for granted for 190 years"). The page is the opening page of the dissent, and it carries the concession's companion: Presidential immunity for official acts "has never been seriously questioned until very recently." *Id.* at 822 n.1.

conditional one cannot even apply to the office the unconditional one governs. *Harlow's* measure is a reasonable official who did not know that a right was clearly established, its limits defined, in the Court's own adverb, "essentially in objective terms," and objectivity admits no degrees. Article II charges the President to take care that the laws be faithfully executed and places the Department of Justice at his command to do it (chapter 3.2 § E); an officer who bears the constitutional duty to know the law and execute it, with the whole apparatus of federal legal advice at his disposal, cannot at the same time claim the benefit of a standard built to excuse the official who did not know. There is no reasonable President who did not know the law against whom his conduct could be measured; the measuring rod does not exist for the office. That is why the apex doctrine had to take the *absolute* branch, and why the apex opinion, invoking *Harlow* for the existence of presidential immunity, never applied *Harlow's* standard to the President: it could not. Taking the absolute branch, it left the "objective" standard it simultaneously claims to inherit with no work to do. A foundation assembled from two holdings that contradict each other is not strengthened by having two stones; it is the weaker for it.

Second, the apex opinion concedes the very absence the genealogy alleges. Met with the dissent's premise "that . . . no constitutional text supports Presidential immunity," the Court does not produce the text. It answers that "a specific textual basis has not been considered a prerequisite to the *recognition* of immunity."<sup>260</sup> That sentence is the verb test (the Method, § C) confessed in a single clause: to *recognize* is to acknowledge something already there, and the Court, asked for the antecedent its verb presupposes, replies that no antecedent is required.

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<sup>260</sup> *Trump v. United States*, 603 U.S. 593, 637 (2024) (restating the principal dissent's premise "that . . . no constitutional text supports Presidential immunity," and answering only that "[a] specific textual basis has not been considered a prerequisite to the recognition of immunity" (quoting *Nixon v. Fitzgerald*, 457 U.S. 731, 750 n.31 (1982))) . Both quoted passages sit on the same page, in consecutive sentences of Part IV–C; the Court's own cross-reference for the premise it is restating is "*post*, at 660–662," i.e. the dissent passage pinned in the note below in this section. The print brackets the capital ("[A] specific textual basis"), lowercased here to the carrying sentence.

Nor is the concession the apex opinion's alone. The senior twin had already made it: *Nixon v. Fitzgerald* granted that, "[b]ecause the Presidency did not exist through most of the development of common law," the immunity could "draw its evidence primarily from our constitutional heritage and structure" — conceding that the office has no common-law antecedent, and pivoting, in the same breath, to a *tradition* and a *structure* rather than a *text*.<sup>261</sup> And the principal dissent at the apex names the maneuver in terms: "[a]ware of its lack of textual support," the majority falls back on immunities "recognized" as "rooted in the constitutional tradition," just as *Fitzgerald* had leaned on "historical evidence to overcome the lack of any textual basis for its immunity."<sup>262</sup> What the bottom-up trace infers from the outside, the chain confesses from within. An immunity "recognized" without a textual basis, resting on a same-day pair that cannot supply its own authority, has not been recognized. It has been declared, outside the Article V ratification the Constitution requires of such a declaration.

### *B. The Source-Text Audit: Seven Inversions*

If the chain produces no constitutional source, one might expect its keystone opinion at least to transmit its case-law authorities faithfully. It does not. Applying the source-text audit (the Method, § C) to the apex decision yields seven instances in which a supporting citation, read against its own source, does not bear the weight placed on it, and in which the deviation runs,

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<sup>261</sup> *Nixon v. Fitzgerald*, 457 U.S. 731, 748–49 (1982) ("Because the Presidency did not exist through most of the development of common law, any historical analysis must draw its evidence primarily from our constitutional heritage and structure.").

<sup>262</sup> *Trump v. United States*, 603 U.S. 593, 662 (2024) (Sotomayor, J., dissenting) ("[a]ware of its lack of textual support, the majority points out that this Court has 'recognized Presidential immunities and privileges 'rooted in the constitutional tradition of the separation of powers and supported by our history''"; *id.* at 664 (noting that the *Fitzgerald* Court "relied in part on that historical evidence to overcome the lack of any textual basis for its immunity"). The two passages are two pages apart, not one citation: the first is the dissent's charge against the majority (the inner quotation is *Fitzgerald*, 457 U.S. at 749, quoted by the majority at 611 and requoted by the dissent), the second the dissent's reading of what *Fitzgerald* itself had done.

each time, in the direction of more immunity. The instances are set out below; each is verifiable by anyone holding the reporter volumes.

*First, the inserted word.* The opinion's sentence and the sentence it cites, each as printed:

To the extent that may be the case, objective analysis of "content, form, and context" will necessarily inform the inquiry. *Snyder v. Phelps*, 562 U. S. 443, 453 (2011) (internal quotation marks omitted).<sup>263</sup>

Deciding whether speech is of public or private concern requires us to examine the "content, form, and context" of that speech, "as revealed by the whole record." *Dun & Bradstreet, supra*, at 761 (quoting *Connick, supra*, at 147–148). . . . In considering content, form, and context, no factor is dispositive, and it is necessary to evaluate all the circumstances of the speech, including what was said, where it was said, and how it was said.<sup>264</sup>

*Snyder* uses no such word; it describes the inquiry in expressly subjective terms. The single inserted adjective, "objective," converts a contextual balancing test into a categorical one, and the "(internal quotation marks omitted)" parenthetical masks the substitution as a stylistic edit.

*Second, the inverted holding.* The opinion's sentences and the concurrence they cite, each as printed:

In the latter case, the President's authority is sometimes "conclusive and preclusive." *Id.*, at 638 (Jackson, J., concurring). When the President exercises such authority, he may act even when the measures he takes are "incompatible with the expressed or implied will of Congress." *Id.*, at 637. The exclusive constitutional authority of the President "disabl[es] the Congress from acting upon the subject." *Id.*, at 637–638.<sup>265</sup>

When the President takes measures incompatible with the expressed or implied will of Congress, his power is at its lowest ebb, for then he can rely only upon his own constitutional powers minus any constitutional powers of Congress over the

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<sup>263</sup> *Trump v. United States*, 603 U.S. 593, 629 (2024) (citing *Snyder v. Phelps*, 562 U.S. 443, 453 (2011)).

<sup>264</sup> *Snyder v. Phelps*, 562 U.S. 443, 453–54 (2011).

<sup>265</sup> *Trump v. United States*, 603 U.S. 593, 607 (2024) ("In the latter case, the President's authority is sometimes 'conclusive and preclusive.'" (quoting *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579, 638 (1952) (Jackson, J., concurring))). The opinion draws on Jackson's concurrence across four consecutive pages, at four different pages of it: 606 (*Youngstown* at 634), 607 (at 638), 608 (at 655), and 609 (at 638 n.4).

matter. Courts can sustain exclusive presidential control in such a case only by disabling the Congress from acting upon the subject. Presidential claim to a power at once so conclusive and preclusive must be scrutinized with caution, for what is at stake is the equilibrium established by our constitutional system.<sup>266</sup>

But *Youngstown* held that the President had *exceeded* his constitutional authority; it is the foundational modern decision *scrutinizing and rejecting* a claim of conclusive and preclusive power, as the opinion itself concedes elsewhere.<sup>267</sup> The cited concurrence's framework is a method for *determining which zone* a presidential act occupies, not a grant of categorical immunity. The opinion imports the vocabulary while discarding the scrutiny.

*Third, the reversed direction.* The opinion's sentence and the passage it cites, each as printed:

The hesitation to execute the duties of his office fearlessly and fairly that might result when a President is making decisions under "a pall of potential prosecution," *McDonnell v. United States*, 579 U. S. 550, 575 (2016), raises "unique risks to the effective functioning of government," *Fitzgerald*, 457 U. S., at 751.<sup>268</sup>

But conscientious public officials arrange meetings for constituents, contact other officials on their behalf, and include them in events all the time. The basic compact underlying representative government *assumes* that public officials will hear from their constituents and act appropriately on their concerns—whether it is the union official worried about a plant closing or the homeowners who wonder why it took five days to restore power to their neighborhood after a storm. The Government's position could cast a pall of potential prosecution over these relationships if the union had given a campaign contribution in the past or the homeowners invited the official to join them on their annual outing to the ball game.<sup>269</sup>

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266 *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579, 637–38 (1952) (Jackson, J., concurring).

267 *Id.* at 608 ("In *Youngstown*, for instance, we held that President Truman exceeded his constitutional authority when he seized most of the Nation's steel mills."). This is the one page of the opinion the Reporter of Decisions revised between the slip opinion and the preliminary print, but the revision is elsewhere on it (inserting "and later President Johnson," after "Lincoln" in the pardon-power paragraph, fourteen lines down) and does not touch the quoted sentence.

268 *Id.* at 613 (citing *McDonnell v. United States*, 579 U.S. 550, 575 (2016)).

269 *McDonnell*, 579 U.S. at 575.

*McDonnell* used the phrase to *narrow* a federal bribery statute, so as to protect ordinary officials performing routine constituent service from over-prosecution, and *vacated* a conviction because the jury instructions failed to define "official act," holding that the determination required resolution by a properly instructed *jury*.<sup>270</sup> A decision that limited official liability and committed the operative question to the jury is deployed to expand immunity and remove the question from the jury. Its actual holding is omitted.

*Fourth, the laundered phrase.* The opinion's sentence and the sentence it cites, each as printed:

The Framers accordingly vested the President with "supervisory and policy responsibilities of utmost discretion and sensitivity." *Fitzgerald*, 457 U. S., at 750.<sup>271</sup>

This grant of authority establishes the President as the chief constitutional officer of the Executive Branch, entrusted with supervisory and policy responsibilities of utmost discretion and sensitivity.<sup>272</sup>

The quoted phrase is not the Framers' language; it is Justice Powell's 1982 gloss in *Nixon v. Fitzgerald*, relocated to "the Framers" by the verb "vested." The opinion then reads the Federalist's "energy" as a warrant for freedom from accountability,<sup>273</sup> and "energy," as chapter 2.5 § D shows, is a structural term the Federalist defines by enumeration, not a psychological one. A judicial phrase from 1982 is dressed as founding design.

*Fifth, the omitted limit.* The opinion's statement of the 1982 holding, the Story clause that holding rested on, and the 1982 Court's own limit, each as printed:

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<sup>270</sup> *McDonnell v. United States*, 579 U.S. 550, 574–81 (2016).

<sup>271</sup> *Trump v. United States*, 603 U.S. 593, 610–11 (2024).

<sup>272</sup> *Nixon v. Fitzgerald*, 457 U.S. at 750.

<sup>273</sup> *Trump*, 603 U.S. at 614 ("The Framers' design of the Presidency did not envision such counterproductive burdens on the 'vigor[ ]' and 'energy' of the Executive." (citing *The Federalist* No. 70)).



In *Nixon v. Fitzgerald*, for instance, we recognized that as "a functionally mandated incident of [his] unique office," a former President "is entitled to absolute immunity from damages liability predicated on his official acts." *Id.*, at 749.<sup>274</sup>

The president cannot, therefore, be liable to arrest, imprisonment, or detention, while he is in the discharge of the duties of his office; and for this purpose his person must be deemed, in civil cases at least, to possess an official inviolability.<sup>275</sup>

Consequently, our holding today need only be that the President is absolutely immune from civil damages liability for his official acts in the absence of explicit affirmative action by Congress. We decide only this constitutional issue, which is necessary to disposition of the case before us.<sup>276</sup>

The opinion builds on *Nixon v. Fitzgerald* throughout while omitting that decision's own limiting clause. The apex opinion extends the doctrine to *criminal* prosecution, the case Story carved out, and applies it against the explicit affirmative action of the criminal code, the condition under which *Fitzgerald* said immunity does *not* attach. The 2024 holding is the inverse of the 1982 rule it claims to rest on.

*Sixth, the same-Term contradiction.* The opinion's sentence, and the sentence and note of the case it builds on, each as printed:

Even if the President were ultimately not found liable for certain official actions, the possibility of an extended proceeding alone may render him "unduly cautious in the discharge of his official duties." *Fitzgerald*, 457 U. S., at 752, n. 32.<sup>277</sup>

However, we cannot conclude that advisers will be moved to temper the candor of their remarks by the infrequent occasions of disclosure because of the possibility

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<sup>274</sup> *Trump*, 603 U.S. at 611.

<sup>275</sup> *Nixon v. Fitzgerald*, 457 U.S. at 749 (quoting 3 Joseph Story, *Commentaries on the Constitution of the United States* § 1563, pp. 418–419 (1st ed. 1833)).

<sup>276</sup> *Id.* at 748–49 & n.27 (quoting 3 Joseph Story, *Commentaries on the Constitution* § 1563 (1833)).

<sup>277</sup> *Trump v. United States*, 603 U.S. 593, 636 (2024) ("Even if the President were ultimately not found liable for certain official actions, the possibility of an extended proceeding alone may render him 'unduly cautious in the discharge of his official duties.'" (quoting *Nixon v. Fitzgerald*, 457 U.S. 731, 752 n.32 (1982))); see also *id.* at 611 (the same *Fitzgerald* phrase, introducing the immunities the Court has "recognized").

that such conversations will be called for in the context of a criminal prosecution. . . . "A juror of integrity and reasonable firmness will not fear to speak his mind if the confidences of debate are barred to the ears of mere impertinence or malice. . . . The chance that now and then there may be found some timid soul who will take counsel of his fears and give way to their repressive power is too remote and shadowy to shape the course of justice."<sup>278</sup>

*United States v. Nixon*, decided the same Term as *Scheuer*, confronted that very rationale and rejected it, borrowing Cardozo's answer for the juror: the chance of a timid soul is "too remote and shadowy to shape the course of justice," and the measure is the juror "of integrity and reasonable firmness." The opinion builds on a case whose reasoning refutes the premise it borrows.

*Seventh, the foreign taproot.* The deepest antecedent's own words, and the later Court's account of them, each as printed:

We are of opinion that the same general considerations of public policy and convenience which demand for judges of courts of superior jurisdiction immunity from civil suits for damages arising from acts done by them in the course of the performance of their judicial functions, apply to a large extent to official communications made by heads of Executive Departments when engaged in the discharge of duties imposed upon them by law. . . . [H]e cannot be held liable to a civil suit for damages on account of official communications made by him pursuant to an act of Congress, and in respect of matters within his authority, by reason of any personal motive that might be alleged to have prompted his action; for, personal motives cannot be imputed to duly authorized official conduct.<sup>279</sup>

But *Spalding* did not involve conduct manifestly or otherwise beyond the authority of the official, nor did it involve a mistake of either law or fact in construing or applying the statute. It did not purport to immunize officials who ignore limitations on their authority imposed by law. . . . It is also evident that *Spalding* presented no claim that the officer was liable in damages because he had acted in violation of a limitation placed upon his conduct by the United States Constitution.<sup>280</sup>

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<sup>278</sup> *United States v. Nixon*, 418 U.S. 683, 712 & n.20 (1974) (quoting *Clark v. United States*, 289 U.S. 1, 16 (1933)).

<sup>279</sup> *Spalding v. Vilas*, 161 U.S. 483, 498 (1896).

<sup>280</sup> *Spalding*, 161 U.S. at 498; *Butz v. Economou*, 438 U.S. 478, 493–95 (1978).

As chapter 2.4 established, the judicial immunity *Spalding* carried across is the English immunity of *Scott v. Stansfield*, common-law and confined to matters within the officer's authority, and *Butz* itself distinguished it as common-law, not constitutional. The chain's foundation is foreign judicial common law, inflated into unlimited constitutional presidential immunity.

The inversions do not begin with the apex opinion. The earliest sits in the foundational paragraph of the doctrine's own root. Having declared that the most sincere judges "would not be free from continual calumniations," the report closes the sentence with a classical warrant: "for which reason the orator said well, *invigilandum est semper, multæ insidiæ sunt bonis*."<sup>281</sup> The Latin says: one must always be watchful; many are the snares laid for the good. The orator is Cicero, and the line is in *Pro Plancio*; but Cicero is quoting a poet, and says so. The words are the counsel that Atreus gives his sons in the tragedy of Accius, and Cicero, commending them to his own son, says the poet wrote them "to kindle the spirit of industry and ambition" in "us and in our children."<sup>282</sup> The good are hemmed by snares, and therefore they must be wakeful and labour. The report turns the maxim the other way: the good are beset, therefore they must not be questioned. A counsel of diligence under exposure becomes, in four lines, a ground for exposure's removal, and "the orator said well" is true of where the line was found and false of who wrote it.<sup>283</sup> The strategic paraphrase the apex opinion practises on its American authorities

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<sup>281</sup> *Floyd v. Barker*, 12 Co. Rep. at 25, 77 Eng. Rep. at 1307 ("continual calumniations"; the tag as the report prints it); the notes below in this section.

<sup>282</sup> Cicero, *Pro Plancio* xxiv.59, in *Cicero: The Speeches* 484–85 (N.H. Watts trans., Loeb Classical Library 158, 1923); the notes below in this section.

<sup>283</sup> *Floyd v. Barker*, 12 Co. Rep. 25, 77 Eng. Rep. 1307 (the tag as the report prints it, *invigilandum*). Cicero, *Pro Plancio* xxiv.59, in *Cicero: The Speeches* 484–85 (N.H. Watts trans., Loeb Classical Library 158, 1923; later reprint) ("*vigilandum est semper: multæ insidiæ sunt bonis*," introduced as the counsel "that king who was himself sprung from Jupiter gave to his sons," the author "an earnest and gifted poet"; Watts's note: "Atreus; the lines are from the tragedy of this name by Accius (170–94)"); *M. Tulli Ciceronis Pro Gnaeo Plancio Oratio ad Iudices* 24, and note at 140 (Hubert A. Holden ed., Cambridge 1881) (the same identification, and the fuller fragment from *Pro Sestio* 102). The report's *invigilandum* is its own form; both editions print *vigilandum*.

was practised, at the doctrine's source, on a Roman one. And the maxim did not stay Roman. Nor was the word new in 1872: the report's second resolution had called the questioning of jurors "a cause of infinite vexation" and a means to deter them from the King's service, *ad deterrendos et detrahendos juratores a servitio Regis*.<sup>284</sup> The same conjecture entered American law in 1872 in quotation marks: the rule exists to "prevent [judges] being harassed by vexatious actions," an English judge's words of nine years before. Five pages later it stood as the Court's own proposition, without citation: judges "would be subjected to the same vexatious litigation upon such allegations, whether the motives had or had not any real existence."<sup>285</sup> From there the word travels through the chain under its American names: "frivolous," "insubstantial," "harassment," "disgruntled litigants." It reaches the apex, in the dissent's own mouth and as a fact, as "vexatious private litigation." At no node is the vexation counted.<sup>286</sup> The word runs through ten opinions of the chain: for the fear in *Bradley, Spalding, Mitchell v. Forsyth* and *Rehberg v. Paulk* and in separate opinions of Justices White, Rehnquist, Powell and Stevens; against it in *Clinton v. Jones* and in Justice White's *Fitzgerald* dissent, quoting Marshall at Burr's trial; and in the apex dissent as a fact. The sources given for it are an English judge of 1863, Hawkins's *Pleas of the Crown*,

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284 *Floyd v. Barker*, 12 Co. Rep. at 24, 77 Eng. Rep. at 1306 (the second resolution, on jurors); the sentence is read beside the sheriff's pleading at chapter 1.2 § C.

285 *Bradley v. Fisher*, 80 U.S. (13 Wall.) at 349 (quoting *Fray v. Blackburn*, 3 B. & S. 576, 578, 122 Eng. Rep. 217, 218 (Q.B. 1863) (Crompton, J.)), 354 (the proposition restated without citation); the notes below in this section.

286 *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335, 349 (1872) (quoting *Fray v. Blackburn*, 3 B. & S. 576, 578, 122 Eng. Rep. 217, 218 (Q.B. 1863) (Crompton, J.) ("prevent their being harassed by vexatious actions")), 354 (the proposition restated without citation; the next sentence: for malice or corruption "the judges of these courts can only be reached by public prosecution in the form of impeachment, or in such other form as may be specially prescribed"); *Spalding v. Vilas*, 161 U.S. 483, 494–95 (1896) (quoting *Bradley* at 354 as settled American law); *Butz v. Economou*, 438 U.S. 478, 507–08 (1978) ("harassed by frivolous lawsuits"); *Harlow v. Fitzgerald*, 457 U.S. 800, 808, 813–19 (1982) ("insubstantial claims"); *Nixon v. Fitzgerald*, 457 U.S. 731, 753 (1982) ("an easily identifiable target for suits for civil damages"); *Pulliam v. Allen*, 466 U.S. 522, 537–38 (1984) ("disgruntled litigants"); *Clinton v. Jones*, 520 U.S. 681, 708 (1997) ("frivolous and vexatious litigation," observing that most of it "is terminated at the pleading stage or on summary judgment"); *Trump v. United States*, 603 U.S. 593, 670 (2024) (Sotomayor, J., dissenting) ("vexatious private litigation").

Marshall in 1807, the Court's own *Imbler* and, in Justice Powell's dissent, "the English common-law cases" unnamed. None cites the sentence of 1607 in which the word first did this work.<sup>287</sup>

The pattern also has a mechanism, and it is the strategic paraphrase described in the Method, § C. A characterization that strips a source's qualifiers does not merely misquote it; it hardens the doctrine, because the stripped version is what later opinions cite. The qualified-immunity standard was hedged at its birth: the official who "knew or reasonably should have known," set in the disjunctive against one who acted "with the malicious intention" to injure, the whole defined only "essentially" in objective terms, an adverb that concedes what the adjective claims.<sup>288</sup> Each restatement shed a qualifier, until the apex opinion could treat a frankly contextual balancing test as flatly "objective" (the first inversion above). The hedges the source insisted on leave the doctrine not by overruling but by paraphrase, one dropped word at a time; and once dropped, the standard is cited as though they had never been there.

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287 *Bradley v. Fisher*, 80 U.S. (13 Wall.) at 349 (quoting *Fray v. Blackburn*, 3 B. & S. 576, 578 (Q.B. 1863) (Crompton, J.): "prevent them being harassed by vexatious actions"), 354 ("subjected to the same vexatious litigation"); *Spalding v. Vilas*, 161 U.S. at 494–95 (quoting both); *Imbler v. Pachtman*, 424 U.S. at 438 (White, J., concurring in judgment) ("fear of being harassed by a vexatious suit," quoting 1 W. Hawkins, *Pleas of the Crown* 349 (6th ed. 1787)); *Butz v. Economou*, 438 U.S. at 527 (Rehnquist, J., concurring in part and dissenting in part) ("vexatious constitutional litigation"); *Nixon v. Fitzgerald*, 457 U.S. at 782 (White, J., dissenting) (quoting Chief Justice Marshall at Burr's trial, 25 F. Cas. at 34: the guard against "vexatious and unnecessary subpoenas" lies in the court's conduct after they issue); *Pulliam v. Allen*, 466 U.S. at 547–48 (Powell, J., dissenting) ("the threat of vexatious litigation," laid to "the English common-law cases" and cited to *Taaffe v. Downes*; then *Bradley* at 349 and *Fray*); *Mitchell v. Forsyth*, 472 U.S. at 521 ("entanglement in vexatious litigation" as the wellspring of the judicial immunities), 524 ("frivolous and vexatious complaints," answered by qualified immunity), 542 (Stevens, J., concurring in judgment); *Clinton v. Jones*, 520 U.S. at 708 ("Most frivolous and vexatious litigation is terminated at the pleading stage or on summary judgment"); *Rehberg v. Paulk*, 566 U.S. 356, 365 (2012) ("Constant vulnerability to vexatious litigation," citing *Imbler* at 423); *Trump v. United States*, 603 U.S. at 670 (Sotomayor, J., dissenting) ("vexatious private litigation"; in *Fitzgerald* "the threat of vexatious civil litigation loomed large"). Each read at the page. None cites *Floyd v. Barker*, 12 Co. Rep. at 24, 77 Eng. Rep. at 1306. The census is of the opinions of the spine and the apex read for this book (chapters 2.3–2.5); *Randall*, *Tenney*, *Pierson*, *Scheuer*, *Wood*, *Owen*, *Stump*, *Harlow* and *Mireles* do not use the word; *Forrester v. White*, 484 U.S. 219 (1988), and *Buckley v. Fitzsimmons*, 509 U.S. 259 (1993), are not held as opinions and are not counted.

288 *Harlow*, 457 U.S. at 815–16, 819 (the standard stated as one the official "knew or reasonably should have known," in the disjunctive with "malicious intention," and defined "essentially" in objective terms); cf. *Nixon v. Fitzgerald*, 457 U.S. 731, 782 (1982) (White, J., dissenting) (compressing the standard to what the official "knew, or as an objective matter should have known, was illegal"). The contemporary, majority-side instance is the first inversion above (*Snyder*).

These are not the imprecisions endemic to long opinions. They form a pattern, and the pattern is directional: in every instance the deviation enlarges the immunity. Read together with chapters 2.3 and 2.4 and Section A, the audit completes the bottom-up finding. The doctrine identifies no constitutional source at any node; it entered American law by citation rather than adjudication; its modern form rests on a same-day pair that cannot supply its own authority; and the authorities its keystone opinion invokes, read in their own words, repeatedly hold the opposite of what they are cited for. The shield is held shut by a chain that, examined link by link, secures to nothing.

### *C. The Fearlessness Keystone and Its Inversion*

A single policy rationale runs through the whole chain and holds it together: officials, and the Executive above all, must be free to act "fearlessly," undeterred by the "pall of potential prosecution."<sup>289</sup> It is the one justification common to every node, which makes it worth isolating: if it falls, each immunity decision is left resting on the constitutional text it never produced. The rationale does not originate in the Constitution. It originates in a 1949 tort opinion, where Judge Learned Hand wrote that subjecting officials to suit would "dampen the ardor of all but the most resolute, or the most irresponsible, in the unflinching discharge of their duties."<sup>290</sup> From that observation about tort exposure the rationale was imported into constitutional immunity and recited until it sounded like law.<sup>291</sup>

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289 *Trump v. United States*, 603 U.S. 593, 613 (2024) ("[t]he hesitation to execute the duties of his office fearlessly and fairly that might result when a President is making decisions under 'a pall of potential prosecution'" (quoting *McDonnell v. United States*, 579 U.S. 550, 575 (2016))).

290 *Gregoire v. Biddle*, 177 F.2d 579, 581 (2d Cir. 1949) (L. Hand, J.).

291 See, e.g., *Pierson*, 386 U.S. at 554; *Scheuer*, 416 U.S. at 240; *Ferri v. Ackerman*, 444 U.S. 193, 203 (1979); *Nixon v. Fitzgerald*, 457 U.S. at 751–52; *Harlow*, 457 U.S. at 814 (quoting *Gregoire*); *McDonnell*, 579 U.S. at 575; *Trump v. United States*, 603 U.S. 593, 613 (2024).

The recitation conceals a descending pedigree. As the keyword "fearless" travels from office to office, the authority each case actually invokes grows thinner. For legislators, the privilege rests on *constitutional text* — the Speech or Debate Clause and the state analogues construed in cases like *Coffin v. Coffin*. For judges, it rests on *English common law*, imported through *Bradley v. Fisher's* reliance on *Scott v. Stansfield*. For executive officials, it rests on a *transplant* of that judicial common law (*Spalding*), and then, for school boards and others, on *bare analogy* to the transplant.<sup>292</sup> Constitutional text gives way to common law gives way to analogy, while the word holds constant — and beneath the judicial and executive nodes lies a foreign taproot deeper still, running through *Taaffe v. Downes* (1813) to *Floyd v. Barker* (1607). The taproot's own words, the resolution on jurors and then the resolution on the judge, as the report prints them:

And it will be a cause of infinite vexation and occasion of perjury and smothering of great offences, if such averments and supposals shall be admitted after ordinary and judicial proceeding: and it will be a means *ad deterrendos et detrahendos juratores a servitio Regis*.<sup>293</sup>

[I]t was agreed, that insomuch as the Judges of the realm have the administration of justice, under the King, to all his subjects, they ought not to be drawn into question for any supposed corruption, which extends to the annihilating of a record, or of any judicial proceedings before them, or tending to the slander of the justice of the King, which will trench to the scandal of the King himself, except it be before the King himself; for they are only to make an account to God and the King, and not to answer to any suggestion in the Star-Chamber; for this would tend to the scandal and subversion of all justice. And those who are the most sincere, would not be free from continual calumniation, for which reason the orator said well, *invigilandum est semper, multæ insidiæ sunt bonis*.<sup>294</sup>

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<sup>292</sup> *Coffin v. Coffin*, 4 Mass. 1, 27 (1808); *Bradley v. Fisher*, 80 U.S. (13 Wall.) at 349–50 & n.; *Spalding*, 161 U.S. at 495, 498; *Wood v. Strickland*, 420 U.S. at 319–20.

<sup>293</sup> *Floyd v. Barker*, 12 Co. Rep. at 24, 77 Eng. Rep. at 1306 (the second resolution, on jurors; the sentence stands beside the sheriff's pleading at chapter 1.2 § C).

<sup>294</sup> *Id.*, 12 Co. Rep. at 25, 77 Eng. Rep. at 1307 (the third resolution, on the judge; the root sentence and its inversion in print are chapter 1.3 § B).

The keyword is the propagation vector; the constitutional anchor exists only at the legislative root and is abandoned at every step after it.

The rationale was, moreover, originally public-regarding, and the modern doctrine inverts it. In its textually anchored form the privilege ran *to the people*: *Coffin* secured it "not with the intention of protecting the members against prosecutions for their own benefit, but to support the rights of the people"; *Pierson* described judicial immunity as existing "not for the protection or benefit of a malicious or corrupt judge, but for the benefit of the public"; *Tenney* tied it to "the public good," "not for [the official's] private indulgence."<sup>295</sup> The doctrine has converted that public-regarding purpose into a personal exemption for the office-holder — the shield turned into a sword.

The rationale also misstates what the immunity at its roots ever withheld. No foundational immunity was a release from *all* consequence; each was a release from a single form of suit — the private action for civil damages — with other accountability left standing. The legislator remained answerable to his House and to the criminal law; the judge, immune from the damages action, remained "responsible to the people" and subject to being "called to an account by impeachment"; the President was to remain answerable to ordinary criminal prosecution, the inviolability the early commentary allowed him reaching civil matters alone.<sup>296</sup> The fear the doctrine purports to relieve was therefore never the fear of every consequence; the roots kept the official answerable — which is fearlessness under consequence, not impunity. The

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<sup>295</sup> *Coffin*, 4 Mass. at 27; *Pierson*, 386 U.S. at 554 (quoting *Scott v. Stansfield*); *Tenney*, 341 U.S. at 377.

<sup>296</sup> *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335, 350 (1872) (the immune judge remains "responsible to the people" and may be "called to an account by impeachment and suspended or removed from office"); The Federalist No. 77 (Alexander Hamilton) (the Executive "at all times liable to . . . prosecution in the common course of law"); *Nixon v. Fitzgerald*, 457 U.S. at 748–49 & n.27 (confining presidential inviolability to "civil cases at least," quoting 3 Joseph Story, *Commentaries on the Constitution* § 1563 (1833)). The criminal extension and its contrast with Story's reservation are developed *supra* chapter 2.5 § B (fifth inversion); the deletion of the reserved accountability forum, Part 1, chapter 1.3.



apex decision breaks the pattern at both ends: it extends immunity to *criminal* prosecution, the case the founding-era commentary expressly reserved, and withdraws, for official acts, the accountability every root had preserved (Part 1, chapter 1.3). What the lineage treated as a shield against one form of suit becomes, at the apex, a shield against the law itself.

And the rationale is self-refuting on its own chosen word. To act "fearlessly" is to act rightly despite the possibility of consequence; courage is meaningful only where consequence is possible. Remove every consequence and the official is not rendered fearless but merely safe. There is nothing left to be fearless about. What the doctrine produces is therefore not a fearless officer but an unaccountable one. The structural point is deeper: accountability, exposure to consequence, is the error-correction that tethers power to a reality outside the ruler's own will. Strip it away and the will becomes the only reality the officer answers to. A maxim that an office-holder can do no wrong does not restrain the unaccountable ruler; it manufactures him. The Constitution forecloses the maxim in its own text: the Impeachment Clause and the Twenty-Fifth Amendment both presuppose that the highest officer *can* do wrong, and prescribe removal, not immunity, as the answer.<sup>297</sup>

And the category error is written on the tradition's own instruments. The keyword the chain carries as construction appears as enacted law at one point in this lineage's record — the judicial oath — and there it runs the other way. In the form Parliament fixed by statute, the English judge swears that he "will do Right to all Manner of People after the Laws and Usages of this Realm, without Fear or Favour, Affection or Illwill."<sup>298</sup> The oath does not promise the judge

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<sup>297</sup> U.S. Const. art. II, § 4; *id.* amend. XXV.

<sup>298</sup> Promissory Oaths Act 1868, 31 & 32 Vict., c. 72, § 4 (the formula the text quotes in its operative words). Quoted as the sessional print prints it at 634 (the capitals and the one-word "Illwill" are the print's; the consolidated text at [legislation.gov.uk](http://legislation.gov.uk) renders the same words in modern case); royal assent 31 July 1868 per the print's title page. Section 6 refers to the oaths "required to be taken by such Officer previously to the passing of this Act" — the Act codified an existing oath practice, and the formula's earlier wording is not relied upon here. Section 7 enforces the demand with the office: an officer who declines the duly tendered oath "shall, if he has already

freedom from fear; it assumes fear will attend the office and forbids it to govern the judging — fearlessness as a discipline the officer brings to the bench, not a benefit the bench confers — and the statute enforces the demand with the office itself: the officer who declines the duly tendered oath vacates, or never enters, the seat. The carrier paragraph through which the American line received its fear rationale speaks in that formula and reverses its direction: judges, wrote Kelly, C.B., in *Scott v. Stansfield*, must be free to administer the law "independently and freely, without favour and without fear," and "at liberty to exercise their functions with independence and without fear of consequences" — the judge's promise repurposed as the public's debt, the sworn discipline reissued as the conferred shield.<sup>299 lvi</sup> The carrier's own noun concedes the category: what it defends is "[t]his provision of the law," and a provision is precisely what the oath's virtue cannot be — courage can be sworn, demonstrated, and demanded; it cannot be issued. The dated record completes the exhibit: the Exchequer delivered the carrier paragraph on 3 June 1868; Parliament fixed the oath's formula in statutory words fifty-eight days later, on 31 July 1868; and *Randall v. Brigham* received the immunity into American law at the December Term of the same year. In one summer the tradition published the promise's inversion and enacted the promise; before the year was out the inversion had crossed the Atlantic. The office demands what cannot be issued; the doctrine issues exemption from the demand.

Finally, the rationale is refuted within the genealogy's own Term. The same Court that made the chilling-fear premise dispositive in *Scheuer* (1974) confronted the identical premise

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entered on his Office, vacate the same," and if he has not entered, is "disqualified from entering." Within the enacted texts this book's record engages, the oath is the keyword's one appearance as law — the Administration of Justice Act 1774 speaks of "apprehension," not fear (see chapter 2.1) — and the appearance imposes the discipline on the judge rather than the debt on the public.

<sup>299</sup> *Scott v. Stansfield*, L.R. 3 Ex. 220, 223 (1868) (the paragraph the text quotes, whole in the Notes). The Law Reports' margin dates the decision 3 June 1868 (Trinity Term, 31 Vict.). The paragraph entered American law through *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335, 349–50 n. (1872), and travelled through *Spalding v. Vilas*, 161 U.S. 483, 495 (1896), to *Pierson v. Ray*, 386 U.S. 547, 554 (1967).

months later, the same Term, in *United States v. Nixon* — and rejected it, holding the speculative fear "too remote and shadowy to shape the course of justice" and demanding officials "of integrity and reasonable firmness" who "will not fear."<sup>300</sup> That standard is the present argument in binding form: the competent officer's fearlessness is brought to the office, not conferred by immunity, and the timid functionary the doctrine worries over is "too remote and shadowy" to ground a constitutional rule. The apex opinion completes the irony. It dismisses the dissents' warnings as "fear mongering on the basis of extreme hypotheticals," then rests its own holding on a hypothetical of precisely the same kind — an Executive "unable to boldly and fearlessly carry out his duties" amid a cycle of factional prosecutions.<sup>301</sup> Speculative future harm is "extreme" when urged against official power and "the more likely prospect" when urged for official immunity. The fear at the doctrine's root is a hypothesis the Court will credit from no one but itself, in its own favor.

#### *D. "Energy" Is Structural, Not Psychological*

The fearlessness rationale's one founding-era anchor is the Federalist's account of executive "energy," and the anchor does not hold. The apex opinion reads the Framers' design of an "energetic, vigorous" Executive as a warrant against the burdens of accountability.<sup>302</sup> But Hamilton defines energy by exhaustive enumeration: "The ingredients which constitute energy in the executive, are, unity—duration—an adequate provision for its support—competent

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<sup>300</sup> *United States v. Nixon*, 418 U.S. 683, 712 & n.20 (1974) (quoting *Clark v. United States*, 289 U.S. 1, 16 (1933)); see *Scheuer*, 416 U.S. at 240.

<sup>301</sup> *Trump v. United States*, 603 U.S. 593, 640 (2024). Both quotations in the sentence above, and the "more likely prospect" formula, are on this single page in two consecutive sentences; see the note at chapter 2.5 § E.

<sup>302</sup> *Id.* at 610, 614 (citing *The Federalist* No. 70).

powers."<sup>303</sup> Every ingredient is *structural* — a feature of the office's design, chiefly *unity*, a single executive rather than a council. None is psychological; none concerns the office-holder's freedom from legal consequence.

The reading cannot be rescued as loose paraphrase, because the pattern is uniform across the source — and it holds equally for the companion term the apex opinion pairs with energy. The opinion's own keyword set is "vigor[]" and "energy," lifted from *The Federalist* No. 70; so run the census on both. Of the thirty appearances of "energy" and "energetic" in *The Federalist*, twenty-nine denote the structural power of an institution or the design of an office and one the intensity of a popular sentiment; of the twenty-three appearances of the "vigor" family, each denotes the force or efficiency of governmental structure or action — the "vigour of government," a "vigorous execution of the laws" — and none the office-holder's subjective freedom from legal consequence.<sup>304</sup> Across the fifty-three founding-era uses of the very two words the Court invokes, not one carries the psychological sense the immunity reading needs; the inserted meaning is the Court's, not the source's. And the same survey's conclusion is dispositive against the immunity reading: in No. 77 Hamilton pairs energy with answerability, describing an office that "combines . . . all the requisites to energy" while its occupant remains "at all times liable to . . . prosecution in the common course of law."<sup>305</sup> Energy and accountability are paired by design, not opposed. To read the structural term in a psychological sense — to

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303 *The Federalist* No. 70 (Alexander Hamilton), in *The Federalist: A Collection of Essays, Written in Favour of the New Constitution* (J. & A. M'Lean, New York 1788), vol. II, at 241 (quoted as the 1788 print sets it, the four ingredients joined by dashes; the modern texts number them "first" to "fourthly").

304 A word-count of the corpus text confirms thirty appearances of the "energy" family in *The Federalist* (twenty-five "energy," five "energetic"), across Nos. 1, 13, 15, 17, 22, 23, 26, 30, 36, 37, 57, 70, 71, 73, and 77; and twenty-three of the "vigor" family (thirteen "vigor"/"vigour," seven "vigorous," one "vigorously," two "invigorate"/"invigoration") — fifty-three in all, the precise pair the apex opinion invokes ("vigor[]" and "energy," quoting No. 70, at 471–472). The classification — structural or institutional in every instance save one popular-sentiment use of "energy" (No. 57), none psychological — is the author's analytic; the token counts are confirmed against the corpus. (A raw search for the letters "vig" returns more, but the surplus is "navigation" and "vigilance," different roots, excluded here.)

305 *The Federalist* No. 77 (Alexander Hamilton).

make "energy" mean the office-holder's need to be undeterred by suit — is an equivocation the source forecloses by enumeration in its own sentence.

### *E. One Hypothetical, Credited for the Official Alone*

The doctrine's policy keystone is a prediction — that without the shield the official will be deterred, made "unduly cautious," unable to act "fearlessly" (chapter 2.5 § C). A claim about conduct that has not occurred is a hypothetical, and a doctrine resting on one is legitimate only so far as it credits hypotheticals evenhandedly. This lineage does not. It credits the conjecture that favors official power and dismisses the identical species of conjecture when it favors the citizen — and at the apex it does both in a single breath, resting immunity on the specter of an Executive "unable to boldly and fearlessly carry out his duties" while dismissing the dissent's mirror-image warning as "fear mongering on the basis of extreme hypotheticals."<sup>306</sup> Speculative future harm is "the more likely prospect" when the official is its subject and an "extreme hypothetical" when the citizen is. The evidentiary weight of a prediction is made to turn on whom the prediction protects — which is not an evidentiary standard at all.

The asymmetry is not peculiar to the apex; it is the through-line of this book. The mechanism has been one hypothetical since 1607, asserted always for the official and never measured against the citizen's stake. In *Floyd v. Barker* the conjecture was that to question a

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306 *Trump v. United States*, 603 U.S. 593, 640 (2024) (dismissing the dissents as "fear mongering on the basis of extreme hypotheticals," and resting immunity on "the more likely prospect" of an Executive "unable to boldly and fearlessly carry out his duties for fear that he may be next"); *id.* at 685 (Sotomayor, J., dissenting) ("if he knew that he may one day face liability for breaking the law, he might not be as bold and fearless as we would like him to be. That is the majority's message today."). All three of the majority's quoted phrases fall on one page, in two consecutive sentences of the same paragraph — the dismissal of the dissents' conjecture and the Court's own conjecture are not merely adjacent in the opinion's argument but adjacent on its page, so the evenhandedness objection needs no assembly from scattered pins. (The earlier locus, 613, states the chilling rationale in the Court's own different words — "[t]he hesitation to execute the duties of his office fearlessly and fairly," and the "'bold and unhesitating action' required of an independent Executive," quoting *Fitzgerald*, 457 U.S. at 745 — and is the page both dissents cite for that rationale, *id.* at 657, 670, 702.) The apex instance is developed in chapter 2.5 § C; this Section generalizes it across the lineage.

sworn judge would "trench to the scandal of the King himself" — the imagined collapse of sovereign authority, credited without proof to bar the suit (Part 1, chapter 1.2).<sup>307</sup> The fear had been pleaded before, by the judges themselves and against the subject. In 1399 the Commons prayed the King "that . . . the Justices, be not received hereafter for their excuse, to say, that they do not dare to say the law for doubt of death"; the answer was that the King held his justices "good, sufficient and loyal" and would "cause to reform and amend" where any complained.<sup>308</sup> The court Coke served as Attorney General stated whose fear the rule secured when it sentenced a petitioner against the Lord Chancellor in 1604: let all men take heed how they complain in words against any magistrate, "for they are gods," and the complainant must have very good matter, "for feare he ouerthrowe not himselfe"; in 1638 the price of accusing a judge in open court was five thousand pounds to the King and ten thousand to the judge.<sup>309</sup> The excuse the Commons asked to have refused is the rationale the doctrine later made its foundation. In *Coffin v. Coffin* (1808) it was the legislator's need to act "unawed by the fear of legal prosecutions," the defamed citizen's remedy expressly subordinated to it (chapter 2.3).<sup>310</sup> In the modern chain it is the "pall of potential prosecution" and the chilled, "unduly cautious" officer. At every node the same prediction — *the official, exposed to suit, will fail to act* — is accepted as sufficient ground, while its converse — *the official, immune from suit, will act lawlessly* — is dismissed as alarmism. A rule that admits a prediction as decisive for one party and excludes the same

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307 *Floyd v. Barker*, 12 Co. Rep. at 25, 77 Eng. Rep. at 1307 (to question the judge "will trench to the scandal of the King himself").

308 Rot. Parl. 1 Hen. IV, as quoted by counsel for the defendant in *Taaffe v. Downes*, 3 Moore P.C. 36 (Hatchell report, Dublin 1815), at 37. The roll is quoted here through the report of argument; the Parliament Roll itself has not been consulted.

309 John Hawarde, *Les Reportes del Cases in Camera Stellata* 177 (William Paley Baildon ed., London 1894) (the sentence of 1604, quoted entire in the text at Part 1, chapter 1.4 § B); *Harrison's Case*, Cro. Car. 503–04, 79 Eng. Rep. 1034 (K.B. 1638) (the judgment; the judge's action for defamation, "10,000l. damages"); *Hutton v. Harison*, Hut. 131, 123 Eng. Rep. 1151–52 (1638) (the judge's own memorandum: the accuser "convicted and fined five thousand pounds to the King," the judge's bill "recovered ten thousand pound damages").

310 *Coffin v. Coffin*, 4 Mass. 1, 28 (1808) (Parsons, C.J.); the *Coffin* note at chapter 2.3.

prediction as speculation against the other has abandoned the discipline of the Method: it no longer applies law to facts; it chooses which fear to indulge. The doctrine does not rest on what officials have done. It rests on what the Court is willing to imagine they would do without it — and the Court imagines it only in the direction that enlarges the prerogative. That is the sense in which a hypothetical, not a constitutional provision, became the law of immunity.

The asymmetry has never been cured from the citizen's side, and the reason marks the point at which this book's method departs from every argument in the record. The citizen's advocates have answered the official's conjecture with a conjecture of their own. Justice Douglas, dissenting in *Pierson*, named the doctrine "a more sophisticated manner of saying 'The King can do no wrong,'" reached *Floyd v. Barker* by name, and then met the majority's fear with Chief Justice Cockburn's — "I cannot believe that judges . . . would fail to discharge their duty faithfully and fearlessly" — and with his own: "What about the judge who knowingly turns a trial into a 'kangaroo' court?"<sup>311</sup> His conclusion was a weighing: Congress "concluded that the evils of allowing intentional, knowing deprivations of civil rights to go unredressed far outweighed the speculative inhibiting effects which might attend an inquiry into a judicial deprivation of civil rights."<sup>312</sup> Justice Sotomayor, dissenting at the apex, answered the "pall of potential prosecution" with the "twisted irony" of a Take Care Clause read as a license, and with

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311 *Pierson v. Ray*, 386 U.S. 547, 565–67 (1967) (Douglas, J., dissenting) (quoting *Dawkins v. Lord Paulet*, L.R. 5 Q.B. 94, 110 (Cockburn, C.J., dissenting)); the next note.

312 *Pierson v. Ray*, 386 U.S. 547, 565–67 (1967) (Douglas, J., dissenting) (quoting *Dawkins v. Lord Paulet*, L.R. 5 Q.B. 94, 110 (Cockburn, C.J., dissenting)). His footnote 5 reaches the root by name — "*Floyd & Barker*, 12 Co. Rep. 23, 25, 77 Eng. Rep. 1305, 1307 (Star Chamber 1607)" — and quotes the report. The majority's conjecture is at 554: a judge "should not have to fear that unsatisfied litigants may hound him with litigation charging malice or corruption. Imposing such a burden on judges would contribute not to principled and fearless decision-making but to intimidation." The same page's footnote concedes that in the case before the Court "[t]he proof of conspiracy never went beyond this suggestion."

a catalogue of nightmares — "Immune, immune, immune" — offered, in her own words, "[e]ven if these nightmare scenarios never play out."<sup>313</sup>

The Hunzikers, without counsel, answered *Bradley* with the irony that the courts of a sovereign people rely on a rule "derived from a system assuming the power to govern by divine right."<sup>314</sup> Each is right about the incoherence it names, and each is a hypothetical set against a hypothetical: the majority's fear that the official will be deterred, the dissent's fear that he will be lawless, and a court free to credit whichever it prefers. Douglas's "speculative" is the right word, and it concedes the frame — the fear stays on the scale as a counterweight that one Congress outweighed, and the next Court re-weighs. Irony is a comment on the weighing; it does not remove the scale. What removes it is the one thing no participant in the record has put before a court: the proceeding in which the shared conjecture was born. Part 1, chapter 1.2 has stated what that record shows — a bill destroyed without answer, an alibi set aside, examinations written in English "contrary to their sayings in welsh" — and those are not predictions about what officials might do but facts about what a tribunal did.<sup>315</sup> A record is not weighed against a fear. It displaces the need for one.

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*Ivi Scott v. Stansfield*, L.R. 3 Ex. 220, 223 (1868) ("It is essential in all courts that the judges who are appointed to administer the law should be permitted to administer it under the protection of the law independently and freely,

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313 *Trump v. United States*, 603 U.S. 593, 676, 685 (2024) (Sotomayor, J., dissenting). The dissent names its own weighing: "The majority's single-minded fixation on the President's need for boldness and dispatch ignores the countervailing need for accountability and restraint." *Id.* at 685. Its reach into history is to *The Federalist* No. 77 — "prosecution in the common course of law" — the Founding's answer, not the doctrine's source. The majority's dismissal of the dissent's scenarios as "fear mongering on the basis of extreme hypotheticals" is at 640, the *Trump* note above in this section.

314 Appellants' Brief and Argument at 25–26, *Hunziker*, the brief-list note at chapter 2.4 § C; *see id.* at 30 (quoting Justice Douglas's "far outweighed" sentence against the *Pierson* majority and answering with Representative Bingham in the Thirty-ninth Congress). The Hunzikers placed the American entry at *Yates v. Lansing*, 5 Johns. 282 (N.Y. Sup. Ct. 1810), correctly, and did not see what its affirmance contains. Every objection the Hunzikers made in 1989 had been made, and bypassed, in the case they cited; the affirmance is read at the note at chapter 2.2.

315 *See* Part 1, chapter 1.2; the record is read entire there, and the examinations "written in English contrary to their sayings in welsh" are quoted there from the cause file, STAC 8/203/38.



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without favour and without fear. This provision of the law is not for the protection or benefit of a malicious or corrupt judge, but for the benefit of the public, whose interest it is that the judges should be at liberty to exercise their functions with independence and without fear of consequences."). The Law Reports' margin dates the decision 3 June 1868 (Trinity Term, 31 Vict.). Three features of the report bear noting. The posture was demurrer: the replication's allegations — the words spoken "falsely and maliciously," without cause, "not bonâ fide," and "wholly irrelevant" — were taken as true for the decision (220–21). Counsel's foundation is the taproot by name: "The principle which governs these cases is laid down in the case of *Floyd v. Barker*," citing 12 Rep. 23 (221). And the court administered assurance with the shield: "It does not follow . . . that a county court judge can so misconduct himself with impunity," removal by the Lord Chancellor remaining (225) (Channell, B.) — accord the point of chapter 2.5 § C that the roots kept accountability standing. The paragraph entered American law through *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335, 349–50 n. (1872) (rendering "favour" as "favor"), and travelled through *Spalding v. Vilas*, 161 U.S. 483, 495 (1896) (reproducing it in text, attributed to Kelly, C.B.), to *Pierson v. Ray*, 386 U.S. 547, 554 (1967). In *Bradley* the paragraph sits in a footnote that opens at the foot of 349 and completes at 350 — as *Pierson* itself describes it, "349, note, at 350" — and both *Spalding* and *Pierson* independently cite *Scott* at 223, corroborating this note's pin from the reports themselves. *Bradley* at 350 also dates *Randall v. Brigham* to "the December Term of 1868," a second witness to the sequence stated in the text.

### **PART 3 — THE CONSTITUTIONAL CASE AGAINST THE DOCTRINE**

*Part 3 makes the constitutional case against the doctrine and states the terms on which a court bound by every decided case may decline it. Chapter 3.1 shows the modern apparatus rebuilding the three locks the Founding cut, lock for lock, and names the due-process boundary and the Seventh Amendment jury the rebuilt bar on proof displaces. Chapter 3.2 tests the doctrine by its own textualist canons and by the law of the custom it claims, and finds that it fails them. Chapter 3.3 measures the founding act by the receiving order's own law of records, evidence and access, and states what that order made of each source the 1607 court invoked. Chapter 3.4 states what a court may do without overruling anything. A Conclusion to Parts 2 and 3 closes the American argument.*

#### **3.1 The Three Locks Rebuilt in Modern Doctrine**

Part 2, chapters 2.3 through 2.5 established what the immunity chain rests on: a premise, a mechanism, and a fear, none of them constitutional. This chapter shows what they do when they operate together. The combined apparatus is not a novel construction; it is the reconstruction of a mechanism the common law perfected and the Founding dismantled — the sealed remedial loop, under which a wrong by an official could be neither proven, nor heard anywhere but before the sovereign, nor remedied by the sovereign. Part 1, chapter 1.3 set out the loop's three locks as the 1607 reports fixed them, and the documented miscarriage they were fixed to seal; this chapter takes the mechanism forward. Part 2, chapter 2.1 showed the Founding cutting all three locks. Section A shows the modern doctrine re-welding them; Section B examines the lock that matters

most for the citizen's liberty — the bar on proof — and the foundational due-process boundary its return destroys; Section C its procedural form, the Seventh Amendment jury it displaces; and Section D states the output.

*A. Lock for Lock: The Modern Doctrine Reinstalls the Loop*

The modern immunity doctrine reinstalls the three locks, one for one. **Lock One returns** as an evidentiary bar: the apex decision forbids using an official's protected acts even as evidence — "[w]hat the prosecutor may not do . . . is admit testimony or private records of the President or his advisers probing the official act itself."<sup>316</sup> That is the irrebuttable presumption in modern form: no proof may be received against the official act. **Lock Two returns** as the routing of review to the political branches — impeachment and the political process offered as the remedy for official wrongdoing, which is to say accountability "before the King himself," the sovereign's own body auditing itself. **Lock Three returns** as the foreclosed individual remedy: immunity bars the damages suit, so that, once more, "the party cannot have remedy against the King."<sup>317</sup> The reserved forum was convened once against a judge of England, in 1616, and it neither heard a subject nor made a finding: it asked whether the judges would stay justice at the King's word, and removed the one who would not, by a writ "for certain causes now moving us," the King having said of him that he was "no ways corrupt, but a good justice."<sup>318</sup> And the forum cannot be convened here at all. The rule does not extinguish the judge's answer; it removes it — "not to

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316 *Trump v. United States*, 603 U.S. 593, 632 n.3 (2024). The companion rationale, *id.* at 631: the Government's evidence-only proposal "would permit a prosecutor to do indirectly what he cannot do directly—invite the jury to examine acts for which a President is immune from prosecution to nonetheless prove his liability on any charge."

317 *Prohibitions del Roy*, 77 Eng. Rep. 1342, 1343 (1607) (12 Co. Rep. 63, 64); Part 1, chapter 1.3 § A.

318 Cuthbert William Johnson, *The Life of Sir Edward Coke*, 2d ed., vol. I (London 1845), at 334 (the supersedeas of 16 November 1616), 340 (the King's character of the judge as Chamberlain reported it). Part 1, chapter 1.3 § D reads the proceeding entire; the council proceedings of June 1616 and the reports of the removal are cited in the notes there.

answer to any suggestion in the Star-Chamber," but "only to make an account to God and the King" — to a receiver who "is *de jure* to deliver justice to all his subjects" and examined his judges "before himself in the Parliament."<sup>319</sup> Article III names no such receiver. The source of the judicial power in the American order is the Constitution; it cannot be sat before, take an account, or examine a judge, and it delegates the power to courts precisely so that the answer is given in court. A rule whose operative clause transfers the answer to a King has, here, nowhere to transfer it; the political process is not that forum performed badly but a substitute invented because that forum cannot exist.<sup>320</sup> No proof, only the political branches, no party remedy: the 1607 loop, re-sealed. The other-channels reassurance — that immunity does not mean unaccountability because impeachment and the political process remain — is not an answer to the loop. It is the loop, in modern dress: the channels it names are the sovereign's own forum, owing the injured party no remedy and admitting no proof against the official act.

### *B. Lock One Up Close: The Authentication/Crediting Boundary*

The lock that matters most for the citizen's liberty is the first, because it governs what may even be examined; and to see what its return costs, one must locate the boundary it erases. That boundary is the line between *authenticating* evidence and *crediting* it — two distinct functions, assigned to two different actors, and the separation between them is among the most elementary in American law. It is so elementary that it is the stock structure of every courtroom drama: the

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<sup>319</sup> *Floyd v. Barker*, 12 Co. Rep. at 25–26, 77 Eng. Rep. at 1307–08 (the clauses quoted; the Parliament clause at 1308); the note below in this section.

<sup>320</sup> *Floyd v. Barker*, 12 Co. Rep. 25–26, 77 Eng. Rep. 1307–08 (the transfer clause and the *de jure* clause at 1307; "it appears by the said precedent and chronicle, that the King did examine the corruption of his Judges before himself in the Parliament, and not by force of any commission," at 1308); U.S. Const. art. III, § 1. Part 1, chapter 1.3 sets the forum's one recorded sitting beside the rule's text.

investigator collects and verifies; the jury decides whether to believe. The genre runs on the distinction because the law does.

The executive's function as to evidence is authentication. Law enforcement gathers, preserves, and authenticates — it "bags and tags," establishes a chain of custody, and confirms, so far as it can, that an item or an account is what it purports to be. Authentication is a threshold of *genuineness*, not of truth: it asks whether the evidence is what it claims to be, not whether it should be believed.<sup>321</sup> The executive separately exercises *charging discretion* — the judgment whether there is enough to prosecute. Neither function is a verdict on believability. Whether authenticated evidence is credible, what weight it carries, and ultimately whether it establishes the elements of an offense under the law — that is the act of *crediting* evidence, and it belongs to the fact-finder: the grand jury that decides whether to indict, the petit jury that decides whether to convict, weighing credibility under the rules of evidence and Article III.<sup>322</sup> The investigator authenticates; the fact-finder credits and convicts.

This division is not a technicality of the rules of evidence. It is a due-process floor — the structural safeguard that stands between the citizen and unlawful arrest, imprisonment, and the deprivation of liberty or property on the executive's say-so. An executive that both gathers the evidence and adjudicates its credibility — that decides for itself what is "credible" and may be acted upon, and what is "not credible" and is therefore foreclosed — has merged the investigative and the adjudicative functions in a single hand. That merger is the very definition of a judge in his own cause, and the grand jury, the petit jury, the rules of evidence, and Article III exist precisely to prevent it. The executive may authenticate; it may decline to prosecute for

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<sup>321</sup> Fed. R. Evid. 901(a) (authentication satisfied by "evidence sufficient to support a finding that the item is what the proponent claims it is").

<sup>322</sup> Fed. R. Evid. 607 ("Any party . . . may attack the witness's credibility."); *id.* 104(e) (weight and credibility for the jury); U.S. Const. amend. V (grand jury); *id.* art. III.

insufficiency; it may not return a verdict on believability, because a verdict on believability is the fact-finder's act. An executive "credibility" determination — the pronouncement that evidence is "not credible," and the foreclosure of the matter on that ground — is therefore not an exercise of executive power. It is the arrogation of the fact-finder's function, an act outside the executive's constitutional capacity regardless of the good or bad faith with which it is made.

And it is Lock One restored. The 1607 rule made the sworn officer's record true by his *status*, admitting no proof against it. The Founding inverted that twice over: authentication under the modern rule points *outward*, to a verifiable fact — whether the item "is what the proponent claims it is" — where the prerogative's verity pointed *inward*, to the maker's oath; and the rule that any party may attack a witness's credibility abolished status-based crediting in both directions — every witness's credibility is now contestable, and no actor's determination is sealed by office.<sup>323</sup> An executive credibility adjudication that admits no proof against it reverses both inversions at once: it makes the executive's say-so the unchallengeable record, restoring verity-by-status to the one actor the Constitution most carefully barred from the fact-finder's chair. The 1607 refusal to receive proof against the sovereign's record and the modern executive's foreclosure of evidence it has itself deemed "not credible" are the same act — the closing of the record against inquiry — four centuries apart. It is Lock One in its *originating* form — the form Part 1, chapter 1.3 documents at the doctrine's root — and the companion to the immunity doctrine's *evidentiary* Lock One (Section A): the one bars proof against the official's act; the other bars proof against the official's determination. Both restore the irrebuttable presumption of official rectitude that the grand jury, the rules of evidence, and Article III were built to destroy.

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323 Fed. R. Evid. 607; *Floyd v. Barker*, 77 Eng. Rep. at 1305–06 (verity by sworn status).

*C. Lock One's Procedural Form: The Seventh Amendment*

The Seventh Amendment is not a procedural detail but a constitutional allocation of fact-finding power, and the immunity lineage overrides it without once naming it. The Amendment provides that in suits at common law "the right of trial by jury shall be preserved," and the questions it commits to the jury are precisely the ones the immunity inquiry turns on: reasonableness, knowledge, intent, motive, the concert of multiple actors, and the credibility of the witnesses who would establish any of them.<sup>324</sup> The Court enforces "shall be preserved" as a mandate everywhere else — refusing to let procedural devices reclassify a jury question as a judge's, and fixing the boundary between the two by historical practice rather than present convenience. Against that allocation the lineage performs a quiet reassignment, converting each of those fact questions into a legal question a judge decides before trial. The reassignment is the Seventh Amendment violation, and it proceeds node by node without a single opinion in the chain pausing to measure itself against the Amendment's text — a silence chapter 3.2 § B documents directly: in the seven opinions that govern the doctrine, the words "Seventh Amendment" appear not at all.

The conversion descends in stages, each removing a different question from the jury. *Wood v. Strickland* had preserved a bifurcated qualified-immunity standard whose subjective prong — the official's malice or improper intent — was a classic jury question. *Harlow* eliminated that prong and, in three moves on a single pair of pages, completed the transfer to the judge: it reassigned the reasonableness determination to summary judgment ("the judge

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324 U.S. Const. amend. VII ("the right of trial by jury shall be preserved"). On the mandate's force and the rule against reallocating a jury question by procedural device, see *Beacon Theatres, Inc. v. Westover*, 359 U.S. 500 (1959), and *Dairy Queen, Inc. v. Wood*, 369 U.S. 469 (1962); on fixing the jury's province by historical practice, *Markman v. Westview Instruments, Inc.*, 517 U.S. 370 (1996), *Granfinanciera, S.A. v. Nordberg*, 492 U.S. 33 (1989), and *Tull v. United States*, 481 U.S. 412 (1987). That intent and motive are questions of fact is settled. *Pullman-Standard v. Swint*, 456 U.S. 273 (1982); *Hunt v. Cromartie*, 526 U.S. 541 (1999). Credibility and the weighing of evidence are likewise the jury's. *Reeves v. Sanderson Plumbing Prods., Inc.*, 530 U.S. 133 (2000).

appropriately may determine . . . whether that law was clearly established"); it foreclosed the discovery that would build a record for a jury ("Until this threshold immunity question is resolved, discovery should not be allowed"); and it relocated the very subjective inquiry it claimed to abolish into a judge-decided exception, for the official who "neither knew nor should have known" the governing law.<sup>325</sup> *Nixon v. Fitzgerald*, the same day, added the next stage: whether conduct fell within the "outer perimeter" of office became a threshold question for the judge, resolved before any jury was empaneled.<sup>326</sup> And *Trump* completed the cascade twice over — assigning the three-tier classification of conduct (core, official, unofficial) to the judge, and then forbidding the most paradigmatic jury question of all: "courts may not inquire into the President's motives."<sup>327</sup> Motive is not merely reassigned from jury to judge; it is removed from the case. Reasonableness and subjective knowledge (*Harlow*), the official-act classification (*Nixon v. Fitzgerald*), and finally motive itself (*Trump*) — at each stage a question the Amendment reserves to the jury is taken from it, until, for the conduct these doctrines govern, no jury reaches any of them.

The strongest evidence that these are jury questions is that the Court has said so, in the very opinions that take them from the jury. *Harlow* performed its conversion in the open and confessed it: eliminating the subjective prong, the Court acknowledged that subjective good faith was "a question of fact that some courts have regarded as inherently requiring resolution by a

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325 *Wood v. Strickland*, 420 U.S. 308, 322 (1975) (preserving the subjective prong, defeasible by the official's "malicious intention"). The three moves are at *Harlow*, 457 U.S. at 818–19: "On summary judgment, the judge appropriately may determine, not only the currently applicable law, but whether that law was clearly established at the time an action occurred"; "Until this threshold immunity question is resolved, discovery should not be allowed"; and the "extraordinary circumstances" exception for the official who "neither knew nor should have known of the relevant legal standard."

326 *Nixon v. Fitzgerald*, 457 U.S. 731, 756 (1982) (recognizing immunity for "acts within the 'outer perimeter' of [the President's] official responsibility").

327 *Trump v. United States*, 603 U.S. 593, 617–619 (2024) (the three-tier framework); *id.* at 618 ("In dividing official from unofficial conduct, courts may not inquire into the President's motives.").



jury" — and removed it anyway, for litigation efficiency, with no Seventh Amendment analysis; it then conceded the residue in its own adverb, defining the standard "essentially in objective terms."<sup>328</sup> A jury question was named as such and reassigned by decree, under a label the Court admitted was only "essentially" accurate. The departure is conceded from the other side of the argument: the modern defence of the 1871 baseline itself names *Harlow* as "[t]he Supreme Court's largest departure from the common law of officer immunities," made "to purposely depart from the common law."<sup>329</sup>

The apex opinion supplies the same confession in a sharper form. It assigns the official/unofficial classification to judges, to be performed before trial — and then remands that very classification to the district court to decide "with the benefit of briefing we lack."<sup>330</sup> The admission is fatal to the posture it announces: a determination that nine Justices could not make on a full appellate record is not one a single district judge can make at the pleading stage. By the Court's own description the question is too fact-laden for resolution on the papers — which is to say it is jury territory, where the Seventh Amendment places fact-intensive questions. A question that cannot be answered without the "briefing we lack" is, by definition, not a pure question of law.

Set beside a third decision, the inconsistency hardens into a contradiction the doctrine cannot escape. The characterization of an act as "official" has now received three incompatible

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328 *Harlow*, 457 U.S. at 816 (subjective good faith "a question of fact that some courts have regarded as inherently requiring resolution by a jury"); *id.* at 819 ("By defining the limits of qualified immunity essentially in objective terms . . .").

329 Keller, 73 Stan. L. Rev. at 1388, 1393 (*Harlow* "replaced the subjective good-faith defense for qualified immunity with a clearly-established-law test," a decision the Court has since called "completely reformulated"; it "could have been decided without discarding the common law of qualified immunity"). The defence's remedy is restoration of the 1871 rule; this Part's is the jury question that rule itself left standing.

330 *Trump v. United States*, 603 U.S. 593, 628 (2024) ("We accordingly remand to the District Court to determine in the first instance—with the benefit of briefing we lack—whether Trump's conduct in this area qualifies as official or unofficial.").

procedural treatments at the Court's own hand. In 1982 *Harlow* removed that family of fact questions from the jury *because* they were fact questions. In 2016, in a prosecution turning on whether the defendant had performed an "official act," the Court reversed a conviction precisely because the jury had not been properly instructed how to decide that question — holding the determination one for a properly instructed jury (chapter 2.5 § B).<sup>331</sup> In 2024 the apex opinion assigned the same kind of determination to the judge, while conceding it could not make the determination itself. The official-act question cannot at once belong to the jury (the 2016 holding), be taken from the jury because it is a fact question (the 1982 rationale), and be decided by the judge despite being a fact question (the 2024 posture). The three positions are mutually exclusive; the doctrine occupies all three at once.

A final defect is independent of the allocation: the apex doctrine specifies no procedure for its own central determination. *Harlow*, whatever its substantive flaws, at least tied its standard to a stage (summary judgment), an evidentiary measure (the judge "appropriately may determine" the clearly-established law), and a discovery rule.<sup>332</sup> The apex opinion supplies a substantive classification — core, official, unofficial — with no procedural stage, no evidentiary standard, and no discovery rule for applying it. The classification is procedurally inert: a limit on liability with no specified mechanism, which the lower courts must therefore invent. The defect sharpens wherever liability turns on *concert* among officials: whether conduct was independently undertaken or coordinated is itself a question of fact — the paradigmatic jury question of concerted action — and it is the precise inquiry a doctrine built to decide what *one* official knew,

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331 *McDonnell v. United States*, 579 U.S. 550, 574–81 (2016) (reversing because the jury was not properly instructed on the meaning of "official act," and treating that determination as one for a properly instructed jury); *see* chapter 2.5 § B (the same decision in the citation audit). The apex opinion did not distinguish *McDonnell* in assigning the official-act determination to the judge.

332 *Harlow*, 457 U.S. at 818–19.

on summary judgment and without fact-finding, was designed to avoid.<sup>333</sup> A framework calibrated to individual conduct cannot evaluate concerted conduct without conducting the fact-finding it exists to circumvent; and a doctrine that cannot say at what stage, on what record, or by what standard it operates has not satisfied the precondition of its own enforcement.

#### *D. The Output: Official Wrong Made Unreviewable*

The three locks compose a closed system, and the system has an output. No proof may be heard against the official act or determination (Lock One); the grievance is routed to the political branches (Lock Two); and those branches owe the injured party no remedy and cannot adjudicate his claim (Lock Three). Run together, the three locks produce the structural unreviewability of official violation at the instance of the injured public — not as an accident of doctrine, but as the designed output of the prerogative they were built to serve. The "alternative remedies" each lock recites — the political process, impeachment, the enforcement discretion of the very officials who defaulted — deliver the grievance to the defaulting agents themselves. *Before the King himself*. A remedy that lies only before a forum which cannot grant it is no remedy at all. This is the maxim's exact violation: the loop demands the citizen's compliance with a legal order whose every avenue of enforcement against the order's own agents it has welded shut — compliance without the enforcement capacity that, by the maxim, must precede it.

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<sup>333</sup> On concert of action as a jury question, see *American Tobacco Co. v. United States*, 328 U.S. 781 (1946). The limit also follows from the doctrine's own design: see chapter 2.5 § A (a framework built to resolve what a single official knew).

### 3.2 The Doctrine Fails on Its Own Terms

Part 2, chapters 2.3 through 2.5 showed that the doctrine identifies no constitutional source at any node; Chapter 3.1 showed what it rebuilt. This chapter returns the Method to the doctrine and shows that it fails not only the test of historical pedigree but the tests it itself supplies: the interpretive discipline the Court applies to enacted text (Section A), the constitutional rule of construction that governs unenumerated claims (Section B), the principle that an unconsidered question is undecided (Section C), the limits the doctrine inherits from the very tradition it invokes (Section D), the redundancy of its framework even on its own assumptions (Section E), and, finally, the threshold method by which the Court has already bound itself to the examination the chain has evaded (Section F).

#### *A. The Inverted Hierarchy, Realized*

The Method, § A stated the principle; the doctrine violates it, and the violation is visible in what it does to the enacted text it displaces. Qualified immunity is read *into* 42 U.S.C. § 1983 — a statute that makes "[e]very person" who deprives another of constitutional rights "liable to the party injured" and that contains no immunity provision. The Court construes that statute *narrowly*, trimming the citizen's remedy, while construing the immunity doctrine it inserted *expansively*. The text with the stronger democratic claim is read down and the doctrine with the weaker is read up. The same Court that holds Congress to the indefinite article and to a single preposition declines to hold its own doctrine to any comparable discipline.<sup>334</sup> The result is the inversion the Method, § A described: strict construction reserved for the people's enactments, loose construction lavished on the judiciary's own product, and the citizen losing in both

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<sup>334</sup> *Niz-Chavez v. Garland*, 593 U.S. 155 (2021); *Bostock v. Clayton County*, 590 U.S. 644 (2020).

directions — the statutory grant narrowed, the doctrinal shield widened. A court that narrows a remedial statute and widens a doctrine of its own making, applying looser discipline to the latter, has exercised legislative power and inverted the supremacy of the legislative text in one motion — the structural objection Article I, § 1 exists to raise.<sup>335</sup>

The Court's own negative-implication canon makes the point affirmatively, not merely by omission. The Constitution does grant immunity — once, and narrowly. Article I, § 6 privileges legislators "from Arrest during their Attendance" at the session and in travel, and shields their "Speech or Debate" from being "questioned in any other Place"; and it writes the criminal law back in by name, excepting "Treason, Felony and Breach of the Peace" from even that narrow privilege.<sup>336</sup> The Pardon Power is the only other textual mechanism touching an official's relief from consequence, and it too is particular (Part 6, chapter 6.3 § E). Under the canon the Court applies to Congress — that the expression of one thing implies the exclusion of others — the enumeration of a single, mechanical, crime-excepted immunity for one branch implies the exclusion of a sweeping, judge-made, crime-reaching immunity for another. The Founders knew how to confer an immunity and how to bound it; the one they wrote excepts crimes, while the one the doctrine supplies now reaches them. A canon strict enough to foreclose unenumerated congressional powers cannot leave unenumerated judicial immunities untouched.

The doctrine also fails the test of storable rule — whether it can be applied by someone other than its author and made to yield the same result — and fails it visibly. The apex classification supplies three labels — core, official, unofficial — with no criterion for sorting

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335 U.S. Const. art. I, § 1; *id.* art. III, § 2; 42 U.S.C. § 1983.

336 U.S. Const. art. I, § 6, cl. 1 (the Arrest and Speech-or-Debate privileges, excepting "Treason, Felony and Breach of the Peace"); see *Williamson v. United States*, 207 U.S. 425 (1908) (the exception reaches all crimes; the privilege does not touch criminal process). On the Pardon Power as the other particular textual mechanism, see chapter 6.3 § E.

conduct among them, no evidentiary standard, and (by the Court's own confession) no capacity to perform the sort even on a full record, "with the benefit of briefing we lack."<sup>337</sup> A determination with no standard cannot generalize: nothing in one application carries forward to constrain the next, so each case is decided wholly on its own facts and no body of law ever accretes. A fact-intensive test *can* be law when it states a standard that governs the next case — the reasonable-person inquiry, or the due-process factors of *Mathews v. Eldridge*, generalize precisely because they do.<sup>338</sup> A frameworkless one cannot; it is permanently the first case, every time. What cannot generalize is not a rule but a sequence of unreviewable, judge-subjective dispositions in the costume of adjudication — and a proceeding that wears the form of a trial while lacking its substance, deployed to shield officials from account, is what the Declaration of Independence indicted as a "mock Trial" (chapter 3.4 § B). That lower courts have had to invent the sorting criteria the apex decision withheld is not the doctrine generalizing; it is each court supplying, case by case, the law the doctrine failed to state.

### *B. The Ninth Amendment's Rule of Construction*

The Ninth Amendment is not a reservoir of unspecified substantive rights; it is a rule of *construction*. "The enumeration in the Constitution, of certain rights, shall not be construed to deny or disparage others retained by the people."<sup>339</sup> Read with its companion, the Tenth, it fixes an allocation of the unenumerated domain: what the text does not enumerate falls to the people — as *rights* retained, or as *powers* reserved — never to the federal government as a power it may

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<sup>337</sup> *Trump*, 603 U.S. at 628 (the sentence quoted entire in the note above in this section).

<sup>338</sup> *Trump v. United States*, 603 U.S. 593, 617–619, 628 (2024); *contrast Mathews v. Eldridge*, 424 U.S. 319, 335 (1976) (a fact-intensive test that generalizes because it states governing factors). On the "mock Trial" grievance, see chapter 3.4 § B; on the absence of any specified standard of review, above in this Section; and on the unconsidered-question point, *Webster v. Fall*, 266 U.S. 507, 511 (1925).

<sup>339</sup> U.S. Const. amend. IX.

assert without enumeration.<sup>340</sup> That allocation forecloses the doctrine. Judge-made immunity is an unenumerated *government power* — a power in officials to be free of the suit a statute authorizes, found in no constitutional text — which is precisely the category the Ninth and Tenth Amendments place outside the government's reach. The doctrine claims for the government a power the text does not grant; the Ninth Amendment's rule of construction is the text's answer.

The proof that the doctrine was not built with this rule in view is empirical, and it is stark. In the seven opinions that govern the immunity doctrine, from *Tenney* in 1951 to *Trump* in 2024, the phrases "Ninth Amendment," "Tenth Amendment," "unenumerated," and "retained by the people" appear not at all.<sup>341</sup> The structural provisions that would govern whether the Court may *make* this doctrine were never named in the making of it. What the opinions did instead is keep a one-sided ledger: the official's interest in repose, and the court's interest in efficiency, are entered in the currency of constitutional structure, while the citizen's constitutional injury is entered, when entered at all, as a "regrettable cost."<sup>342</sup> A doctrine that counts only one side of the constitutional ledger, and never names the construction rule that governs its own creation, has not been measured against the Constitution. It has been built beside it.

### *C. An Unconsidered Question Is Undecided*

The objection that the doctrine is too settled to disturb misunderstands what has been settled. "Questions which merely lurk in the record, neither brought to the attention of the court nor ruled

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340 *Id.* amends. IX–X.

341 A corpus audit of the governing immunity opinions (*Tenney*, *Pierson*, *Scheuer*, *Butz*, *Nixon v. Fitzgerald*, *Harlow*, *Trump*) returns zero occurrences of "Seventh Amendment," "Ninth Amendment," "Tenth Amendment," "unenumerated," or "retained by the people" in the texts of all seven opinions; the same audit, extended by six standing opinions, is at the note to Part 6, chapter 6.4 § B.

342 Compare *Butz v. Economou*, 438 U.S. 478, 505 (1978) (the citizen's "basic constitutional guarantees," named on the citizen's side), with *Nixon v. Fitzgerald*, 457 U.S. 731, 754 n.37 (1982) (the citizen's injury recast as "a regrettable cost").

upon, are not to be considered as having been so decided as to constitute precedents."<sup>343</sup> Apply that principle to the genealogy. The Seventh Amendment's allocation of fact-finding, the Ninth Amendment's rule of construction, the repudiated premise of the chain, the sealed loop as a structural matter — none of these was reached, briefed, or ruled upon at any node of the lineage. The bottom-up trace is what proves the silence: it shows, node by node, that the structural questions were never named. They are therefore *open* — not foreclosed by precedent, because precedent never decided them. The doctrine's reputation for settledness is, as to the questions that would test their legitimacy, a reputation for never having confronted them. This is the hinge on which chapter 3.4 turns: a court may decide these questions without overruling anything, because the lineage decided them not at all.

#### *D. The Doctrine Fails the Tradition It Claims*

The immunity doctrine's defense of last resort is tradition: pressed for a constitutional source it cannot supply (Part 2, chapters 2.3–2.5), it falls back on antiquity. Chapter 2.3 lays the recitals out node by node, "as old as the law," "the settled doctrine of the English courts for many centuries," "roots extending to the earliest days of the common law," "rooted in the constitutional tradition"; each names an earlier node or Coke's report, and none a decision that had read the record.<sup>344</sup> The doctrine is, on its own account, *recognized* rather than enacted — "a principle recognized and established, by a series of [a]uthorities," in one early formulation.<sup>345</sup> But to claim the dignity of custom is to accept the law of custom, and that law, stated in the doctrine's own

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<sup>343</sup> *Webster v. Fall*, 266 U.S. 507, 511 (1925).

<sup>344</sup> *Randall*, 74 U.S. (7 Wall.) at 536; *Bradley*, 80 U.S. (13 Wall.) at 347; *Imbler v. Pachtman*, 424 U.S. 409, 423 (1976); *Nixon v. Fitzgerald*, 457 U.S. at 749; the nodes' notes at chapter 2.3.

<sup>345</sup> *Taaffe v. Downes*, 3 Moore P.C. 36 (1813) (argument of counsel) (the privilege "is not the result of any enactment or positive Law; but a principle recognized and established, by a series of Authorities"). See the Method, § C (the verb test); chapter 2.5 § A.



founding idiom, marks limits the doctrine exceeds. A rule invented by a single court is no custom at all and could never invoke the tradition; the doctrine escapes that objection only by presenting itself as precisely what it claims to be — usage accreted across centuries. Granted that premise, the conditions of custom attach, and the doctrine cannot keep the dignity while shedding the limits.

The first limit is a ceiling. At common law a custom could displace the common law beneath it, but could never override an Act of Parliament: a custom contrary to statute is void.<sup>346</sup> The contemporaneous maxim stated the rule and its boundary in a single breath — *consuetudo ex rationabili causa usitata privat communem legem*, a custom used upon reasonable cause ousts the *common law* — its object exactly specified as the *communis lex*, the law beneath, never the law above. The hierarchy the maxim presupposes runs one way: custom below common law, common law below statute, statute below the Constitution. If a custom cannot reach even a statute, then *a fortiori* it cannot reach "the supreme Law of the Land."<sup>347</sup> Yet judge-made immunity is a custom that displaces both — reading exceptions into a statute's "every person" that the legislature never wrote (Section A), and overriding the very constitutional guarantees that statute exists to vindicate. This is the categorical form of the inverted hierarchy: not merely that the doctrine is read more loosely than the enacted text it narrows (Section A), but that a custom has no warrant to displace superior law *at all*. The doctrine does exactly what the law of custom forbids — it rises above the law that measures it.

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346 1 William Blackstone, *Commentaries* \*76–\*78 (a valid custom must be reasonable and must not be contrary to an Act of Parliament). The contemporaneous maxim — *consuetudo ex rationabili causa usitata privat communem legem* — is reported at *Floyd v. Barker*, 77 Eng. Rep. 1305 (1607), but in the forest-custom matter that *immediately precedes* the immunity case in the volume, not in the immunity holding; it is cited here as the era's statement of the custom-displacement rule and its common-law ceiling, not as part of *Floyd's* ruling. The report marks the boundary on its face, noting the dispute whether the rule there "was but an ordinance, and not any Act of Parliament." *Id.*

347 U.S. Const. art. VI, cl. 2.

The second limit is a license. The maxim permits displacement only *ex rationabili causa* — for reasonable cause — and the doctrine's actual predicate is not reason but fear: the official must be free to act "fearlessly," undeterred by a "pall of potential prosecution" (chapter 2.5 § C). A speculative apprehension is not a reasonable cause; it is the perturbation that reason excludes. And the lineage convicts itself, for in the very Term it made the chilling-fear rationale dispositive it branded the identical fear "too remote and shadowy to shape the course of justice" (chapter 2.5 § C).<sup>348</sup> A fear the Court itself calls too remote and shadowy cannot at the same time be the reasonable cause that licenses a custom to displace the supreme law. By its own tradition's terms the custom is not merely over-extended; it is unlicensed at the source.

The third limit is a premise. The rule's deepest foundation is that an official's record "import[s] verity in [itself]," admitting no proof against it — verity by *status*, true because of who made it, rather than verity by *process*, true because it was tested (Part 1, chapter 1.3; chapter 3.1 § B). The constitutional order inverts that premise root and branch: no act is true because of who performed it, and every act is testable — by grand jury, by the rules of evidence, on appeal, and by suit against the officer who exceeds his authority. A doctrine resting on verity-by-status is repugnant to a Constitution built on verity-by-process, and was received into American law, if at all, only so far as applicable to the new order — "only that portion which was applicable to their situation" — which a monarchical premise of the unchallengeable official record was not, nor was a rule whose founding decree paired the official's unquestionability with a second vexation of an acquitted man.<sup>349</sup>

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<sup>348</sup> *United States v. Nixon*, 418 U.S. 683, 712 n.20 (1974) (quoting *Clark v. United States*, 289 U.S. 1, 16 (1933)).

<sup>349</sup> *Floyd v. Barker*, 77 Eng. Rep. at 1305–07 (records "import verity in themselves"; the record/non-record line, *quia recordum non habent*); *Van Ness v. Pacard*, 27 U.S. (2 Pet.) 137, 144 (1829) (the common law received "only that portion which was applicable to their situation"). See Part 1, chapter 1.3; chapter 3.1 § B.

The three limits converge on one proposition: each maxim the doctrine invokes marks a boundary the doctrine crosses. As a custom it may reach only the common law, yet it displaces statute and Constitution; it may act only for reasonable cause, yet its predicate is a fear the lineage itself calls too remote and shadowy; it carries the record-court's verity-by-status into an order that tests verity by process. The doctrine does not merely lack the constitutional foundation Part 2 sought and could not find; it is affirmatively forbidden by the foundation it claims. And the Latin runs one way across the four centuries the doctrine spans: from Coke's report that "the king ought not to be under any man, but under God and the Law," to Rutherford's maxim that the king "is *King* by, or according to Law, but he is not *King of Law*."<sup>350</sup> The tradition invoked to set an official above the law is the tradition that, in its own words, places him beneath it. The pedigree disinherits the heir — and that is the tradition-horn the next Section turns into a vise.

The tradition's own record supplies the test. The exception the rule reserved, "before the King himself," was invoked against a judge of England once, in 1616, and it behaved as the rule's text predicts: the wrong charged was offence to the King, the finding was that the judge was not corrupt, and the disposition was removal without cause stated. No instance has been found in the English reports or the printed collections of a subject's complaint against a judge adjudicated in that forum. A tradition that reserves accountability to a forum no subject is recorded to have reached is not a tradition of accountability. It is the sovereign's discipline of his servants, described as the subject's remedy.<sup>351</sup>

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<sup>350</sup> *Prohibitions del Roy*, 77 Eng. Rep. 1342, 1343 (1607) (12 Co. Rep. 65) (the report gives Bracton's maxim in Latin only, *quod Rex non debet esse sub homine, sed sub Deo et lege*; the English in the text follows 1 *The Selected Writings of Sir Edward Coke* 481 n.8 (Steve Sheppard ed., 2003)); Samuel Rutherford, *Lex, Rex* (London 1644), Quest. XXVII, at 254 (the page numbered 452 in the print) ("*Rex est Rex secundum legem, sed non est Dominus & Rex legis*," with the margin "The King is King according to the Law, but not King of the Law").

<sup>351</sup> See *supra* chapter 3.1 § A and the note there. The forum's own description of itself is Vaughan's, in *Bushell's Case*, Vaughan 138–39, 124 Eng. Rep. 1008 (C.P. 1670), quoted at Part 1, chapter 1.3 § E. The search covered the English Reports and the printed reports, trials, and state collections held for this book; its record is available from the author.

*E. Granting the Doctrine: A Filter That Cannot Fail the Apex Officer*

The final point in this chapter is concessive: it assumes the doctrine valid in every respect its defenders claim, and assumes its extension to the apex office, and shows that even then the framework cannot function as applied to that office. *Harlow* asks whether a "reasonable person" would have known that the conduct violated clearly established law. For the chief executive, the comparator is, by definitional form, a reasonable *chief executive* — an officer charged by the Take Care Clause with the faithful execution of the laws and commanding the government's own law office, including the body whose institutional function is to advise on the legality of executive action.<sup>352</sup> The filter asks whether such an officer would have known the law. For foundational, clearly established law, the answer is structurally always yes: the apparatus exists precisely to supply that knowledge. A filter that returns the same answer in every case is not a filter; it is a redundancy.

The three available escapes each defeat themselves. To say the officer individually failed to consult or comprehend the law is to allege an incapacity for the office — a matter the Constitution addresses through removal, not a defense the immunity doctrine supplies. To say the government's own legal apparatus was institutionally incapable of identifying clearly established law is to indict the constitutional structure of the Executive. And to say the law at issue was not clearly established is, for foundational rules, empirically false. Each path is foreclosed; the framework, applied to the apex office, defeats its own premise. The doctrine not only secures to nothing at its root (Part 2, chapters 2.3–2.5); even taken at face value, its central mechanism cannot operate where the doctrine has most expansively been applied.

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352 U.S. Const. art. II, § 3; 28 U.S.C. §§ 503, 511; 28 C.F.R. § 0.25.

A last asymmetry completes the concessive case. The maxim that ignorance of law excuses no one — *ignorantia legis neminem excusat* — has bound every citizen since before the Founding, and it binds the official *a fortiori*: he sought the office, swore an oath that presupposes knowledge of the law, and is paid to enforce the very rules he is charged with knowing.<sup>353</sup> The "clearly established" requirement inverts that ordering. It excuses the official's mistake of law unless a prior case had settled the point with particularity — which is to hand the sworn enforcer the ignorance defense the maxim denies the citizen he polices. The party most charged with knowing the law is held to know it least. Administered against the citizen and waived for the official, a single maxim is being applied unequally — which is not merely incoherent but the precise concern of the Equal Protection Clause: the evenhanded application of the law's general commands.

#### *F. The Doctrine That Compels Examination*

The failures catalogued in Sections A through E could be evaded in only one way: by a court declining to examine the antecedents at all — taking "recognized," "well settled," and "supported by our history" at their word and asking no more. The Court has foreclosed that escape by its own hand. Where a doctrine is defended as resting on history and tradition — and the immunity the Court says it has "recognized" expressly is, "rooted in the constitutional tradition . . . supported by our history" — the Court's settled method makes the asserted tradition a burden to be produced and examined, not a phrase to be credited. In the substantive-due-process line the proponent must establish a right "deeply rooted in this Nation's history and tradition"; in the Second Amendment line the proponent of a restriction must affirmatively produce the historical

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<sup>353</sup> *Ignorantia legis neminem excusat*; see U.S. Const. art. VI, cl. 3 (the oath binding all officers); *id.* amend. XIV, § 1 (equal protection); the "clearly established" requirement is *Harlow's*, 457 U.S. at 818.

analogue rather than gesture at one.<sup>354</sup> A doctrine that claims the dignity of a pedigree thereby consents to the examination of its pedigree.

Two further rules seal the escape routes. First, antiquity by repetition is not authority: a proposition restated across a line of cases that never examined whether it had a constitutional source is "settled" only in the sense that the question was never asked — and "[q]uestions which merely lurk in the record, neither brought to the attention of the court nor ruled upon, are not . . . precedents" (Section C), while general expressions reaching beyond the case that uttered them "ought not to control" a later judgment.<sup>355</sup> Second, when this Court has examined the actual pedigree of a rule urged as "traditional" and found it unsound, it has declined to follow it — as it did in refusing to be bound by a jury practice whose origins would not survive inspection.<sup>356</sup> The genealogy asks no more than that the immunity pedigree, traced to a prerogative court its own legal system condemned and abolished (Part 1, chapter 1.6), be inspected by the standard the Court applies to every tradition it credits. Inspected, it yields what Part 2 sought and could not find, and what Sections A through E confirm from every other angle: no source the Constitution supplies. The lock is not only openable from the inside; the key is the Court's own method.

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354 *Washington v. Glucksberg*, 521 U.S. 702, 720–21 (1997) (a protected right must be "deeply rooted in this Nation's history and tradition"); *New York State Rifle & Pistol Ass'n v. Bruen*, 597 U.S. 1, 17, 19 (2022) (the proponent must "affirmatively prove" the asserted historical tradition, not merely invoke it); see *Dobbs v. Jackson Women's Health Org.*, 597 U.S. 215 (2022). *Trump v. United States*, 603 U.S. 593, 611 (2024) (quoting *Nixon v. Fitzgerald*, 457 U.S. 731, 749 (1982)) (the immunity "rooted in the constitutional tradition . . . supported by our history").

355 *Webster v. Fall*, 266 U.S. 507, 511 (1925) (*supra* Section C); *Cohens v. Virginia*, 19 U.S. (6 Wheat.) 264, 399 (1821) ("general expressions, in every opinion, are to be taken in connection with the case in which those expressions are used. If they go beyond the case, they may be respected, but ought not to control the judgment in a subsequent suit . . .").

356 *Ramos v. Louisiana*, 590 U.S. 83 (2020) (declining to follow a rule urged as traditional once its actual pedigree was examined and found unsound); cf. *Heckler v. Chaney*, 470 U.S. 821, 849 n.6 (1985) (Marshall, J., concurring in the judgment) (the tradition of unreviewability "developed at a time when virtually all executive action was considered unreviewable"; quoting Kenneth Culp Davis, *Discretionary Justice* 211 (1969), on whether the courts should not "take a fresh look at the tradition"); *Gamble v. United States*, 587 U.S. 678 (2019) (examining a doctrine's historical pedigree at length before crediting it).

### 3.3 The Founding Act, Measured by the Receiving Order's Law

The book's case against the doctrine rests on two grounds. The first is the transfer thesis, the finding Parts 1 and 2 establish and chapter 3.1 applies, stated once at chapter 2.2: the rule of 1607 did not extinguish the subject's plea against a judge but transferred it to a King, the King never answered it, and the American order has no King to answer it. The second is the receiving order's own measure of the act the rule was made to protect, a sworn bill taken off the file and utterly defaced, which the law that received the rule treats as a felony, a spoliation, a denial of due process and of access to the courts, and the exercise of a power its first freedom withdrew. Either ground bars the rule at the threshold. Together they describe what was received in 1868: a bar without the forum that gave it meaning, resting on an act the receiving law punishes. This chapter states the second ground, and then what the receiving order made of each source the 1607 leaf named.

#### *A. The Act That Made the Rule, Measured*

**The second ground: the founding act, measured by the receiving order's law.** The rule was made in the act of destroying a subject's sworn complaint. The order that ended the cause of 1607 directed that the bill be "taken off the file and cancelled, and utterly defaced," and the report defends the judge's exemption by extending it to "the annihilating of a record" (chapter 1.2). The legal system that received the doctrine measures that act in every register its law possesses. Its Constitution textualizes the obligation of "Records"; its founding charter enumerated among the acts of a tyrant the summoning of legislatures away from "the depository of their public Records."<sup>357</sup> Its criminal code makes the custodian of court-filed records who

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<sup>357</sup> U.S. Const. art. IV, § 1; Declaration of Independence (1776) (legislative bodies called to places "distant from the depository of their public Records"); the note below in this section.

"conceals, removes, mutilates, obliterates, falsifies, or destroys" one a felon who "shall forfeit his office and be disqualified from holding any office under the United States" — element for element the decree's "taken off the file and cancelled, and utterly defaced," answered with the precise remedy the immunity forecloses.<sup>358</sup> Its law of evidence presumes destroyed proof adverse to the destroyer: in the founding generation of the American reports, Story's trigger for condemning the spoliator of papers was "a vehement presumption of bad faith" — the same word-pair the received print deploys for the official, pointed the other way. Its due-process doctrine makes the bad-faith destruction of potentially useful evidence a constitutional violation, bad faith meaning conduct that "indicate[s] that the evidence could form a basis for exonerating" the accused — which the decree does not indicate but adjudicates. And its right of access to courts names official concealment that extinguishes a meritorious case as itself the constitutional injury: the cover-up that "rendered hollow [the plaintiff's] right to seek redress."<sup>359</sup> And its first freedom withdrew from the state the power the order's second verb exercised. In the statute book of the order's own generation *deface* is the word for forbidden objects to be marred past use — images and books to be "openlye brent or otherwayes defaced and destroyed," and, in an ecclesiastical commission of 1620, "massing Stuff Reliques or other like superstitious things" to be defaced so that "they may not serve for any supersticious Use" — and a court that "utterly" defaces a subject's complaint has treated it as the state treated the objects of a forbidden worship: a thing whose existence is the offence, to be destroyed rather than answered.<sup>360</sup> That is a power

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358 18 U.S.C. § 2071(a)–(b); the note below in this section.

359 *Christopher v. Harbury*, 536 U.S. 403, 414 (2002) (quoting *Bell v. Milwaukee*, 746 F.2d 1205, 1261 (7th Cir. 1984)); the note below in this section.

360 3 & 4 Edw. VI c. 10, § 2 (1549–50), in 4 *Statutes of the Realm* pt. 1, at 111; Commission for Causes Ecclesiastical (1620), in 17 Rymer, *Foedera* 208 (as reprinted in 7 Rymer, *Foedera* 140 (3d ed., The Hague 1742)); the next note.



the Religion Clauses deny to every American tribunal.<sup>361</sup> Measured by the receiving system's own law, the founding act is a disqualifying felony, a due-process violation, a denial of access, the exercise of a power the First Amendment withdrew, and grounds to presume the destroyed accusation true. The comparison is offered as measure, not as retroactive application: a doctrine that claims the sanction of history must take its founding act as the receiving system's law characterizes it, and nothing here revives a knowledge claim against the receiving courts. The objection that the defacement was merely a manner of its age thus fails at both ends of the transmission: the age's own court had just declared records sacred — and the age that received the doctrine criminalized its founding act, attaching to it the exact accountability the doctrine exists to prevent.<sup>362</sup> lvii

*B. The Receiving Order's Answer to Each Source the Report Named*

Chapter 1.4 § B read the King, the Roman law, Scripture and the canon law at their own pages, and stated what the 1607 court and Hobbes made of each. What the receiving order made of each

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361 3 & 4 Edw. VI c. 10, § 2 (1549–50), in 4 *Statutes of the Realm* pt. 1, at 111 (Record Comm'n 1819); Commission for Causes Ecclesiastical (1620), in 17 Thomas Rymer, *Foedera* 208 (as reprinted in 7 Rymer, *Foedera* 140 (3d ed., The Hague 1742)); the statute of 1597–98, the Instructions to the Council in the Marches of Wales (1617) and *Maye v. Ebdon* (Star Ch. 1597) are cited, with their words, in the notes at Part 1, chapter 1.2 § B. U.S. Const. amend. I.

362 The internal standard: *Floyd v. Barker*, 77 Eng. Rep. at 1307 (questioning a judge for supposed corruption "extends to the annihilating of a record, or of any judicial proceedings before them"; the defacement order on the same page). The receiving system's measures, in the order stated in text. Constitutional text and founding charter: U.S. Const. art. IV, § 1; Declaration of Independence (1776). Crime and forfeiture: 18 U.S.C. § 2071(a)–(b), deriving through the Revised Statutes from the Act of 1853, beside a sibling line from the first Congress's Act of 1790, so that the first Congress made the avoiding of a court record a crime in its first criminal statute (the chain, with the texts, is in the Notes); the statute appears within the immunity lineage's own case law, *Gravel v. United States*, 408 U.S. 606, 608–09 (1972). Evidence: *The Pizarro*, 15 U.S. (2 Wheat.) 227, 241 (1817) (Story, J.); *Kirby v. Tallmadge*, 160 U.S. 379, 383 (1896) (quoting Lord Mansfield in *Blatch v. Archer*, 1 Cowp. 63, 65 (1774)); *Interstate Circuit, Inc. v. United States*, 306 U.S. 208, 226 (1939). Due process: *Arizona v. Youngblood*, 488 U.S. 51, 58 (1988); *California v. Trombetta*, 467 U.S. 479 (1984). Access to courts: *Christopher v. Harbury*, 536 U.S. 403, 414 (2002) (quoting *Bell v. Milwaukee*, 746 F.2d 1205, 1261 (7th Cir. 1984)); *Chambers v. Baltimore & Ohio R.R.*, 207 U.S. 142, 148 (1907). The public record and the apex office: *Nixon v. Warner Communications, Inc.*, 435 U.S. 589, 597 (1978); *Nixon v. Administrator of General Services*, 433 U.S. 425 (1977).

stands here, source by source; the conclusions drawn from the sources together are at chapter 2.2

§ B.

| Source    | The receiving order                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|-----------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| The King  | No receiver survived reception. The court that named the King as the judge's only judge was dissolved for want of due process in 1641 (chapter 1.6); the Crown's last use of its rule against a petitioner, the Attorney General's citation of <i>Wrenham</i> at the Seven Bishops' trial in 1688 for the proposition that "the Justice of the Decree is not to be questioned," ended in acquittal (chapter 1.3 § E); the Bill of Rights of 1689 declared it "the Right of the Subjects to petition the King" (chapter 1.6); and the First Amendment made "the right of the people ... to petition the government for a redress of grievances" a right against the government itself (chapter 4.6). Under Article III there is no King, the officer answers downward to the people (chapter 2.1), and the founders who read Hobbes refused even the sovereign's own exemption (chapter 1.4 § C). |
| Roman law | The rules the leaf inverted are the receiving order's constitutional text. No one condemned absent or unheard became the jury and due-process guarantees; the signed accuser Rome rewarded became the grand jury's presentment and indictment; the record every act must survive became verity by process, every official act examinable by grand jury, petit jury, rules of evidence, appeal and habeas corpus (chapter 2.1); and Rome's action by the party against the judge who made the suit his own is the officer suit the Founding kept so that no injured party is left without a forum (chapter 2.1; Part 5, chapter 5.3).                                                                                                                                                                                                                                                             |
| Scripture | The receiving order answered as Hobbes had: Scripture as history and not as law. Its founding text forbids any "law respecting an establishment of religion" (First Amendment), so no verse can be authority for a rule about judges; and the verses the 1607 court read as exemption were, at their own pages and in the reporter's own charge of the same year, commands to the judge and the sentence of his death (chapter 1.4 §§ A–B).                                                                                                                                                                                                                                                                                                                                                                                                                                                      |

| Source    | The receiving order                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|-----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Canon law | What the receiving order answered was the forum's method, not the church's law. The <i>ex officio</i> oath the Star Chamber shared with the High Commission fell with the court in 1641 and was implanted in the Bill of Rights as the privilege against self-incrimination (chapters 1.6, 2.2); the canon that no one is condemned absent or unheard the Founding kept as due process and jury trial; and the record Lateran IV required against the unjust judge is the record the American order requires of every official act (chapter 2.1). The one instrument the 1607 court destroyed, a signed bill filed in court, is the instrument the receiving order protects. |

The two grounds are independent, and the chapters around them keep them so. Chapter 1.4 reads the sources the 1607 leaf cited at their pages, and chapter 2.2 § B asks whose decisions count; chapter 3.4 states what a court may do with both grounds without overruling anything; Part 4 puts the first ground's question to other sovereigns, and Part 5 to the older record.

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Ivii The internal standard: *Floyd v. Barker*, 77 Eng. Rep. at 1307 (questioning a judge for supposed corruption "extends to the annihilating of a record, or of any judicial proceedings before them"; the defacement order on the same page). The receiving system's measures, in the order stated in text. Constitutional text and founding charter: U.S. Const. art. IV, § 1 ("Records" among the objects of full faith and credit); Declaration of Independence (1776) (the grievance of legislatures called "at places unusual, uncomfortable, and distant from the depository of their public Records, for the sole purpose of fatiguing them into compliance with his measures"). Crime and forfeiture: 18 U.S.C. § 2071(a)–(b) (destruction of any record "filed or deposited with any clerk or officer of any court of the United States" a felony; a *custodian* who destroys "shall forfeit his office and be disqualified from holding any office under the United States") (deriving from Act of Mar. 4, 1909, ch. 321, §§ 128–129, 35 Stat. 1088, 1111–12; before it Rev. Stat. §§ 5403, 5408 (1874), 18 Stat. pt. 1, at 1052–53, codifying the Act of Feb. 26, 1853, ch. 81, §§ 4–5, 10 Stat. 170 (any person who "shall wilfully and knowingly destroy, or attempt to destroy, or with intent to steal or destroy, shall take and carry away any record, paper, or proceeding of a court of justice, filed or deposited with any clerk or officer of such court" guilty of felony "without reference to the value of the record"; the officer having custody who "shall fraudulently take away, or withdraw, or destroy" one likewise); and, in a sibling line that the Revised Statutes carry as § 5394 (18 Stat. pt. 1, at 1051, margin "30 April, 1790, c. 9, s. 15"; §§ 5403 and 5408 carry the 1853 margins alone), the Act of Apr. 30, 1790, ch. 9, § 15, 1 Stat. 112, 115 (any person who "shall feloniously steal, take away, alter, falsify, or otherwise avoid any record, writ, process, or other proceedings in any of the courts of the United States, by means whereof any judgment shall be reversed, made void, or not take effect"), so that the first Congress made the avoiding of a court record a crime in its first criminal statute; § 128 reached records "filed or deposited with any clerk or officer of any court of the United States," and § 129's custodian clause read "and shall moreover forfeit his office and be forever afterward disqualified from holding any office under the Government of the United States"); the statute appears within the immunity lineage's own case law, *Gravel v. United States*, 408 U.S. 606, 608–09 (1972) (the Pentagon Papers grand jury investigating, inter alia, "the concealment or removal of public records or documents (18 U. S. C. § 2071)"). Evidence: *The Pizarro*, 15 U.S. (2 Wheat.) 227, 241 (1817) (Story, J.) ("Concealment, or even spoliation of papers, is not of itself a sufficient ground for condemnation in a prize court," but where "the spoliation be unexplained, or the explanation appear weak and futile; if the cause labour under heavy suspicions, or there be a vehement presumption of bad faith, or gross prevarication, it is made the ground of a denial of farther proof, and condemnation ensues from defects in the evidence which the party is not

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permitted to supply"); *Kirby v. Tallmadge*, 160 U.S. 379, 383 (1896) (adopting Lord Mansfield's rule that evidence is "weighed according to the proof which it was in the power of one side to have produced and in the power of the other side to have contradicted," with the presumption against the party withholding) (quoting Lord Mansfield in *Blatch v. Archer*, 1 Cowp. 63, 65 (1774); *Interstate Circuit* cites the passage at 160 U.S. 383); *Interstate Circuit, Inc. v. United States*, 306 U.S. 208, 226 (1939) ("The production of weak evidence when strong is available can lead only to the conclusion that the strong would have been adverse"; "[s]ilence then becomes evidence of the most convincing character"). The taxonomy behind the grade, argued in the text of this Section: Co. Litt. 6b ("three sorts, viz. violent, probable, and light or temerary. *Violenta praesumptio* is manie times *plena probatio*"), carried into Blackstone's chapter on trial at 3 Bl. Comm. \*371, whose own first-edition note *u* cites Co. Litt. 373; Co. Litt. 373a–b ("*Quod stabitur praesumptioni donec probetur in contrarium*; but, as you see, it hath many exceptions," the margin sourcing the maxim to Bracton, lib. 1, cap. 9; "the law will admit no prooffe against that which the law presumeth," the no-proof class bounded to the sealed acquittance (Butler's note 326: "an estoppel"), legitimacy within the four seas, and flight-forfeiture). Due process: *Arizona v. Youngblood*, 488 U.S. 51, 58 (1988) (absent "bad faith on the part of the police, failure to preserve potentially useful evidence does not constitute a denial of due process of law"; the limitation confined to cases in which the police "by their conduct indicate that the evidence could form a basis for exonerating the defendant"); *California v. Trombetta*, 467 U.S. 479 (1984). Access to courts: *Christopher v. Harbury*, 536 U.S. 403, 414 (2002) (backward-looking access claims where official acts "caused the loss or inadequate settlement of a meritorious case"; quoting *Bell v. Milwaukee*, 746 F.2d 1205, 1261 (7th Cir. 1984) — "[t]he cover-up and resistance of the investigating police officers rendered hollow [the plaintiffs'] right to seek redress" — the interior brackets the *Harbury* Court's own); *Chambers v. Baltimore & Ohio R.R.*, 207 U.S. 142, 148 (1907) ("The right to sue and defend in the courts is the alternative of force. In an organized society it is the right conservative of all other rights, and lies at the foundation of orderly government."). The public record and the apex office: *Nixon v. Warner Communications, Inc.*, 435 U.S. 589, 597 (1978) ("the courts of this country recognize a general right to inspect and copy public records and documents, including judicial records and documents"); *Nixon v. Administrator of General Services*, 433 U.S. 425 (1977) (sustaining the statutory preservation of a former President's records over his objection).

### 3.4 What a Court May Do Without Overruling Anything

The preceding chapters diagnose; this chapter prescribes, and the prescription is deliberately modest. The argument does not require a court to overrule *Harlow* or the apex immunity decision. It requires only that a court decline to extend the apparatus past what the doctrine actually holds, decide the structural questions the lineage never reached, and take seriously the critiques that survive even on the doctrine's own assumptions. Section A sets out that concessive path; Section B states the account of accountability the Founding actually adopted, against which the doctrine's policy keystone is measured; Section C restates the organizing maxim as a rule of decision; and Section D explains why, despite all this, the apparatus has held — and what that explanation implies.

#### *A. The Concessive Path: Overruling Nothing*

A court faithful to precedent can decline the shield by three routes, in ascending order of what they ask.

*Read the doctrine as written.* It reaches less than its reputation supposes. Qualified immunity is articulated for the conduct of "a reasonable person," operates by its own terms at the dismissal stage, and supplies no procedure for adjudicating concerted multi-actor conduct; presidential immunity is stated for "the President's" individual acts and is silent as to the stage and standard of its own application. A court that simply holds the doctrine to its own stated limits resolves a great many disputes without reaching a single structural question.

*Decide what was never decided.* Where a case squarely presents one of the structural questions the lineage never reached — the Seventh Amendment's allocation of fact-finding, the Ninth Amendment's rule of construction, the shared and repudiated premise, the sealed loop —

the court decides a question of first impression, not a settled one. Under *Webster v. Fall*, it overrules nothing, because the lineage ruled on nothing.<sup>363</sup>

*Accept the concessive critiques.* Several of this Part's critiques hold even if the doctrine is assumed valid in every respect its defenders claim. A doctrine that specifies no procedural stage cannot be invoked to bar a stage it never addressed. A filter that returns the same answer in every case for the apex officer (chapter 3.2 § E) cannot perform the screening function claimed for it. An immunity calibrated to individual conduct cannot resolve concerted conduct without the fact-finding it exists to avoid — and that fact-finding belongs to the jury (chapter 3.1 § C). None of these requires reconsidering precedent; each operates inside it.

The sequence is the point. A litigant, and a court, should lead with the concessive layer, which asks the least, and reserve the structural challenge for the case that needs it. The lock opens from the inside before it must be forced from the outside — which means the argument is available not only to a Court inclined to revisit its doctrine, but to the bound district judge who may not revisit it at all.

### *B. Accountability Is the Founding's Answer*

Behind the shield stands a single policy rationale — that officials must be free to act "fearlessly," undeterred by the "pall of potential prosecution" (chapter 2.5 § C) — and the affirmative case against the apparatus is that this rationale inverts the office it claims to protect. The presidency, and every public office, is constituted of obligations running *toward* the occupant: the Oath to faithfully execute, the duty to take care that the laws be faithfully executed, the qualifications of office. Fearless fidelity is among those obligations — a qualification the occupant must *bring* to

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<sup>363</sup> *Webster v. Fall*, 266 U.S. 507, 511 (1925); *see supra* chapter 3.2 § C.

the office, not a benefit the office confers upon him.<sup>364</sup> The "pall of potential prosecution" the doctrine would lift is nothing more exotic than the rule of law: the same exposure to consequence for unlawful acts that every citizen bears. To clear it away for the highest officials alone is to claim for the office the precise exemption the Revolution was fought to abolish.

The Founding chose account over insulation, and said so. The early Republic held an officer personally liable for an unconstitutional seizure carried out in good-faith reliance on direct presidential orders: the orders "cannot . . . legalize an act which without those instructions would have been a plain trespass."<sup>365</sup> The Federalist, even while describing the energetic Executive, insisted that its occupant remain "liable to . . . prosecution in the common course of law."<sup>366</sup> And the Declaration of Independence enumerated, as a defining act of the tyranny it indicted, the very immunity-from-accountability the modern doctrine restores — "protecting them, by a mock Trial, from punishment" for offenses against the people, and "depriving us in many cases, of the benefits of Trial by Jury."<sup>367</sup> Impunity is not fearlessness; it is fearlessness's counterfeit. Accountability — exposure to consequence — is the error-correction that holds power to a reality beyond the ruler's own will, and a doctrine that removes it does not produce a fearless officer but an unaccountable one. The dissent that called absolute immunity "a reversion to the old notion that the King can do no wrong" named the inheritance exactly.<sup>368</sup> The Founding's answer to the danger the doctrine fears was not to exempt the officer but to bind him — and to keep open, for the injured citizen, a forum that could grant relief.

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364 U.S. Const. art. II, § 1, cl. 8 (the Oath); *id.* § 3 (the Take Care Clause).

365 *Little v. Barreme*, 6 U.S. (2 Cranch) 170, 179 (1804).

366 The Federalist No. 77 (Alexander Hamilton).

367 The Declaration of Independence (U.S. 1776) (enumerating among the grievances "[f]or protecting them, by a mock Trial, from punishment for any Murders which they should commit on the Inhabitants of these States," and "[f]or depriving us in many cases, of the benefits of Trial by Jury") (the grievances are unnumbered in the original and are cited without paragraph numbers).

368 *Nixon v. Fitzgerald*, 457 U.S. 731, 766 (1982) (White, J., dissenting).

### *C. The Maxim as a Rule of Decision*

The organizing principle of this book can now be stated as a rule of decision. *Enforcement capacity must precede compliance capability*. No actor — officer, court, or doctrine — may enforce a rule whose own preconditions it has not satisfied. A shield that frees the official from Article III liability must trace to a power the Constitution grants. Where it does not — and Part 2 showed that it does not — the shield has not met the precondition of its own enforcement, and it must yield to the text it would displace. The maxim is not a new doctrine to be added to the law; it is the order of operations the Constitution already prescribes. The people's capacity to enforce the law against their agents — ultimately, the suit — is the precondition of the compliance the law demands of those agents, not a privilege the agents may grant or withhold. A doctrine that reverses that order, demanding the citizen's compliance with a legal order while welding shut every avenue of enforcement against the order's own officers, has inverted the constitutional sequence. To restore it, a court need only require the shield to show the warrant it has always presupposed and never produced.

### *D. Why the Apparatus Has Held — and What That Implies*

If the doctrine is as unfounded as Part 2 and chapters 3.1–3.4 maintain, its endurance demands an explanation. The explanation is structural, and it is the same structure this book has described throughout. The doctrine is *self-insulating*. Immunity is a threshold doctrine: it disposes of a case before the merits are reached. A doctrine that determines whether a court will ever examine official conduct is therefore itself rarely examined — because they end the case before examination begins. The apparatus's own foundations go unexamined for the very reason the official conduct goes unexamined: the threshold disposes. To this structural insulation the chain



adds a second (chapter 3.2 § C): the structural questions are never reached, so the doctrine is never made to defend the grounds on which it rests. The result is a doctrine invoked rather than justified, asserted rather than traced — maintained, in the end, by never being asked to account for itself.

The diagnosis is now measured as well as inferred. The briefs surveyed in chapter 2.4 are the record of what was actually put to one federal court of appeals about this doctrine across four decades, by the officials who invoked it and the citizens who resisted it. In that record the question of source was put once, by two litigants without a lawyer, out of a law-review study the doctrine's defenders had already answered in a footnote; at the Supreme Court it was put twice, by amici in *Stump* and by the respondents in *Pulliam*, both from the print; the first went unanswered, and the second was adopted as history and left unquestioned as source. Every other plaintiff argued for an exception — and an exception, however well argued, concedes the rule. The Senate that codified the doctrine in 1996 was given an unnamed English judge of 1868 and "four centuries of unbroken precedent," and it legislated. A threshold doctrine that ends the case before examination is examined only if the party it ends raises the challenge; in the record, that party has almost always asked for an exception instead, and the one time the challenge came it came from outside the profession, and the court declined, in a footnote to an order its own rules forbid citing, to address it. That is how an unfounded doctrine holds: not by winning the argument over its foundation, but by almost never being made to have it.

That diagnosis carries its own prescription. A doctrine sustained by non-engagement is undone by engagement. The questions that have gone unasked — produce the Article II text; reconcile the fearlessness rationale with the Oath and the Take Care duty; read the record of the case the doctrine descends from — are not unanswerable because they are hard. They have gone

unanswered because they have gone unput. The remedy that follows from the whole of this book is therefore the simplest one the law affords: ask.

### **Conclusion to Parts 2 and 3**

The federal courthouse is closed to the citizen an official has wronged, and the closure has one ancestor. The doctrine that turns him away once inside is not a tradition the Republic inherited. It is a 1607 decree of the Star Chamber, received into American law in 1868 by a citation that read the report and not the record, read into a statute whose text makes "every person" liable, and carried to the presidency on a same-day pair of decisions that could not supply each other's authority. Traced from the bottom up, the chain identifies a constitutional source at no node. Its justification at every node is a hypothetical — the official who, exposed to suit, will fail to act — credited for the official and never tested against the citizen; and the case in which that hypothetical was born is one whose surviving file shows the complaint destroyed rather than answered, the exculpatory examinations withheld from the jury, and the witnesses' words taken down in a language they did not speak. The doctrine re-welds the three locks the Founding cut: no proof against the official's act, no forum but the sovereign's, no remedy from the sovereign. At its root the rule did not extinguish the subject's plea against a judge; it transferred the plea to a King who never answered one, and the Republic has no officer to whom such a transfer can run. The promise of accountability opens, as it always did, onto a wall.

What makes the doctrine vulnerable is the same thing that has let it endure. It has held because it has never been made to account for itself — because a threshold doctrine disposes of cases before the merits, because the source has been put in issue from the bar and never answered as a question about the source, and because the structural questions are never reached.

None of that is a holding. It is an absence of holding, and an absence of holding is not precedent. A court faithful to every decided case can still require the shield to show the warrant it has presupposed and never produced; can decide, as questions of first impression, the Seventh and Ninth Amendment questions the lineage never confronted; and can accept the critiques that hold even if the doctrine is assumed sound. The Founding's answer to the fear the doctrine invokes was not to exempt the official but to bind him, and to keep a forum open for the citizen he wrongs. Restoring that answer does not demand the overruling of anything. It demands only that the order of operations the Constitution prescribes be observed: that enforcement capacity precede the compliance it is invoked to compel. A fear answered by a fear leaves the scale where it was. A record removes the scale. The record exists. It has only to be read.

## **PART 4 — THE SAME QUESTION PUT TO OTHER SOVEREIGNS**

*Part 4 puts the question the rule reserved, what a subject may do against a judge, to other sovereigns, and puts it to their texts as written. Chapter 4.1 fixes three questions and four terms, de jure law, common law, stare decisis and congruency, and states for each order the degree to which it is examined. Chapter 4.2 reads the English rule as it stands today, in which no published judgment since 1975 has named Floyd v. Barker, so that the American chain alone carries the Star Chamber's sentence forward under the victim's name; chapter 4.3 the eighteenth-century bargain that shielded the sovereign and left the servant answerable, and the one occasion, in 1972, on which that bargain was put to the Supreme Court as a rule of due process and dismissed without opinion. Chapter 4.4 reads the laws of the kingdoms that answer the subject, and chapter 4.5 the codes that answer the sovereign against the judge. Chapter 4.6 finds the American text channeling the plea and the American corpus nullifying it. Chapter 4.7 sets the orders on two axes, who pays for a wrong decision and whether the judge is exposed for it, and states a finding in six parts, with England grouped on the first axis with the authoritarian codes and on the second the most immune of all. Chapter 4.8 states what the comparison adds to the transfer thesis.*

### **4.1 Three Questions and Four Terms**

A rule that sends the subject's plea against a judge to a forum can be judged by whether the forum answers. The kingdoms of Europe built fora that answer the subject. The authoritarian codes built fora that answer the sovereign against the judge. England abolished the King's forum

and built neither. What remains in England is the reserved forum of 1607 with the King removed and nothing put in his place.

Three questions, each answerable from a text without any claim about a mind, organize the comparison. First, *channel or nullify*: when a subject says a judge has wronged him, is there a forum that must receive the plea and can answer it against the judge, or does the law say the plea does not exist? Second, *cost*: when the wrong is a wrong decision, who pays for it, the judge, the sovereign, or the subject who suffered it? Third, *transmission*: does the modern scope match the founding record, or was something amputated or added in transit?

*Floyd v. Barker* answered the first question by channeling: judges are not to be questioned for corruption "except it be before the King himself."<sup>369</sup> The reserved forum was the King. Part 1 showed that the King never used it to answer a subject; he used it once, in 1616, to remove a judge on his own displeasure (chapter 1.3). This Part asks what other sovereigns did with the same question.

Four terms are kept apart throughout. *De jure law* is the enacted or promulgated text as written. *Common law* and *stare decisis* carry the meanings chapter 2.2 § B gave them, the corpus and the adherence to it. *Congruency* is the measured distance between a state's de jure law and its common law. This Part classifies de jure law for every jurisdiction. For America it also states the common law and the adherence to stare decisis, both examined in Parts 2 and 3; for England the common law is examined in part, in Part 1, and is to be brought to the same degree; for the other states the common law is capable of examination and is not examined here. Every comparative sentence below is a sentence about de jure law unless it says otherwise.

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<sup>369</sup> *Floyd v. Barker*, 12 Co. Rep. 23, 25, 77 Eng. Rep. 1305, 1307 (Star Chamber 1607); the sentence and its context are Part 1, chapter 1.3.

## 4.2 The English Rule as It Stands Today

In England the rule outlived its root and then lost sight of it. The immunity of judges stands today on statute and on a 1975 restatement: no action lies against a justice within his jurisdiction, and outside it only on proof of bad faith; no proceeding lies against the Crown for any act "of a judicial nature"; a judicial act may be questioned "only" by appeal or judicial review, with damages against the Crown alone and only for wrongful detention.<sup>370 lviii</sup> The restatement is *Sirros v. Moore*, where Lord Denning dated the rule from "the year 1613, if not before," the year of *The Marshalsea*, and Ormrod L.J. named *Floyd v. Barker* among "a few reported cases of attempts to bring such actions against judges of a superior court," a judge of assize "sued for conspiracy," in which it was held that no action lay "for that which he did openly in court as judge."<sup>371 lix</sup> No published judgment of an English court since has named *Floyd* at all: the three most recent statements of the rule, in 2019, 2025 and 2026, cite *Sirros* and its nineteenth-century sources and stop there.<sup>372</sup> The English chain no longer names its first link; the American chain still does, in *Randall* and in Justice Douglas's dissent, and it is the American chain alone that carries the Star Chamber's sentence forward under the victim's name.

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370 Courts Act 2003, c. 39, ss. 31(1), 32(1); Crown Proceedings Act 1947, 10 & 11 Geo. 6, c. 44, s. 2(5); Human Rights Act 1998, c. 42, s. 9(1), (3)–(4); Constitutional Reform Act 2005, c. 4, s. 108(3).

371 *Sirros v. Moore*, [1975] Q.B. 118, [1974] 3 W.L.R. 459 (C.A.) (Lord Denning M.R., [1974] 3 W.L.R. at 467; Ormrod L.J., [1974] 3 W.L.R. at 480) (W.L.R. pagination from the running heads of the database print, leaves 10 and 23); the parallel pages of the Q.B. report are not given because that report is not held. *Re McC (A Minor)*, [1985] A.C. 528 (H.L.), kept the superior/inferior distinction Lord Denning had sought to abolish. The doctrine's English pedigree from *The Marshalsea* forward is Part 2, chapter 2.4.

372 *Mazhar v. Lord Chancellor*, [2019] EWCA Civ 1558, ¶ 77; *Awodiya v. Ministry of Justice*, [2025] EWHC 49 (KB), ¶¶ 44–46; *Hurnam v. Veerabudren*, [2026] UKPC 29, ¶¶ 27–29, 32, 43–44 (official transcripts, The National Archives, Find Case Law; none contains the name *Floyd* or *Marshalsea*; *Hurnam* ¶ 32 cites *Re McC*). The measurement: the Find Case Law full-text index of published England and Wales judgments, 2001 to 10 Sept. 2026, returns no result for "Floyd v Barker," fifteen for "Sirros v Moore" (more than fifteen when first run on 3 Sept. 2026), and for "12 Co Rep" eleven, all *Case of Proclamations* and *Prohibitions del Roy*. The last English appellate citation of *Floyd* found is *Sirros* (1974).

Lord Denning's statement of the rule is the one every recent English judgment repeats, and it deserves to be read entire:

Ever since the year 1613, if not before, it has been accepted in our law that no action is maintainable against a judge for anything said or done by him in the exercise of a jurisdiction which belongs to him. ... No matter that the judge was under some gross error or ignorance, or was actuated by envy, hatred and malice, and all uncharitableness, he is not liable to an action. The remedy of the party aggrieved is to appeal to a Court of Appeal or to apply for habeas corpus, or a writ of error or certiorari, or take some such step to reverse his ruling. Of course, if the judge has accepted bribes or been in the least degree corrupt, or has perverted the course of justice, he can be punished in the criminal courts. That apart, however, a judge is not liable to an action for damages.<sup>373</sup>

The year Lord Denning anchors to is 1613, *The Marshalsea*.<sup>374</sup> *Re McC* kept the superior/inferior distinction Lord Denning had tried to abolish. The three judgments of 2019, 2025 and 2026 state the rule from *Sirros*, *Scott v. Stansfield*, *Kemp v. Neville* and *Re McC*, and the National Archives' full-text index of every published England and Wales judgment from 2001 to 2026 returns no result for *Floyd v. Barker*, while *Sirros v. Moore* returns more than a dozen.<sup>375</sup>

Read on the texts alone, three things follow. The English rule is nullification of the subject's remedy against the judge for any decision within jurisdiction, and nullification of the remedy against the Crown for the same act. The subject's only channel is appeal, which corrects the decision and compensates nothing. The judge's exposure is criminal for bribery and

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<sup>373</sup> *Sirros v. Moore*, [1975] Q.B. 118, [1974] 3 W.L.R. 459, 467 (C.A.) (Lord Denning M.R.).

<sup>374</sup> *Id.*, [1974] 3 W.L.R. at 480 (Ormrod L.J.), quoting *Floyd v. Barker*, 12 Co. Rep. 23, 24; *The Marshalsea*, 10 Co. Rep. 68b (1613).

<sup>375</sup> *Re McC (A Minor)*, [1985] A.C. 528 (H.L.); for the three judgments and the Find Case Law search, run 3 and 10 Sept. 2026, the note to the sentence "cite *Sirros* and its nineteenth-century sources and stop there" above in this section.

disciplinary for personal misbehaviour; no forum receives a subject's plea that a decision was unjust.<sup>376</sup>

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lviii Courts Act 2003, s. 31(1) ("No action lies against a justice of the peace in respect of what he does or omits to do—(a) in the execution of his duty as a justice of the peace, and (b) in relation to a matter within his jurisdiction"), s. 32(1) (outside jurisdiction, "if, but only if, it is proved that he acted in bad faith"); Crown Proceedings Act 1947, s. 2(5) ("No proceedings shall lie against the Crown by virtue of this section in respect of anything done or omitted to be done by any person while discharging or purporting to discharge any responsibilities of a judicial nature vested in him"); Human Rights Act 1998, s. 9(1) (proceedings "in respect of a judicial act may be brought only—(a) by exercising a right of appeal; (b) on an application . . . for judicial review"), (3)–(4) (damages for a good-faith judicial act only as Article 5(5) of the Convention requires, and "against the Crown"); Constitutional Reform Act 2005, s. 108(3) (the Lord Chief Justice may "give a judicial office holder formal advice, or a formal warning or reprimand, for disciplinary purposes"). Each provision read at the King's or Queen's Printer copy as enacted (legislation.gov.uk PDFs: 1947 Act at p. 2; 1998 Act at p. 6; 2003 Act at p. 15; 2005 Act at p. 48) and checked against the revised texts, legislation.gov.uk, 3 Sept. 2026, in which the quoted words stand unamended.

lix *Sirros v. Moore*, [1974] 3 W.L.R. at 467 (Lord Denning M.R.), the paragraph the text quotes entire; at 480 (Ormrod L.J.): "There are a few reported cases of attempts to bring such actions against judges of a superior court in England, for example *Hamond v. Howell* . . . and *Floyd v. Barker* (1607) 12 Co.Rep. 23. . . . the second, a judge of assize, who was sued for conspiracy. In both cases it was held that no action could be brought against a judge of record . . . 'for that which he did openly in court as judge' (*Floyd v. Barker*, 12 Co.Rep. 23, 24)".

### 4.3 The Eighteenth-Century Bargain: The Sovereign Shielded, the Servant Answerable

Two English cases fix the configuration from which the modern rule departed, and both are read here at the page of the *English Reports*. In *Lane v. Cotton* (1701) the headnote as printed states the rule: the head of a public office under Government, with power to appoint and remove the servants of the office, "is not responsible to an individual for a loss occasioned by the default of such servants. The servant who is guilty of the default, is." Turton, Powys and Gould, JJ., held for the postmasters-general; Holt, C.J., for the plaintiff.<sup>377</sup> In *Macbeath v. Haldimand* (1786) the

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376 Courts Act 2003, ss. 31(1), 32(1); Crown Proceedings Act 1947, s. 2(5); Human Rights Act 1998, s. 9; Constitutional Reform Act 2005, s. 108(3), each as quoted in the Notes;<sup>lviii</sup> the Judicial Conduct Investigations Office defines its remit as "personal misbehaviour which is serious enough to require the Lord Chancellor and the Lady Chief Justice to take formal disciplinary action" (statement of remit, [judicialconduct.judiciary.uk](http://judicialconduct.judiciary.uk), read 3 Sept. 2026).

377 *Lane v. Cotton*, 1 Ld. Raym. 646, 91 Eng. Rep. 1332 (K.B. 1701) (headnote as printed at 1332); the Salkeld report, 1 Salk. 17, 91 Eng. Rep. 17, for the majority's second reason and Holt's ground, both quoted at the notes to Part 1, chapter 1.6. The case's place in the English narrative is Part 1, chapter 1.6.



headnote reads: "An officer appointed by Government, treating as an agent for the public, is not liable to be sued upon contracts made by him in that capacity."<sup>378</sup> Ashhurst, J., gave the reason: "Great inconveniencies would result from considering a governor or commander as personally responsible in such cases as the present. For no man would accept of any office of trust under Government upon such conditions."<sup>379</sup> Buller, J., stated the rule: "in any case where a man acts as agent for the public, and treats in that capacity, there is no pretence to say that he is personally liable."<sup>380</sup> Lord Mansfield, on the petition of right, observed that "though a petition of right would lie, yet it would probably produce no effect."<sup>381</sup>

The Law Library of Congress states the configuration in one line: the King could do no wrong, so the Crown was not liable for its servants' torts, so "the servants of the crown became personally liable for any torts committed by them, even if they were acting in an official capacity."<sup>382</sup> In tort the cost fell on the servant; in contract it fell on a petition the court doubted would produce anything. Neither case concerns a judge, and that is the point: the eighteenth-century sovereign's immunity was paid for by the servant's exposure, and the modern judicial rule keeps the sovereign's immunity while removing the servant's exposure. The subject, who in 1701 could sue the receiver Breeze, in 2026 can sue no one. The place of these cases in the English narrative is Part 1, chapter 1.6.

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378 *Macbeath v. Haldimand*, 1 T.R. 172, 99 Eng. Rep. 1036 (K.B. 1786) (headnote); the note below in this section.

379 *Id.*, 1 T.R. at 181–82 (Ashhurst, J.).

380 *Id.*, 1 T.R. at 182 (Buller, J.).

381 *Macbeath v. Haldimand*, 1 T.R. 172, 99 Eng. Rep. 1036 (K.B. 1786) (headnote at 1036; Lord Mansfield at 176–77; Ashhurst, J., at 181–82; Buller, J., at 182).

382 Clare Feikert, *United Kingdom: Immunity and Government and Executive Agencies in the 1700s*, Law Library of Congress, LL File No. 2002-13698 (Sept. 2002), at 1. Feikert's single quotation from *Macbeath* splices Ashhurst and Buller, JJ., into one sentence, adds "ever," and gives the report's first page as 174; her "Danby (1701) 1 Ld. Raym. 646" does not exist at that page. The judges are quoted separately above, from the page.

The configuration was put to the Supreme Court of the United States once, in 1972, as a rule of due process, and the record of that argument is on the shelf. Allison Krause was killed by the Ohio National Guard at Kent State University on 4 May 1970. Her father's action against the State was dismissed under Ohio's sovereign immunity; the Ohio Court of Appeals had stated, as the brief quotes it, that the State's agents were personally immune for acts on the State's behalf "well intentioned or not," and an Ohio statute of 1967 provided that a Guardsman on duty at a disorder "is not answerable in a civil suit for any act performed within the scope of his military duties ... unless the act is one of willful or wanton misconduct."<sup>383</sup> Supporting the appeal, David E. Engdahl stated the eighteenth-century configuration in American terms. The rule of personal official liability had been "applied with remarkable strictness and harshness,"<sup>384</sup> so that a constitutional violation by an agent of the state admitted

no defense to an action for damages against the agent that he had acted in good faith, on his best skill and judgment, in literal compliance with the terms of a statute, or even under the direct orders of a superior officer.

It was "only because there was considered to be no other effective means for such redress" that the Court had ever been able to find sovereign immunity to direct suit consistent with the Due Process Clause.<sup>385</sup> It followed, the brief argued, that a state which curtailed the officer's liability and retained its own immunity "would clearly violate the due process clause," a question "this Court has never considered."<sup>386</sup> The Court dismissed the appeal for want of a substantial federal

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383 Brief of the National Council of the Churches of Christ in the U.S.A. and the Ohio Council of Churches as Amici Curiae in Support of Jurisdictional Statement at 9–12, *Krause v. Ohio*, No. 72-589 (U.S. filed Oct. 24, 1972) (the Ohio Court of Appeals and the Ohio statute of 1967 as the brief quotes them; the brief in full in the note at the end of this passage).

384 *Id.* at 9–12.

385 Brief of the National Council of the Churches of Christ in the U.S.A. and the Ohio Council of Churches as Amici Curiae at 9–12, *Krause v. Ohio*, No. 72-589 (U.S. filed Oct. 24, 1972); the note below in this section.

386 *Id.* at 9–12.

question, and the Ohio judgment stood. The record therefore holds the American statement of the bargain in *Lane v. Cotton*, put to the Court as a constitutional question and dismissed without opinion. The subject who in 1701 could sue the receiver Breeze could, in Ohio in 1972, sue neither the Guardsman nor the State.<sup>387</sup> lx

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lx Engdahl, *Immunity and Accountability for Positive Governmental Wrongs*, 44 U. Colo. L. Rev. at 77–78: nineteenth-century doctrine "guaranteed this right of redress, notwithstanding sovereign immunity, by holding public officers strictly accountable," so that sovereign immunity "was sufferable because redress in effect against the state for its positive wrongs could be secured by personal suit of the jointly and separately liable officer ... even though the officer had acted in good faith," and a State's preclusion of redress by immunity "is ... a denial of due process of law, unless an effective mode of alternative redress is provided in that State through personal suit of the officer in accordance with the strict old, and now generally abandoned, traditional rules"; the article's n. 372 records that this argument "was presented to the Supreme Court of Ohio" by the same amici in *Krause v. Ohio*, No. 71-779, was "endorsed and incorporated by reference into the brief of Plaintiff-Appellee," and "was not dealt with at all in the Ohio court's final opinion on July 19, 1972"; read at the Colorado Law Scholarly Commons PDF, vol. 44, iss. 1, art. 2.

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387 Brief of the National Council of the Churches of Christ in the U.S.A. and the Ohio Council of Churches as Amici Curiae in Support of Jurisdictional Statement at 9–12, *Krause v. Ohio*, No. 72-589 (U.S. filed Oct. 24, 1972) (David E. Engdahl, counsel), in Records and Briefs of the United States Supreme Court, October Term 1972, bound vol. Kno–Kra (Harvard Law School Library), quoting *Krause v. State*, 28 Ohio App. 2d 1, 9, 274 N.E.2d 321, 326 (1971), and Ohio Rev. Code § 5923.37 (1967); the brief cites *United States v. Lee*, 106 U.S. 196, 208–09 (1882) ("little weight can be given to the decisions of the English courts" on suits against officers), *Hopkins v. Clemson College*, 221 U.S. 636, 643 (1911), *Prout v. Starr*, 188 U.S. 537, 543 (1903), and Engdahl, *Immunity and Accountability for Positive Governmental Wrongs*, 44 U. Colo. L. Rev. 1, 41–55 (1972) (the pinned pages are the article's § E, "The Expansion of Personal Official Privilege," at 41–55; the due-process argument the brief put to the Court is the article's own, at 77–78). Disposition: *Krause v. Ohio*, 409 U.S. 1052 (1972) (appeal dismissed for want of a substantial federal question), from *Krause v. State*, 31 Ohio St. 2d 132, 285 N.E.2d 736 (1972).

#### 4.4 The Kingdoms That Answer the Subject

Other sovereigns answered the question *Floyd* reserved to the King, and the record of their answers is a record of texts. The kingdoms of Europe built the forum the rule promised and England never opened, and one kingdom outside Europe, Malaysia, opened a court against its own Rulers within living memory; each is read below at its own text.<sup>388 lxi</sup> These are classifications of *de jure* law, of the texts as written; they say nothing of any kingdom's common law or of the congruency between the two, and the point they make needs no more: the forum *Floyd* named and closed is a forum other sovereigns opened.

Each kingdom's own text says what a subject may do against a judge and what the forum may do in answer. Denmark's Special Court of Complaints, established in 1939 and composed of a Supreme Court judge, a high-court judge, a district judge, a legal scholar and an advocate, receives the plea of anyone "who considers himself wronged by improper or unseemly conduct on the part of a judge in the exercise of his office"; it may dismiss, express disapproval, fine the judge, or remove him where the conduct is grave or repeated, by judgment in open court, appealable to the Højesteret.<sup>389</sup> Decisions are not reviewable there; conduct is.<sup>390</sup> Norway's Supervisory Committee for Judges, two judges, an advocate and two lay members appointed by the King, receives complaints from parties, counsel, experts, witnesses "and other persons" directly affected who consider that a judge has breached the duties of office or acted contrary to good judicial conduct; it may criticise or warn, and damages, criminal and removal proceedings

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388 The texts are cited at the notes to each sentence below. Belgium's is the WIPO Lex republication of the Justel consolidation (2018); the current Justel consolidation was not compared. France's Code is read at the Code of Judicial Organization as republished; the Legifrance text of the Code and the 1972 and 1667 texts were not read. Malaysia's occasion and passage are in Mark R. Gillen, *The Malay Rulers' Loss of Immunity*, U. Vic. Fac. of Law Occasional Paper No. 6 (1994), at 1, 11–16.

389 Retsplejeloven, LBK nr. 1298 of 7 Nov. 2025, § 49, stk. 1 (translation the author's); the next note.

390 Retsplejeloven, LBK nr. 1298 of 7 Nov. 2025, §§ 1 a, 49, stk. 1, 6, 8 (retsinformation.dk PDF, pp. 1, 14–15; translations the author's).

go to the ordinary courts.<sup>391</sup> Sweden's Penal Code makes it the crime of *tjänstefel* for a person exercising public authority intentionally or negligently to disregard what applies to the task; the Riksdag's Ombudsman may prosecute, judges have been convicted, and the State Disciplinary Board warns, docks pay or dismisses on referral.<sup>392</sup> In the Netherlands whoever complains of how a judge behaved toward him in the exercise of his function may, unless the complaint concerns a judicial decision, ask the Procurator General to bring the judge before the Hoge Raad, which declares whether the judge behaved properly or not: no sanction, no damages, a declaration by the highest court.<sup>393</sup>

Belgium keeps the living personal action of a subject against a judge. Judges "may be taken to task" (*pris à partie*) where they are guilty of fraud in the course of the proceedings or the judgment, where the law expressly so provides, where the law declares judges liable in damages, or where there is a denial of justice; the action is brought by petition at the registry of the Cour de cassation and served on the magistrate, and it descends from the Ordonnance of 1667.<sup>394</sup> Spain and France moved the money to the State. Until 1 October 2015 the Spanish subject could sue the judge directly; the Organic Law of the Judiciary now provides that damages caused by judges in the exercise of their functions give rise to the liability of the State

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391 Domstolloven, lov 13 aug. 1915 nr. 5, §§ 236, 237 ("parter, prosessfullmektiger, sakkyndige, vitner og andre personer som mener at en dommer har overtrådt bestemmelsene i § 236"; a judge who "forsettlig eller uaktsomt overtrer de plikter som stillingen medfører, eller for øvrig opptre i strid med god dommerskikk") (Lovdata consolidated text, read 3 Sept. 2026; translations the author's).

392 Brottsbalk (1962:700), 20 kap. 1 § ("åsidosätter vad som gäller för uppgiften"); Lag (1986:765) med instruktion för Riksdagens ombudsmän; Lag (1994:260) om offentlig anställning (Riksdagen consolidated texts, read 3 Sept. 2026); the convictions of judges in 1993, 1996 and 2001 are recorded in the Ombudsman's own published decisions.

393 Wet op de rechterlijke organisatie, arts. 13a ("tenzij de klacht een rechterlijke beslissing betreft"), 13f ("zich ... al dan niet behoorlijk heeft gedragen") (wetten.overheid.nl, read 3 Sept. 2026; translations the author's).

394 Code judiciaire, art. 1140 ("Les juges peuvent être pris à partie dans les cas suivants : 1° s'ils se sont rendus coupables de dol ou de fraude, soit dans le cours de l'instruction, soit lors des jugements"; the four grounds are quoted in the Notes<sup>hi</sup>), art. 1143 (WIPO Lex republication of the Justel consolidation of 2018; the current Justel text was not compared); the descent from the Ordonnance civile of 1667, tit. XXV, is stated in the French sources cited at the note to the sentence "each is read below at its own text" above.

for judicial error or abnormal functioning of the administration of justice, "without, in any case, the injured parties being able to proceed directly against" the judges, the State recovering from the judge where the damage came from intent or gross fault; the 2015 amendment's preamble gives the reason, to align judges with other public employees and follow the Council of Europe.<sup>395</sup> In France the *prise à partie* of the Ordonnance of 1667 ran through the 1806 Code until 1972; the Code of Judicial Organization now provides that the State must repair the damage caused by the defective functioning of the public service of justice, its liability engaged only by gross fault or a denial of justice, the State recovering from the magistrate before a civil chamber of the Cour de cassation, and the victim unable to act directly against the magistrate.<sup>396</sup>

Malaysia is a kingdom of nine Rulers, and it changed course within living memory. From 1957 the King and the Rulers were immune from all civil and criminal proceedings. On 30 November 1992 a school hockey coach, Douglas Gomez, was summoned to the Sultan of Johor's palace and reported an assault by the Sultan himself. The Constitution (Amendment) Act 1993, passed on 9 March 1993 by 167 votes of 180, rewrote the immunity clause so that "[n]o proceedings whatsoever shall be brought in any court against the Ruler of a State in his personal capacity except in the Special Court established under Part XV," a court of the Lord President, the two Chief Justices and two others, which hears proceedings against the King or a Ruler "in his personal capacity"; no such action lies without the consent of the Attorney General; a charged Ruler ceases to act, a Regent sits, and a conviction carrying more than a day's imprisonment ends

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395 Ley Orgánica 6/1985 del Poder Judicial, art. 296.1 ("responsabilidad del Estado por error judicial o por funcionamiento anormal de la Administración de Justicia sin que, en ningún caso, puedan los perjudicados dirigirse directamente contra aquéllos"), 296.2 ("dolo o culpa grave"), as amended by Ley Orgánica 7/2015, de 21 de julio (B.O.E. 22 July 2015) (suppressing arts. 411–413); the preamble to the 2015 law gives the reason.

396 Code de l'organisation judiciaire, arts. L141-1 ("L'Etat est tenu de réparer le dommage causé par le fonctionnement défectueux du service public de la justice. Sauf dispositions particulières, cette responsabilité n'est engagée que par une faute lourde ou par un déni de justice"), L141-2, L141-3, descending from Loi n° 72-626 du 5 juillet 1972, art. 11, and the Ordonnance civile of 1667, tit. XXV; the Legifrance text and the 1972 and 1667 texts were not read at the source.

the reign unless pardoned.<sup>397</sup> Gillen's reading is that the form gives the executive additional leverage over the Rulers, three of the five judges being appointed at the Prime Minister's behest and the door key in the Attorney General's hand.<sup>398</sup> This is a kingdom whose founding record of absolute immunity was amended downward, on a subject's complaint, in four months.

Two further texts belong beside the kingdoms. Japan's Constitution requires the Diet to "set up an impeachment court from among the members of both Houses for the purpose of trying those judges against whom removal proceedings have been instituted," and forbids any disciplinary action against judges by an executive organ; any person may file a charge with the Judge Indictment Committee.<sup>399</sup> Canada's Judges Act, as replaced in 2023, lets any person complain to the Canadian Judicial Council, seats lay persons on review and hearing panels, provides mandatory sanctions short of removal, and reserves removal to a recommendation to Parliament.<sup>400</sup>

In every European kingdom, then, the subject has a forum that must receive a complaint about the judge's conduct and can answer it against the judge, up to removal in Denmark, personal damages in Belgium, or criminal conviction in Sweden. In France and Spain the money for a wrong decision comes from the State, which recoups from the judge on gross fault. The kingdoms channel. The one modern kingdom that changed course channeled the plea against the sovereign's own person to a court, with the executive holding the key.

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397 Federal Constitution of Malaysia, arts. 181(2), 182(1)–(2), as amended by the Constitution (Amendment) Act 1993 (Act A848); the note below in this section.

398 Federal Constitution of Malaysia, arts. 32, 181(2), 182, 183, Eighth Schedule s. 1A, as amended by the Constitution (Amendment) Act 1993 (Act A848, as enacted), Attorney General's Chambers reprint (2020), pp. 40, 166–67, 181; Mark R. Gillen, *The Malay Rulers' Loss of Immunity*, U. Vic. Fac. of Law Occasional Paper (1994), at 16 and *passim* (the Gomez complaint of 30 Nov. 1992; the vote of 9 Mar. 1993).

399 Constitution of Japan, arts. 64, 78 (official English text, House of Representatives); 裁判官弾劾法 (Judge Impeachment Act), Act No. 137 of 1947 (Japanese text held; no official English translation held); the count of charges filed 1948–2002 (8,928, twelve found grounded) is from John O. Haley's account and is secondary.

400 Judges Act, R.S.C. 1985, c. J-1, Part IV, as replaced by S.C. 2023, c. 18 (Justice Laws consolidated text).

lxi Denmark, Retsplejeloven § 49, stk. 1 ("Enhver, der anser sig krænkede ved utilbørligt eller usømmeligt forhold fra en dommers side under udøvelsen af dennes embedsvirksomhed, kan indgive klage herover til Den Særlige Klageret"), stk. 6 (where the conduct is "af graverende karakter" or the judge has been condemned by the court before, "kan dommeren afsættes"), stk. 8 (a judgment of removal goes to the Højesteret by way of appeal); retsinformation.dk PDF, pp. 1, 14–15, read 3 Sept. 2026 (translations the author's). Belgium, Code judiciaire art. 1140 ("Les juges peuvent être pris à partie dans les cas suivants: 1° s'ils se sont rendus coupables de dol ou de fraude . . . ; 2° si la prise à partie est expressément prononcée par la loi; 3° si la loi déclare les juges responsables à peine de dommages-intérêts; 4° s'il y a déni de justice"). Spain, Ley Orgánica 6/1985 art. 296.1 ("sin que, en ningún caso, puedan los perjudicados dirigirse directamente contra aquéllos"), 296.2 (recovery on "dolo o culpa grave"). France, Code de l'organisation judiciaire art. L141-1 ("L'Etat est tenu de réparer le dommage causé par le fonctionnement défectueux du service public de la justice. . . . faute lourde ou . . . déni de justice"). Norway (domstolloven kap. 12), Sweden (brottsbalken 20 kap. 1 §; JO instruction), the Netherlands (Wet RO arts. 13a–13g) and Japan (Const. arts. 64, 78) are set out in the author's companion argument document, *The Kingdoms That Answer* (2026), § 4.

#### 4.5 The Codes That Answer the Sovereign Against the Judge

The codes that hold judges most closely to account operate the other half of Coke's sentence: Russia, China and North Korea expose the judge to the sovereign for an unjust judgment or for the fault in reaching it, and leave the subject no remedy against him for the decision; each is read below at its own text, with Saudi Arabia's beside them.<sup>401</sup> lxii

Russia's Constitution declares that "judges shall possess immunity" and that everyone has the right to state compensation for damage caused by the unlawful actions of state bodies and their officials.<sup>402</sup> The Law on the Status of Judges provides that a judge, including after the termination of his powers, cannot be held to any liability for the opinion expressed by him in the administration of justice and the decision taken by the court, unless a final criminal verdict finds

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<sup>401</sup> Russia: the Law on the Status of Judges, art. 16(2), gates the judge's liability on a final criminal verdict, and art. 12.1 carries disciplinary sanctions to early termination of powers; the Civil Code's art. 1070(2), as construed by the Constitutional Court in 2001, confines the criminal-verdict condition to judicial acts resolving the merits; the official publication at [pravo.gov.ru](http://pravo.gov.ru) was not compared. China: the Judges Law disciplines intentional violation and gross negligence, the State Compensation Law makes functionaries who acted intentionally or with gross negligence bear the cost, and the Supervision Law places judges within the supervisory organs' remit; the Chinese originals were not read; the English translations alone are held. North Korea: the Criminal Law punishes the unjust judgment, and the Constitution has the Presidium of the Supreme People's Assembly elect and recall the judges of the Central Court, which is accountable to the Assembly; the Korean original of the Constitution is not held. Saudi Arabia's Law of the Judiciary (Royal Decree M/78, 2007), art. 4 and arts. 59–67, a confidential, unappealable panel of the Supreme Judicial Council with reprimand or termination, is the closest formal twin of the English rule (Bureau of Experts official translation, 2008). The texts are cited at the notes to each sentence below.

<sup>402</sup> Konstitutsiya Rossiiskoi Federatsii, arts. 53, 122 (official text, [kremlin.ru](http://kremlin.ru); English, [constitution.ru](http://constitution.ru)).



him guilty of criminal abuse or of rendering a knowingly unjust judgment; a criminal case against a judge is opened by the Chairman of the Investigative Committee with the consent of the Higher Qualification Collegium; and disciplinary sanctions, from remark to early termination of powers, lie for culpable conduct that lowered the authority of the judiciary, "including as a result of a gross violation of the rights of participants in the proceedings."<sup>403</sup> The Civil Code's last sentence on the point is that harm caused in the administration of justice is compensated only if the judge's guilt is established by a criminal verdict that has entered into force; the Constitutional Court in 2001 held that gate constitutional for judicial acts resolving a dispute on the merits and opened non-merits wrongs, delay and unlawful procedural acts, to compensation on any judicial finding of fault.<sup>404</sup>

China's Constitution gives citizens "the right to make to relevant State organs complaints or charges against, or exposures of, any State organ or functionary for violation of law or dereliction of duty," and a right to compensation for losses caused by infringement of their civil rights by any State organ or functionary.<sup>405</sup> The State Compensation Law pays for wrongful detention and conviction and for a court's unlawful compulsory measures or wrongful execution in civil and administrative cases, and requires the paying organ to charge its functionaries who acted intentionally or with gross negligence with part or the whole of the cost; no article

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403 Zakon RF ot 26 iyunya 1992 g. N 3132-1 "O statuse sudei v Rossiiskoi Federatsii," arts. 12.1 ("в том числе вследствие грубого нарушения прав участников процесса"), 16(2) (quoted in the original in the Notes<sup>kii</sup>), 16(3) (read in the original at the Garant and fzrf republications; the official publication at [pravo.gov.ru](http://pravo.gov.ru) was not compared; translations the author's). The offence gating art. 16(2) is Ugolovnyi kodeks RF, art. 305 (the text is not held).

404 Grazhdanskii kodeks RF, art. 1070(2), last sentence ("Вред, причиненный при осуществлении правосудия, возмещается в случае, если вина судьи установлена приговором суда, вступившим в законную силу"); Postanovlenie Konstitutsionnogo Suda RF ot 25 yanvarya 2001 g. N 1-P (the criminal-verdict condition confined to judicial acts "разрешающих спор по существу").

405 Constitution of the People's Republic of China (2018), art. 41 (English translation; the Chinese original was not read).

compensates an erroneous judgment on the merits in a civil or administrative case.<sup>406</sup> The Judges Law sanctions the judge who has "intentionally violated laws and regulations in handling cases" or "wrongly handled a case and caused heavy losses due to gross negligence," and judge disciplinary boards find intentional breach of duties, gross negligence, ordinary negligence or no breach; the Supervision Law places the civil servants of the people's courts within the supervisory organs' remit.<sup>407</sup>

North Korea's Constitution entitles citizens to submit complaints and petitions, which "the State shall investigate and deal with ... impartially as stipulated by law"; judges and people's assessors are elected and recalled by the Presidium of the Supreme People's Assembly and the local assemblies, and the Central Court "is accountable to the Supreme People's Assembly."<sup>408</sup> The Criminal Law makes it an offence for a court worker to reach an unjust decision or judgment, punishable by up to one year of labour training and, in grave cases, up to five years of reform through labour; the Law on Compensation for Damage makes the person culpable for the damage pay, and no clause makes the State liable for a judicial act.<sup>409</sup>

Saudi Arabia's Law of the Judiciary is the closest formal twin of the English rule. Judges "may not be sued for acts carried out in the course of performance of their duties except in accordance with the conditions and rules pertaining to the disciplining of judges"; a three-judge Disciplinary Panel of the Supreme Judicial Council hears the matter in confidential session, its

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406 State Compensation Law of the People's Republic of China (2010 rev.), arts. 2, 17–19, 31, and the recourse article ("intentional or grossly negligent") (CECC bilingual text).

407 Judges Law of the People's Republic of China (2019 rev.), arts. 46(4)–(5), 48 (Ministry of Justice English text); Supervision Law of the People's Republic of China (2018), art. 15(1) (English translation).

408 Socialist Constitution of the Democratic People's Republic of Korea, arts. 69, 116(13), 168 (2016 text; the 2026 revision renumbers these as arts. 68, 116(13) and 164 without change of substance) (English translations; the Korean original of the Constitution is not held).

409 Criminal Law of the D.P.R.K. (2012), art. 244 (부당한 판결, 판정죄) (bilingual edition, Committee for Human Rights in North Korea); Law on Compensation for Damage (2001, as amended), art. 2 (English translation).

judgment "shall not be subject to appeal," and the penalties are reprimand and termination of service; complaints against judges are investigated by the Judicial Inspection Department only after the Supreme Judicial Council refers them.<sup>410</sup>

In each of these codes the judge is exposed to the sovereign: criminally for an unjust judgment in Russia and North Korea, by discipline and recourse for intentional violation or gross negligence in China, by political recall in North Korea, by a confidential unappealable panel in Saudi Arabia. In none of them does the subject have a money remedy against the judge for the decision, and in Russia and China the State's liability for a merits decision is gated by a criminal verdict or excluded. The subject's plea is received, by Russia's collegia, by China's constitutional complaint, by North Korea's petition, but it is answered by the sovereign's apparatus, on the sovereign's terms, and the finding runs against the judge only when the sovereign so decides. This is Coke's reserved forum in operation: the King questioning the judge. It is the forum Part 1 shows England's King never used for a subject.

Read against the two questions this book has put to every text, the codes sort with a clarity the doctrine's defenders would not expect. On who pays for a wrong decision, the English and American *de jure* law stand with these codes: the subject pays, and the kingdoms alone moved the cost to the sovereign. On the judge's own exposure the order inverts: the codes punish and recall, the kingdoms censure and remove, and the Anglo-American judge answers to no one for a decision, the exposure Part 1, chapter 1.3 documented in the Star Chamber's own docket surviving abroad as an instrument of the state and extinguished at home. Anglo-American immunity thus shares with the codes the nullification of the subject's remedy and differs from

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<sup>410</sup> Law of the Judiciary, Royal Decree No. M/78 of 19 Ramadan 1428 (1 Oct. 2007), arts. 4, 59–67 (Bureau of Experts official translation, 1st ed. 2008).

them by nullifying the sovereign's as well. What England abolished in 1641 was the King's half of the forum; what it never built was the subject's.<sup>411</sup>

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Ixii Russia, Zakon RF N 3132-1 art. 16(2) ("Судья . . . не может быть привлечен к какой-либо ответственности за выраженное им при осуществлении правосудия мнение и принятое судом решение, если только вступившим в законную силу приговором суда не будет установлена виновность судьи в преступном злоупотреблении либо вынесении заведомо неправосудных приговора, решения или иного судебного акта"); Grazhdanskii kodeks RF art. 1070(2) ("Вред, причиненный при осуществлении правосудия, возмещается в случае, если вина судьи установлена приговором суда, вступившим в законную силу") (translations the author's; texts from the Garant and fzrf republications, read in the original). North Korea, Criminal Law of the D.P.R.K. (2012) art. 244 ("재판일군이 부당한 판결, 판정을 한 경우에는 1년이하의 로동단련형에 처한다. 앞 항의 행위가 정상이 무거운 경우에는 5년이하의 로동교화형에 처한다"; HRNK bilingual ed.).

#### 4.6 America: The Text Channels, the Corpus Nullifies

America is not a kingdom, and it earns its place in this Part on the vocabulary rule: America is the one jurisdiction in this record where the de jure law and the common law answer the subject's question in opposite directions, so the two must be stated separately and the congruency between them measured rather than assumed.

The de jure texts channel. The Constitution provides that judges "shall hold their Offices during good Behaviour"; that "all civil Officers of the United States, shall be removed from Office on Impeachment for, and Conviction of, Treason, Bribery, or other high Crimes and Misdemeanors"; that "Judgment in Cases of Impeachment shall not extend further than to removal from Office, and disqualification . . .: but the Party convicted shall nevertheless be liable

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411 The claim is a classification of de jure law, the enacted text read as written. It is not a classification of any state's common law (the body of law its courts and officers make by decision and recognised custom), nor a measure of the congruency between a state's de jure law and its common law, nor of its adherence to stare decisis; those objects are examined in this work for America (Part 2) and in part for England (Part 1, chapter 1.3 and the censuses behind it), and are capable of examination for the other states on the texts cited but are not examined here. The full record, with every text and its tier, is the author's *The Kingdoms That Answer: The Subject's Plea Against the Judge in the Comparative Record* (2026) (unpublished, on file with author), §§ 3–7; American de jure law is set out there as well (§ 6A) and in this book at chapter 4.6, save one text not read there: 28 U.S.C. § 351(a), which lets "[a]ny person" complain of a judge.

and subject to Indictment, Trial, Judgment and Punishment, according to Law"; and that the people have "the right ... to petition the Government for a redress of grievances."<sup>412</sup> No clause of the Constitution confers immunity on a judge.<sup>413</sup> Section 1983 provides:

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State ..., subjects ... any citizen ... to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress.

It has one exception: "in any action brought against a judicial officer for an act or omission taken in such officer's judicial capacity, injunctive relief shall not be granted unless a declaratory decree was violated or declaratory relief was unavailable."<sup>414</sup> The exception was added in 1996; before 1996 the *de jure* text contained no word about judges.<sup>415</sup> The judicial-conduct statute lets "any person alleging that a judge has engaged in conduct prejudicial to the effective and expeditious administration of the business of the courts" file a written complaint; it lets the chief judge dismiss a complaint "directly related to the merits of a decision or procedural ruling"; and it lets the judicial council suspend assignments, censure or reprimand privately or publicly, certify disability or request retirement, but not remove.<sup>416</sup> A person "unjustly convicted" whose conviction is set aside on the ground of innocence may recover from the United States, up to \$100,000 for each year of incarceration for a plaintiff unjustly sentenced to death and \$50,000 for any other; the Federal Tort Claims Act excepts discretionary functions and claims "arising out of ... false imprisonment, false arrest, malicious prosecution, abuse of process," and names

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412 U.S. Const. art. III, § 1; art. II, § 4; art. I, § 3, cl. 7; amend. I; the next note.

413 U.S. Const. art. III, § 1; art. II, § 4; art. I, § 3, cl. 7; amend. I.

414 42 U.S.C. § 1983 (the proviso); the next note.

415 42 U.S.C. § 1983; Federal Courts Improvement Act of 1996, Pub. L. No. 104-317, § 309, 110 Stat. 3847, 3853.

416 28 U.S.C. §§ 351(a), 352(b)(1)(A)(ii), 354(a)(2).

no judge; and whoever under color of law willfully subjects any person to the deprivation of federal rights commits a crime.<sup>417</sup> Read as written, the American de jure law channels. The subject may petition; "every person" acting under color of state law "shall be liable"; any person may complain of a judge; the innocent convict is paid; the willful deprivation is a crime. The only de jure nullification is the 1996 proviso, and it reaches injunctions alone.

The common law nullifies, and it begins by citing the English cases as evidence. *Randall v. Brigham* cites *The Marshalsea*, *Floyd v. Barker* and *Hamond v. Howell* in its footnotes. *Bradley v. Fisher* holds that judges of courts of superior or general jurisdiction "are not liable to civil actions for their judicial acts, even when such acts are in excess of their jurisdiction, and are alleged to have been done maliciously or corruptly," excepting only acts "in the clear absence of all jurisdiction over the subject-matter."<sup>418</sup> *Pierson v. Ray* holds that § 1983 did not abolish the immunity:

Few doctrines were more solidly established at common law than the immunity of judges from liability for damages for acts committed within their judicial jurisdiction, as this Court recognized when it adopted the doctrine, in *Bradley v. Fisher* ... This immunity applies even when the judge is accused of acting maliciously and corruptly.

Justice Douglas, dissenting, traced the rule to its root:

Since the King could do no wrong, the judges, his delegates for dispensing justice, "ought not to be drawn into question for any supposed corruption [for this tends] to the slander of the justice of the King." *Floyd & Barker*, 12 Co. Rep. 23, 25 ... Because the judges were the personal delegates of the King they should be answerable to him alone.

*Stump v. Sparkman* holds that

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417 28 U.S.C. § 2513; 28 U.S.C. § 2680(a), (h); 18 U.S.C. § 242.

418 *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335, 351–52 (1872).

a judge will not be deprived of immunity because the action he took was in error, was done maliciously, or was in excess of his authority; rather, he will be subject to liability only when he has acted in the "clear absence of all jurisdiction."

*Pulliam v. Allen* held that "judicial immunity is not a bar to prospective injunctive relief against a judicial officer," and twelve years later Congress wrote the contrary rule into § 1983.<sup>419</sup> *Mireles v. Waco* holds that judicial immunity "is an immunity from suit, not just from ultimate assessment of damages," is "not overcome by allegations of bad faith or malice," and "is overcome in only two sets of circumstances," nonjudicial acts and acts "in the complete absence of all jurisdiction."<sup>420</sup>

The executive's own manual for asserting immunity states the corpus in the same terms. The Department of Justice's Torts Branch monograph of 1985 sorts the immunities as this Part does: "Some applications, such as Speech or Debate and Presidential immunities, are grounded in the Constitution itself.... Others, while rooted in our common law traditions, are essentially judge-made doctrines." Of judges:

Judges are protected by an absolute immunity that was recognized at English common law. The Supreme Court adopted the immunity early in *Bradley v. Fisher*.... This immunity is so firmly established that a clear indication in the legislative record will be required before the Court will presume that Congress intended to abolish the doctrine in enacting general remedial provisions.

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419 *Pulliam v. Allen*, 466 U.S. 522, 541–42 (1984); the note below in this section.

420 *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 & nn. (1868); *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335, 351–52 (1872); *Pierson v. Ray*, 386 U.S. 547, 553–54 (1967); *id.* at 563–64 (Douglas, J., dissenting); *Stump v. Sparkman*, 435 U.S. 349, 356–57 (1978); *Pulliam v. Allen*, 466 U.S. 522, 541–42 (1984); *Mireles v. Waco*, 502 U.S. 9, 11–12 (1991) (per curiam). The genealogy is Part 2.

Its reading of the rule's reach, that *Bradley* and *Stump* "completely bar any inquiry into a judge's hidden reasons for deciding a matter before the court," is the first of the three locks restated in 1985.<sup>421</sup> The government's litigating position thus states the congruency mechanism in one sentence: the corpus is presumed to survive any de jure text that does not name it.

Congruency, measured. On the subject's damages remedy the de jure text says "every person ... shall be liable" and the common law says the judge is not; the distance is total, and *Pierson* closes it by reading the corpus into the statute.<sup>422</sup> The corpus it read was not one rule: on the count of every state then existing, thirteen had adopted the absolute rule by 1871 and six held judges liable if they acted maliciously, so the statute's "every person" met a common law split thirteen to six, and *Pierson* took the majority's rule as "solidly established."<sup>423</sup> On injunctive relief the common law said the remedy survived, in *Pulliam*, and the de jure text was then amended to the corpus, in 1996. The one measured act of congruency in the American record runs from the corpus to the text, not from the text to the corpus. As to stare decisis, *Pierson's* sentence states the adherence claim exactly: the Court "recognized ... when it adopted the doctrine, in *Bradley*," and stands by *Bradley*; *Bradley's* own authority is *Randall's* footnote of English cases, which are evidence of a common law received, not decisions of the American hierarchy.<sup>424</sup> The adherence is to the Court's own corpus; the corpus's ground is the King's forum

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421 U.S. Department of Justice, Civil Division, Torts Branch, *Immunity of Federal Employees in Personal Damages Actions*, Monograph III (July 1985), at 1, 3, 5 n. 3 (the Purdue University copy).

422 42 U.S.C. § 1983; *Pierson v. Ray*, 386 U.S. 547, 554 (1967); the *Pierson* note above in this section.

423 J. Randolph Block, *Stump v. Sparkman and the History of Judicial Immunity*, 1980 Duke L.J. 879, 899 (citing Note, *Liability of Judicial Officers Under Section 1983*, 79 Yale L.J. 322, 326–27 (1969–70)), as carried in Erwin Chemerinsky, *Absolute Immunity: General Principles and Recent Developments*, 24 Touro L. Rev. 473, 474 & n.6 (2008) ("By 1871, thirteen states had adopted the absolute immunity rule [and] six states had ruled that judges were liable if they acted maliciously"; the Court's 1871 inquiry "assumes a unanimity that rarely existed among the states in 1871"); *Pierson v. Ray*, 386 U.S. 547, 553–54 (1967) ("Few doctrines were more solidly established at common law than the immunity of judges from liability for damages for acts committed within their judicial jurisdiction"). The six-state rule is the malice limb of Part 2, chapter 2.2.

424 *Pierson*, 386 U.S. at 554.



that Justice Douglas names and the majority does not. The genealogy is Part 2, chapters 2.3 to 2.5; its constitutional consequences are Part 3.

On the two axes, then: the de jure text gives the subject a damages action against every person under color of law and pays the innocent convict; the common law removes the judge from "every person"; the Tort Claims Act offers no route; the subject pays for a merits error, as in England. The payment to the innocent convict is the counterpart of China's criminal compensation and of nothing in the kingdoms' regimes for judicial error. On the judge's exposure there is none civil at common law; criminal exposure under the deprivation-of-rights and bribery statutes; impeachment for "high Crimes and Misdemeanors" with removal the only judgment; and a complaint procedure open to "any person" that by statute excludes the merits and cannot remove. America stands with England on both axes, with this difference: England's de jure law says the same thing its common law says, and America's does not.

#### 4.7 The Two Axes, and Where England Sits

| <b>Jurisdiction</b> | <b>A. The subject's money remedy for a wrong decision</b>                                                                      | <b>B. The judge's personal exposure for the decision</b>                                                                     |
|---------------------|--------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------|
| <b>England</b>      | none against the judge; none against the Crown; Human Rights Act damages only for wrongful detention. <b>The subject pays.</b> | none civil; criminal only for bribery or corruption; discipline for personal conduct only; removal by Address of both Houses |

| <b>Jurisdiction</b>                   | <b>A. The subject's money remedy for a wrong decision</b>                                                                                                                                                                                 | <b>B. The judge's personal exposure for the decision</b>                                                                                                                                                                                                                                                  |
|---------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>America (de jure / common law)</b> | de jure: "every person ... shall be liable"; the innocent convict is paid; the Tort Claims Act excepts discretion and false imprisonment. Common law: the judge is not within "every person." <b>The subject pays for a merits error.</b> | de jure: impeachment for "high Crimes and Misdemeanors," removal the only judgment; the deprivation-of-rights crime; complaint by "any person," merits excluded, no removal. Common law: none civil, "even when ... maliciously or corruptly"; the injunction survived until the text was amended in 1996 |
| <b>Continental kingdoms</b>           | <b>The State pays</b> (France on gross fault or denial of justice; Spain for judicial error; Denmark, Norway, the Netherlands and Belgium by state-liability regimes)                                                                     | none civil save Belgium's <i>prise à partie</i> ; discipline by courts and boards the subject may reach; Sweden's criminal <i>tjänstefel</i> ; Denmark's removal by the Klageret                                                                                                                          |
| <b>Russia</b>                         | the treasury pays only on a criminal verdict against the judge for a merits decision; non-merits wrongs since 2001. <b>The subject pays for a merits error.</b>                                                                           | <b>criminal offence</b> of a knowingly unjust judgment; disciplinary removal by the collegia                                                                                                                                                                                                              |
| <b>China</b>                          | the State pays for wrongful detention or conviction and unlawful enforcement; <b>no compensation for a merits error.</b>                                                                                                                  | discipline and recourse for intentional violation or gross negligence; Party-state supervision                                                                                                                                                                                                            |
| <b>North Korea</b>                    | the culpable person pays; no state clause. <b>The subject pays.</b>                                                                                                                                                                       | <b>criminal offence</b> of an unjust judgment; <b>recall</b> by the assembly at any time                                                                                                                                                                                                                  |
| <b>Saudi Arabia</b>                   | no suit save through discipline. <b>The subject pays.</b>                                                                                                                                                                                 | discipline only, reprimand or termination, confidential, no appeal                                                                                                                                                                                                                                        |

The finding, stated as the texts allow it, has six parts. First, on Axis A, England groups with Russia, China, North Korea and Saudi Arabia: in all five the injured subject carries the cost of a wrong decision, and the continental kingdoms stand apart, having moved that cost onto the

State. Second, on Axis B the association inverts: England's judge is the most immune of all, with no civil exposure, no criminal exposure short of bribery, and no removal for a decision, while the Russian, Chinese and North Korean codes make the judge personally punishable for an unjust judgment and removable by a political or supervisory organ; the Coke-era exposure of the judge, the censures and fines Part 1 records, survives in those codes as an instrument of control and was extinguished in England. Third, the Saudi code is the closest formal twin of the English rule: a nullification clause, discipline as the only door, and the door held by the judiciary's own council. Fourth, therefore, Anglo-American immunity shares with the authoritarian codes the nullification of the subject's remedy, and differs from them by also nullifying the sovereign's remedy against the judge; the kingdoms differ from both by paying. Fifth, America stands with England on both axes and adds the fact the vocabulary exists to catch: its *de jure* law channels and its common law nullifies, so that the American position on Axis A is a statement about the corpus, not the text, and the congruency between the two was closed once, in 1996, by amending the text to the corpus. Sixth, the four objects are not equally examined across the table, and the table must say so: for America the common law and the adherence to *stare decisis* have been examined in Parts 2 and 3, and the congruency question is those Parts' subject; for England the common law has been examined in part, in Part 1 and in chapter 4.2, and is to be examined to the same degree; for the kingdoms and the authoritarian states this book classifies *de jure* law only, their common law, congruency and adherence to *stare decisis* being capable of examination on the texts now held and not examined here.

What the table claims, in the book's terms, is therefore narrow. It classifies each state's *de jure* law, the enacted or promulgated text read as written. It does not classify any state's common law. It does not measure the degree of congruency between a state's *de jure* law and its common

law: whether China's boards and Russia's collegia decide as the Judges Law and the Status of Judges law say, or as the Party-state directs; whether North Korea's recall operates as the Constitution reads or as the regime's instrument; whether Malaysia's Special Court hears what the Constitution says it hears or what the Attorney General's consent lets through. And it does not measure any state's adherence to *stare decisis*. A *de jure* code that exposes the judge to the sovereign is not thereby a common law that protects the subject. The claim is the one that can be read off the pages: on the one question the subject asks of the *de jure* law, who pays for the wrong done to him, England's text answers as Moscow's, Beijing's, Pyongyang's and Riyadh's texts answer, and not as Copenhagen's, Oslo's, Stockholm's, The Hague's, Brussels's, Madrid's or Paris's.

The three-way distinction is general to governance and is the one American jurisprudence has misplaced. American usage runs "common law," "case law" and "precedent" together, so that a *stare decisis* claim ("well settled") is made about a body that is not the court's own corpus, and a *de jure* text is read through what courts have since done with it rather than as written. This book keeps the three apart by rule: *de jure* for the text, *common law* for the corpus of decision and custom, *stare decisis* for adherence to that corpus, and *congruency* for the measured distance between the first and the second.

#### **4.8 What the Comparison Adds to the Transfer Thesis**

The transfer thesis holds that *Floyd* moved the subject's plea against a judge to the King, and the King never answered it. The comparative record adds three things.

First, the reserved forum is not a dead letter everywhere. The authoritarian codes operate it: the sovereign's apparatus questions the judge, finds against him, removes or punishes him.

What they operate is the King's half of Coke's sentence, "the King himself shall take account of it, and no other."<sup>425</sup> The subject's half, the *de jure* duty "to deliver justice to all his subjects," is the half that has no forum in those codes either. England and the authoritarian states share the amputation of the subject's half; they differ in that the authoritarian states kept the King's half and England discarded it.

Second, the kingdoms show the alternative that was available. Denmark's Klageret, Norway's Tilsynsutvalg, the Dutch Procurator General's motion, the Belgian *prise à partie*, the French and Spanish state-liability regimes are each a forum that receives the subject's plea and can answer it, without exposing the judge to the sovereign's displeasure. They are the channel Coke's rule promised and England never built. Malaysia built one in four months in 1993 when a subject's plea against the sovereign himself could no longer be refused.

Third, the eighteenth-century English record shows England once had the channel for every servant but the judge: the subject could sue the receiver, the constable, the sheriff. The modern rule extended the judge's exemption to the Crown and confined the subject to appeal. The transmission did not merely amputate the King's forum; it removed the servant's exposure that had made the King's immunity tolerable in 1701.

The thesis therefore stands on a wider record: the rule's reserved forum was never used for the subject in England; it is used against judges, and only against judges, in the states whose codes are set beside it here; and the kingdoms that kept a subject's forum are the ones whose immunity is narrowest.

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<sup>425</sup> *Floyd v. Barker*, 12 Co. Rep. at 25, 77 Eng. Rep. at 1307 (the King's account and the *de jure* duty in one sentence).

## **PART 5 — THE OLDER RECORD: REMEDIES AGAINST THE JUDGE BEFORE 1607**

*Part 5 reaches back before 1607 and reads six legal orders for what each did with the judge who did wrong, in the vocabulary Part 4 has fixed and at the page of the edition named in each note. Chapter 5.1 puts the question. Chapter 5.2 reads Babylon and Athens: twelvefold restitution and expulsion from the seat, appeal and the citizen's charge at the audit. Chapter 5.3 reads Rome: the subject's action against the judge who made the cause his own, the Code's penalty on the judge who judged badly, and the sovereign's prosecution. Chapter 5.4 reads Byzantium, which kept both remedies, salaried the bench and bound the emperor to the laws. Chapter 5.5 reads Francia, the duty stated in the capitularies and death for the bribed judge in the law. Chapter 5.6 reads England before the rule, the fine to the king and the loss of every judicial dignity from 959, with the judge's oath that he knew no better a defence to the penalty that bars no complaint and closes no forum. Chapter 5.7 states the finding and its degree of examination: on no page read did any of the six exempt a judge, for what he did as judge, from the remedy its own text provided.*

### **5.1 The Question Put to the Older Record**

Parts 1 to 4 read a rule from 1607 forward: what a subject may do against a judge, and what the sovereign may do, once the judge has decided within his jurisdiction. Chapter 1.4 has already put three Roman texts to the reader, for what the 1607 court borrowed from them and reversed; this Part reads Rome's own law of the judge, and the law of the orders before and after it, for what each did with the judge who did wrong. It puts the same two questions to the legal orders that

stood before England's, and it puts them in the same way, to the enacted or compiled text read as written, in the edition named in each note, at the page. It asks of each order whether the subject held a remedy against the judge, whether the sovereign held one, and whether either was displaced by a shield. It does not ask how far any order's courts obeyed its texts; where a case-digest survives, as it does for eleventh-century Byzantium, that is said, and where nothing but the code survives, that is said too.<sup>426</sup>

The answer the older record gives is uniform in one respect and various in every other. Six legal orders, from the eighteenth century before Christ to the twelfth century after, each answer the judge with a remedy. None answers him with an immunity. The forms differ: restitution and expulsion, denunciation and audit, a personal action and a public prosecution, a salaried bench, a fine to the king and the loss of rank, the forfeiture of a court. The absence is the same in all of them. The rule Part 1 found made in 1607, that a judge answers to no subject, and to no court but the King's own, for what he did as judge, has no antecedent on any page read here.

## 5.2 Babylon and Athens: Restitution, Expulsion, the Citizen's Charge

The oldest text is the plainest. The fifth section of Hammurabi's code provides that if a judge has pronounced a judgment, delivered a sealed decision, and afterwards altered it,

they shall call that judge to account for the alteration of the judgment which he had pronounced, and he shall pay twelve-fold the penalty which was in said

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<sup>426</sup> The two questions are Part 4's two axes (chapter 4.1), applied here to texts rather than to living systems. The vocabulary is the book's: *de jure* law is the enacted or compiled text read as written; common law is the body the courts make; congruency between them is measured only where a record of decisions survives, which in this Part is the *Peira* alone.

judgment; and, in the assembly, they shall expel him from his seat of judgment, and he shall not return, and with the judges in a case he shall not take his seat.<sup>427</sup>

The section before it makes the bribed witness bear the penalty of the case he swore in. The remedy is the assembly's; the measure is twelvefold; the judge is removed for life. The text is read in Harper's translation of 1904, and this Part claims no more of it than the translation carries.

Athens in the fourth century before Christ put the judge's superiors under the courts and the courts within reach of any citizen. The *Constitution of Athens* records that the people took from the Council of Five Hundred "the power to put to death and to imprison and to fine," and enacted that when the Council condemned or fined anyone, the thesmothetae were to bring the condemnation before a court, "and whatever the jurors voted, that was to be final."<sup>428</sup> The Council still tried most magistrates, "and especially those who handle money"; but "the judgment is not final, but subject to appeal to the court," and "private persons also may lay an information against any magistrate they please for not using the laws," with the same appeal.<sup>429</sup> After a magistrate's term, and after the public auditors had passed his accounts, a further officer sat in the market by the statue of his tribe's hero, and "if anyone wishes to lodge a charge, private or public, against any of those who have rendered their accounts before the court, within three days of the day on which he rendered them," he wrote on a whitened tablet his own name and the defendant's, the wrong he alleged and the damages he claimed, and gave it to that officer, who

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427 *The Code of Hammurabi, King of Babylon*, §§ 4–5, in Robert Francis Harper, *The Code of Hammurabi* (University of Chicago Press 1904), translation at 11, 13 (transliteration at 12).

428 Aristotle, *Athenaion Politeia* 45.1, in J. E. Sandys, *Aristotle's Constitution of Athens*, 2nd ed. (Macmillan 1912), 179 ("ὁ δὲ δῆμος ἀφείλετο τῆς βουλῆς τὸ θανατοῦν καὶ δεῖν καὶ χρήμασιν ζημιοῦν ... καὶ ὅ τι ἂν οἱ δικασταὶ ψηφίσωνται, τοῦτο κύριον εἶναι"). Sandys's apparatus notes ἐπιζημιώσεις as found nowhere else.

429 *Ath. Pol.* 45.2, Sandys at 179 ("κρίνει δὲ τὰς ἀρχὰς ἡ βουλὴ τὰς πλείστας, καὶ μάλισθ' ὅσαι χρήματα διαχειρίζουσιν· οὐ κυρία δ' ἡ κρίσις, ἀλλ' ἐρέσιμος εἰς τὸ δικαστήριον. ἔξεστι δὲ καὶ τοῖς ἰδιώταις εἰσαγγέλλειν ἢν ἂν βούλωνται τῶν ἀρχῶν μὴ χρῆσθαι τοῖς νόμοις"). Sandys reads εἰσαγγέλλειν in its general sense, without reference to the special process of εἰσαγγελία.



examined it and sent private charges to the deme-judges and public ones to the thesmothetae for the court, "and whatever the jurors decide is final."<sup>430</sup> Sandys's comment on the passage states its sense exactly: even after the audit had been passed, officials remained "liable to be prosecuted by private persons in respect to the manner in which they had discharged their duties."<sup>431</sup> Athens therefore held both remedies open, the citizen's denunciation and the citizen's post-audit charge, and set the governing body itself under the court's final vote.

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<sup>430</sup> *Ath. Pol.* 48.4–5, Sandys at 188–89. The papyrus is defective at two verbs in the passage, restored by the editors as ἐ[πιγραψ]άμενος (Wyse and Lipsius: ἐ[πιγραφό]μενος) and ἀν[ακρίνα]ς (Kenyon and Wilamowitz: ἀν[αγνοῦς]); the sense of the procedure does not depend on the choice.

<sup>431</sup> Sandys at 189 (note on 48.4).

### 5.3 Rome: The Subject's Action and the Sovereign's Prosecution

Rome kept two remedies against the judge open at once and left them in the *Digest* for the Byzantine compilers to carry forward. The first was the subject's. Ulpian's title on trials provides that a judge "is understood to make the suit his own when he has given judgment with evil intent in fraud of the law," which is shown "if he is clearly convicted of favour, or enmity, or even bribery," and he is then compelled "to pay the true value of the suit."<sup>432</sup> The liability was personal: Julian's view that the action lay against the judge's heir "is not true, and has been noted by many."<sup>433</sup> The second remedy was the sovereign's. Under the title on the Julian law against extortion, any person "who, holding some power, has taken money for judging or not judging, or for deciding" was liable; the action ran against his heirs for one year from his death; and by Macer's day the penalty had become extraordinary, exile or worse, and capital where a judge condemned an innocent man for money.<sup>434</sup> The two remedies differed on the one point the English pleas of Part 1 would also raise, survival against the heir, and the difference is itself the proof that two distinct actions were in view.

The elementary book taught the first remedy to every student, and the *Codex* carried both remedies into the sixth century. The *Institutes* class the judge's liability among the obligations that arise as if from delict: the judge "who delivers an unjust or partial decision" cannot "but be held to have done a wrong, even though it may be due to ignorance," and "a pecuniary penalty

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432 Dig. 5.1.15.1 (Ulpian, *ad edictum* 21): "Iudex tunc litem suam facere intellegitur, cum dolo malo in fraudem legis sententiam dixerit (dolo malo autem uidetur hoc facere, si evidens arguatur eius uel gratia uel inimicitia uel etiam sordes), ut ueram aestimationem litis praestare cogatur." Mommsen and Krueger, *Digesta Iustiniani Augusti* (Weidmann 1870), I, 166. Mommsen's margin gives the *Basilika* concordance, B. 7.5.15–16.

433 Dig. 5.1.16 (Ulpian): "Iulianus autem in heredem iudicis, qui litem suam fecit, putat actionem competere: quae sententia uera non est et a multis notata est." Mommsen and Krueger I, 166.

434 Dig. 48.11.1 (Marcian), 48.11.2 (Scaevola: "Datur ex hac lege et in heredes actio intra annum dumtaxat a morte eius qui arguebatur"), 48.11.3 (Macer: "Lege Iulia repetundarum tenetur, qui, cum aliquam potestatem haberet, pecuniam ob iudicandum uel non iudicandum decernendumue acceperit"), 48.11.7.3 (Macer: "Hodie ex lege repetundarum extra ordinem puniuntur et plerumque uel exilio puniuntur uel etiam durius ... capite plecti debent uel certe in insulam deportari"). Mommsen and Krueger II, 830–31; margin concordance B. 60.43.1–9.

will be imposed on him."<sup>435</sup> Ortolan, commenting on the passage, draws out two things the text leaves implicit. The action against the judge did not wait on the failure of other remedies: appeal generally lay, and a sentence given against the law could be treated as null and the cause begun afresh, yet the litigant "appears to have had, in every case, the action against the judge who had made the suit his own," since he might be unwilling or unable to begin again against an adversary who had, for instance, become insolvent. And the judge's wrong is classed as arising as if from delict only because no body was injured, as it would be under the *lex Aquilia*, so that "the greater or lesser culpability of the physician or the judge counts for nothing in the question."<sup>436</sup> <sup>lxiii</sup> Under the title on injuries, "a litigant is said to have received an 'injury' when the praetor or judge delivers an unjust judgment against him."<sup>437</sup> The *Codex* gives the penalty of the judge who judged badly a title of its own. Constantine's law of 319 provides that against the judge "who, corrupted by price or by favour, has judged wrongly," the one he injured is to have his redress, "not only by the loss of his reputation but also by the hazard of the suit."<sup>438</sup> And the extortion title of the same code, the constitutions the *Basilika* would carry into Greek, tells judges that the penalty for their own acts is to be recovered from them or from their heirs, and by

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435 Inst. 4.5 pr., in J. B. Moyle (trans.), *The Institutes of Justinian* 174 (2d ed., Oxford 1889): "The obligation incurred by a judge who delivers an unjust or partial decision cannot properly be called delictual, and yet it does not arise from contract; consequently, as he cannot but be held to have done a wrong, even though it may be due to ignorance, his liability would seem to be quasi-delictual, and a pecuniary penalty will be imposed on him at the judge's discretion." The Digest's fuller statement, D. 5.1.15.1, is quoted in the first paragraph of this chapter; chapter 2.2 § B points here for both.

436 J. Ortolan, *Explication historique des Instituts de l'empereur Justinien*, 12e éd. par J. E. Labbé, vol. III (Plon, Paris 1883), 450–451, §§ 1783–1786 on Inst. 4.5 pr.; § 1784 at 451: "Le plaideur paraît avoir eu, dans tous les cas, l'action contre le juge qui avait fait le procès sien . . . ." From the University of Ottawa copy; the renderings in the text are the author's.

437 Inst. 4.4.1, Moyle at 172: "a litigant is said to have received an 'injury' when the praetor or judge delivers an unjust judgment against him"; the same section makes "writing, composing, or publishing defamatory prose or verse" an injury, the pairing chapter 1.4 § B reads against the 1607 court.

438 Cod. 7.49.2 (Constantine to Felix, *praeses* of Corsica, a. 319), in Paul Krueger (ed.), *Codex Iustinianus* 686 (editio maior, Berlin 1877): "De eo, qui pretio deprauatus aut gratia perperam iudicauerit, ei uindicta quem laeserit non solum existimationis dispendiis, sed etiam litis discrimine praebeatur." The title is *De poena iudicis, qui male iudicauit, uel eius, qui iudicem uel aduersarium corrumpere curauit*; its first law, Cod. 7.49.1 (Antoninus, a. 212), takes the action away from the party who has paid the judge or his adversary. The English is this work's.

an edict of 386 invites anyone of any rank whom a judge has oppressed, or who knows that a sentence was sold, to come forward while the judge holds office or after he has laid it down, "to bring the charge, to prove what he has brought, and, when he has proved it, to carry off both the victory and the glory."<sup>439</sup>

The governor's duty stood beside them. The provincial governor "must prohibit unlawful exactions and acts done by violence, and sales and undertakings extorted by fear or made without payment of the price," and the governors of whole provinces "have the power of the sword."<sup>440</sup> Justinian added, in 544, the rule that judges were on no account to write in their sentences that anyone had been ordered to be produced or to appear "by imperial word issued without writing," and that whoever acted against the chapter should "be compelled to make good from his own substance the damage brought upon the injured person, through the competent judge, and moreover shall suffer the loss of belt and rank."<sup>441</sup> Fifteen years earlier the same emperor had fixed the rule of decision that chapter 2.2 § B quotes, that judgment is given by laws and not by examples, and the Byzantine courts were still applying it five centuries on.<sup>442</sup> Rome's answer to

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439 Cod. 9.27.2 (Gratian, Valentinian and Theodosius to Florus, praetorian prefect, a. 382), Krueger at 849: "Sciant iudices super admissis propriis aut a se aut ab heredibus suis poenam esse repetendam"; Cod. 9.27.4 (Valentinian, Theodosius and Arcadius, the reigning emperors, edict to the provincials, a. 386; Krueger's inscription reads *Idem AAA. et Arcadius A.*, the *Idem* repeating 9.27.1's Gratian, Valentinian and Theodosius), *id.*: "si quis forte honoratorum decurionum possessorum, postremo etiam colonorum aut cuiuslibet ordinis a iudice fuerit aliqua ratione concussus, si quis scit uenalem de iure fuisse sententiam ... is uel administrante eo uel post administrationem depositam in publicum prodeat, crimen deferat, delatum approbet, cum probauerit, et uictoriam reportaturus et gloriam." Krueger's margin gives Bas. 60.43.11 and 60.43.12 for the two laws; the Greek is read in chapter 5.4. Chapter 2.2 § B points here for the rewarded accuser. The English is this work's.

440 Dig. 1.18.6 pr. and 8 (Ulpian, *opinionum* 1): "Illicitas exactiones et uiolentia factas et extortas metu uenditiones et cautiones uel sine pretii numeratione prohibeat praeses prouinciae"; "Qui uniuersas prouincias regunt, ius gladii habent . . . ." Mommsen and Krueger I, 35; margin B. 6.1.40.

441 Nov. 124.4 (a. 544/545): "Ἐπειδὴ δὲ νόμος ... διετύπωσε, μηδενὶ τρόπῳ τοὺς δικαστὰς ταῖς ἰδίαις ψήφοις ἐγγράφειν, ὡς ἐκ βασιλικοῦ ρήματος ἀγράφως προενεχθέντος κελευσθῆναι τινὰς διαχθῆναι ἢ τοι παραστῆναι ... ὁ δὲ τι τοιοῦτο πράξας ἐκ τῆς ἰδίας περιουσίας τὴν ζημίαν τὴν τῷ βλαβέντι προσώπῳ ἐπενεχθεῖσαν διὰ τοῦ ἀρμοδίου ἄρχοντος ἀναγκασθῆσεται ἀποκαταστήσαι, καὶ πρὸς τοῦτοις τὴν τῆς ζώνης καὶ ἀξίας ἀποβολὴν ὑποστήσεται." Schoell and Kroll, *Corpus Iuris Civilis* III, *Novellae* (Weidmann 1892), 628–29. The parent law is Cod. 1.15.2 (Justin), as the apparatus notes. The same chapter survives in the *Basilika* at 7.4 cap. 4, Heimbach I, 275.

442 Cod. 7.45.13 (a. 529), quoted in chapter 2.2 § B. Read here in its Greek epitome as the *Peira* quotes it (in chapter 5.4), and identified as C. 7.45.13 by Zachariä at that place.

the judge was therefore two actions and a stated duty, with the sovereign's own unwritten command excluded as a shield. Nothing on these pages exempts the judge from either action for what he did as judge; the one exemption is the heir's, and it belongs to the subject's action alone.

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Ixiii Ortolan, *Explication historique*, III, 450–451. § 1783: "Ce n'est pas que les erreurs, les injustices ou les violations du droit dont il s'agit, fussent irréparables par d'autres moyens. On pouvait avoir généralement la voie de l'appel. Et même, dans certains cas, cette voie n'était pas nécessaire: tel était celui où la sentence contenait une violation formelle de la loi (si specialiter contra leges, vel S. C., vel constitutionem fuerit prolata. — Cum contra sacras constitutiones judicatur)," and, of such sentences, "on pouvait recommencer de nouveau la cause (causa denuo induci potest. — Potest causa ab initio agitari)." § 1784: "Cela posé, il est naturel de se demander si le recours contre le juge, comme ayant fait le procès sien, pouvait être exercé même dans ces cas où le plaideur avait le moyen de faire réformer la sentence inique, ou de la faire considérer comme nulle; ou bien si ce recours se bornait seulement aux cas où la sentence était irrévocable. Le plaideur paraît avoir eu, dans tous les cas, l'action contre le juge qui avait fait le procès sien; car il pouvait, par plusieurs raisons, ne pas vouloir ou ne pas pouvoir recommencer un nouveau procès contre son adversaire: par exemple si celui-ci était insolvable et ne lui offrait plus aucune garantie, ou par tout autre motif qui lui faisait préférer d'attaquer le juge." ("That settled, it is natural to ask whether the recourse against the judge, as having made the suit his own, could be exercised even in those cases where the litigant had the means of having the unjust sentence reformed or treated as null, or whether the recourse was confined to the cases where the sentence was irrevocable. The litigant appears to have had, in every case, the action against the judge who had made the suit his own, for he might, for several reasons, be unwilling or unable to begin a new suit against his adversary, for instance if the adversary had become insolvent and no longer offered him any security, or for any other reason that made him prefer to proceed against the judge.") § 1785 reads Gaius's measure, "in quantum de ea re aequum religioni judicantis videbitur," and Ulpian's "veram aestimationem litis" (D. 5.1.15.1, quoted in the first paragraph of this chapter) as the same rule, the judge of the action making the estimate. § 1786: "On se demande, à ce propos, pourquoi l'incurie, l'imprudence du médecin étaient rangées, chez les Romains, parmi les délits, et passibles de l'action de la loi Aquilia; tandis que celles du juge ne constituaient qu'un quasi-délit. La véritable raison est que, dans le premier cas, le médecin a lésé un corps, causé un préjudice à un corps (corpori), ce qui rentre dans les prévisions de la loi Aquilia, et par conséquent dans une action pour délit; tandis qu'il n'en est pas de même dans le second cas. Mais on voit que le plus ou moins de culpabilité entre le médecin ou le juge n'entre pour rien dans la question." ("One asks, in this connection, why the carelessness or imprudence of the physician was ranked among the Romans with the delicts and made subject to the action of the lex Aquilia, while that of the judge constituted only a quasi-delict. The true reason is that in the first case the physician injured a body, caused harm to a body, which falls within the provisions of the lex Aquilia and therefore within an action for delict, while it is not so in the second case. But one sees that the greater or lesser culpability of the physician or the judge counts for nothing in the question.") Translations the author's.

#### 5.4 Byzantium: Both Remedies Kept, the Bench Salaried

The question this Part puts to Byzantium is whether the Roman remedies survived the eight centuries between Justinian and the Norman Conquest, and the tenth-century *Basilika* answers it in Greek. Its seventh book carries the title on trials under a new rubric, "on judges," and within it Ulpian's rule stands entire: the judge "makes an unlawful judgment who gives sentence

deceitfully in circumvention of the law, from evident enmity or favour or gain, and he pays the true value of the suit"; his heir is not liable; and if a litigant makes the judge his heir, another judge is appointed, "for a man judges unjustly in his own cause."<sup>443</sup> The sixtieth book carries the extortion law, and here the compilers did what the Latin text had not: they renamed it. The rubric reads "on the Julian law brought against magistrates or judges or assessors who have stolen in a suit."<sup>444</sup> Under it the Roman fragments stand in order, the officer "who takes money for judging, or for giving or withholding a decision," the action against heirs within the year, the capital penalty; and to them the compilers joined the constitutions of the *Codex*, one of which "wills that magistrates be accused by anyone of theft or any other unlawfulness, both while they are magistrates and after they have ceased to be."<sup>445</sup> The scholiast applied the clause to the judge who sold his sentence, and added that he "is accused of this even while he is still governor of the province."<sup>446</sup> The same volume's prolegomena record the renaming as the compilers' own act.<sup>447</sup>

Two other Byzantine texts state what the sovereign did about the judge before the subject ever sued. The *Ecloga* of Leo III, promulgated in 740, sets out in its preface that "those

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443 Bas. 7.5 rubric ("Περὶ δικαστῶν, καὶ ὅπου ἕκαστος ἐνάγειν καὶ ἐνάγεσθαι καὶ συνελθεῖν ὀφείλει"), 7.5.15 ("Παράνομον κρίσιν ποιεῖ ὁ ἀπατηλῶς εἰς περιγραφὴν τοῦ νόμου ψηφίζόμενος, ἐπὶ προφανεῖ ἔχθρῳ ἢ χάριτι ἢ κέρδει· καὶ δίδωσιν τὴν ἀληθὴ τῆς δίκης διατίμησιν"), 7.5.16 ("Ὁ δὲ κληρονόμος αὐτοῦ οὐκ ἐνέχεται"), 7.5.17 ("ἀδίκως γάρ τις ἐαυτῷ δικάζει"). G. E. Heimbach, *Basilicorum libri LX*, I (Barth 1833), 275, 277, Greek with Heimbach's Latin. Heimbach's text of 7.5.15 is eclectic: the Coislin manuscript lacks "τῆς δίκης" and reads ἀληθεῖ (apparatus r–u).

444 Bas. 60.43 rubric: "Περὶ νόμου Ἰουλίου τοῦ κινουμένου κατὰ ἀρχόντων ἢ δικαστῶν ἢ συνέδρων ἐν δίκῃ κεκλοφύτων." Heimbach V (1850), 812.

445 Bas. 60.43.3 (Macer; Heimbach prints the inscription Μαρκ. and corrects it, note b), 60.43.2, 60.43.7 § 3, and 60.43.12 (= Cod. 9.27.4): "Ἡ διάταξις βούλεται τοὺς ἄρχοντας παρὰ παντὸς κατηγορεῖσθαι ἐπὶ κλοπῇ, ἢ ἐπὶ ἄλλῃ τινὶ παρανομίᾳ, καὶ ἔτι ἄρχοντας, καὶ παυσανμένους τῆς ἀρχῆς." Heimbach V, 812–15. Krueger's *Codex* margin gives the same concordance for Cod. 9.27.2, 4 and 5.

446 Scholion a to Bas. 60.43.12: "Τί γάρ, ὅτι πράσιμον ἐποίησε τὴν ἀπόφασιν, ἢ κατὰ προσπάθειαν; σημείωσαι δέ, ὅτι καὶ ἔτι ἄρχων ὢν τῆς ἐπαρχίας ἐνάγεται περὶ τούτων." Heimbach V, 815 (VII, 766). The word ὢν, "while still," is a second-hand insertion in Cod. Paris. 1350 and is absent from Fabrot's edition (Heimbach, note d); the sentence is cited with that caution.

447 Heimbach VI (1870), *Prolegomena*, 55 n. 3b: "Facile quisque videt, verba Anonymi τῷ Ἰουλίῳ repetundarum a Basilicorum compilatoribus esse mutata in τῷ νόμῳ κατὰ ἀρχόντων ἢ δικαστῶν ἢ συνέδρων ἐν δίκῃ κεκλοφύτων." The *Manuale Basilicorum* in the same volume, 233 and 332–33, gives the fragment-by-fragment concordance for both titles.

appointed to administer the laws" must keep free of every human passion and "neither despise the poor nor leave a powerful wrongdoer unexamined," because judges "corrupted by money, or granting favours from friendship, or avenging enmity, or cowed by power, cannot direct judgment aright."<sup>448</sup> It then states what the emperors had done:

being zealous to put a complete stop to such shameful gain, we have ordained that from our pious treasury salaries be furnished to the most glorious quaestor, to the antigraphis, and to all who serve in judicial business, so that they take nothing whatever from any person judged before them, lest the prophet's word be fulfilled in us also: they sold justice for silver.<sup>449</sup>

The bench was salaried from the treasury, and the reason given is that judges had been selling judgment. The *Eisagoge* of 886 defines the emperor himself as "a lawful authority, a common good to all his subjects, neither punishing from antipathy nor doing good from partiality," and provides that he "is bound to vindicate and maintain, first, all that is written in divine Scripture; then what has been laid down by the seven holy councils; and further the approved Roman laws."<sup>450</sup> It carries no title on judges, and none was needed; the *Basilika* held theirs.

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448 *Ecloga*, proem, in C. E. Zachariä von Lingenthal, *Collectio librorum juris Graeco-Romani ineditorum* (Barth 1852), 11–12: "Τοὺς δὲ μετιέναι τεταγμένους τὰ νόμιμα ... μήτε πένητας καταφρονεῖν μήτε δυνάστην ἀδικοῦντα ἔαν ἀνεξέλεγκτον"; "ἢ χρήμασι διεφθαρμένοι ἢ φιλία χαριζόμενοι ἢ ἔχθραν ἀμυνόμενοι ἢ δυναστεία δυσωποῦμενοι, κρίμα κατευθύνειν οὐ δύναται.". The date in the title is 6248 of the world (March 740) in Zachariä's text, with the manuscripts divided (his note 12).

449 *Ecloga*, proem, Zachariä at 13: "ὅθεν τῆς τοιαύτης αἰσχροκερδείας ἀναστολὴν παντελῶς ποιῆσθαι σπουδάζοντες, ἐκ τοῦ εὐσεβοῦς ἡμῶν σακκελλίου ὠρίσαμεν τῷ τε ἐνδοξοτάτῳ κοιαίστῳ, τοῖς ἀντιγραφείοις, καὶ πᾶσι τοῖς ἐπὶ τοῖς δικαστικοῖς κεφαλαίοις καθυπουργοῦσι τοὺς μισθοὺς παρέχεσθαι, πρὸς τὸ ἐξ οἰουδήποτε προσώπου παρ' αὐτοῖς κρινόμενον μηδὲν αὐτοὺς λαμβάνειν τὸ σύνολον, ἵνα μὴ τὸ ὑπὸ τοῦ προφήτου λεγόμενον καὶ εἰς ἡμᾶς πληρωθῇ· ἀπέδοντο ἀργυρίῳ τὸ δίκαιον." Leaf 22. The quotation is Amos 2:6 (Zachariä n. 91); the paragraph opens with John 7:24 and Isaiah 5:23, and one manuscript heads it "a general rule for all who have the lot of judging" (n. 81).

450 *Epanagoge* (*Eisagoge*) 2.1 ("Βασιλεὺς ἐστὶν ἔννομος ἐπιστασία, κοινὸν ἀγαθὸν πᾶσι τοῖς ὑπηκόοις, μήτε κατὰ ἀντιπάθειαν τιμῶν, μήτε κατὰ προσπάθειαν ἀγαθοποιῶν") and 2.4 ("Υπόκειται ἐκδικεῖν καὶ διατηρεῖν ὁ βασιλεὺς πρῶτον μὲν πάντα τὰ ἐν τῇ θεῇ γραφῇ γεγραμμένα, ἔπειτα δὲ καὶ τὰ παρὰ τῶν ἐπτὰ ἀγίων συνόδων δογματισθέντα, ἔτι δὲ καὶ τοὺς ἐγκεκριμένους ρωμαϊκοὺς νόμους"), Zachariä 1852 at 65–66. In 2.1 *προσπάθειαν* is Zachariä's emendation after Leunclavius; the manuscript reads *προπάθειαν* (his note 4). Dating and attribution to Photius from Zachariä's prolegomena at 56–57.

The *Peira*, the eleventh-century digest of the judgments of Eustathios Rhomaïos, shows the rules applied. Its title on judges records that the magistros used the *Basilika's* rule on jurisdiction by consent "as a note, condemning a judge, the praetor, who had dragged the wife of Anemas into his court" over a matter already decided, and that the compiler asked how it was that the law made "the judge who drags into his court a man who does not consent subject to the law on violence."<sup>451</sup> The rule is then stated: if the judge, "not heeding the plea to his jurisdiction, coerces him, neither the judge's jurisdiction, that is his sentence or punishment, holds against the defendant, but rather the judge is subject to the law on violence."<sup>452</sup> Appeal is described as the ordinary corrective, by which "the malice and the unskilfulness and the ignorance" of judges are set right.<sup>453</sup> A judge's acts died with him: when the son of a late prefect produced his father's unsigned notes of a case, the court rejected them, "for a man is shown to be heir of his father's estate, not of his judgments."<sup>454</sup> And the court stated the rule of decision it worked under, quoting Justinian's constitution that

no judge or arbiter is to think that consultations he has not rightly understood must be followed, much less the judgments of the most eminent prefects or other exarchs; for what is badly judged must not extend to the detriment of other judges, since one must judge not by example but by law.<sup>455</sup>

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451 *Peira* 51.29, in C. E. Zachariä von Lingenthal, *Jus Graeco-Romanum*, I, *Practica ex actis Eustathii Romani* (Weigel 1856), 248: "τούτω τῷ νόμῳ ἐχρήσατο ὁ μάγιστρος εἰς σημείωσιν, καταδικάζων δικαστὴν τὸν πραιτώρα ἐλκύσαντα γυναῖκα τοῦ ἀνεμᾶ εἰς δικαστήριον αὐτοῦ, ἵνα λάβῃ δίκην προκριθεῖσαν παρ' αὐτοῦ τοῦ μαγίστρου ἔτι κοιαίστωρος ὄντος. καὶ ἠρώτησα ἐγώ· πῶς οὗτος μὲν ὁ νόμος λέγει, τὸν δικαστὴν τὸν ἔλκοντα εἰς δικαστήριον τὸν μὴ συναινοῦντα ἄνθρωπον ὑποκεῖσθαι τῷ περὶ βίας . . ." The law applied is Bas. 7.5.1–2 (Dig. 5.1.1–2), quoted just above.

452 *Peira* 51.30, Zachariä I, 249: "[εἰ δὲ] ὁ δικαστὴς μὴ προσέχων τῇ παραγραφῇ ἀναγκάσει αὐτόν, οὐδὲ τούτου ἢ δικαιοδοσία τοῦ δικαστοῦ ἤγουν ἢ ἀπόφασις ἢ τιμωρία ἰσχύει κατὰ τοῦ ἐναγομένου, ἀλλὰ μᾶλλον ὑπόκειται ὁ δικαστὴς τῷ περὶ βίας." The bracketed words are the editor's supplement. Leaf 266.

453 *Peira* 51.16, Zachariä I, 244: "διὰ τῆς ἐκκλήτου καὶ τὴν ἐπήρειαν καὶ τὴν ἀμαθίαν καὶ τὴν ἄγνοιαν διορθοῦται." Leaf 261.

454 *Peira* 51.31, Zachariä I, 249–50: "οὐ γὰρ ὥσπερ τοῦ κλήρου οὕτω καὶ τῶν κρίσεων τοῦ πατρὸς ὁ κληρονόμος κληρονόμος ἀναδείκνυται." Leaves 266–67.

455 *Peira* 51.33, Zachariä I, 250, quoting Bas. 9.1.79 with its κατὰ πόδας: "μηδεὶς δικαστὴς ἢ διαιτητὴς νομιζέσθω μηδὲ ταῖς κατὰ κονσουλατίονα, ἄστινας μὴ ὀρθῶς νοήσῃ, ἀκολουθητέον, καὶ πολλῶ πλεον τῶν



Byzantium, on these pages, kept both of Rome's remedies against the judge, salaried the bench so that no litigant paid, bound its emperor to the laws, and in its one surviving case-digest condemned a sitting judge for coercing a party outside his jurisdiction. It also forbade, as a matter of enacted law, the practice of deciding by prior decision; the point bears on the definitions chapter 2.2 § B sets out and is stated here as the law states it.

### 5.5 Francia: The Duty Stated, the Bribe Judge Killed

The Frankish record divides the judge's duty from the judge's penalty and puts them in two kinds of text. The capitularies state the duty. Charlemagne's general admonition of 789 commands "those to whom the power of judging is given" to "judge justly, as it is written, not for gifts, because gifts blind the hearts of the prudent and subvert the words of the just, not in flattery, nor in regard of persons," and adds that the judge must first learn the written law "lest through ignorance he stray from the way of truth," and then take care not to decline from right judgment "through the flattery of some, or the love of any friend, or the fear of any powerful man, or for reward."<sup>456</sup> The general capitulary for the missi of 802 puts it in one sentence: "That judges judge justly according to the written law, not according to their own discretion."<sup>457</sup> The capitulary on

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ἐξοχωτάτων ἐπάρχων ἢ τῶν ἄλλων ἐξάρχων. οὐ γὰρ εἰ μὴ καλῶς κριθῇ, ταῦτα καὶ εἰς ἄλλων δικαστῶν ἐλάττωσιν ἐκτείνεσθαι χρή, ὅποτε οὐχ ὑποδείγματι ἀλλὰ νόμῳ κριτέον ἐστίν." Zachariä identifies the source as Cod. 7.45.13 (note 1) and marks the text defective at the clause on consultations (notes 2–4); it is quoted as he prints it, without the supplements he proposes in those notes. The same title states, at 51.28, that to renew decisions as a precedent is grievous, "seek the laws." Leaf 267.

456 *Admonitio generalis* (789) c. 63, in A. Boretius, *Capitularia regum Francorum*, I (MGH Legum sectio II; Hahn 1883), 58: "Ut quibus data est potestas iudicandi iuste iudicent, sicut scriptum est: 'iuste iudicate, fili hominum', non in muneribus, 'quia munera excecant corda prudentium et subvertunt verba iustorum', non in adulatione, nec in consideratione personae . . . Primo namque iudici diligenter discenda est lex a sapientibus populo composita, ne per ignorantiam a via veritatis erret. Et dum ille rectum intellegat iudicium, caveat ne declinet. aut per adulationem aliquorum aut per amorem cuiuslibet amici aut per timorem alicuius potentis aut propter praemium a recto iudicio declinet."

457 *Capitulare missorum generale* (802) c. 26, Boretius I, 96: "Ut iudices secundum scriptam legem iuste iudicent, non secundum arbitrium suum." Leaf 112. Chapter 25, on the same page, charges the counts and hundredmen to compel justice and "by no means oppress the poor."

the doing of justice of 811 to 813 reserves the causes of bishops, abbots, counts and the powerful to the emperor's own presence, and confines the count of the palace to "the doing of justice for the poor and less powerful."<sup>458</sup> Louis the Pious in the 820s addressed the counts directly: "let no cause whatever, neither the taking of gifts nor anyone's friendship nor hatred nor fear nor favour, compel you to deviate from the state of rectitude, but between neighbour and neighbour always judge justly."<sup>459</sup>

The penalty is in the *Lex Ribuaria*. Its title "that no one take gifts in judgment"<sup>460</sup> orders,

by consent and counsel and paternal tradition and the custom of the law above all things, that no magnate, mayor of the palace, domesticus, count, grafio, chancellor, or man raised to any rank, sitting in judgment in the Ribuarian province, receive gifts to pervert judgment. And if anyone is caught in this, let him compound with his life.<sup>461</sup>

The following title forbids any fiscal judge to exact the king's fine before the wrong has been composed; the judge who does so from greed "compounds according to the laws," and the fine is paid not to the judge who committed the fault but to the receiver of the settlement, a third part to the fisc.<sup>462</sup> Francia therefore stated the judge's duty in the emperor's voice and put death on the

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458 *Capitulare de iustitiis faciendis* (811–813) c. 2, Boretius I, 176: "Neque comes palatii nostri potentiores causas sine nostra iussione finire praesumat, sed tantum ad pauperum et minus potentium iustitias faciendas sibi sciat esse vacandum." Leaf 192.

459 Louis the Pious, *Admonitio ad omnes regni ordines* (823–825) c. 8, Boretius I, 304: "et nulla quaelibet causa, aut munerum acceptio aut amicitia cuiuslibet vel odium aut timor vel gratia, ab statu rectitudinis vos deviare compellat, quin inter proximum et proximum semper iuste iudicetis." Leaf 320.

460 *Lex Ribuaria* 88 (cod. A; 90 in cod. B), rubric "Ut nemo munera in iudicio accipiat," in R. Sohm ed., *Lex Ribuaria et Lex Francorum Chamavorum* 106 (Hahn 1883).

461 *Lex Ribuaria* 88 (cod. A; 90 in cod. B, rubric "Ut nemo munera in iudicio accipiat"), in R. Sohm, *Lex Ribuaria et Lex Francorum Chamavorum* (Hahn 1883), 106: "Hoc autem consensu et consilio seu paterna tradizione et legis consuetudinem super omnia iubemus, ut nullus obtinatis, maior domus, domesticus, comes, gravio, cancellarius, vel quibuslibet gratibus sublimitas, in provincia Ribuarina in iudicio resedens munera ad iudicio pervertendo non recipiat. Quod si quis in hoc deprehensus fuerit, de vita componatur."

462 *Lex Ribuaria* 89 (A; 91 B), Sohm at 107: "Nec nullus iudex fiscalis de quacumque libet causa freta non exigat, priusquam facinus componatur. Si quis autem per cupiditatem istam transgressus fuerit, legibus componatur. Fretum autem non illi iudici tribuat, cui culpa commisit; sed illi, qui solutionem recipit, terciam partem coram testibus fisco tribuat, ut pax perpetua stabilis permaneat." Leaf 117.

bribed judge in the folk-law's; the two texts are read here in Boretius's and Sohm's editions, and the *Lex Ribuaria* is read in its Carolingian recension, which is the form in which the capitularies would have met it.

## 5.6 England before the Rule

For a century and a half before Glanvill wrote, and six centuries before *Floyd v. Barker*, the English kings' own dooms answered the judge who judged wrongly with a fine and the loss of rank, and let him escape only on his oath. Edgar's code of Andover, of 959 to about 962, provides, in the Latin of the *Quadripartitus*, that "the judge who shall judge an unjust judgment to anyone shall give the king a hundred and twenty shillings, unless he dare swear that he knew no better," and the bishop of the shire was to collect the fine to the king's hand; the Old English adds that he "shall lose his thegnship for ever, unless he buy it back from the king as the king will allow him."<sup>463</sup> Cnut's code of 1027 to 1034 restated the rule with the motives named: whoever "sets up an unjust law or judges an unjust judgment, for hatred or the taking of money," is liable to the king in a hundred and twenty shillings under English law, unless he dare swear that he knew no better, and loses his rank unless he redeem it; under Danish law, the fine for breach of law.<sup>464</sup> The compilers of Henry I's reign, between 1114 and 1118, gathered the rule into a title "on unjust judgment" and generalised it: whoever

from anger or hatred or fear or love or greed or any regard whatever judges unjustly or sets up an unjust law, let the penalty be a hundred and twenty shillings, and let him be deprived of his thegnship and of every judicial dignity, unless he redeem himself with the king, as shall be in the king's mercy.

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463 III Edgar 3, in F. Liebermann, *Die Gesetze der Angelsachsen*, I (Niemeyer 1903), 201–02.

*Quadripartitus*: "Et iudex qui iudicium iniustum iudicabit alicui, det regi CXX sol., nisi iurare audeat, quod rectius nesciuit; et admanniat scyre presul emendam illam ad manum regis." Old English (G2, extant from mid-clause and printed to 'wille'; the last clause from A): "...twelftig scill' to bote — butan he hit mid aðe gecyþan durre, þæt he hit na rihtor ne cuðe — 7 þolie áá his þegenscipes, butan he hine æt þam cynges gebicge, swa he him þafian wille; 7 amanige þære scyre bisceop þa bote to ðæs cynges handa.". The Old English opening of the chapter is lost with the torn leaves of Nero A I and survives at this place only in the Latin.

464 II Cnut 15,1–1a, Liebermann I, 319 (*Quadripartitus*: "Si quis ammodo (deinceps) únlagam (id est non legem) erigat uel iniustum iudicium iudicet, pro lesione uel aliqua pecunię susceptione, sit erga regem CXX solid. reus in Anglorum laga (lege), nisi cum iuramento audeat inueritare, quod hoc rectius nesciuit, et dignitatem suam legalitatis semper amiserit, nisi (si non) eam redimat erga regem, sicut ei permittet. In Denalaga láhslíhtes reus sit"; *Consiliatio Cnuti*: "siue propter odium siue propter munus"). Leaf 387.

The oath that he knew no better remains the exception,

whether it happen in the county court or in any plea of the king, in his own cause or another's, among equals in courts or in their divisions or in their own places, or between lord and man: everywhere let it be forbidden.

The compilers distinguished the wilful wrong from the ignorant one, and added that a judge who both judges unjustly and inflicts the judgment pays the wergild.<sup>465</sup>

The oath deserves a sentence of its own, because it is the earliest English form of a good-faith exception and it runs the other way from the modern one. It is a defence to the king's penalty, sworn by the judge himself on the relics, and it presupposes that the judge stands answerable in the first place; it bars no complaint and closes no forum. What the modern rule made of good faith is Part 2's subject.

Glanvill closes the sequence at the end of the twelfth century with the remedy against a court. A seignorial court was not bound to defend its record by battle, "but it is bound to maintain its judgment by battle," where a party alleged that the court "had made him a false judgment," and it defended itself by the man who had rendered it.<sup>466</sup> "And if the court is convicted of it, the lord of the court remains in the king's mercy and loses his court for ever; and moreover the whole court remains in the mercy of the lord king."<sup>467</sup> The king's writ commanded the sheriff to have the record made in the county and brought "before me or my justices" by four

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<sup>465</sup> *Leges Henrici Primi* 34,1–3, Liebermann I, 565: "[34,1] Si quis ira uel odio uel timore uel amore uel cupiditate uel quoquo respectu iniustum iudicet uel unlagam constituat, CXX sol. culpa sit et ðegenscypes (honore) et omni iudiciaria dignitate priuetur, nisi se erga regem redimat, sicut in eius misericordia erit. [34,1a] In Denelaga: lahselite, nisi super sancta iurare poterit, quod melius et rectius nesciuit, siue in comitatu uel quouis placito regis fiat, de sua uel alterius causa, uel inter compares in curiis uel diuisis uel locis suis uel inter dominum et hominem suum: ubique sit interdictum. [34,1b] Pensandum est etiam, si de peccunialibus uel capite plectendis accionibus, et an scienter uel inscienter hoc acciderit. ... [34,2] Si quis iniustum iudicet et affligat, wera componat." The margin cites Isidore, *Sententiae* 3.54.7 and II Cnut 15,1. Leaf 633.

<sup>466</sup> Glanvill, *Tractatus de legibus et consuetudinibus regni Angliae*, VIII.9–10, in the edition of 1780 (Rayner, London), 132–34 (the English in the text prepared for this book; the Latin in the next note).

<sup>467</sup> *Id.* at 133–34.

lawful knights.<sup>468</sup> The subject's plea of false judgment thus lay against the court itself, was decided by the king's justices on the record, and cost the lord his jurisdiction.

### 5.7 What the Older Record Shows

Read as this Part has read them, the six orders return one finding and two data. The finding is that every legal order examined answered the judge with a remedy and stated his duty, and that none answered him with a shield: twelvefold restitution and expulsion in Babylon; appeal from the Council and the citizen's post-audit charge in Athens; the subject's action, the Code's penalty on the judge who judged badly, and the sovereign's prosecution in Rome, with the accuser rewarded and the emperor's unwritten order excluded as a defence; both kept in Byzantium, with a salaried bench, an emperor bound to the laws, and a judge condemned in the case-digest; duty in the Frankish capitularies and death for the bribed judge in the Frankish law; a fine to the king and the loss of every judicial dignity in England from 959, and the forfeiture of the court under Glanvill. The first datum is that Byzantium forbade, as enacted law, judging by prior decision, so that no doctrine of adherence to precedent can be attributed to it, and the point is stated in the vocabulary Part 4 defines. The second is that the Anglo-Saxon good-faith oath was a defence to a penalty, not a bar to a complaint.

The degree of examination is stated so that the finding is not read for more than it is. Each text was read at the page of the edition cited, and the Greek and Old English were read a

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468 Glanvill, *Tractatus de legibus et consuetudinibus regni Angliae*, VIII.9–10, in the edition of 1780 (Rayner, London), 132–34: "Licet autem non teneatur Curia Recordum suum per duellum defendere, tenetur tamen Judicium suum tueri per duellum ... Et quidem si Curia inde convicta fuerit, Dominus Curiae in Misericordia Regis remanet, et perpetuo Curiam amittit: praeterea tota Curia in Misericordia domini Regis remanebit"; c. 10: "Rex Vicecomiti salutem: Praecipio tibi quod facias recordari in Comitatu tuo loquelam ... et habeas Recordum illius loquelae coram me vel Justiciis meis ad illum terminum per quatuor legales milites, qui interfuerunt ad Recordum id faciendum.".

second time by another reader. The Akkadian of Hammurabi's code was not read; the translation was. The *Ecloga*'s penal title, the *Lex Ribuaria*'s other titles, Beames's English Glanvill, and every Islamic, Chinese, Egyptian and Indian source stand outside this Part and are named here as not examined. Within what was examined, the negative is complete: on no page read did any of the six orders exempt a judge, for what he did as judge, from the remedy its own text provided.

The finding meets the doctrine on the ground it chose. The American chain defends the rule by age (chapter 2.3): "as old as the law," "the settled doctrine of the English courts for many centuries," "roots extending to the earliest days of the common law," "jurisprudence in all civilized nations."<sup>469</sup> The question is indeed ancient, and this Part has read the ancient answers. Every one is a remedy. The orders that judged a subject's plea before English adjudication did not settle the question the rule's way, and the English order before the rule, in the dooms and in Glanvill, settled it as they did; the divergence is the decree of 1607. The rule is settled, then, only if the record is read from 1607 forward and no further back. Read the other way, the rule is the innovation and the remedy is the tradition, and if antiquity is to decide the question it decides it against the law that made the rule and the law that received it.

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<sup>469</sup> The recital-of-age table at chapter 2.3 and its note: *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868); *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335, 347 (1872); *Imbler v. Pachtman*, 424 U.S. 409, 423 n.20 (1976); *Beers v. Arkansas*, 61 U.S. (20 How.) 527, 529 (1858).

## **PART 6 — STANDING: THE OTHER DOOR**

*Part 6 opens the other door. The doctrine that turns the citizen away at the threshold and the doctrine that shields the official once he is inside descend from one prerogative, stated in two companion chapters of Blackstone and repudiated by name at the Founding, and the three locks of chapter 1.3 cannot be understood until both halves are held in one hand. Chapter 6.1 states the claim. Chapter 6.2 traces the standing chain from the bottom up, from Tyler in 1900 to Texas in 2023, and finds at every node what Part 2 found on the immunity side: no constitutional source produced, a decisive term coined in 1970 as a statutory liberalization, a pedigree the founding practice refutes, a matched pair of cases on one clause, heard on the merits in 1932 and dismissed at the door in 2007, and beneath the screen the threshold the earlier cases had policed, adverseness and a fit record, never the quantum of injury. Chapter 6.3 shows the two halves to be one: repudiated together, travelling in pairs at every stratum from 1607 to 2024, enforced through a single clause made to perform two contradictory offices, run on one device of particularization, and never once citing each other. Chapter 6.4 shows the doctrines failing together under one rule and caught in one vise: the tradition that would save the shield restores the standing it denies, and the text that would save the screen strips the shield. Chapter 6.5 states the finding.*

### **6.1 Introduction: The Two Doctrines Are One**

The two doctrines are standing and official immunity. Standing law governs who may enter: the plaintiff must plead an "injury in fact" that is "concrete," "particularized," and traceable to the



defendant.<sup>470</sup> Immunity law governs what happens once a plaintiff is inside: the official defendant, though he has violated the Constitution, is shielded from liability unless the violated right was "clearly established," and, at the apex, is absolutely immune for a widening category of "official" acts.<sup>471</sup> The doctrines are conventionally understood as belonging to different fields. Standing is a limit on the "judicial Power" conferred by Article III; immunity is an affirmative defense rooted in common law and, lately, in "Article II interests." They are taught in different courses, litigated at different stages, and criticized in separate literatures.<sup>472</sup> No one treats them as a single phenomenon.

This Part does. Its claim is that standing and immunity are not two doctrines but one — the two halves of a single inheritance, severed and rebranded but structurally identical at the root. The inheritance is the royal prerogative as Blackstone described it, in two companion chapters of the third book of the *Commentaries*, on a single premise. The premise is that the King is the principal: the community's order is his household, so the community's wrongs are his property, redressable only at his suit,<sup>473</sup> and the King can do no wrong, so no court may call him to account, "for who shall command the king?"<sup>474</sup> From the first half descends the rule that a private subject may not vindicate a public wrong unless he has suffered "some extraordinary damage" peculiar to himself — the lineal ancestor of the modern requirement that injury be

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470 *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560 & n.1 (1992).

471 *Harlow v. Fitzgerald*, 457 U.S. 800, 818 (1982); *Trump v. United States*, 603 U.S. 593 (2024).

472 On standing, see, e.g., Cass R. Sunstein, *What's Standing After Lujan? Of Citizen Suits, "Injuries," and Article III*, 91 Mich. L. Rev. 163 (1992); Ann Woolhandler & Caleb Nelson, *Does History Defeat Standing Doctrine?*, 102 Mich. L. Rev. 689 (2004); William A. Fletcher, *The Structure of Standing*, 98 Yale L.J. 221 (1988); James E. Pfander, *Cases Without Controversies: Uncontested Adjudication in Article III Courts* (2021). On qualified immunity, see, e.g., William Baude, *Is Qualified Immunity Unlawful?*, 106 Calif. L. Rev. 45 (2018). The two literatures proceed in parallel and rarely meet.

473 3 William Blackstone, *Commentaries* \*219–\*220 ("no person, natural or corporate, can have an action for a public nuisance, or punish it; but only the king in his public capacity of supreme governor, and *pater-familias* of the kingdom").

474 *Id.* \*254–\*255 ("That the king can do no wrong, is a necessary and fundamental principle of the English constitution").

"particularized."<sup>475</sup> From the second descends the rule that the sovereign and his ministers are not answerable in the ordinary courts — the lineal ancestor of official immunity. The two rules are not cousins. They are the same rule, stated from the two sides of the courthouse door: the citizen has no claim to the public wrong, and the official has no liability for it.

The standing screen is the same fear turned the other way: the apprehension that to admit the citizen to question the government's fidelity to law would unmake the political order. One fear, two doors — the citizen kept out at the entrance, the official shielded at the exit, both in the name of a danger the Court will credit only when crediting it enlarges official power. And the danger is weighed on a scale that tips with the party: the official's speculative fear of suit is credited on no record at all, while the citizen's speculative fear of injury is refused unless it is "certainly impending" — one conjecture admitted at the exit, the same demanded to be a certainty at the entrance. The chapters that follow trace that fear to its root and show it to be the seventeenth-century prerogative the Founding cast out, authorized by nothing in the Constitution that replaced it.

That premise did not survive the Founding. It was repudiated by name. The Federalist relocated the fountain of authority from the Crown to the people and demoted officials from principals to their agents and trustees (chapter 6.3 § A). And American jurisprudence enacted the repudiation on the immunity side openly: "who shall command the king?" received its American answer in *Marbury*, in the officer-suit cases that followed, and in the settled availability of relief against officials acting beyond their authority.<sup>476</sup> The maxim that the sovereign can do no wrong is not good law in the United States, and has not been for two centuries; that much is

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<sup>475</sup> *Id.* \*220 ("where a private person suffers some extraordinary damage, beyond the rest of the king's subjects"); cf. *Lujan*, 504 U.S. at 560 n.1 (particularization).

<sup>476</sup> *Marbury*, 5 U.S. (1 Cranch) at 163; *Ex parte Young*, 209 U.S. 123 (1908); *Larson v. Domestic & Foreign Commerce Corp.*, 337 U.S. 682, 689–90 (1949).

uncontroversial. What has gone unnoticed is that the *other* half of the prerogative — the rule that the public's wrongs belong to the sovereign and not to the subject — was never repudiated. It was retained, recoded in the twentieth century as the law of standing, and is enforced today against the citizen who asks a court to hold the government to its own enacted text. A legal system cannot coherently reject a premise for one purpose and silently keep its conclusion for another. That is the first thing this Part means to show.

The second is that neither doctrine, traced to its origin, rests on anything the Constitution says. A doctrine grounded in constitutional text can be tested from the top down: identify the provision, read its terms, measure the doctrine against them. Neither of these doctrines can be tested that way, because neither identifies a provision to begin from. The words "injury in fact," "particularized," and "concrete" appear in no clause; Article III speaks only of "Cases" and "Controversies."<sup>477</sup> The immunity the Court says it has "recognized" is tethered to no Article II text; the opinions invoke "Article II interests" and produce none.<sup>478</sup> The only way to test such a doctrine is to trace it to its root and watch, at each link, whether any node ever produces the constitutional source the next node presupposes. Part 2 performed that trace for the immunity chain, node by node; this Part performs it for the standing chain and sets the two side by side. The immunity chain enters American law in 1868, when *Randall v. Brigham* received a 1607 English immunity rule "as old as the law" by citation rather than adjudication; that rule was later read into a federal statute whose text makes "every person" liable, beginning with *Tenney v. Brandhove* (1951), and climbed to the apex in *Trump v. United States* (2024).<sup>479</sup> The standing

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<sup>477</sup> U.S. Const. art. III, § 2.

<sup>478</sup> *Trump v. United States*, 603 U.S. 593, 618 (2024) ("the immunity we have recognized extends to the 'outer perimeter' of the President's official responsibilities, covering actions so long as they are 'not manifestly or palpably beyond [his] authority'" (quoting *Blassingame v. Trump*, 87 F.4th 1, 13 (D.C. Cir. 2023))).

<sup>479</sup> *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868); *Tenney v. Brandhove*, 341 U.S. 367, 376 (1951); 42 U.S.C. § 1983 ("Every person who, under color of [law] . . . subjects . . . any . . . person . . . to the deprivation of any rights . . . shall be liable to the party injured . . .").

chain runs from *Tyler v. Judges of the Court of Registration* (1900), which imported a pleading-treatise rule for damages actions and reissued it as a jurisdictional screen, to *United States v. Texas* (2023).<sup>480</sup> At no node of either chain is a constitutional provision produced. The decisive term of the standing inquiry — "injury in fact" — can be dated precisely: it was coined in 1970, as a gloss on the Administrative Procedure Act, in an opinion that used it to *widen* access to the courts, and was retroactively constitutionalized only between 1982 and 1992.<sup>481</sup> A phrase born as a statutory liberalization in 1970 is not the "irreducible constitutional minimum" of a 1787 text. Both chains, run backward, terminate not in the Constitution but in the English prerogative the Constitution displaced.

The third claim is structural, and it is the reason the two halves must be studied together. Operating in sequence, standing and immunity reconstitute a mechanism the common law knew well and the Founding dismantled: the sealed remedial loop. Its archetype is the pair of 1607 decisions in which Coke's reports fixed the prerogative's procedural form, the three locks Part 1, chapter 1.3 § A reads from the reports: no proof against the official's act, no forum but the King's, and no remedy from the King, so that the promise of accountability opened onto a wall. The Founding cut all three bars: verity by process replaced verity by status, officials were made answerable downward through Article III, and the right-remedy principle guaranteed a forum. The modern apparatus re-welds them. Immunity restores the evidentiary bar and forecloses the damages remedy; and where the citizen is told that his only recourse for official lawlessness lies in the political process — in impeachment, in the ballot, in the enforcement discretion of the very officials who defaulted — he is routed, once more, to a forum that cannot grant him relief. A

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<sup>480</sup> *Tyler v. Judges of the Court of Registration*, 179 U.S. 405 (1900); *United States v. Texas*, 599 U.S. 670 (2023).

<sup>481</sup> *Ass'n of Data Processing Serv. Orgs. v. Camp*, 397 U.S. 150, 152–53 (1970); *Valley Forge Christian Coll. v. Americans United for Separation of Church & State, Inc.*, 454 U.S. 464, 472 (1982); *Lujan*, 504 U.S. at 560–61.

remedy that lies only before a forum which cannot grant it is no remedy at all. The output of the two doctrines, run together, is the structural unreviewability of official violation — by design, not by accident.

A single maxim organizes the whole: enforcement capacity must precede compliance capability. No actor, officer, court or doctrine, may enforce a rule whose own preconditions it has not satisfied. A gate into Article III must itself trace to Article III; a shield from Article III liability must trace to a power the Constitution grants. Where neither does, the citizen is being turned away by an authority that has not shown its own.

## 6.2 The Entry Lock: Standing With No Constitutional Source

The entry lock is the law of standing, and traced the same way it yields the same finding. Article III extends the judicial power to "Cases" and "Controversies."<sup>482</sup> The operative modern terms — "injury in fact," "particularized," "concrete," "generalized grievance" — appear in no clause. A doctrine that calls itself the "irreducible constitutional minimum" but points to no text containing it cannot be tested from a foundation, and must be traced from the bottom up. This chapter performs that trace (Section A); dates the decisive term to a 1970 statutory coinage that the Court first used to *widen* access and only later constitutionalized to *narrow* it (Section B); documents the founding-era and early-twentieth-century practice the doctrine's historical self-description cannot account for (Section C); sets the 1932 merits practice beside the 2007 dismissal of the identical claim-type (Section D); recovers the threshold the pre-apparatus cases actually policed — adverseness and a fit record, not the quantum of injury (Section E); and shows the stated rationale inverting when the screen is turned against the very kind of violation it claims to police

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482 U.S. Const. art. III, § 2.

(Section F). The "constitutional source" column reads, at every node, what it read in Part 2, chapter 2.3.

### *A. The Spine*

The root is 1900. In *Tyler v. Judges of the Court of Registration*, the requirement that a plaintiff "aver an injury peculiar to himself, as distinguished from the great body of his fellow citizens" enters the chain.<sup>483</sup> Its stated authorities, on the face of the opinion, are three, and none is constitutional: an English pleading treatise supplying proper-plaintiff rules for damages actions at law; a writ-of-error line forbidding a litigant to assert a third person's rights; and the common-law public-nuisance rule, under which a public wrong belonged to the Crown and was privately actionable only where a plaintiff suffered "some extraordinary damage" beyond the rest of the public.<sup>484</sup> Two features of the root are decisive and are usually overlooked. The holding was narrower than the rule it announced: the petitioner had pressed *other* landowners' notice rights — a third-party-standing (*jus tertii*) problem — not a deficiency in the quantum of his own injury; the injury-quantum language was thus not necessary to the judgment. And the decision was 5–4, over a dissent by the Chief Justice, reviewing a state-court judgment that — per Holmes, below — had reached the full constitutional merits at the petitioner's instance with no standing inquiry whatever.<sup>485</sup> The screen was imposed only at the federal door, only as a writ-of-error rule, only by a divided Court; and its authority was a manual of pleading for private damages actions, whose own sanction for naming the wrong plaintiff was nonsuit and refiling — not the absence

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483 *Tyler v. Judges of the Court of Registration*, 179 U.S. 405, 406 (1900).

484 *Id.* at 406–08 (citing Chitty, *A Treatise on Pleading and Parties to Actions* \*1, \*2, \*69, and the public-nuisance special-damage rule); cf. 3 William Blackstone, *Commentaries* \*219–\*220.

485 *Id.* at 409–10; *id.* at 411–14 (Fuller, C.J., dissenting, joined by Harlan, Brewer, and Shiras, JJ.); *Tyler v. Judges of the Court of Registration*, 175 Mass. 71 (1900) (Holmes, C.J.).

of judicial power. The transformation at the root is the same one Part 2, chapter 2.3 found on the immunity side: a rule drawn from a non-constitutional source, for one purpose, is reissued for a different and far weightier one.

From there the chain ascends, and at no node does it produce the constitutional text the next node presupposes. *Newman v. Frizzell* (1915) routed the citizen's interest in lawful government to the Attorney General: "every citizen and every taxpayer is interested in the enforcement of law . . . . But that general interest is not a private but a public interest. Being such, it is to be represented by the Attorney General."<sup>486</sup> *Frothingham v. Mellon* (1923) announced a "direct injury" rule, inverting the nineteenth-century equity practice that had entertained shared-injury suits.<sup>487</sup> Then came a silence the doctrine cannot explain (Section D). When the square denials resumed — *Ex parte Levitt* (1937) — the authority chain reached no earlier than 1900.<sup>488</sup> And when the modern Court finally classified the bar, it classified it as *prudential*: *Warth v. Seldin* listed the generalized-grievance rule first among the limits "[a]part from this minimum constitutional mandate," applicable only "normally"; *Valley Forge* filed it under "[b]eyond the constitutional requirements . . . prudential" on the very pages it called injury in fact the "irreducible minimum"; *Allen v. Wright* placed it among standing's "judicially self-imposed limits," distinct from the "core component derived directly from the Constitution," and named the whole field's "single basic idea" as "the idea of separation of powers."<sup>489</sup> Only in *Lujan v. Defenders of Wildlife* (1992) did the apparatus become the "irreducible constitutional

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486 *Newman v. Frizzell*, 238 U.S. 537, 547 (1915).

487 *Frothingham v. Mellon* (decided with *Massachusetts v. Mellon*), 262 U.S. 447, 488 (1923); see *Crampton v. Zabriskie*, 101 U.S. 601, 609 (1880) (shared-injury equity).

488 *Ex parte Levitt*, 302 U.S. 633, 634 (1937) (per curiam).

489 *Warth v. Seldin*, 422 U.S. 490, 498–99 (1975); *Valley Forge Christian Coll. v. Americans United for Separation of Church & State, Inc.*, 454 U.S. 464, 472, 474–75 (1982); *Allen v. Wright*, 468 U.S. 737, 750–52 (1984).

minimum" — with particularization defined, for the first time, in a footnote.<sup>490</sup> A requirement that enters the constitutional canon by footnote, three pages after the same line of cases called it prudential, has a construction history, not a constitutional pedigree.

| Year / Case                       | Screen created or moved                         | Antecedent claimed → produced                                        | Const. source                                  | Citizen outcome                                                       |
|-----------------------------------|-------------------------------------------------|----------------------------------------------------------------------|------------------------------------------------|-----------------------------------------------------------------------|
| 1885–92 <i>Liverpool; Wellman</i> | adverseness + record-readiness (the real floor) | actual-controversy practice                                          | Art. III ("Cases")                             | merits withheld for collusion or abstraction, never for shared injury |
| 1900 <i>Tyler</i>                 | "injury peculiar to himself" enters             | English pleading treatise + <i>jus tertii</i> + public-nuisance rule | <b>None</b>                                    | barred (5–4; holding was <i>jus tertii</i> )                          |
| 1915 <i>Newman</i>                | relator/Attorney-General monopoly               | quo warranto consent practice                                        | <b>None</b>                                    | barred                                                                |
| 1923 <i>Frothingham</i>           | "direct injury" rule                            | municipal-taxpayer practice, <i>inverted</i>                         | <b>None</b> ( <i>Flast</i> : "self-restraint") | barred                                                                |
| 1932 <i>Smiley</i> line           | — <b>(the silence)</b>                          | citizen structural suits, decided on the merits                      | —                                              | <b>heard</b>                                                          |
| 1937 <i>Levitt</i>                | first square citizen-standing denial            | chain reaching no earlier than 1900                                  | <b>None</b>                                    | barred                                                                |
| 1970 <i>Data Processing</i>       | <b>"injury in fact" coined</b>                  | APA § 702 gloss, <i>replacing</i> the stricter test                  | <b>None</b> (statutory)                        | <b>heard</b>                                                          |
| 1975 <i>Warth</i>                 | "blend"; generalized-grievance "normally"       | listed "apart from" the constitutional minimum                       | <b>None</b> (prudential)                       | barred                                                                |
| 1982 <i>Valley Forge</i>          | constitutionalization begins                    | 1976–79 policy cases                                                 | <b>None</b> (and self-contradictory)           | barred                                                                |
| 1992 <i>Lujan</i>                 | "irreducible constitutional minimum"            | particularization defined in <b>footnote 1</b>                       | <b>None</b>                                    | barred                                                                |
| 2000 <i>Vermont Agency</i>        | <b>the counter-node</b>                         | qui tam history "well nigh conclusive"                               | <b>history fixes "Cases"</b>                   | uninjured relator <b>heard</b>                                        |
| 2007 <i>Lance</i>                 | <b>the reclassification</b>                     | 1932 claim-type recast as generalized grievance                      | <b>None</b>                                    | barred                                                                |
| 2016–21 <i>Spokeo; TransUnion</i> | concreteness; even Congress cannot confer       | <i>Vermont Agency's</i> historical register                          | <b>None</b>                                    | barred despite statutory rights                                       |

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490 *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560 & n.1 (1992).



| Year / Case       | Screen created or moved  | Antecedent claimed → produced               | Const. source | Citizen outcome |
|-------------------|--------------------------|---------------------------------------------|---------------|-----------------|
| 2023 <i>Texas</i> | non-prosecution terminus | <i>Linda R.S.</i> + "history and tradition" | <b>None</b>   | barred          |

Every cell in the fourth column reads as the immunity column read. The two genealogies, run independently, terminate in the same place.

### *B. The Datable Invention*

The decisive term of the modern inquiry can be dated to the year, and its origin is the opposite of what its present use suggests. "Injury in fact" enters the law in 1970, in *Association of Data Processing Service Organizations v. Camp* — as a construction of § 702 of the Administrative Procedure Act, adopted to *replace* the stricter "legal interest" test and thereby to *widen* access to judicial review.<sup>491</sup> It was a statutory liberalization. Its migration into Article III is traceable step by step: a blend of constitutional and prudential considerations in *Warth* (1975); the "irreducible minimum" in *Valley Forge* (1982); the "irreducible constitutional minimum" in *Lujan* (1992).<sup>492</sup> A phrase coined in 1970 to construe a statute, and coined in order to enlarge access, cannot be the "irreducible constitutional minimum" of a text ratified in 1788. The move is the precise analogue of the immunity side's read-in to § 1983 (Part 2, chapter 2.3): a statutory-era artifact promoted to constitutional rank. On one side a common-law immunity is read *into* a statute and then treated as constitutional structure; on the other a statutory standing gloss is read *out of* a statute and then treated as a constitutional floor. Both are artifacts with construction dates, dressed as constants.

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<sup>491</sup> *Ass'n of Data Processing Serv. Orgs. v. Camp*, 397 U.S. 150, 152–53 (1970).

<sup>492</sup> *Warth*, 422 U.S. at 498; *Valley Forge*, 454 U.S. at 471 (the word is *Valley Forge's*: standing "subsumes a blend of constitutional requirements and prudential considerations," citing *Warth* at 498), 472; *Lujan*, 504 U.S. at 560.

### C. The Refuted Pedigree

The modern doctrine's self-description is historical. *Spokeo* instructs courts to measure "concreteness" against harms "traditionally . . . regarded as providing a basis for a lawsuit in English or American courts."<sup>493</sup> The actual tradition refutes the description at three points. First, the First Congress enacted *qui tam* statutes under which informers — strangers with no injury of their own — sued in federal court for statutory penalties; the Court itself catalogued them and pronounced the history "well nigh conclusive" that such suits were "Cases" and "Controversies" of the sort traditionally resolved by the judicial process.<sup>494</sup> That pronouncement, in *Vermont Agency*, was authored by the same Justice who wrote *Lujan* — and *Spokeo*'s concreteness test anchors expressly in it, so the modern test's own foundation is the founding practice that contradicts it.<sup>495</sup> Second, nineteenth-century equity entertained shared-injury suits, the practice *Frothingham* later inverted.<sup>496</sup> Third is the 1932 merits practice taken up in the next Section. A doctrine that calls itself an "irreducible constitutional minimum" did not exist, as a bar, for the Republic's first 180 years.

The strongest scholarly defense of the doctrine's historical pedigree must be met, not avoided. It is argued that American courts did maintain a public/private line, refusing to let private plaintiffs vindicate public wrongs.<sup>497</sup> The answer is to distinguish what persisted from what did not. What persisted was a rule of *prudence* — concerns of multiplicity, of proportion,

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<sup>493</sup> *Spokeo, Inc. v. Robins*, 578 U.S. 330, 340–41 (2016); see also *TransUnion LLC v. Ramirez*, 594 U.S. 413, 424–25 (2021).

<sup>494</sup> *Vermont Agency of Nat. Res. v. United States ex rel. Stevens*, 529 U.S. 765, 777 & nn.6–7 (2000). The English informer and *qui tam* practice behind the founding usage — and the managerial, rather than proprietary, character of the era's own hostility to the informer trade — is set out in Part 1, chapter 1.5.

<sup>495</sup> *Id.* (Scalia, J.); *Lujan*, 504 U.S. 555 (Scalia, J.); *Spokeo*, 578 U.S. at 341 (anchoring the concreteness inquiry in *Vermont Agency*). *Vermont Agency* rests on two grounds — that the *qui tam* relator is a "partial assignee" of the United States' damages claim, 529 U.S. at 773 & n.4, and that the founding-era *qui tam* practice shows such suits to be Article III "Cases," *id.* at 777. The ground deployed here is the second: it speaks to the meaning of "Cases" directly and holds independent of the assignee rationale, which concerns only the relator's own stake.

<sup>496</sup> *Crampton*, 101 U.S. at 609.

of vexation, the ordinary stuff of joinder and judicial administration — and that is precisely the character the Supreme Court's own trio of cases assigns the generalized-grievance bar ("apart from this minimum constitutional mandate"; "[b]eyond the constitutional requirements . . . prudential"; among the "judicially self-imposed limits").<sup>498</sup> What did not persist was the *proprietary* premise beneath the English rule — that the public's wrongs belong to the sovereign — the only premise that could make the bar *jurisdictional* rather than prudential, and the premise the Founding repudiated (chapter 6.3). A managerial concern about too many suits is not the "irreducible constitutional minimum" of Article III; it is docket prudence, and prudence yields where its rationale is absent.

#### *D. The Before/After Photograph*

The clearest proof that the screen is an artifact is a matched pair of cases on the same clause. In *Smiley v. Holm* (1932), a plaintiff suing as a "citizen, elector and taxpayer" challenged a congressional districting arrangement under the Elections Clause; the Court granted certiorari, construed the clause, and decided the merits, with no standing analysis — zero sentences.<sup>499</sup> Its companions did the same.<sup>500</sup> Seventy-five years later, in *Lance v. Coffman* (2007), four voters challenged their State's districting under the *same* Elections Clause, presenting the *same* claim-type — that the prescribed lawmaking process had been violated — and were dismissed at the threshold as raising "precisely the kind of undifferentiated, generalized grievance about the

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497 See Ann Woolhandler & Caleb Nelson, *Does History Defeat Standing Doctrine?*, 102 Mich. L. Rev. 689, 691–92 (2004).

498 *Warth*, 422 U.S. at 498–99; *Valley Forge*, 454 U.S. at 474–75; *Allen*, 468 U.S. at 751.

499 *Smiley v. Holm*, 285 U.S. 355, 361, 365–66 (1932).

500 *Koenig v. Flynn*, 285 U.S. 375 (1932); *Carroll v. Becker*, 285 U.S. 380 (1932); *Wood v. Broom*, 287 U.S. 1 (1932).

conduct of government that we have refused to countenance."<sup>501</sup> Same clause, same plaintiff class, same claim structure, no intervening constitutional amendment. The difference between merits in 1932 and dismissal in 2007 is not Article III, whose text did not change; it is the doctrine constructed in between.

*Lance's* internal workings confirm the diagnosis. Its only answer to the 1932 practice is a single-sentence characterization — that those cases were "filed by a relator on behalf of the State rather than private citizens acting on their own behalf" — and the characterization is refuted by the 1932 opinion's own text, which says the suit was "brought by the petitioner as a 'citizen, elector and taxpayer,'" and by the adversary posture, in which the State's own Attorney General appeared *against* the plaintiff.<sup>502</sup> A private citizen's federal-court suit decided on the merits in the same era goes unaddressed.<sup>503</sup> And *Lance* concedes the point outright: "[i]n neither case did we address whether a private citizen had alleged a 'concrete and particularized' injury sufficient to satisfy the requirements of Article III."<sup>504</sup> That is the terminus case's own admission that the apparatus was never applied to the era's citizen structural suits — the genealogy's silence, conceded inside the chain's final link. A doctrine that disclaims the pre-1970 era as non-precedent cannot simultaneously claim an ancient pedigree.<sup>505</sup>

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501 *Lance v. Coffman*, 549 U.S. 437, 442 (2007) (per curiam).

502 *Id.*; *Smiley*, 285 U.S. at 356, 361; *cf. Baker v. Carr*, 369 U.S. 186, 206 & n.26 (1962) (reading the 1932 line as a standing baseline).

503 *Wood v. Broom*, 287 U.S. at 4; *see Baker*, 369 U.S. at 201 (the 1932 federal questions "reviewed . . . on the merits").

504 *Lance*, 549 U.S. at 442.

505 *Cf. Steel Co. v. Citizens for a Better Env't*, 523 U.S. 83, 91 (1998) ("drive-by jurisdictional rulings . . . have no precedential effect") — a rule that cuts both ways against a doctrine claiming ancient lineage while disclaiming the pre-apparatus era.

*E. The Floor That Actually Existed*

If the injury screen entered the law only in the twentieth century, a fair question follows: did Article III impose no threshold at all before it? It did — but the threshold was of a different kind, and the difference is decisive. The pre-apparatus cases policed *adverseness* and *record-readiness*, not the quantum of a plaintiff's injury. They asked whether the suit placed a real, sharply contested dispute before the court on a record fit to decide it — never whether the plaintiff's stake was more particular than his fellow citizens'.

The two clearest statements predate the root. In 1885 the Court resolved "never to anticipate a question of constitutional law in advance of the necessity of deciding it," and "never to formulate a rule of constitutional law broader than is required by the precise facts to which it is to be applied."<sup>506</sup> The concern there is abstraction and a premature record. In 1892 the Court held constitutional adjudication "legitimate only in the last resort, and as a necessity in the determination of real, earnest and vital controversy between individuals," requiring "an honest and actual antagonistic assertion of rights," and it withheld decision where a friendly suit on an agreed record kept the controlling facts from being genuinely contested.<sup>507</sup> The concern there is collusion and a stipulated record. Neither case asked whether the plaintiff's injury was "particularized"; both asked whether the controversy was genuine and the record fit to resolve it.

That this — not the quantum of injury — is the authentic Article III threshold is confirmed by the apparatus's own search for a pedigree. When the modern doctrine reaches back for a root, it reaches for *Wellman*: the decision that began constitutionalizing the injury requirement quotes *Wellman's* "last resort . . . real, earnest and vital controversy" as a source of

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<sup>506</sup> *Liverpool, N.Y. & Phila. Steamship Co. v. Commissioners of Emigration*, 113 U.S. 33, 39 (1885).

<sup>507</sup> *Chicago & Grand Trunk Railway Co. v. Wellman*, 143 U.S. 339, 345 (1892).

standing.<sup>508</sup> But *Wellman* withheld decision from a *collusive* suit, not from a citizen whose stake was shared; it is a case about adverseness, not injury. The doctrine kept the rhetoric of "last resort" and discarded the test beneath it, substituting a particularized-injury requirement the 1885 and 1892 Courts neither stated nor needed.

The two floors screen out different things, and the difference is the whole of the matter. An adverseness-and-record floor excludes the collusive suit, the abstract question, the advisory opinion, the case brought before its facts have ripened — the genuine concerns of judicial administration. It does not exclude a citizen who brings a real, adverse, fully-documented challenge to a completed exercise of government power merely because the injury he complains of is one he shares with others. The injury screen excludes precisely that citizen — and it is the screen with no text behind it (Section A), a coinage dated to 1970 (Section B), and a pedigree the tradition refutes (Section C). What Article III actually requires, a genuine claim of structural violation can satisfy; what Article III does not require is the very thing the modern screen demands.

#### *F. The Rationale-Inversion*

Standing's "single basic idea," the Court says, is "the idea of separation of powers": unelected courts must not displace the judgments of the political branches at the instance of bystanders.<sup>509</sup> Every canonical denial fits that mold — deference to a congressional spending judgment, to a matter committed to congressional oversight, to an executive policy choice. But the rationale inverts in a configuration the canonical cases never confronted: where the challenged act is

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<sup>508</sup> *Valley Forge Christian Coll. v. Americans United for Separation of Church & State, Inc.*, 454 U.S. 464, 471 (1982) (quoting *Wellman*, 143 U.S. at 345, as a root of standing).

<sup>509</sup> *Allen*, 468 U.S. at 752.

*executive defiance of the political branches' enacted text*, shielded by judge-made immunity and screened by judge-made standing. There, barring the citizen defers to no political branch. It protects a judge-made shield with a judge-made screen, and the conduct insulated from review is executive action *contrary to* what the legislature enacted. A separation-of-powers doctrine cannot coherently be deployed to insulate a separation-of-powers violation; applied there, the doctrine does not serve its stated idea but defeats it.

The asymmetry sharpens into a dilemma the government cannot escape. The judiciary created the immunity screen *sua sponte* — no case or controversy demanded immunity's invention; it was read into "every person" against the statutory text, on a presumption the legislative record refutes (Part 2, chapter 2.3). A judiciary that exercises the Article III power to *legislate doctrine* without textual warrant cannot then invoke Article III *modesty* to turn away a citizen who asks only that enacted text be enforced. Either the case-or-controversy discipline binds the Court's own doctrine-making — in which case the immunity shield, which no case or controversy required, falls — or it does not bind so strictly, in which case the citizen is heard. The same interpretive rule, applied evenhandedly to both screens, cannot leave both standing. This is the inverted hierarchy of the Method, Section A, surfacing on the standing side: strict discipline is reserved for the citizen's invocation of "Cases," loose discipline lavished on the Court's own creation.

Two genealogies, built independently, by the same method, reading the same value at every node, and meeting — at *Vermont Agency's* *qui tam* history and at the prerogative root — the same founding repudiation. Two doctrines genuinely grounded in different constitutional provisions would not fail in the identical way. That these do is the first evidence that they are not two doctrines but one. Chapter 6.3 establishes that they are.

### 6.3 One Prerogative, Two Halves

Parts 1 to 3 of this book and chapter 6.2 established that two threshold doctrines share a defect: neither identifies a constitutional source at any node. Standing alone, that finding invites a deflationary reading — that two doctrines may independently lack a clean textual hook without being, in any deeper sense, the same thing. This chapter forecloses that reading. The two doctrines are not independent failures; they are the two halves of a single inheritance. Part 1, chapter 1.5 set out the inheritance itself — the companion chapters of one book resting on one premise; six further lines of evidence establish that the halves never separated. The premise was repudiated by name at the Founding (Section A); a legal order cannot reject the premise for one half and silently retain its conclusion for the other (Section B); the two halves have traveled together at every historical stratum (Section C); they are enforced today through a single constitutional clause, made to perform two contradictory offices (Section D); they run on a single gatekeeping device — particularization — demanded strictly of the citizen at the entrance and loosely of the official at the exit (Section E); and across two and a quarter centuries they have never once cited each other, because each chain's premise is the other's barred door (Section F).

#### *A. The Federalist's Repudiation of the Premise*

The premise that the King is the principal is precisely the premise the Founding inverted — not by implication, but by name and by metaphor. The fountain of authority is relocated from the Crown to the people: it is "that pure original fountain of all legitimate authority"<sup>510</sup> and "the only legitimate fountain of power" from which "the several branches of government hold their

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<sup>510</sup> The Federalist No. 22 (Alexander Hamilton), in *The Federalist: A Collection of Essays, Written in Favour of the New Constitution* (J. & A. M'Lean, New York 1788), vol. I, at 143 (quoted as the 1788 print sets it, without the comma the modern texts place after "pure").



power."<sup>511</sup> Officials are demoted from principals to agents: the governments are "but different agents and trustees of the people," in whom "the ultimate authority . . . resides . . . alone"; the federal power rests "in the hands of the elective and periodical servants of the people."<sup>512</sup> The people, in conveying that power, "surrender nothing" and "retain every thing"; their dependence on the people is the government's "primary control."<sup>513</sup> And the answer to Blackstone's rhetorical question — "who shall command the king?" — is supplied directly: the courts are "an intermediate body between the people and the legislature," bound to prefer "the intention of the people to the intention of their agents," because "the power of the people is superior to both."<sup>514</sup> Blackstone said no superior power could call the sovereign to account. The Federalist built one and named its principal. The premise on which both halves of the prerogative rest was not quietly outgrown; it was the express object of the founding's repudiation.

### *B. The Inconsistency Proof*

American law enacted that repudiation on the immunity side openly and without controversy. "Who shall command the king?" received its American answer: the courts shall, on behalf of the people whose intention outranks their agents'; the officer who acts beyond his authority is suable; sovereign immunity never leaves the injured party without a forum.<sup>515</sup> The rejection of chapter 17 is not contested doctrine — it is the foundation of judicial review and of the officer-suit framework. But chapters 13 and 17 stand on one premise, and that is the difficulty the joint genealogy exposes. A legal system cannot coherently reject the premise for immunity purposes

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511 The Federalist No. 49 (James Madison).

512 The Federalist No. 46 (James Madison); The Federalist No. 69 (Alexander Hamilton).

513 The Federalist No. 84 (Alexander Hamilton); The Federalist No. 51 (James Madison).

514 The Federalist No. 78 (Alexander Hamilton).

515 *Marbury v. Madison*, 5 U.S. (1 Cranch) 137, 163 (1803); *Ex parte Young*, 209 U.S. 123 (1908); *Larson v. Domestic & Foreign Commerce Corp.*, 337 U.S. 682, 689–90 (1949).

— holding that the sovereign *can* be called to account — while silently retaining the premise's conclusion for standing purposes — holding that the sovereign's officers still *own* the public's wrongs, so that the citizen may not sue to vindicate them. Stated as a syllogism: the immunity chain preserves chapter 17 in substance; the standing chain preserves chapter 13 in substance; ratification dissolved the single premise of both; and a conclusion does not survive the premise that was its only support. What the law has actually done is keep the half of the prerogative that shields officials and discard the half that did not — with no principled account of why the one survived ratification and the other perished. That asymmetry is not inheritance. It is selective retention of the citizen-excluding half of a premise the Constitution rejected whole.

### *C. The Pair-Travel Finding*

The thesis predicts something the separate literatures could not see, because it is visible only when the two spines are laid side by side: the prerogative travels in pairs, at every historical stratum, and never separately. In **1607**, Coke's reports fixed both halves in the same year — *Floyd v. Barker* (the immunity root) and *Prohibitions del Roy* (the remedial dead-end behind it) — same reporter, same author.<sup>516</sup> In **1768**, the two assignment rules sit in companion chapters of one book.<sup>517</sup> In **1896–1900**, the same Court issued *Spalding v. Vilas* (transplanting executive immunity) and *Tyler* (installing the injury screen) four years apart.<sup>518</sup> In **1973–76**, the Court locked the *same governmental function* — prosecution — from both sides within three Terms: *Linda R.S. v. Richard D.* held that a citizen has no cognizable interest in the prosecution of

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<sup>516</sup> *Floyd v. Barker*, 77 Eng. Rep. 1305 (Star Chamber 1607); *Prohibitions del Roy*, 77 Eng. Rep. 1342 (1607) (12 Co. Rep. 63).

<sup>517</sup> 3 William Blackstone, *Commentaries* \*219–\*220 (ch. 13), \*254–\*255 (ch. 17).

<sup>518</sup> *Spalding v. Vilas*, 161 U.S. 483 (1896); *Tyler v. Judges of the Court of Registration*, 179 U.S. 405 (1900).

another (the entry bar), and *Imbler v. Pachtman* held the prosecutor absolutely immune from the prosecuted citizen's suit (the exit bar).<sup>519</sup> In **1982**, a single October Term produced both modern locks: *Valley Forge* (decided in January) began the constitutionalization of the entry screen, and the *Fitzgerald* twins (decided in June) forged the modern exit shield.<sup>520</sup> And in **2023–24**, consecutive Terms produced *United States v. Texas* and *Trump v. United States*.<sup>521</sup> Two doctrines that were genuinely independent would not march in lockstep across four centuries. The pairing is the empirical signature of a single doctrine traced from two ends.

#### *D. Take Care: One Clause, Both Locks*

The deepest single point of contact is a constitutional clause that both locks invoke, to opposite effect. Article II, § 3 provides that the President "shall take Care that the Laws be faithfully executed."<sup>522</sup> At the entry lock, the Court reads that clause to assign the public's wrongs to the Executive. "Vindicating the public interest (including the public interest in Government observance of the Constitution and laws)," the standing canon holds, "is the function of Congress and the Chief Executive"; to let a citizen sue to compel the government's compliance would "transfer from the President to the courts the Chief Executive's most important constitutional duty, to 'take Care that the Laws be faithfully executed.'"<sup>523</sup> That is chapter 13 in modern dress: the public's wrongs belong to the sovereign's officer, and the subject who tries to vindicate them

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519 *Linda R.S. v. Richard D.*, 410 U.S. 614 (1973); *Imbler v. Pachtman*, 424 U.S. 409 (1976).

520 *Valley Forge Christian Coll. v. Americans United for Separation of Church & State, Inc.*, 454 U.S. 464 (1982) (argued Nov. 4, 1981; decided Jan. 12, 1982); *Nixon v. Fitzgerald*, 457 U.S. 731 (1982), and *Harlow v. Fitzgerald*, 457 U.S. 800 (1982) (argued Nov. 30, 1981; decided June 24, 1982) — all October Term 1981.

521 *United States v. Texas*, 599 U.S. 670 (2023); *Trump v. United States*, 603 U.S. 593 (2024).

522 U.S. Const. art. II, § 3.

523 *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 576–77 (1992) (citing *Massachusetts v. Mellon*, 262 U.S. 447, 489 (1923), and *Allen v. Wright*, 468 U.S. 737, 760 (1984)).

is usurping the officer's prerogative. At the exit lock, the presidential-immunity doctrine invokes the *same* Article II to shield the Executive's performance from review — producing, as Part 2, chapters 2.3 to 2.5 showed, no Article II text. One clause is thus made to deny the citizen entry (because enforcement belongs to the Executive) and to deny the citizen relief (because the Executive's enforcement may not be questioned).

The clause cannot do both jobs, for a reason its own words supply: "shall take Care" is a *duty*, not a grant — a demand laid on the agent for the principal's benefit. Both doctrines convert that duty into an asset of the agent. A command that the Executive faithfully execute the laws, imposed for the people's protection, cannot simultaneously be the Executive's warrant to exclude the people from court (entry) and the Executive's shield against the people's suit (exit). A duty owed to the people is being deployed twice over as a weapon against them. The same clause that is the citizen's strongest claim — the government *must* obey the law — has been read as the government's answer to the citizen at both doors. And the contradiction is not the critic's construction; it has been named from the bench. Dissenting from the apex immunity holding, Justice Sotomayor identified "a twisted irony in saying . . . that the person charged with 'tak[ing] Care that the Laws be faithfully executed' can break them with impunity."<sup>524</sup> A duty to execute the law cannot also be the source of a license to violate it; the clause that commands faithful execution is, read honestly, the textual refutation of the immunity it is summoned to support.

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<sup>524</sup> *Trump v. United States*, 603 U.S. 593, 676 (2024) (Sotomayor, J., dissenting) ("There is a twisted irony in saying, as the majority does, that the person charged with 'tak[ing] Care that the Laws be faithfully executed' can break them with impunity."; the ellipsis in text elides "as the majority does"). The sentence closes a paragraph reasoning that the immunity "diminishes" rather than protects executive independence, "exalting occupants of the office over the office itself." The dissent adds that the President "receives robust legal advice on the lawfulness of his actions," *id.* at 670 — confirming the floor-capacity point of Part 3, chapter 3.2 § E from within the Court, and answering there "a questionable conception of the President as incapable of navigating the difficult decisions his job requires while staying within the bounds of the law."

*E. The Shared Device: Particularization at Both Doors*

The clearest sign that the two locks are one mechanism is that they run on one device. Standing demands that the plaintiff's injury be *particularized* — tied to him, traceable to specific conduct — before he may enter. Immunity demands that the right the official violated have been *particularized* too — "clearly established" not in the abstract but at the contours of the specific conduct, for "[t]he contours of the right must be sufficiently clear that a reasonable official would understand that what he is doing violates that right" — before he may be made to answer.<sup>525</sup> One doctrine particularizes the citizen at the entrance; the other particularizes the official at the exit. It is a single demand, pressed from the two sides of the courthouse door.

But the single demand runs strict at the entrance and loose at the exit. The plaintiff who cannot tie his injury to particular conduct is turned away at the threshold; the official whose conduct no prior case had particularized in just its contours is shielded at the close — and a pardon, the foundational form of immunity, cannot run to "everyone involved" but only to a named person for a specified offense, so that where official action is collective the very particularity that bars the plaintiff dissolves the official's liability.<sup>526</sup> The strictest gatekeeping is reserved for the citizen; the loosest is extended to the official. No opinion has ever explained why a single device should bind the citizen tightly and the official scarcely at all — and, as the next Section shows, none could, because no court has ever held the two regimes in one hand.

The asymmetry inverts the hierarchy a second time (chapter 6.4 § A states the first). The standing particularization is a judicial gloss, coined in 1970 and constitutionalized only after

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<sup>525</sup> *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560 & n.1 (1992) (the injury must be "particularized"); *Anderson v. Creighton*, 483 U.S. 635, 640 (1987) ("The contours of the right must be sufficiently clear that a reasonable official would understand that what he is doing violates that right.").

<sup>526</sup> *Ex parte Garland*, 71 U.S. (4 Wall.) 333 (1866); *Schick v. Reed*, 419 U.S. 256 (1974); U.S. Const. art. II, § 2, cl. 1 (the pardon reaches a named person for a particular offense). On the absence of any articulated justification for the asymmetry, see chapter 6.3 § F.

1982, resting on no Article III text (chapter 6.2 § B). The immunity particularization, by contrast, has a constitutional anchor: the Pardon Power — the original immunity form — runs only to a particular person for a specified offense, particularized by its nature and by settled practice. If the two demands differ in rank, the constitutionally anchored one ought to bind *more* strictly, not less. Yet it is the judicial gloss that is enforced rigorously against the citizen, and the constitutional form that is applied loosely for the official. The screen with the weaker warrant is the strict one.

The deepest tie is one of origin: immunity is the elder device, and it entered the law as the judiciary's substitute for a standing bar that did not yet exist. The doctrine's American headwater (Part 2, chapter 2.3) was a suit by a disbarred attorney against the judge who had removed him — in substance a complaint not that the judge lacked the power to discipline the bar (he plainly held it: "[b]oth the admission and the removal of attorneys are judicial acts") but about *how* he had exercised it.<sup>527</sup> In the modern order such a complaint — a challenge to the manner in which an actor used a power he indisputably holds — fails at the courthouse door for want of standing; it is the judiciary-branch twin of the entry bar. But in 1868 there was no standing doctrine to dispose of it, and the Court reached instead for the imported immunity. Judicial immunity is, in that precise sense, the pre-standing, branch-specific predecessor of the standing screen: the instrument the Court used, before the entry lock was built, to turn away a challenge to the exercise of discretion.

And the elder instrument over-shoots the one that succeeded it. Standing, correctly understood, is calibrated — it bars a challenge to *how* a conceded power was used, but preserves the claim that government acted *outside* its constitutional assignment, the genuine violation

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<sup>527</sup> *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 535 (1868) ("Both the admission and the removal of attorneys are judicial acts."); see Part 2, chapters 2.3–2.4 (the doctrine's entry by citation in *Randall*). The suit contested not the existence of the disciplinary power but the manner of its exercise.

claim. Immunity draws no such line: it bars the process challenge and the violation claim alike, and bars them even where full process was afforded. The official thus receives, from the elder device, more protection than the calibrated entry screen would ever give the government, against more of the citizen's claims. And the point is sealed by a single hand: the Justice who imported the immunity rule in 1868 wrote, eleven years later, the shared-injury equity standing that lets a citizen reach government excess — the very tool whose existence makes the categorical immunity import unnecessary.<sup>528</sup> The calibrated answer to the process challenge lay in his own pen within the decade; the doctrine kept the over-broad import anyway. Two doctrines genuinely independent would not be one device, born of one function, applied asymmetrically, the elder over-shooting the younger. This is not resemblance. It is one prerogative, wearing two faces at the two doors.

#### *F. The Inter-Chain Silence*

A final line of evidence is an absence. Across two and a quarter centuries, the two chains have never cited each other. A survey of the principal nodes of both lines turns up no standing-chain opinion relying on an official-immunity case, and no immunity-chain opinion relying on the standing apparatus.<sup>529</sup> The sharpest instance is the 1973–76 prosecution pair: *Linda R.S.* and *Imbler* regulate the same governmental function, from the two sides of the same courthouse door,

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<sup>528</sup> *Crampton v. Zabriskie*, 101 U.S. 601, 609 (1880) (Field, J.) (shared-injury equity standing against government excess); see *Bond v. United States*, 564 U.S. 211 (2011) (individual standing to raise a structural separation-of-powers violation). The same Justice wrote both *Randall* (1868), importing the immunity, and *Crampton* (1880), articulating the calibrated standing that reaches government excess.

<sup>529</sup> The inter-chain-silence finding rests on a survey of the principal nodes of both chains. Spot-checks confirm it at the sharpest pairs: *Imbler* and *Linda R.S.* (the prosecution function, three Terms apart) cite no case from the other chain, and neither *Lujan* nor *Anderson v. Creighton* (the entry- and exit-side particularization cases) cites the other line. Apparent cross-citations resolve as false positives in context (e.g., "longstanding," "notwithstanding"); the two genuine threads both run through citizen-favorable points (*Baker v. Carr*, cited in a *Pierson* dissent and in *Clinton v. Jones*). The survey covered the principal nodes and the spot-checks named; it was not compared against the official reporters.

three Terms apart, in the same Court — and neither so much as acknowledges the other; *Imbler's* pedigree is thick with the immunity chain and contains not a single standing citation. The two *particularization* regimes (Section E) are the same story, here told as silence: built within five years of one another, each demanding that a claim be tied to specific conduct, neither line cites the other.<sup>530</sup>

The silence would be inexplicable for two genuinely independent doctrines policing the same door under the same separation-of-powers banner. For two halves of one prerogative it is the operating condition — because each chain's legitimating gesture is the other chain's barred door. The immunity cases reassure the citizen that foreclosing his suit leaves accountability intact "elsewhere," in the political process and the courts; they do not mention that the standing cases were closing the judicial door they gesture toward.<sup>531</sup> The standing cases assign the public interest to "Congress and the Chief Executive"; they do not mention the immunity line that shields that very Executive from the injured public's suit. Cited together, either reassurance collapses into the sealed loop; cited apart, both look honest. The two locks have worked, in short, only because no opinion has ever had to hold both in the same hand. This book holds them in the same hand — and Part 3, chapter 3.1 shows what the combined mechanism does.

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<sup>530</sup> *Lujan*, 504 U.S. at 560 & n.1 (entry-side particularization, 1992); *Anderson v. Creighton*, 483 U.S. 635 (1987) (exit-side particularization), built with no citation to the standing line.

<sup>531</sup> *Nixon v. Fitzgerald*, 457 U.S. at 757 (offering impeachment, the press, Congress, and the electorate as the citizen's alternatives).



## 6.4 The Doctrines Fail Together

### *A. The Inverted Hierarchy at Both Doors*

The Method, Section A stated the principle; the two doctrines violate it in the same way, and the violation is visible in what each does to the enacted text it displaces. Qualified immunity is read *into* 42 U.S.C. § 1983 — a statute that makes "[e]very person" who deprives another of constitutional rights "liable to the party injured" and that contains no immunity provision. The Court construes that statute *narrowly*, trimming the citizen's remedy, while construing the immunity doctrine it inserted *expansively*. The standing apparatus is read *into* Article III's grant of "the judicial Power" over "all Cases . . . arising under this Constitution" — a grant the Court construes *narrowly*, to exclude the citizen, while treating the judge-made injury requirement it inserted as the "irreducible constitutional minimum."<sup>532</sup> In each instance the text with the strongest democratic claim is read down and the doctrine with the weakest is read up. The same Court that holds Congress to the indefinite article and to a single preposition declines to hold its own doctrine to any comparable discipline.<sup>533</sup> The result is the inversion the Method, Section A described: strict construction reserved for the people's enactments, loose construction lavished on the judiciary's own product, and the citizen losing in both directions — the statutory and constitutional grants narrowed, the doctrinal shields widened. A court that narrows a remedial statute and widens a doctrine of its own making, applying looser discipline to the latter, has exercised legislative power and inverted the supremacy of the legislative text in one motion — the structural objection Article I, § 1 exists to raise.<sup>534</sup>

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<sup>532</sup> U.S. Const. art. III, § 2, cl. 1; *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560 (1992) ("irreducible constitutional minimum"); the notes in this section.

<sup>533</sup> *Niz-Chavez v. Garland*, 593 U.S. 155 (2021); *Bostock v. Clayton County*, 590 U.S. 644 (2020).

<sup>534</sup> U.S. Const. art. I, § 1; *id.* art. III, § 2; 42 U.S.C. § 1983.

### *B. The One-Sided Ledger*

The proof that neither doctrine was built with this rule in view is empirical, and it is stark. In the thirteen opinions that govern the two chains, seven of immunity and six of standing, the phrases "Ninth Amendment," "Tenth Amendment," "unenumerated," and "retained by the people" appear not at all.<sup>535</sup> The structural provisions that would govern whether the Court may *make* these doctrines were never named in the making of them. What the opinions did instead is keep a one-sided ledger: the official's interest in repose, and the court's interest in efficiency, are entered in the currency of constitutional structure, while the citizen's constitutional injury is entered, when entered at all, as a "regrettable cost."<sup>536</sup> A doctrine that counts only one side of the constitutional ledger, and never names the construction rule that governs its own creation, has not been measured against the Constitution. It has been built beside it.

### *C. The Retrodiction: An Objective Alternative the Results Already Obey*

A doctrine is law only if it can be stated as a rule — applied by someone other than its author and made to yield the same result. The standing apparatus fails that test against its own corpus, and the proof is the existence of an objective alternative that explains the results better than the apparatus explains itself. Consider two analytic instruments. The first distinguishes a *process challenge* — a complaint about *how* a validly held power was exercised, for which no constitutional provision is violated and dismissal is proper — from a *violation claim* — an

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<sup>535</sup> A corpus audit of the governing opinions of both chains (*Tenney, Pierson, Scheuer, Butz, Nixon v. Fitzgerald, Harlow, Trump; Tyler, Warth, Valley Forge, Allen, Lujan, Lance*) returns zero occurrences of "Seventh Amendment," "Ninth Amendment," "Tenth Amendment," "unenumerated," or "retained by the people" in the corpus texts of all thirteen opinions; the seven immunity opinions are the corpus audited at the note to Part 3, chapter 3.2 § B, which this audit extends by the six standing opinions. The official reporters were not compared and variant phrasings were not searched.

<sup>536</sup> Compare *Butz v. Economou*, 438 U.S. 478, 505 (1978) (the citizen's "basic constitutional guarantees," named on the citizen's side), with *Nixon v. Fitzgerald*, 457 U.S. 731, 754 n.37 (1982) (the citizen's injury recast as "a regrettable cost").

assertion that government acted outside its constitutional assignment, by usurping a power it lacks or abdicating a duty it owes, for which shared injury is no bar. The second is a stepwise textual test: identify the clause assigning the contested power; classify the challenged act; ask whether the act was "made in Pursuance" of the assignment; test the reading across the Constitution's parallel uses of the same term; and ask whether the actor satisfies every definitional condition of the position whose power it claims.

Run these instruments across the standing canon and they retrodict it. Every challenge to the exercise of a validly held power was dismissed — agreement with the apparatus's outcomes, but on a stated ground the apparatus never articulates: no text violated, no remediable wrong. Every claim of genuine constitutional violation that reached the merits is consistent with the instruments. And every epicycle the apparatus has had to invent — the nexus exception for one category of claim, the reserved carve-out for "abdication" of statutory duty, the reservations appended to the non-prosecution rule, the special category of informational injury — is a leak toward the instruments' line: each exists to re-admit a genuine violation claim that the overbroad screen would otherwise bar.<sup>537</sup> The doctrine keeps rediscovering, in fragments, the distinction it will not state. Its disagreements with the instruments form a small set, and history has tended to vindicate the instruments: the claim-types the instruments say were wrongly screened are, more than once, the claim-types whose merits later prevailed when a differently-postured plaintiff appeared.

The decisive turn is to run the textual test on the standing doctrine *itself*, as a coordinate exercise of judicial power. It fails at the first step: no clause assigns any branch the power to subtract from "all Cases . . . arising under this Constitution" by a judge-made injury quantum; the

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<sup>537</sup> See *Flast v. Cohen*, 392 U.S. 83 (1968) (the nexus exception); *Heckler v. Chaney*, 470 U.S. 821, 832–33 & n.4 (1985) (the abdication carve-out); *United States v. Texas*, 599 U.S. 670 (2023) (the reserved categories); *FEC v. Akins*, 524 U.S. 11 (1998) (informational injury).

canonical definition of that quantum entered the law by footnote, not by derivation from text.<sup>538</sup> It fails at the step that asks who holds the power to adjust federal jurisdiction, for the Constitution assigns that power to *Congress* — through the Exceptions Clause and the power to ordain the lower courts — not to the judiciary by self-creation.<sup>539</sup> And the unenumerated remainder, as Part 3, chapter 3.2 § B showed, belongs to the people. The same test, applied to the immunity extension, returns the same verdict at every step. The two locks fail the one objective rule identically — which is the result the joint-prerogative thesis predicts. The instruments are not a proposal to change the law; they are the recovery of the rule the results already obey, and under that rule both screens are *ultra vires*.<sup>540</sup>

#### *D. The Asymmetric Hypothetical at the Entrance*

The clinching proof that the asymmetry is a choice and not a standard lies on the standing side, where the identical predictive register reappears — turned against the citizen. At the exit, the official's *speculative* fear of a future suit is decisive: the prediction that he will be made "unduly cautious," chilled from "bold and unhesitating action," is accepted as sufficient ground — accepted, the apex civil decision conceded, "even though there is no historical record of numerous suits against the President."<sup>541</sup> At the entrance, the citizen's *speculative* fear of a future injury is fatal: standing requires an injury "actual or imminent, not 'conjectural' or 'hypothetical,'"

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538 U.S. Const. art. III, § 2, cl. 1; *Lujan*, 504 U.S. at 560 n.1; the next note.

539 U.S. Const. art. III, § 1; *id.* § 2, cl. 2 (the Exceptions Clause); see *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560 & n.1 (1992) (the particularization requirement stated in a footnote).

540 The two analytic instruments, the framework-versus-apparatus retrodiction and the stepwise objective test it applies, are stated here in the compressed form the argument needs and are not elaborated in this book.

541 *Nixon v. Fitzgerald*, 457 U.S. 731, 745, 752–53 & nn.32–33 (1982) (resting absolute immunity on the prospect that liability would make the official over-cautious and "distract" the President, while conceding that the danger is credited without a historical record of suits, in the words the text quotes; "bold and unhesitating action" is the Court's own account, at 745, of the public interest *Spalding v. Vilas* protected). The official's predictive fear is thus accepted on a concededly empty record.

and a plaintiff "cannot manufacture standing merely by inflicting harm on themselves based on their fears of hypothetical future harm that is not certainly impending."<sup>542</sup> The two are one rule, run in opposite directions. The official's prediction of future harm is admitted on no record at all; the citizen's prediction of future harm is excluded unless "certainly impending" and backed by "concrete evidence," not "mere conjecture." The burden a prediction must carry is thus reversed by the party it serves: conjecture suffices to shut the exit, and only certainty will open the entrance. That reversal is the asymmetry's second door — the same fear that shields the official is the fear that, demanded of the citizen and found wanting, turns him away.

### *E. The Vise*

The joint treatment yields a final result unavailable to either critique alone: the two doctrines cannot be defended together, because any defense of one concedes the other. Suppose the government defends immunity on *tradition* — the doctrine's long common-law pedigree. The law of custom forecloses that defense on its own terms (Part 3, chapter 3.2 § D); but even granting it, the move backfires. The tradition it invokes is the sealed loop the Founding cut (Part 3, chapter 3.1), and the very move that credits an ancient common-law immunity also credits the founding-era and pre-apparatus practice in which uninjured citizens sued to vindicate public wrongs and structural claims were heard on the merits — the practice the standing doctrine now bars. A tradition argument that saves immunity resurrects the standing the doctrine denies. Suppose instead the government defends standing on *text* — Article III's "judicial Power" and the case-or-controversy requirement. Then the same textual discipline, applied evenhandedly,

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<sup>542</sup> *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560 (1992) (the injury requirement, in the words the text quotes); *Clapper v. Amnesty Int'l USA*, 568 U.S. 398, 416, 420 (2013) (a plaintiff cannot manufacture standing from fears of a hypothetical future harm, and must offer evidence "to substantiate their fears," in the words the text quotes). The citizen's predictive fear is excluded for want of the record the official's fear is credited without.

strips immunity, which no text grants and which Part 2, chapter 2.4 showed entered the law by citation rather than construction. Ground the apparatus in tradition and the tradition unmakes the standing screen; ground it in text and the text unmakes the immunity shield. The two defenses contradict each other, and the contradiction is not curable, because it is the contradiction of defending two halves of one repudiated premise as though they were independent and sound. This is why the inter-chain silence (chapter 6.3 § F) was load-bearing: the locks have held only because no court has been asked to defend both in the same hand. Asked to do so, the defender is caught in the vise — and the vise is simply the prerogative's own incoherence, made visible by holding its two halves together.

#### *F. The Examination the Court Already Requires*

The decisive point is one of internal consistency, and it lies on the standing side. The same Court that rests immunity on an unexamined "tradition" at the exit *does* examine tradition — rigorously, and as the dispositive question — at the entrance. Standing's concreteness inquiry turns on whether an asserted harm bears a "close historical or common-law analogue," a test the Court runs case by case; and in the *qui tam* setting it examined the founding-era practice directly and pronounced the history "well nigh conclusive."<sup>543</sup> A court that demands a documented historical analogue from the citizen seeking to come in cannot, without applying its own rule by the identity of the party, refuse to examine the historical pedigree of the immunity that turns him away at the exit. The examination the genealogy performs is not an indulgence the plaintiff

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<sup>543</sup> *TransUnion LLC v. Ramirez*, 594 U.S. 413, 424–25 (2021) (the concreteness test, in the words the text quotes); *Spokeo, Inc. v. Robins*, 578 U.S. 330, 340–41 (2016) (same; standing "grounded in historical practice"); *United States v. Texas*, 599 U.S. 670, 677 (2023) ("precedent, history, or tradition"); *Vermont Agency of Nat. Res. v. United States ex rel. Stevens*, 529 U.S. 765, 774–78 (2000) (examining the founding-era *qui tam* practice, with the finding the text quotes). The Court thus performs, at the standing threshold, exactly the antecedent examination the immunity chain is never made to undergo. See chapter 6.2.

requests; it is the procedure the Court already requires — directed, for once, at the doctrine rather than at the person the doctrine excludes.

## **6.5 Conclusion to Part 6**

The federal courthouse is closed from both ends, and the closure has one ancestor. The doctrine that turns the citizen away at the door and the doctrine that turns him away once inside are not separate fields of law that happen to share a tendency. They are the two halves of a single royal prerogative — that the Crown owns the community's wrongs, and that the Crown can do no wrong — stated by Blackstone in companion chapters of one book, repudiated by name at the Founding, and rebuilt, half by half, by twentieth-century judicial construction. Traced from the bottom up, neither half identifies a constitutional source at any node; one entered the law by citation rather than adjudication, the other by promoting a 1970 statutory gloss to a constitutional floor. They have traveled together at every historical stratum, are enforced today through a single constitutional clause made to perform two contradictory offices, and have never once cited each other — because each half's premise is the other's barred door. Operating together, they reconstitute the sealed loop of 1607: no proof may be heard against the official's act, the grievance lies only before the political branches, and those branches owe the injured party no remedy. The promise of accountability opens, as it always did, onto a wall.

What makes the apparatus vulnerable is what the Conclusion to Parts 2 and 3 found made the doctrine vulnerable, with one addition: it has held because threshold doctrines dispose of cases before the merits, because the structural questions are never reached, and because the two chains are never measured against each other. Measured against each other, neither survives the other's defence (chapter 6.4 § E). The two locks were fitted to a door the People were promised

would stay open. The key has been in their hands the whole time. It is the question the doctrines have never been asked — and cannot survive.



## CONCLUSION

This book set out to do two things with one decree, to restore the record it was made by destroying and to put the question it reserved to every order that has answered it, and a third with the prerogative behind the decree, to hold its two halves in one hand. The six Parts are now in, and what they return can be stated in the order they were read.

Part 1 restored the record. The case that founded official immunity was a documented miscarriage of justice, a death by drowning recast as murder, a conviction on examinations taken down in a language the witnesses did not speak, and a court that answered the surviving kinsman's sworn complaint against the trial judge by defacing it. The report that carried the rule out of that court stated its root sentence backwards; the forum the rule reserved was tested once from above, in 1616, against the rule's own author, and once from below, in 1618, against a subject who was punished for asking; and the legal order that made the rule dismantled the court, its methods and its premise, feature by feature, between 1641 and 1701. What stood ready for reception in 1791 was the repudiation. Parts 2 and 3 followed what was received instead, and their Conclusion, placed where the American argument ends, states it: a 1607 decree received in 1868 by a citation that read the report and not the record, read into a statute that makes "every person" liable, carried to the presidency on a same-day pair of decisions that could not supply each other's authority, resting at every node on a hypothetical credited for the official and never tested against the citizen, keeping of a tradition that ran in three directions the one strand that shielded the official, a strand that descends through Coke's own *Marshalsea* from the decision that forbids it, and rebuilding, lock for lock, the mechanism the Founding cut. The rule's operative clause transferred the subject's plea to a King who never answered one, and the

Republic has no officer to whom such a transfer can run. When the Hunzikers, two farmers without counsel, put the source in issue in 1989, the answer came in a footnote of an order the court kept out of the record of the law. Measured by the receiving order's own law, the act that made the rule is the wrong the rule exists to foreclose. Those are the two grounds, and either bars the rule at the threshold.

Part 4 put the same question to other sovereigns and returned a finding in six parts, stated as the texts allow it. On the question the subject asks, who pays for the wrong done to him, England's *de jure* law answers as the codes of Moscow, Beijing, Pyongyang and Riyadh answer, and not as the kingdoms of the continent answer, which moved that cost onto the State. On the question the sovereign asks, whether the judge is exposed for his decision, the association inverts: England's judge is the most immune of all, while the authoritarian codes keep the judge personally punishable and removable by a political or supervisory organ. The Coke-era exposure of the judge that Part 1 records survives in those codes as an instrument of control and was extinguished in England. The Saudi code is the closest formal twin of the English rule: a nullification clause, discipline as the only door, and the door held by the judiciary's own council. Anglo-American immunity therefore shares with the authoritarian codes the nullification of the subject's remedy and differs from them by also nullifying the sovereign's; the kingdoms differ from both by paying. What the authoritarian codes operate is the King's half of Coke's sentence, "the King himself shall take account of it, and no other"; the subject's half, the duty "to deliver justice to all his subjects," has a forum in neither England nor those codes.<sup>544</sup> The kingdoms show the alternative that was always available, a forum that receives the subject's plea and answers it without exposing the judge to the sovereign's displeasure, the channel the rule promised and England never built; and England's own eighteenth-century record shows the channel once open

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<sup>544</sup> *Floyd v. Barker*, 12 Co. Rep. at 25, 77 Eng. Rep. at 1307.

to every servant but the judge, so that the transmission removed, with the King's forum, the servant's exposure that had made the King's immunity tolerable in 1701. England's chain no longer names its first link; the American chain alone carries the Star Chamber's sentence forward under the victim's name. America stands with England on both axes and adds the fact the book's vocabulary exists to catch: its *de jure* law channels the plea and its common law nullifies it, so that the American position is a statement about the corpus and not the text, and the distance between the two is the finding.

Part 5 reached back before 1607 and read six orders for what each did with the judge's answer. Every one answered the judge with a remedy and stated his duty, and none answered him with a shield: twelvefold restitution and expulsion in Babylon; appeal and the citizen's post-audit charge in Athens; the subject's action, the Code's penalty on the judge who judged badly and the sovereign's prosecution in Rome; both remedies kept in Byzantium, with a salaried bench and an emperor bound to the laws; duty in the Frankish capitularies and death for the bribed judge in the Frankish law; a fine to the king and the loss of every judicial dignity in England from 959, the judge's oath that he knew no better a defence to the penalty that bars no complaint and closes no forum. On no page read did any of the six exempt a judge, for what he did as judge, from the remedy its own text provided. The rule of 1607 is not the common inheritance of legal orders; among the orders this book has read, it is the exception.

Part 6 opened the other door. The doctrine that turns the citizen away at the threshold, traced by the same method, returned the same finding: a chain running from *Tyler* in 1900 to *Texas* in 2023 that produces a constitutional source at no node, whose decisive term was coined in 1970 as a statutory liberalization and constitutionalized only after 1982, whose pedigree the First Congress's own informer statutes refute, and which dismissed at the door in 2007 the claim

the Court had decided on the merits in 1932 under the same clause. The two doctrines proved to be the halves of one prerogative, stated by Blackstone in companion chapters on one premise, repudiated by name at the Founding, travelling in pairs at every stratum from 1607 to 2024, enforced through one clause made to perform two contradictory offices, run on one device of particularization demanded strictly of the citizen and loosely of the official, and never once citing each other, because each half's premise is the other's barred door. Defended together they cannot stand: the tradition that would save the shield restores the standing it denies, and the text that would save the screen strips the shield. The courthouse is closed from both ends, and the closure has one ancestor.

The degree of examination is stated so that the whole is not read for more than it is. For the American order the book has measured the *de jure* law, the common law, the congruency between the two and the adherence to *stare decisis*, at the record and from the bottom up. For England it has measured the *de jure* law and, in Parts 1 and 4, the common law and its congruency in part. For every other order it has classified the *de jure* law, the text as written, and has not measured that order's common law, its congruency or its adherence to precedent; where a text was read in translation or a title left unread, the Part says so. The comparative finding is therefore a classification of texts, and the book claims nothing more for it. The archival finding is a reading of a record, checked by a professional hand, and the book claims exactly that for it.

What remains is the observation on which the American Conclusion closed, now with the wider record behind it and the other door in view. The doctrine has held because it has never been made to account for itself, and an absence of holding is not precedent. A court faithful to every decided case can still require the shield, and the screen, to show the warrant each has presupposed and never produced, can decide the structural questions the lineage never reached,

and can accept the critiques that hold even if the doctrines are assumed sound. The Founding's answer to the fear the doctrine invokes was to bind the official and keep a forum open for the citizen he wrongs; the kingdoms that kept such a forum are the ones whose immunity is narrowest; and the older record knew no other answer. Restoring that answer demands the overruling of nothing. It demands that enforcement capacity precede the compliance it is invoked to compel. A fear answered by a fear leaves the scale where it was. A record removes the scale. The record exists, and this book has read it. The questions that would undo the doctrine have gone unanswered because they have gone unput, and the remedy is the simplest one the law affords: ask.

## NOTES

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